

The Revised Rules of Court

PART III REVISED RULES OF CRIMINAL PROCEDURE

RULE 110 – 127

RULES OF COURT

Section 3. Cases governed. — These Rules shall govern the procedure to be observed in actions, **civil or criminal and special proceedings**.

(a) A civil action is one by which a party sues another for the enforcement or protection of a right, or the prevention or redress of a wrong. (1a, R2)

A civil action may either be ordinary or special. Both are governed by the rules for ordinary civil actions, subject to the specific rules prescribed for a special civil action. (n)

(b) A criminal action is one by which the State prosecutes a person for an act or omission punishable by law. (n)

(c) A special proceeding is a remedy by which a party seeks to establish a status, a right, or a particular fact. (2a, R2)

Application of Rules of Criminal Procedure

The rules of criminal procedure are given retroactive application insofar as they benefit the accused

Application of other special rules of procedure in criminal cases

- 1) Child witness examination rule
- 2) Electronic device rule

Q: Are text messages admissible in evidence in criminal cases?
A: Yes
- 3) Judicial affidavit rule
 - When the maximum penalty imposable does not exceed 6 years, or when the accused agrees to the use of judicial affidavits irrespective of the penalty involved, and with respect to the civil aspect of the action
- 4) Revised Rules of Procedure in Intellectual Property Rights
- 5) Revised guidelines on continuous trial in criminal cases

XPN: criminal cases falling under the rules on summary procedure
- 6) Rules on Cybercrime Warrants
- 7) Rules on writ of amparo
- 8) Rules of writ of habeas data
- 9) Rules of procedure in environmental cases

CRIMINAL PROCEDURE

Sources of Rules on Criminal Procedure (Tan)

- 1) 1987 Philippine Constitution
- 2) Rule 110 – 127 of the Revised Rules of Criminal Procedure
- 3) Other laws
- 4) Provisions of Civil Code (Arts 32, 33, 34 and 2176)
- 5) Provisions of the RPC (Art 2, 100 and 125)
- 6) Manual of prosecutors
- 7) DOJ circulars
- 8) Administrative Memorandums

CRIMINAL LITIGATION PROCESS

Laws relating to the criminal litigation process

- 1) Rule 110 – 127 of the Revised Rules of Criminal Procedure
- 2) Issuances or circulars released by the SC which supplements, amend or modify the Rules of Court

PRELIMINARY CONSIDERATIONS

Commission of a crime

The criminal litigation process **presupposes that there is a crime that has been committed or there is alleged to be committed**. Otherwise, if there is no crime the process will not begin in the first place.

Commencement of the application of criminal procedure

The application of the criminal procedure **will not be triggered by the commission of the crime or the allegation of a crime**, there must be **contact with the law**.

Contact with the law

It is that phase **after the commission of the crime** where the criminal act is brought to the attention of the authorities and the offender is arrested **either by a duly issued warrant or a valid warrantless arrest**. **It triggers the criminal litigation process**.

Other ways in coming in contact with the law

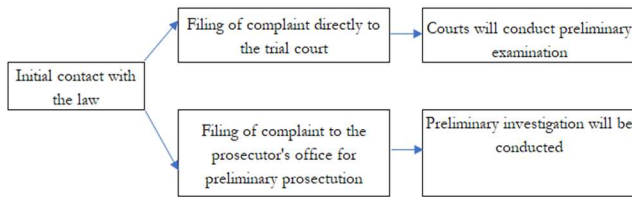
- 1) Valid arrest with a warrant
- 2) Valid search with a warrant
- 3) Search and seizure conducted without a warrant under recognized exceptions to the general rule
- 4) In instances covered by the Katarungang Pambarangay Law under the Local Government Code

Institution of the criminal action; preliminary investigation

Preliminary investigation - is an inquiry aimed whether a crime has been committed, whether the person complained of is probably guilty thereof and hence, must be held for trial. It is aimed in finding probable cause to charge the respondent in court. Up



until this point all these processes under the criminal litigation process are conducted by the executive branch of the government (police, enforcement officers, private persons).



- ✓ It is only when a criminal information is filed in court that a criminal case is already brought to the judicial system. It is now the court which has the exclusive jurisdiction or power to dispose of the criminal case

Duty of the court upon filing of the complaint or information

- 1) **Not yet arrested** – to determine whether there is **probable cause** to issue a warrant of arrest
- 2) **Already arrested** – issue a **commitment order**

Availment of provisional remedies

After the filing of the information or the complaint, the party may avail provisional remedies such as preliminary attachment, injunction, and temporary restraining order.

Bail

Bail may be availed **before or after** the filing of an information or complaint in court. A person under the custody of law may file or apply for bail before or after he is formally charged criminally. Bail is a constitutional right and granted for temporary liberty.

Arraignment

Whether or not the accused is under detention or out of bail, the court shall thereafter set the case for arraignment.

Arraignment - is the formal mode and manner of implementing the constitutional right of an accused to be informed of the nature and cause of the accusations against him. Without arraignment, the accused is not deemed to have been informed of such accusation. It will be a violation of his right to be informed.

Pre-trial

During pre-trial and cases where it is allowed to be settled, the court usually issue an order that it will go to the mediation before it will continue. But in most of the cases that are not covered by the court annex mediation, then it will proceed to pre-trial where they will discuss plea bargaining, stipulation of facts, marking of evidence, waiver of objections to admissibility, possible modification of the order of trial, and such other matters that will promote a fair and expeditious trial of the criminal and civil aspect. If there was **no reservation on the filing of a separate**

civil action, then the civil action ex delicto is deemed instituted in the criminal case.

Trial

The result of the pretrial conference shall control the proceedings during trial. Within **thirty days** from the receipt of the pre-trial order, trial shall commence.

- 1) The state is first to present evidence.
- 2) The accused in a proper case may opt to file a demurrer of evidence on the ground of insufficiency of evidence.

Demurrer of evidence – that the state failed to present evidence that prove beyond reasonable doubt that the elements of a crime are present.

- 3) If there is no demurrer, it is the time the accused presents his evidence.
- 4) If there is a reverse trial order, when the accused has evidence of exempting circumstances, it will be the defense who will show first the evidence
- 5) In any case, when both parties have already presented, the Court may allow the parties to present additional evidence for rebuttal
- 6) Judgment will follow

Judgment

A judgment is the adjudication by the court on the guilt or innocence of the accused and the imposition of the penalty.

GR: The judgment must be promulgated by reading it in the presence of the accused and any judge in which it was rendered

XPN: Unless it is for a **light offense**, in which case judgment may be pronounced in the presence of the accused's counsel or representative.

Post-judgment remedies

The person convicted is allowed by the Rules of Court certain remedies to modify or reverse the judgment of conviction within the period to appeal. Under existing law, the period to appeal is within **15 days** from notice of the judgment or final order. Within the same period, the court may at its own discretion or upon motion of the accused reopen the hearing to avoid miscarriage of justice. The accused may also move for a reconsideration or new trial.

Otherwise, if the accused has no further action, the conviction will become final and judgment will be entered. It will be passed back to the executive branch for the execution of penalty.

Entry of judgment

When all remedies have been exhausted and the judgement has become final, the same shall be entered in accordance with existing rules.

BASIC CONCEPTS



Criminal procedure - Defined as the rules of law governing the procedures by which crimes are investigated, prosecuted, adjudicated and punished

Procedural law as applied to criminal law provides or regulates the steps by which one who committed the crime is to be punish. (*People v. Lacson*)

Criminal law v. criminal procedure

Criminal law	Criminal procedure
Substantive law	Procedural law
Defines crimes, treats of its nature, and provides for its penalties	Provides for how crimes are investigated, prosecuted, adjudicated and punished
Statutes imposing penalty, fine and punishment for certain offenses of a public nature or wrongs committed against the state	Network of laws and rules which governs the procedural administration of criminal justice

The ultimate goal of criminal procedure

It is not to send people to jail, but to do justice. Criminal procedure has the imposing task of balancing clashing societal interest primarily between those of the government or the state and those of the individual.

Criminal procedure, therefore, has an ultimate goal of harmonizing the governmental functions of maintaining peace and order and protecting constitutional rights of its citizens.

Criminal provisions also make sure to limit the immense power of the state only up to the point that the state won't violate the constitutional rights of the individuals

Construction of the Rules of Court

Section 6. Construction. — These Rules shall be liberally construed in order to promote their objective of securing a just, speedy and inexpensive disposition of every action and proceeding. (2a)

In dubio pro reo – when there is doubt, the case should be resolved in favor of the accused

Since the appeal involves criminal cases, and the possibility of a person being deprived of liberty due to a procedural lapse militates against the Court's dispensation of justice, the Court grants petitioner's plea for a relaxation of the Rules. For rules of procedure must be viewed as **tools to facilitate the attainment of justice, such that any rigid and strict application thereof which results in technicalities tending to frustrate substantial justice must always be avoided.** (*Cariaga v. People*)

Nature of criminal procedure

The system of criminal procedure in our jurisdiction is **accusatorial or adversarial** in contrast with the inquisitorial system of procedure.

As a general rule a court proceeding in our judicial set-up is accusatorial or adversary and not inquisitorial in nature. It contemplates two contending parties before the court, which hears them impartially and renders judgment only after trial. This basic philosophy would be violated if a judge were permitted to act as inquisitor, pursue his own independent investigation, arrive at a conclusion *ex-parte*, and then summon the party affected so as to enable him, if that were still possible, to show that the conclusion thus arrived at is without justification. (*Queto v. Catolico*)

Adversarial v. inquisitorial system

Accusatorial system	Inquisitorial system
The role of the judge is passive; he will only rely largely on the evidence presented by both sides and will render to acquit of convict; he may seek clarificatory questions	The role of the judge is active and is not limited to the evidence presented before him; he is allowed to actively question the accused or witness
The counsel is active	The counsel is passive; the most they can do is to object against the constitutional rights of their clients

JURISDICTION

Jurisdiction – defined as the power of the court to hear and decide cases and to execute judgment thereon.

When should the issues of jurisdiction be raised?

Jurisdiction can be raised **at any stage** of the proceedings, even on appeal, and is not lost by waiver or estoppel.

To whom is it vested?

It is vested in the court and not the judge

What law should be applied to determine jurisdiction in connection with the commission of the crime?

Jurisdiction being a **matter of substantive law**, the established rule is that the **statute in force at the time of the commencement of the action determines the jurisdiction of the court.**

Classification of jurisdiction

- 1) General – The power of the court to adjudicate all controversies except those expressly withheld from the plenary powers of the court. It extends to all controversies which may be brought before a court within the legal bounds of rights and remedies
- 2) Special or limited – one which restricts the court's jurisdiction only to particular cases and

subject to such limitations as may be provided by the governing law.

- 3) Original – The power of the court to take judicial cognizance of a case instituted for judicial action for the first time under the conditions provided by the law
- 4) Exclusive – the power to adjudicate a case or proceeding to the exclusion of all other courts at that stage
- 5) Exclusive original – the power of the court to take judicial cognizance of a case instituted for judicial action for the first time under the conditions provided by the law, and to the exclusion of other all other courts
- 6) Appellate – The power and authority conferred upon a superior court to rehear and determine causes which have been tried in lower courts, the cognizance which a superior court takes of a case removed to it, by appeal or a writ of error, from the decision of a lower court, or the review by a superior court of the final judgment or order of some lower courts
- 7) Concurrent – (confluent or coordinate jurisdiction), the power conferred upon different courts, whether of the same or different ranks, to take cognizance at the same stage of the same case in the same or different judicial territories.
- 8) Delegated
- 9) Territorial

REQUISITES FOR THE EXERCISE OF CRIMINAL JURISDICTION

Criminal Jurisdiction- power and authority to hear and try a particular offense and impose the punishment for it (*Antiporda Jr v. Garchitorena*)

REVIEW:

Due process in **criminal proceedings**:

- 1) That the court or tribunal trying the case is properly clothed with judicial power to hear and determine the matter before it. (**Court of competent jurisdiction**)
- 2) That jurisdiction is lawfully acquired by it over the person of the accused. (**Within authority and proceeded against the orderly process of the law**)
- 3) That the accused is given the opportunity to be heard and the judgment is rendered upon lawful hearing (**notice and hearing**)

3 Matters of Jurisdiction

- 1) The court must be clothed with proper jurisdiction over the subject matter of the offense charged
- 2) The court must have validly acquired jurisdiction over the person of the accused either by warrant of arrest or voluntary submission

- 3) The court must have jurisdiction over the place or territory where the crime is committed

Beyond the pale of disagreement is the legal tenet that a court acquires jurisdiction to try a criminal case only when the following requisites concur:

- 1) the offense is one which the court is by law authorized to take cognizance of, (**Jurisdiction over the subject matter**)
- 2) the offense must have been committed within its territorial jurisdiction, and (**Jurisdiction over the territory**)
- 3) the person charged with the offense must have been brought in to its forum for trial, forcibly by warrant of arrest or upon his voluntary submission to the court. (**Jurisdiction over the person of the accused**)

(*Antiporda Jr v. Garchitorena*)

- ✓ **The concurrence of all of the 3 matters is essential in order for the court to proceed to exercise its jurisdiction**

Being a civil liability arising from the offense charged, the governing law is the Rules of Criminal Procedure, not the civil procedure rules which pertain to civil action arising from the initiatory pleading that gives rise to the suit. (*Cruz v. CA*)

Criminal jurisdiction over the subject matter

Jurisdiction over the subject matter – power to hear and determine the general class to which the proceedings in question belong

Two-pronged process

- 1) **How the criminal jurisdiction is conferred**
 - A question of law
 - Not procedural but substantive
 - Purports that there must be a **law which grants a particular court/s the jurisdiction** to try a specific crime or case. **Provisions of the law must be inquired into.**
 - If a court has no subject matter jurisdiction then it has no power or authority to hear or to determine the issues or the facts and the law pertaining to that particular case. Any judgment, order, or resolution, which was issued by that particular court will be considered **void and cannot be given effect.**

Other concepts of subject matter jurisdiction

- It cannot be conferred by consent or acquiescence
- It cannot be acquired through waiver or enlarged by omission of the parties
- It is conferred by law



2) How the subject matter jurisdiction is to be determined

- For the court to determine whether it has jurisdiction, it must look into the allegations of the written accusation for it to know whether or not the offense charged therein is within its jurisdiction as conferred by law.

What is the remedy of the accused if the court has no jurisdiction over the subject matter of the offense?

It shall be a ground for a motion to quash under Sec 3, Rule 117 and the case will be dismissed

Case law has it that in order to determine the jurisdiction of the court in criminal cases, the complaint or Information must be examined for the purpose of ascertaining whether or not the facts set out therein and the prescribed period provided for by law are within the jurisdiction of the court, and where the said Information or complaint is filed. It is settled that the jurisdiction of the court in criminal cases is determined by the allegations of the complaint or Information and not by the findings based on the evidence of the court after trial. Jurisdiction is conferred only by the Constitution or by the law in force at the time of the filing of the Information or complaint. Once jurisdiction is vested in the court, it is retained up to the end of the litigation. (*Mobilia Products v. Umezawa*)

Principle of adherence to jurisdiction or continuing jurisdiction

Concept

Where a court has already obtained and is exercising jurisdiction over a controversy, its jurisdiction to proceed to the final determination of the cause is not affected by new legislation placing jurisdiction over such proceedings in another tribunal unless the statute expressly provides, or is construed to the effect that it is intended to operate on actions pending before its enactment.

Indeed, R.A. No. 7691 contains retroactive provisions. However, these only apply to civil cases that have not yet reached the pre-trial stage. Neither from an express proviso nor by implication can it be construed that R.A. No. 7691 has retroactive application to criminal cases pending or decided by the Regional Trial Courts prior to its effectivity. The jurisdiction of the RTC over the case attached upon the commencement of the action by the filing of the Information and could not be ousted by the passage of R.A. No. 7691 reapportioning the jurisdiction of inferior courts, the application of which to criminal cases is prospective in nature (*Palana v. People*)

- ✓ The jurisdiction of the court is referred to as continuing in view of the general principle that once a court has acquired jurisdiction, that jurisdiction continues until the court has done

all that it can do in the exercise of that jurisdiction

XPNs:

- 1) Statute expressly provides
- 2) Statute is construed to the effect that it is intended to operate on actions pending before its enactment

Criminal jurisdiction over the territory

Territorial jurisdiction - in criminal cases, is the territory, where the court has jurisdiction to take cognizance or to try the offense allegedly committed therein by the accused.

How is the territorial jurisdiction of the court determined?

- 1) Geographical limits of the territory over which it presides
- 2) The actions it is empowered to hear and decide

The place where the crime was committed determines not only the venue of the action but is an essential element of jurisdiction. It is a fundamental rule that for jurisdiction to be acquired by courts in criminal cases, the offense should have been committed or any one of its essential ingredients should have taken place within the territorial jurisdiction of the court. Territorial jurisdiction in criminal cases is the territory where the court has jurisdiction to take cognizance or to try the offense allegedly committed therein by the accused. Thus, it cannot take jurisdiction over a person charged with an offense allegedly committed outside of that limited territory. Furthermore, the jurisdiction of a court over the criminal case is determined by the allegations in the complaint or information. And once it is so shown, the court may validly take cognizance of the case. However, if the evidence adduced during the trial shows that the offense was committed somewhere else, the court should dismiss the action for want of jurisdiction. (*Treñas v. People*)

Territorial jurisdiction	Subject matter jurisdiction
Principle of adherence to jurisdiction cannot be applied	Principle of adherence to jurisdiction can be applied

What is the remedy of the accused if the court has no jurisdiction over the subject matter of the offense?

It shall be a ground for a motion to quash under Sec 3, Rule 117 and the case will be dismissed

Criminal jurisdiction over the person of the accused

How jurisdiction over the person of the accused acquired

[A]n accused cannot seek any judicial relief if he does not submit his person to the jurisdiction of the court.

Jurisdiction over the person of the accused may be acquired either through **compulsory process, such as warrant of arrest**, or through his **voluntary appearance, such as when he surrenders to the police or to the court**. It is only when the court has already acquired jurisdiction over his person that an accused may invoke the processes of the court (*Miranda v. Tuliao*)

- It is a settled doctrine that jurisdiction over the person of the accused is acquired upon the
- 1) **arrest or apprehension with or without warrant** or
 - 2) his **voluntary appearance or submission** to the jurisdiction of the court.
 - Either by himself or with a counsel
 - **GR:** It is when the accused asks for **affirmative relief** from the court
 - Filing of a motion to quash
 - Filing motion for dismissal
 - Filing of motion for the determination of probable cause
 - Accused enters into a counsel-assisted plea and actively participates in the trial and presents evidence
- XPN:** If precisely the seeking of the affirmative relief is through questioning the jurisdiction of the court, then that will no longer be deemed as a voluntary submission to the jurisdiction of the court.

Where the appearance is by motion for the purpose of objecting to the jurisdiction of the court over the person, it must be for the sole and separate purpose of objecting to the jurisdiction. If the appearance is for any other purpose, the defendant is deemed to have voluntarily submitted himself to the jurisdiction of the court. Such appearance gives the court jurisdiction over the person of the accused. (*Cojuangco v. Sandiganbayan*)

Custody of law v jurisdiction over the person of the accused

- Being in custody of the law is not necessarily being under jurisdiction of the court.

Custody of the law is required before the court can act upon the application for bail, but is **not required for the adjudication of other reliefs sought by the defendant where the mere application therefor constitutes a waiver of the defense of lack of jurisdiction over the person of the accused.** (*Miranda v. Tuliao*)

Custody of the law	Jurisdiction over the person of the accused
Signifies restraint on the person, who is thereby deprived of his own will and liberty, binding him to become obedient to the will of the law	Acquired compulsorily (arrest) or voluntarily (voluntary submission)
Custody over the body of the accused	Jurisdiction over the person of the accused
A person applying for admission to bail must be in the custody of the law or otherwise deprived of his liberty.	A person applying for admission to bail does not necessarily have to be already within the jurisdiction of the Court

What it the remedy of the accused if the court has no jurisdiction over the person?

It shall be a ground for a **motion to quash** under Sec 3, Rule 117 and the case will be dismissed

OBJECTIONS ON JURISDICTIONAL GROUNDS

Jurisdiction over the subject matter

GR: When an objection is based on the ground that the courts lack jurisdiction over the subject matter, such objection may be raised or considered motu proprio by the court on its own discretion at any stage of the proceedings and even on the appeal.

XPN: The party may be **estopped** for reasons of public policy as when he initially invokes the jurisdiction of the court and then later on repudiates that same jurisdiction. This is a limited exception. (*Tijam v. Sibonghanoy*)

Rules on estoppel on the question of jurisdiction

The operation of the principle of estoppel on the question of jurisdiction seemingly **depends upon whether the lower court actually had jurisdiction or not.**

- 1) If it had no jurisdiction, but the case was tried and decided upon the theory that it had jurisdiction, the **parties are not barred**, on appeal, from assailing such jurisdiction, for the same must exist as a matter of law and may not be conferred by consent of the parties or by estoppel.
- 2) However, if the lower court had jurisdiction, and the case was heard and decided upon a given theory, such, for instance, as that the court had no jurisdiction, the **party who induced it to adopt such theory will not be permitted, on appeal, to assume an inconsistent position - that the lower court had jurisdiction.** Here, the principle of estoppel applies.

The rule that jurisdiction is conferred by law and does not depend upon the will of the parties, has no bearing thereon. (*Cabrera v. Clarin, citing Tijam v. Sibonghanoy*)

Jurisdiction of the person of the accused

GR: Acts seeking affirmative relief would constitute the voluntary appearance or submission to the jurisdiction of the court.

XPN: Making a special appearance to the court to question the jurisdiction of the court over the person of the accused is **not** considered a voluntary submission to the jurisdiction of the court

INJUNCTION

Injunction – putting a stop to or preventing criminal prosecution

- Injunction will not lie to enjoin a criminal prosecution

RATIONALE: Public interest requires that criminal acts be immediately investigated and prosecuted for the protection of society

GR: Injunction will not be granted to **restrain criminal prosecution since public interest** requires the criminal acts be immediately investigated and prosecuted for the protection of society.

XPNS:

- 1) When the injunction is necessary to afford adequate protection to the **constitutional rights** of the accused
- 2) When it is necessary for the **orderly administration of justice** or to avoid oppression or multiplicity of actions
- 3) When there is a **prejudicial question which is *subjudice***
- 4) When the acts of the officer are **without or in excess of authority**
- 5) Where the prosecution is under **an invalid law, ordinance or regulation**
- 6) When **double jeopardy is clearly apparent**
- 7) Where the court has **no jurisdiction over the offense**
- 8) When it is a case of **persecution rather than prosecution***
- 9) When the charges are **manifestly false and motivated by lust for vengeance**
- 10) When there is clearly **no prima facie case against the accused and a motion to quash on that ground has been denied**

**the careless inclusion of a person in the warrant of arrest is an act of persecution rather than prosecution*

MANDAMUS

Mandamus - for one to demand or compel a public officer to do his job or duty that is prescribed by law

- a remedial measure for parties aggrieved which shall be issued when any tribunal, corporation, board, officer, or person unlawfully neglects a performance of an act which the law specifically enjoins as a duty resulting from an office, a trust, or station

- is the relief sought "[w]hen any tribunal corporation, board, officer or person unlawfully neglects the performance of an act which the law specifically enjoins as a duty resulting from an office, trust, or station," and "there is no other plain, speedy and adequate remedy in the ordinary course of law."

GR: Mandamus **cannot** be resorted to in order to **compel a criminal prosecution**

XPN: After determination of probable cause, it becomes the **mandatory duty of the prosecutor to file the case before the court**. Otherwise, the **non-filing of the criminal case** despite the finding of probable cause will be considered a grave abuse of discretion or a deliberate refusal to perform a duty enjoined by law by the prosecutor and therefore, a **proper case for mandamus**

COURTS

Functions of court

- 1) Decide actual controversies and not to give opinions upon abstract propositions
- 2) Apply the law
- 3) Interpret the law

Classification of courts

As to jurisdiction

- 1) Collegiate Courts (Sandiganbayan, Court of Appeals, Court of Tax Appeals and Supreme Court) – those with multiple judges sitting in the court
 - their jurisdiction covers the entire Philippines (whatever is covered by territory of the Philippines)
- 2) Trial Courts, First Level Courts, Municipal Trial Courts, Metropolitan Trial Courts, Municipal Trial Courts and Regional Trial Courts – specific and limited judicial regions over which they have jurisdiction

As to functions

- 1) Regular courts
 - Supreme court
 - Court of appeals
 - Regional trial courts
 - Metropolitan trial courts, municipal trial courts in cities, municipal trial courts, municipal circuit trial courts
- 2) Special courts
 - Sandiganbayan
 - Court of tax appeals
 - Shari'a district courts, shari'a circuit courts

Rule of thumb on original jurisdiction of courts

- 1) Determine whether a particular case is under the jurisdiction of the Sandiganbayan



- 2) Determine whether a particular case is under the jurisdiction of Special Regional Trial Courts or Special Courts (Family Courts, Dangerous Drugs Act Courts, Intellectual Property Courts or Commercial Courts)
- 3) If not proceed to look at regular courts in the following order:
 - a) MTC, MTCC, MCTC - the first level courts
 - b) RTC - that is not designated as a special court. It is called a catch all court because if a criminal case does not fall within the original jurisdiction of any other court, then it will be the regular RTC that will have jurisdiction over it

Original jurisdiction of Sandiganbayan

- PD 1606
- RA 795 – Amended PD 1606
- RA 8249
- RA 10660

1+1=2 METHOD

Rules

- 1) First, determine whether or not the subject crime is that covered under or listed under the Sandiganbayan Law or is a special criminal law which states that it is the Sandiganbayan which has original jurisdiction.
- 2) Second, list down on the second column all the persons covered by the Sandiganbayan Law.

If both rules are satisfied (1+1=2), then the Sandiganbayan has jurisdiction over the case

RA 10660

Section 2. Section 4 of the same decree, as amended, is hereby further amended to read as follows:
"SEC. 4. Jurisdiction. – The Sandiganbayan shall exercise exclusive original jurisdiction in all cases involving:
a) Violations of Republic Act No. 3019, as amended, otherwise known as the Anti-Graft and Corrupt Practices Act, Republic Act No. 1379, and Chapter II, Section 2, Title VII, Book II of the Revised Penal Code, where one or more of the accused are officials occupying the following positions in the government, whether in a permanent, acting or interim capacity, at the time of the commission of the offense:
1) Officials of the executive branch occupying the positions of regional director and higher, otherwise classified as Grade '27' and higher, of the Compensation and Position Classification Act of 1989 (Republic Act No. 6758), specifically including:
A) Provincial governors, vice-governors, members of the sangguniang panlalawigan, and provincial treasurers, assessors,

- engineers, and other provincial department heads;
- B) City mayors, vice-mayors, members of the sangguniang panlungsod, city treasurers, assessors, engineers, and other city department heads;
- C) Officials of the diplomatic service occupying the position of consul and higher;
- D) Philippine army and air force colonels, naval captains, and all officers of higher rank;
- E) Officers of the Philippine National Police while occupying the position of provincial director and those holding the rank of senior superintendent and higher;
- F) City and provincial prosecutors and their assistants, and officials and prosecutors in the Office of the Ombudsman and special prosecutor;
- G) Presidents, directors or trustees, or managers of government-owned or controlled corporations, state universities or educational institutions or foundations.

- 2) Members of Congress and officials thereof classified as Grade '27' and higher under the Compensation and Position Classification Act of 1989;
- 3) Members of the judiciary without prejudice to the provisions of the Constitution;
- 4) Chairmen and members of the Constitutional Commissions, without prejudice to the provisions of the Constitution; and
- 5) All other national and local officials classified as Grade '27' and higher under the Compensation and Position Classification Act of 1989.
- b) Other offenses or felonies whether simple or complexed with other crimes committed by the public officials and employees mentioned in subsection a. of this section in relation to their office.
- c) Civil and criminal cases filed pursuant to and in connection with Executive Order Nos. 1, 2, 14 and 14-A, issued in 1986.

Provided, That the Regional Trial Court shall have exclusive original jurisdiction where the information: (a) **does not allege any damage to the government or any bribery;** or (b) **alleges damage to the government or bribery arising from the same or closely related transactions or acts in an amount not exceeding One million pesos (P1,000,000.00)**

	After RA 10660	Before 10660
Date	May 1, 2015 and onwards	Before May 1, 2015
As to the threshold (column 1)	Introduced a threshold amount (1M) of the damage to the	No threshold needed

	government or to the amount involved in the bribery for it to come under the jurisdiction of the Sandiganbayan	
As to the salary grade in those positions specifically provided by law in column 2	Limited category 2 in the sense that most of the officers and employees should be SG 27 or higher	No limitation as to salary grade

Column 1 (cases which are under the exclusive jurisdiction of the Sandiganbayan)

- 1) Violations of Republic Act No. 3019, as amended, otherwise known as the Anti-Graft and Corrupt Practices Act
- 2) Violations against Republic Act No. 1379, or an Act declaring Forfeiture in favor of the State any property found to have been unlawfully acquired by any public officer or employee and providing for the proceedings therefor
- 3) Crimes committed by public officers under the RPC, Chapter 2, Sec. 2, Title VII of Book 2. We have Article 210 – Direct Bribery, Article 211 – Indirect Bribery, Article 211-A – Qualified Bribery, and Article 212 – Corruption of Public Officials.
- 4) Other offenses or felonies, whether simple or complexed with other crimes, committed by the public officials and employees which are subject to the jurisdiction of Sandiganbayan. This is a catch-all provision which covers all other felonies or crimes which may not necessarily be covered by the Sandiganbayan Law but because the crime is committed by a public officer or employee in relation to his/her office

An offense may be considered as committed in relation to the office if:

- 1) it **cannot exist** without the office; or
- 2) if the **office is a constituent element** of the crime as defined in the statute, such as, for instance, the crimes defined and punished in Chapter Two to Six, Title Seven, of the Revised Penal Code;
- 3) the offense must be **intimately connected** with the office of the offender; and
- 4) the fact that the offense **was committed in relation to the office must be alleged in the information**

This Court had ruled that as long as the offense charged in the information is intimately connected with the office and is alleged to have been perpetrated while the accused was in the performance, though improper or irregular, of his official functions, there being no personal motive to commit the crime and had the accused not have committed it had he not held the aforesaid office, the accused is held to have been indicted for "an

offense committed in relation" to his office. (*People v. Sandiganbayan*)

Rule

- 1) Crimes which may be committed even if not a public official - **requirement of alleging specifically in the information or in the complaint** that a particular crime is committed in relation his office
- 2) Crimes which have for their constituent element ‘public office’ as provided in the statute defining it - **no need for the information to state that specific factual allegations** of the intimacy between the office and the crime charged or the accused committed the crime in the performance of his duties.

From the **allegations** of the information it does not appear that the official positions of the accused were connected with the offenses charged. In fact, the attorneys for the prosecution of stated that the motives for the crimes were "personal with political character." It does not even appear, nor is there assertion, that the crimes were committed by the defendants in line of duty or in the performance of their official functions.

Public office is not of the essence of murder. The taking of human life is either murder or homicide whether done by a private citizen or public servant, and the penalty is the same except when the perpetrator, being a public functionary, took advantage of his office, as alleged in this case, in which event the penalty is increased.

But the use or abuse of office does not adhere to the crime as an element; and even as an aggravating circumstance, its materiality arises, not from the allegations but on the proof, not from the fact that the criminals are public officials but from the manner of the commission of the crime.

Incidentally, **this might serve as a warning against disqualifying a lawyer legislator on the basis of what is alleged and not on the nature of the offense itself.** Where the petitioners' proposition sustained, the result would be that in every case in which the accused is a public officer or employee, the prosecution could at will keep a member of Congress from entering an appearance as attorney for the defense. The prosecutor could do this by the simple expedient of making the necessary averments, even though, as a matter of fact, there was no evidence that the office held by the defendant had anything to do with the offense.

By the same token, the fact that, as alleged, the defendants made use of firearms which they were authorized to carry or possess by reason of their positions, could not supply the required connection between the office and the crime. Firearms however and wherever obtained are not an ingredient of murder or homicide. The crime in question, for

example, could have been committed by the defendants in the same or like manner and with the same case if they had been private individuals and fired with unlicensed weapons. Murders or homicides by private persons with guns, licensed or unlicensed are the general rule and by public officers the exception. (*Montilla v. Hilario*)

XPN:

It is apparent from these allegations that, although public office is not an element of the crime of murder in abstract, as committed by the main respondents herein, according to the amended information, the offense therein charged is intimately connected with their respective offices and was perpetrated while they were in the performance, though improper or irregular, of their official functions. **Indeed, they had no personal motive to commit the crime and they would not have committed it had they not held their aforesaid offices.** The co-defendants of respondent Leroy S. Brown, obeyed his instructions because he was their superior officer, as Mayor of Basilan City. (*People v. Montejo*)

In *People v. Montejo*, we ruled that an offense is said to have been committed in relation to the office if the offense is "intimately connected" with the office of the offender and perpetrated while he was in the performance of his official functions. This intimate relation between the offense charged and the discharge of official duties must be alleged in the Information. This is in accordance with the rule that the factor that characterizes the charge is the actual recital of the facts in the complaint or information. Hence, where the information is wanting in specific factual averments to show the intimate relationship/connection between the offense charged and the discharge of official functions, the Sandiganbayan has no jurisdiction over the case.

xxBut he imposed a condition before extending such recommendation - she should be his girlfriend and must report daily to his office for a kiss. There can be no doubt, therefore, that petitioner used his official position in committing the acts complained of. While it is true, as petitioner argues, that public office is not an element of the crime of acts of lasciviousness, defined and penalized under Article 336 of the Revised Penal Code, nonetheless, he could not have committed the crimes charged were it not for the fact that as the Presiding Judge of the MTCC, Branch I, Cabanatuan City, he has the authority to recommend the appointment of Ana May as bookbinder. In other words, the crimes allegedly committed are **intimately connected** with his office. (*Esteban v. Sandiganbayan*)

Petitioner claims that she is not a public officer with Salary Grade 27; she is, in fact, a regular tuition fee-paying student. This is likewise bereft of merit. **It is not only the salary grade that determines the jurisdiction of the Sandiganbayan. The Sandiganbayan also has jurisdiction over other officers enumerated in P.D. No. 1606.** In

Geduspan v. People, We held that while the first part of Section 4(A) covers only officials with Salary Grade 27 and higher, its second part specifically includes other executive officials whose positions may not be of Salary Grade 27 and higher but who are by express provision of law placed under the jurisdiction of the said court. Petitioner falls under the jurisdiction of the Sandiganbayan as she is placed there by express provision of law.

Section 4(A)(1)(g) of P.D. No. 1606 explicitly vested the Sandiganbayan with jurisdiction over **Presidents, directors or trustees, or managers of government-owned or controlled corporations, state universities or educational institutions or foundations. Petitioner falls under this category.** As the Sandiganbayan pointed out, the BOR performs functions similar to those of a board of trustees of a non-stock corporation. **By express mandate of law, petitioner is, indeed, a public officer as contemplated by P.D. No. 1606.**

Moreover, it is well established that **compensation is not an essential element of public office.** At most, it is merely incidental to the public office. (*Serana v. Sandiganbayan*)

Jurisdiction of Sandiganbayan in specific special criminal laws

1) Anti-Money Laundering Cases

RA 9160

SEC. 5. *Jurisdiction of Money Laundering Cases.* — The regional trial courts shall have jurisdiction to try all cases on money laundering. **Those committed by public officers and private persons who are in conspiracy with such public officers shall be under the jurisdiction of the Sandiganbayan.**

2) Plunder

RA 7080

Section 3. *Competent Court* - Until otherwise provided by law, **all prosecutions under this Act shall be within the original jurisdiction of the Sandiganbayan.**

Private persons

The controlling doctrine here is that **a private person may be charged in conspiracy with a public officer or officers.** There must be an element of a perpetrator that is a public official which comes under the jurisdiction of the Sandiganbayan only then, a private person also be impleaded or included in the case that is filed. Hence, it is a settled rule that a private person when acting in conspiracy with public officers may be indicted and if found guilty held liable for criminal violations defined and penalized under our laws. Even if the public officer to whom the private person conspired with dies during the trial, death extinguishes criminal liability but **the extinguishment of the criminal liability of the public officer does not erase if proven that there was conspiracy.** Therefore, the only burden of the prosecution is to prove that the public officer and the private person



conspired. If this is proven beyond reasonable doubt whether or not the public officer is alive. Private person can be indicted and be found guilty of the criminal offense by the Sandiganbayan

- 5) Civil and criminal cases filed pursuant to and in connection with EO Nos. 1, 2, 14, and 14-A issued in 1986. These are executive orders issued to recover the ill-gotten wealth accumulated by the late President Ferdinand Marcos, his immediate family, relatives, subordinates, and close associates. This created what is now called the Presidential Commission on Good Government (PCGG). It is not only jurisdiction in the criminal case but also jurisdiction over the civil case on the recovery of the ill-gotten wealth.

XPN/Proviso: Because of RA 10660 which amended the Sandiganbayan Law, where the Information charging the offense:

- 1) does not allege any damage to the government or does not allege any bribery; or
- 2) it alleges damage to the government or bribery arising from the same or closely related transactions or acts in an amount that is not exceeding one million pesos (P1,000,000.00)

The exclusive original jurisdiction will not be with the Sandiganbayan but with the **RTC**.

Column 2 (persons who are covered by the Sandiganbayan Law)

Where one or more of the accused officials occupying the following positions in the government whether permanent, acting or interim capacity at the time of the commission of the offense.

- 1) **First Category** - Officials of the executive branch occupying the positions of regional director and higher. Otherwise classified as SG 27 and higher under the Compensation and Position Classification Act of 1989; those members of Congress or officials thereof, which is Salary Grade 27 or higher; or all other national or local officials which are Salary Grade 27 or higher.
- 2) **Second category** - Those specifically enumerated under the Sandiganbayan Law
 - A) Provincial governors, vice-governors, members of the sangguniang panlalawigan, and provincial treasurers, assessors, engineers, and other provincial department heads;
 - B) City mayors, vice-mayors, members of the sangguniang panlungsod, city treasurers, assessors, engineers, and other city department heads;
 - C) Officials of the diplomatic service occupying the position of consul and higher;

- D) Philippine army and air force colonels, naval captains, and all officers of higher rank;
- E) Officers of the Philippine National Police while occupying the position of provincial director and those holding the rank of senior superintendent and higher;
- F) City and provincial prosecutors and their assistants, and officials and prosecutors in the Office of the Ombudsman and special prosecutor;
- G) Presidents, directors or trustees, or managers of government-owned or controlled corporations, state universities or educational institutions or foundations.

It is of no moment that the position of petitioner is merely classified as salary grade 26. While the first part of the above quoted provision covers only officials of the executive branch with the salary grade 27 and higher, the second part thereof "specifically includes" other executive officials whose positions may not be of grade 27 and higher but who are by express provision of law placed under the jurisdiction of the said court. (*Geduspan v. People*)

- 3) **Third category** - consists of specifically enumerated public officials which are actually more than Salary Grade 27, but because of the provisions of the Constitution, they cannot come under the jurisdiction of the Sandiganbayan, unless they are removed via impeachment.
 - A) Members of the judiciary without prejudice to the provisions of the Constitution;
 - B) Chairmen and members of the Constitutional Commissions, without prejudice to the provisions of the Constitution; and

The original exclusive jurisdiction of special courts, regional courts and municipal trial courts

Special courts

- 1) Family Courts
- 2) Dangerous Drugs Courts
- 3) Intellectual Property Courts
- 4) Shari’a Circuit Courts

Family Courts

RA 8369

Section 5. *Jurisdiction of family Courts.* - The Family Courts shall have exclusive original jurisdiction to hear and decide the following cases:

- a) Criminal cases where one or more of the accused is below eighteen (18) years of age but not less than nine (9) years of age but not less than nine (9) years of age or where one or more of the victims is a minor at the time of the commission of the offense: Provided, That if the minor is found guilty, the court

shall promulgate sentence and ascertain any civil liability which the accused may have incurred.

The sentence, however, shall be suspended without need of application pursuant to Ptesidential Decree No. 603, otherwise known as the "Child and Youth Welfare Code";

b) Petitions for guardianship, custody of children, habeas corpus in relation to the latter;

c) Petitions for adoption of children and the revocation thereof;

d) Complaints for annulment of marriage, declaration of nullity of marriage and those relating to marital status and property relations of husband and wife or those living together under different status and agreements, and petitions for dissolution of conjugal partnership of gains;

e) Petitions for support and/or acknowledgment;

f) Summary judicial proceedings brought under the provisions of Executive Order No. 209, otherwise known as the "Family Code of the Philippines";

g) Petitions for declaration of status of children as abandoned, dependent or neglected children, petitions for voluntary or involuntary commitment of children; the suspension, termination, or restoration of parental authority and other cases cognizable under Presidential Decree No. 603, Executive Order No. 56, (Series of 1986), and other related laws;

h) Petitions for the constitution of the family home;

i) Cases against minors cognizable under the Dangerous Drugs Act, as amended;

j) Violations of Republic Act No. 7610, otherwise known as the "Special Protection of Children Against Child Abuse, Exploitation and Discrimination Act," as amended by Republic Act No. 7658; and

k) Cases of domestic violence against:

1) Women - which are acts of gender-based violence that results, or are likely to result in physical, sexual or psychological harm or suffering to women; and other forms of physical abuse such as battering or threats and coercion which violate a woman's personhood, integrity and freedom movement; and

2) Children - which include the commission of all forms of abuse, neglect, cruelty, exploitation, violence, and discrimination and all other conditions prejudicial to their development.

Jurisdiction of family courts in criminal proceedings

- 1) Criminal cases where one or more of the accused is below eighteen (18) years of age but not less than nine (9) years of age or where one or more of the victims is a minor at the time of the commission of the offense.

2) Cases against minors cognizable under the Dangerous Drugs Act, as amended;

3) Violations of Republic Act No. 7610, otherwise known as the "Special Protection of Children Against Child Abuse, Exploitation and Discrimination Act," as amended by Republic Act No. 7658; and

4) Cases of domestic violence against:

1) Women; and

2) Children

5) Violation of RA 9775, otherwise known as “Anti-Child Pornography Act of 2009”

6) Criminal cases involving juveniles if no preliminary investigation is required

Jurisdiction of Dangerous Drugs Courts

GR: Violations in Dangerous Drugs Act under RA 9165

XPN: those cases against minors cognizable under the Dangerous Drugs Act, which is under the Family Courts

Jurisdiction of Intellectual Property Courts

The regional trial court designated by SC as Intellectual Property Courts will have jurisdiction over all criminal violations of the Intellectual Property Code and its related laws

Jurisdiction of Shari’a Circuit Court
RA 1083

Article 155. Jurisdiction. The Shari'a Circuit Courts shall have exclusive original jurisdiction over;

(1) All cases involving offenses defined and punished under this Code.

xx

Exclusive original jurisdiction over all cases involving all offenses defined and punished under the Code of Muslim Personal Laws, namely

- 1) Illegal solemnization of marriage;

2) Marriage before expiration of Idda;

3) Offenses relative to subsequent marriage, divorce and revocation of divorce;

4) Failure to report for registration; and

5) Neglect of duty by registrars

Q: Will the provisions of the RPC on bigamy apply to Muslims?

A: No. The provisions of the RPC relative to the crime of bigamy shall not apply to a person married in accordance with the provisions of the Code of Muslim Personal Laws of the Philippines, or before its effectivity, under the Muslim Law

Regular Courts



- 1) Supreme court
- 2) Court of appeals
- 3) Regional trial courts
- 4) Metropolitan trial courts, municipal trial courts in cities, municipal trial courts, municipal circuit trial courts

Metropolitan Trial Courts, Municipal Trial Courts in cities, Municipal Trial Courts or Municipal Circuit Courts

- 1) All offenses punishable of imprisonment not exceeding 6 years irrespective of the amount of fine and regardless of other imposable accessory or other penalties;
- 2) Offenses involving damage to property to criminal negligence, where the imposable fine does not exceed P10, 000 pesos;
- 3) Where the only penalty provided by law is a fine not exceeding P4, 000 pesos; and
- 4) Those covered by the rules of summary procedure as follows:
 - a) Violations of traffic laws, rules and regulations;
 - b) Violation of the rental law;
 - c) Violation of municipal or city ordinances;
 - d) Violations of BP 22 (Bouncing Checks Law); e. All other criminal cases where the penalty is imprisonment not exceeding 6 months and/or a fine of P1, 000 pesos irrespective of all other penalties or civil liabilities arising therefrom
- 5) All offenses committed by a public officer or employee in relation to their office including government-owned or controlled corporations, and by private individuals charged as a co-principal, accomplice, or accessory punishable with imprisonment of not more than 6 years or where none of the accused holds a position classified as SG 27 or higher

Regional Trial Court

This is the catch-all court. It covers:

- 1) Criminal cases not within the exclusive jurisdiction of any court, tribunal, or body;
- 2) Cases where the penalty provided by the law exceeds 6 years of imprisonment irrespective of fine;
- 3) Cases not falling within the exclusive original jurisdiction of the SB, where the imposable penalty is imprisonment of more than 6 years and none of the accused is occupying positions classified as SG 27 or higher and the proviso under RA 10660

RA 10660

Provided, That the Regional Trial Court shall have exclusive original jurisdiction where the information: (a) **does not allege any damage to the government or any bribery;** or (b) **alleges damage to the**

government or bribery arising from the same or closely related transactions or acts in an amount not exceeding One million pesos (P1,000,000.00)

- 4) Cases where the only penalty provided by law is a fine exceeding P4, 000 pesos;
- 5) Other laws which specifically lodge the jurisdiction in the RTC, such as: a
 - a) criminal and civil aspects of written defamation under Art. 360 of RPC
 - b) criminal cases properly termed Election Cases under Omnibus Election Code even if committed by a public official with a SG 27 or higher It is not in SB because the 1st column did not enumerate election offenses (in SB Law).
- 6) Money laundering that is committed by **private individuals**.

Appellate jurisdiction

The basic premise is all appeals from

- 1) All appeals from Court of Appeals go to Supreme Court
- 2) All appeal from Sandiganbayan go to Supreme Court.
- 3) All appeals from first level courts MTC, MTCC, MCTC go to the RTC regardless of the issue.

Where do you appeal a decision from the RTC?

GR: Appeals, by notice of appeal or petition for review, from Decisions of The Regional Trial Court are appealable to the Court of Appeals

- 1) Petition for review
- 2) Notice of appeal

XPN:

- 1) Appealing to Supreme Court directly - All cases in which only an error or question of law is involved.

NOTE: SC has no exclusive jurisdiction. It may be appealed to CA

- 2) Appealing to Sandiganbayan - All cases decided by the RTC, whether in its original or appellate jurisdiction which would have been within the jurisdiction of the Sandiganbayan if any of the accused had been occupying positions corresponding to Salary Grade "27" or higher, as prescribed in the said R.A. No. 6758, or military and PNP officer mentioned in the Sandiganbayan law.

Katarungang Pambarangay

If you file an information in court without proper **barangay conciliation certification** the court through a motion of the defendant may:

- 1) Dismiss for failure to state a cause of action or prematurity or
- 2) the court may suspend the proceedings upon petition of either party and refer the case to the



appropriate barangay authority to conduct the proper barangay conciliation.

GR: All dispute must be referred to or must come under barangay conciliation process under the said law.

XPNs:

- 1) Where one party is the government, or any subdivision or instrumentality thereof;
- 2) Where one party is a public officer or employee, and the dispute relates to the performance of his official functions;
- 3) Where the dispute involves real properties located in different cities and municipalities, **XPN of XPN:** the parties thereto agree to submit their difference to amicable settlement by an appropriate Lupon
- 4) Any complaint by or against corporations, partnership or juridical entities, since **only individuals shall be parties to Barangay conciliation proceedings** either as complainants or respondents
- 5) Disputes involving parties who **actually reside in barangays of different cities or municipalities**, XPN of XPN: where such barangay units adjoin each other and the parties thereto agree to submit their differences to amicable settlement by an appropriate Lupon;
- 6) Offenses* for which the law prescribes a maximum penalty of imprisonment exceeding one (1) year or a fine over five thousand pesos (P5,000.00);
*cases covered under the Katarungang Pambarangay are those with imposable penalty is less than 1 year or a year of less than 5,000 pesos.
- 7) Offenses where there is no private offended party;
- 8) Disputes where urgent legal action is necessary to prevent injustice from being committed or further continued, specifically the following:
 - a) Criminal cases where accused is under police custody or detention
 - b) Petitions for habeas corpus by a person illegally deprived of his rightful custody over another or a person illegally deprived or on acting in his behalf;
 - c) Actions coupled with provisional remedies such as preliminary injunction, attachment, delivery of personal property and support during the pendency of the action; and
 - d) Actions which may be barred by the Statute of Limitations.
- 9) Any class of disputes which the President may determine in the interest of justice or upon the recommendation of the Secretary of Justice;
- 10) Where the dispute arises from the Comprehensive Agrarian Reform Law (CARL);
- 11) Labor disputes or controversies arising from employer-employee relations;

- 12) Actions to annul judgment upon a compromise which may be filed directly in court.

Process to be followed

- 1) An individual who has a cause of action to another individual can **orally or in writing approach** the Lupon chairman or barangay captain.
- 2) Complain and file the appropriate fee. The Lupon Charirman will issue a summon to the parties for them to talk and settle the matter
- 3) While the settlement talks is happening, it will for **60 days from the complaint** is filed **toll the prescriptive period of the offense**.
- 4) The lupon chairman will try for **15 days to settle**. If he fails then he must constitute with Pangkat ng Tagapamayapa*.
*According to Local Government Code, members of Pangkat ng Tagapamayapa are members of barangay.
- 5) The pangkat shall arrive at a settlement or resolution of the dispute within fifteen (15) days from the day it convenes in accordance with this section. This period shall, at the discretion of the pangkat, **be extendible for another period which shall not exceed fifteen (15) days, except in clearly meritorious cases**

Under the Circular, there is a requirement that the **Lupon Secretary and the secretary of the pangkat** will

- 1) issue a certificate that a confrontation of the parties took place but no conciliation/settlement has been reached or
- 2) that no personal confrontation took place before the Pangkat through no fault of the complainant.

Parties are members of indigenous cultural community

It shall be settled in accordance with the customs and traditions of that particular cultural community

If no settlement, the Punong Barangay will issue the certification to file action upon certification by the datu or tribal leader or elder to the Punong Barangay of place of settlement.

It is well-settled that the non-referral of a case for barangay conciliation when so required under the law is not jurisdictional in nature and may therefore be deemed waived if not raised seasonably in a motion to dismiss. The Court notes that **although petitioners could have invoked the ground of prematurity of the causes of action against them due to the failure to submit the dispute to Lupon prior to the filing of the cases as soon as they received the complaints against them, petitioners raised the said ground only after their arraignment.**



The rule is, **prior to arraignment, you must raise it in order for the court to dismiss or suspend it and refer to proper barangay.** After arraignment it is deemed waived. (*Bañares II v. Balising*)

**RULE 110
PROSECUTION OF OFFENSES**

INSTITUTION OF CRIMINAL ACTIONS

Section 1. *Institution of criminal actions* – Criminal actions shall be instituted as follows:

- a) For offenses where a preliminary investigation is required pursuant to section 1 of Rule 112, by filing the complaint with the proper officer for the purpose of conducting the requisite preliminary investigation.
- b) For all other offenses, by filing the complaint or information directly with the Municipal Trial Courts and Municipal Circuit Trial Courts, or the complaint with the office of the prosecutor. In Manila and other chartered cities, the complaints shall be filed with the office of the prosecutor unless otherwise provided in their charters.

The institution of the criminal action shall interrupt the running of the period of prescription of the offense charged unless otherwise provided in special laws.

Purpose of criminal action

The purpose of criminal action, in its purest sense, is **to determine the penal liability of the accused for having outraged the State with his crime, and if he is found guilty, to punish him for it.**

Parties in a criminal action

- 1) **Offender** – private suspect/guilty party;
- 2) **Offended party** – State
- 3) **Complainant** – acts as witness for the prosecution; the interest of the private complainant is limited to the civil liability

How can criminal actions be instituted?

- 1) For offenses where a preliminary investigation is required pursuant to section 1 of Rule 112, **by filing the complaint with the proper officer for the purpose of conducting the requisite preliminary investigation**

Rules of Court, Rule 112

Section 1. *Preliminary investigation defined; when required.*

– Preliminary investigation is an inquiry or proceeding to determine whether there is sufficient ground to engender a well-founded belief that a crime has been committed and the respondent is probably guilty thereof, and should be held for trial.

Except as provided in Section 7 of this Rule, a preliminary investigation is required to be conducted before the filing of a complaint or information for an offense where the penalty prescribed by law is **at**

least four (4) years, two (2) months and one (1) day without regard to the fine.

- It is a statutory and not a constitutional right
- Merely to present such evidence as may engender a well-founded belief that an offense has been committed and that the respondent is **probably guilty**
- Petitioner has no right to cross-examine the witness
- Injunction will not lie to stop preliminary investigation
- Submission of affidavits and counter-affidavits

Rules of Court, Rule 112

Section 7. *When accused lawfully arrested without warrant.*

– When a person is lawfully arrested without a warrant involving an offense which requires a preliminary investigation, the complaint or information may be filed by a prosecutor without need of such investigation provided an inquest has been conducted in accordance with existing rules. In the absence or unavailability of an inquest prosecutor, the complaint may be filed by the offended party or a peace officer directly with the proper court on the basis of the affidavit of the offended party or arresting officer or person.

Before the complaint or information is filed, the person arrested may ask for a preliminary investigation in accordance with this Rule, but he must sign a waiver of the provision of Article 125 of the Revised Penal Code, as amended, in the presence of his counsel. Notwithstanding the waiver, he may apply for bail and the investigation must be terminated within fifteen (15) days from its inception.

After the filing of the complaint or information in court without a preliminary investigation, the accused may, within five (5) days from the time he learns of its filing, ask for a preliminary investigation with the same right to adduce evidence in his defense as provided in this Rule.

Revised Penal Code

Art. 125. *Delay in the delivery of detained persons to the proper judicial authorities.* — The penalties provided in the next preceding article shall be imposed upon the public officer or employee who shall detain any person for some legal ground and shall fail to deliver such person to the proper judicial authorities within the period of; twelve (12) hours, for crimes or offenses punishable by light penalties, or their equivalent; eighteen (18) hours, for crimes or offenses punishable by correctional penalties, or their equivalent and thirty-six (36) hours, for crimes, or offenses punishable by afflictive or capital penalties, or their equivalent.

In every case, the person detained shall be informed of the cause of his detention and shall be allowed

upon his request, to communicate and confer at any time with his attorney or counsel.

GR: (PRELIMINARY INVESTIGATION) preliminary investigation is required to be conducted before the filing of a complaint or information for an offense where the penalty prescribed by law is **at least four (4) years, two (2) months and one (1) day without regard to the fine**

XPN: (INQUEST PROCEEDINGS) When a person is **lawfully arrested without a warrant involving an offense which requires a preliminary investigation**, the complaint or information may be filed by a prosecutor without need of such investigation **provided an inquest has been conducted in accordance with existing rules.**

XPN of XPN: (DIRECT FILING TO THE COURT) In the **absence or unavailability** of an inquest prosecutor, the **complaint may be filed by the offended party or a peace officer directly** with the proper court on the basis of the affidavit of the offended party or arresting officer or person.

- **Before** the complaint or information is filed, the person arrested **may ask for a preliminary investigation** in accordance with this Rule, but he must sign a **waiver of the provision of Article 125** of the Revised Penal Code, as amended, in the presence of his counsel.
- **After** the filing of the complaint or information in court without a preliminary investigation, the accused may, **within five (5) days** from the time he learns of its filing, **ask for a preliminary investigation** with the same right to adduce evidence in his defense as provided in this Rule.

The filing to the court of authority will toll the running of the period under Art 125.

- 2) For all other offenses, **by filing the complaint or information directly with the Municipal Trial Courts and Municipal Circuit Trial Courts, or the complaint with the office of the prosecutor.** In Manila and other chartered cities, the complaints shall be filed with the **office of the prosecutor unless otherwise provided in their charters.**

How about for those offenses where the prescribed penalty is less than 4 years, 2 months?

GR: (DIRECT FILING TO THE COURT) A preliminary investigation is not required and a criminal action is instituted in either of two ways:

- 1) By filing the complaint or information directly with the MTC, MCTC, MeTC (first level courts); or

- 2) By filing the complaint with the office of the prosecutor

Special rule: In **Manila and other chartered cities**, the complaints **shall be filed with the office of the prosecutor** unless otherwise provided in their charters.

“Proper officer”

- 1) City Prosecutor’s Office,
- 2) Municipal Prosecutor’s Office, or the
- 3) Prosecution Offices under the Department of Justice (DOJ).
- 4) Ombudsman

Effect of institution of criminal action

GR: The institution of the criminal action shall interrupt the running of the period of prescription of the offense charged

XPN: unless otherwise provided in **special laws.**

- The prescriptive period as provided by the special penal law
- If no provision – Act No 3326

The running of the period of prescription is interrupted with the filing of the action **even if the court in which the action is first filed is without jurisdiction**

Act No. 3326
AN ACT TO ESTABLISH PERIODS OF PRESCRIPTION FOR VIOLATIONS PENALIZED BY SPECIAL ACTS AND MUNICIPAL ORDINANCES AND TO PROVIDE WHEN PRESCRIPTION SHALL BEGIN TO RUN

Section 1. Violations penalized by special acts shall, unless otherwise provided in such acts, prescribe in accordance with the following rules:

- a) **after a year** for offenses **punished only by a fine or by imprisonment for not more than one month, or both;** (< 1 month)
- b) **after four years** for those punished by **imprisonment for more than one month, but less than two years;** (1 month – 2 years)
- c) **after eight years** for those punished by imprisonment for two years or more, but less than six years; and (2-6 years)
- d) **after twelve years** for any other offense punished by imprisonment for **six years or more, except the crime of treason, which shall prescribe after twenty years.** Violations penalized by **municipal ordinances** shall prescribe after **two months.** (6-20 years)

Sec. 2. Prescription shall begin to run from the day of the commission of the violation of the law, and if the same be not known at the time, from the discovery thereof and the institution of judicial proceeding for its investigation and punishment.



The prescription shall be interrupted when proceedings are instituted against the guilty person, and shall begin to run again if the proceedings are dismissed for reasons not constituting jeopardy.

Sec. 3. For the purposes of this Act, special acts shall be acts defining and penalizing violations of the law not included in the Penal Code.

Sec. 4. This Act shall take effect on its approval.

Section 5. *Who must prosecute criminal action.* - All criminal actions either commenced by complaint or by information shall be prosecuted under the direction and control of a public prosecutor. In case of heavy work schedule of the public prosecutor or in the event of lack of public prosecutors, the private prosecutor may be authorized in writing by the Chief of the Prosecution Office or the Regional State Prosecutor to prosecute the case subject to the approval of the court. Once so authorized to prosecute the criminal action, the private prosecutor shall continue to prosecute the case up to end of the trial even in the absence of a public prosecutor, unless the authority is revoked or otherwise withdrawn. x x x").

The crimes of adultery and concubinage shall not be prosecuted except upon a complaint filed by the offended spouse. The offended party cannot institute criminal prosecution without including the guilty parties, if both are alive, nor, in any case, if the offended party has consented to the offense or pardoned the offenders.

The offenses of seduction, abduction and acts of lasciviousness shall not be prosecuted upon a complaint filed by the offended party of her parents, grandparents or guardian, nor, in any case, if the offender has been expressly pardoned by any of them. If the offended party dies or becomes incapacitated before she can file the complaint, and she has no known parents, grandparents or guardian, the State shall initiate the criminal action in her behalf.

The offended party, even if a minor, has the right to initiate the prosecution of the offenses of seduction, abduction and acts of lasciviousness independently of her parents, grandparents, or guardian, unless she is incompetent or incapable of doing so. Where the offended party, who is a minor, fails to file the complaint, her parents, grandparents, or guardian may file the same. The right to file the action granted to parents, grandparents, or guardian shall be exclusive of all other persons and shall be exercised successively in the order herein provided, except as stated in the preceding paragraph.

No criminal action for defamation which consists in the imputation of any of the offenses mentioned above shall be brought except at the instance of and upon complaint filed by the offended party.

The prosecution for violation of special laws shall be governed by the provision thereof.

1ST PARAGRAPH
PROSECUTION OF CRIMINAL ACTION

GR: All criminal actions either commenced by a complaint or information shall be prosecuted **under the direction and control of the public prosecutor.** This is the general rule and this applies to a criminal action commenced either by a complaint or an information.

- XPNs:**
- 1) In case of **heavy work schedule** of the public prosecutor or in the event of **lack of public prosecutors** (A.M. No. 02-2-07-SC)

A.M. No. 02-2-07-SC
RE: PROPOSED AMENDMENTS TO SECTION 5, RULE 110 OF THE REVISED RULES OF CRIMINAL PROCEDURE

Sec 5 – xxxIn case of heavy work schedule of the public prosecutor or in the event of lack of public prosecutors, the **private prosecutor** may be

- 1) **authorized in writing by the Chief of the Prosecution Office or the Regional State Prosecutor** to prosecute the case subject to the approval of the court
- 2) Once so authorized to prosecute the criminal action, the private prosecutor shall continue to prosecute the case up to end of the trial even in the absence of a public prosecutor,
XPN: unless the authority is revoked or otherwise withdrawn.

2) Intervention of the private prosecutor

Rules on appearance of private prosecutor under the continuous trial rule in criminal cases

Q: When can the private prosecutor be allowed to prosecute?

A: The rule is provided in AM No 15-06-10SC

A.M. No. 15-06-10
Revised Guidelines for Continuous Trial of Criminal Cases

III, Par 4. In cases where **only the civil liability** is being prosecuted by the private prosecutor, the head of the prosecution office must issue in favor of the private prosecutor a written authority to try the case even in the absence of the public prosecutor. The written authority must be submitted to the court prior to the presentation of evidence by the private prosecutor in accordance with Section 5, Rule 110.

With this authority on record, the court may set the trial in the case and in other cases tried by the private prosecutors with delegated authority on separate days when the presence of the public prosecutor may be dispensed with.

XPN of XPN: The offended party may not intervene in the prosecution of the offense through a private prosecutor if the offended party

- 1) waives the civil action,
- 2) reserves the right to institute it separately, or
- 3) institutes the civil action prior to the criminal action.

Q: What if the case reaches the CA or the SC?

A: Jurisprudence holds that if there is a dismissal of the criminal case by the trial court or if there is an acquittal of the accused, **it is only the Office of the Solicitor General (OSG) that may bring an appeal on the criminal aspect representing the People of the Philippines.** In cases elevated to the Sandiganbayan, the **Office of the Ombudsman thru its special prosecutor** shall represent the People of the Philippines

Q: What is the rationale of placing the prosecution of the criminal case under the direct control and supervision of the public prosecutor?

A: To prevent malicious or unfounded prosecution by private persons. The right to prosecute vest to the prosecutor a wide range of discretion, the discretion of whether what and whom to charge, the exercise of which depends on factors which are best appreciated by the public prosecutor

Q: What is the nature and purpose of the power of the public prosecutor to prosecute criminal cases?

A: Prosecution of crimes pertains to the **executive department of the government whose principal power and responsibility is to insure that laws are faithfully executed**, which includes the power to prosecute violators

Q: What is the effect if the private complainant’s motion for reconsideration does not bear the imprimatur of the public prosecutor?

A: The petition will fail if the motion for reconsideration did not bear the imprimatur of the public prosecutor who has the control of the prosecution of the case. The participation in the case of a private complainant is limited to that of a witness, both in the criminal and civil aspect.

Q: Is it required that the prosecutor be present during the prosecution of the criminal action?

A: Yes, the duty of the prosecutor to direct and control the prosecution of criminal cases requires that he must be present during the proceedings.

Doctrine of primary jurisdiction

The courts must refrain from determining a controversy involving a question which is within the jurisdiction of an **administrative tribunal** prior to its resolution by the latter, where the question demands the exercise of sound administrative discretion requiring the special knowledge, experience and

services of the administrative tribunal to determine technical and intricate matters of fact.

**2ND PARAGRAPH
RPC**

Art. 344. *Prosecution of the crimes of adultery, concubinage, seduction, abduction, rape and acts of lasciviousness.* — The crimes of adultery and concubinage shall not be prosecuted except upon a complaint filed by the offended spouse.

The offended party cannot institute criminal prosecution without including both the guilty parties, if they are both alive, nor, in any case, if he shall have consented or pardoned the offenders.

The offenses of seduction, abduction, rape or acts of lasciviousness, shall not be prosecuted except upon a complaint filed by the offended party or her parents, grandparents, or guardian, nor, in any case, if the offender has been expressly pardoned by the above-named persons, as the case may be.

In cases of seduction, abduction, acts of lasciviousness and rape, the marriage of the offender with the offended party shall extinguish the criminal action or remit the penalty already imposed upon him. The provisions of this paragraph shall also be applicable to the co-principals, accomplices and accessories after the fact of the above-mentioned crimes.

Crimes which cannot be prosecuted *de officio* (by the prosecutor) (ACASA)

- 1) Adultery
- 2) Concubinage
- 3) Abduction
- 4) Seduction
- 5) Acts of lasciviousness
- 6) *** Pursuant to R.A. No. 8353, the Anti-Rape Law of 1997, rape is now a crime against persons which may be prosecuted de officio.**

ADULTERY AND CONCUBINAGE

- ✓ Adultery and concubinage must be prosecuted upon complaint signed by **the offended spouse.**
 - The offended party cannot institute criminal prosecution without including both the guilty parties
 - **Both parties must be included** in the complaint even if one of them is not guilty
- XPN:**
- 1) When one of the parties is dead
 - 2) When there is pardon or consent

Pardon	Consent
Must come after the act but before the institution of a criminal prosecution	Granted prior to the adulterous act
May be express or implied	

Bars criminal action	Dismisses the criminal action
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Corollary to such exclusive grant of power to the offended spouse to institute the action, it necessarily follows that such initiator must have the status, capacity or legal representation to do so at the time of the filing of the criminal action. This is a familiar and express rule in civil actions; in fact, lack of legal capacity to sue, as a ground for a motion to dismiss in civil cases, is determined as of the filing of the complaint or petition. (*Pilapil v. Ibay-Somera*)

It must be borne in mind, however, that this legal requirement was imposed "out of consideration for the aggrieved party who might prefer to suffer the outrage in silence rather than go through the scandal of a public trial." Thus, the law leaves it to the option of the aggrieved spouse to seek judicial redress for the affront committed by the erring spouse. For needless to state, this Court should be guided by the spirit, rather than the letter, of the law.

In this case, by the filing of the complaint of the husband, it became clear that the desire of the offended party was to bring his wife and her alleged paramour to justice. Here, it is clear that the husband really wants the wife and the paramour to be punished because of their adulterous acts, and while it is unfortunate that he died to see the prosecution of the case, the SC saw that the husband was willing to go through the criminal trial. (*People v. Ilarde*)

3RD PARAGRAPH
SIMPLE ABDUCTION, SEDUCTION, ACTS OF LASCIVIOUSNESS

- ✓ Seduction, abduction, rape* or acts of lasciviousness must be prosecuted upon complaint signed by —
 - offended party,
 - her parents,
 - grandparents, or
 - guardians in the order in which they are named above.

XPN:

 - When one of the parties is dead – If the offended party dies or becomes incapacitated before she can file the complaint, and she has no known parents, grandparents or guardian, the State shall initiate the criminal action in her behalf. (*parens patriae*)
 - When there is pardon or consent

- 4TH PARAGRAPH
- ✓ A minor has the right to institute the prosecution independently of her parents, grandparents, guardian etc. (**ASA**)

XPN:

 - if she is incapable of doing so **upon grounds other than her minority**. It may be filed by

- offended party,
 - her parents,
 - grandparents, or
 - guardians in the order in which they are named above.
- 2) When there is pardon or consent – the minor will have to seek the help of the proper government agency for the minor to properly execute the express pardon

- ✓ The term "guardian" means legal, not natural guardian
- ✓ In case of complex crimes, where one of the component offenses is a public crime, the criminal prosecution may be instituted by the fiscal (*de oficio*). **Public interest is always paramount to private interest**

Q: What is the nature of the right of the above-named person to file the complaint?
A: The right to file the action granted to parents, grandparents, or guardian shall be exclusive of all the other persons and shall be exercised successively in the order herein provided (**Sec 5 (4), Rule 110**)

5TH PARAGRAPH
DEFAMATION

Q: Who may file a complaint for defamation?
A: No criminal action for defamation which consists in the imputation of any of the offenses (**ACASA**) shall be brought except at the instance of and upon complaint filed by the offended party

For this instance, there is no order and it will only be the offended party, even if the defamation, libel or slander pertains to seduction, abduction and acts of lasciviousness. If the offended party will not initiate the complaint, then there can be no criminal prosecution for defamation imputing adultery, concubinage, seduction, abduction and acts of lasciviousness.

6TH PARAGRAPH
SPECIAL CRIMES

Q: What law shall govern special crimes
A: The prosecution for violation of special laws shall be governed by the provision thereof (**Sec 5 (6), Rule 110**)
GR: The prosecution for violation of special laws shall be governed by the provision thereof
XPN: When the special law it does not provide for any specific provision as to what procedure will govern, it would be the Revised Rules on Criminal Procedure.

Section 2. *The complaint or information.* The complaint or information shall be in writing in the name of the People of the Philippines against all persons who appear to be responsible for the offense involved.

Requisites for complaint/information

- 1) shall be in writing
- 2) in the name of the People of the Philippines
- 3) against all persons who appear to be responsible for the offense involved.

Q: What is the effect of the failure to implead the People of the Philippines in a petition for certiorari?

A: Not a ground for dismissal of an action. The remedy is to implead the non-party claimed to be indispensable. If the petitioner/plaintiff refuses to implead an indispensable party despite the order of the court, the latter may dismiss the complaint/petition.

Q: Who is the real party-in-interest and who can represent the People before the SC?

A: In criminal cases, the People is the real party-in-interest and only the OSG can represent the People in the criminal proceedings before this Court, and the private offended party is but a witness in the prosecution of offenses whose interest is limited only to the civil liability aspect.

Sec. 3. Complaint defined. Complaint is a sworn written statement charging a person with an offense, subscribed by the offended party, any peace officer or the republic officer charged with the enforcement of the law violated.

Complaint - sworn written statement charging a person with an offense, subscribed by the offended party, any peace officer or the republic officer charged with the enforcement of the law violated.

2 types of complaints

- 1) complaint filed in court
- 2) complaint filed with the prosecutor’s office – may be filed by any person

Q: What is the nature of the complaint referred to under the Rules?

A: It contemplates to a complaint filed in court to commence a criminal action in those cases where a complaint of the offended party is required by law, instead of an information which is generally filed by a fiscal. This does not refer to a complaint filed with the prosecutor’s office.

Sec. 4. Information defined. An information is an accusation in writing charging a person with an offense subscribed by the fiscal and filed with the court.

Information - an accusation in writing charging a person with an offense subscribed by the fiscal and filed with the court

Elements of an information

- 1) It is an accusation in writing
- 2) It must charge a person with an offense.
- 3) It must be subscribed by the prosecutor.
- 4) It must be filed with the court

Q: What is the requirement before the filing of a criminal information?

A: It is a requirement that the filing of the information must be preceded by a **preliminary investigation**.

Complaint	Information
May be subscribed by the offended party , any peace officer or the republic officer charged with the enforcement of the law violated	Must be subscribed by the prosecutor
Must be filed with 1) a prosecutor, proper officer, proper prosecution office if preliminary investigation is required or 2) in those instances where it can be filed directly in court then that is the only time that a complaint may be filed in court.	Always filed in court
Must be sworn by the people enumerated under Section 3 (if filed in court)	No requirement for sworn but must be signed by the public prosecutor himself because he is the one filing the information and is acting under the oath of his office.
1) Filed to prosecutor’s office - complainant and the respondent’s name 2) Filed to court - People of the Philippines versus all persons who appear to be responsible for the offense involved’.	‘People of the Philippines versus an accused’

Q: What if the complaint is not sworn and signed?

A: If a complaint is not sworn and signed, this is merely a formal defect that can be cured by having the complaint signed and sworn to by the person who filed it.

Section 6. Sufficiency of complaint or information. — A complaint or information is sufficient if it states the name of the accused; the designation of the offense given by the statute; the acts or omissions complained of as constituting the offense; the name

of the offended party; the approximate date of the commission of the offense; and the place where the offense was committed.

When an offense is committed by more than one person, all of them shall be included in the complaint or information. (6a)

Test for sufficiency of complaint or information

The test is **whether the crime is described in intelligible terms with such particularity as to apprise the accused with reasonable certainty of the offense** charged to enable the accused to suitably prepare for his defense.

The purpose of the enumeration of the matters which should be stated in the complaint or information for it to be sufficient, is to inform the accused of the nature and the cause of the accusation against him, a right guaranteed by no less than our Constitution.

No matter how conclusive and convincing the evidence of guilt may be, an accused cannot be convicted of any offense unless it is charged in the information on which he is tried or is necessarily included therein.

It must contain the following:

- 1) **name** of the accused;
- 2) **designation** of the offense given by the statute;
- 3) **acts or omissions** complained of as constituting the offense;
 - most important
- 4) **name** of the offended party;
- 5) **approximate date** of the commission of the offense; and
- 6) **place** where the offense was committed.
- 7) when an offense is committed by **more than one person, all of them shall be included in the complaint or information.**

Effect when the complaint or information is insufficient

Where the complaint or information is insufficient, it cannot be the basis of any valid conviction

Q: When should the question on the sufficiency of information be raised?

A: Defect on the sufficiency of complaint or information should be raised during the course of trial, particularly during arraignment

Q: What is the effect of failure to object on the defect of the complaint or information as regards the identity of the accused?

A: Their failure to object to the alleged defect before entering their pleas of not guilty amounted to a **waiver** of the defect in the information.

Q: Can an objection as to form or substance be raised for the first time on appeal?

A: No. Objections as to matters of form or substance in the information cannot be made for the first time on appeal, and failure to object constitute a waiver

Q: Can the appellate court dismiss the information for failure to raise the issue of defects in the information?

A: Yes. The Court may motu proprio dismiss the said information at the appellate stage, because he was not informed of the nature and cause of the accusation against him and the basic principles of due process.

xx while a sufficiency of an information may be assailed, the right to question the sufficiency of the same is not absolute. Further, an accused is deemed to have waived the right to question the sufficiency of the complaint or information if he fails to object upon his **arraignment or during trial**. (*Friyas v. People*)

The real nature of the criminal charge is determined not from the caption or the preamble of the information or from the specification of the provision of law alleged to have been violated which are mere conclusions of law, but by the **actual recital of the facts in the complaint or information**.

Thus, even if the designation of the crime in the information is defective, what is controlling is the allegation of the facts in the information that comprises a crime and adequately describes the nature and the cause of the accusation against the accused. (*Friyas v. People*)

Section 7. Name of the accused. — The complaint or information must state the name and surname of the accused or any appellation or nickname by which he has been or is known. If his name cannot be ascertained, he must be described under a fictitious name with a statement that his true name is unknown.

If the true name of the accused is thereafter disclosed by him or appears in some other manner to the court, such true name shall be inserted in the complaint or information and record. (7a)

Name of the accused

- 1) Known - The complaint or information must state the name and surname of the accused or any appellation or nickname by which he has been or is known
- 2) Not known - he must be described under a fictitious name with a statement that his true name is unknown.
- 3) Unknown at first but thereafter disclosed or appeared - such true name shall be inserted in the complaint or information and record

Q: What is the effect of erroneous designation of the name of the accused in the information?

A: The erroneous designation of the name of the accused in the information will not vitiate the



information filed, in so long as, **the identity of the accused is clearly proven.**

Thus, in every criminal case, the task of the prosecution is always two-fold:

- 1) To prove beyond reasonable doubt the commission of the crime charged.
- 2) To establish with the same quantum of proof (proof beyond reasonable doubt) the identity of the person/s responsible therefore.

Q: What is the consequence if another's name is placed in the information?

A: Information is not defective where another name, not the victim's name, was placed in the information since the error is considered merely clerical and not substantial.

Q: What is the effect if the accused enters his plea under a wrong name?

A: An accused who entered a plea of not guilty under a wrong name is estopped from later on questioning court's jurisdiction over his person

The reluctance of the offended party in a rape case, in identifying the accused saying, "that it might be him," which means that the private offended party is uncertain as to the identity of the accused, leads the Supreme Court to conclude that the identity of the accused was not proven. Even if the crime of rape was proven beyond reasonable doubt, the accused cannot be convicted based on an uncertain identification of his identity. However, **this does not always mean that it is always supposed to be a direct evidence of the identity of the offender**, because positive identification may be in two ways:

- 1) A witness may identify a suspect or accused in a criminal case as the perpetrator of the crime **as an eyewitness to the very act of the commission of the crime.** This will constitute direct evidence. (**DIRECT EVIDENCE**)
- 2) However, there may be instances where there may be a witness who **did not actually see the very act or the commission of the crime but is still able to positively identify a suspect or accused as the perpetrator** of the crime under the second type of identification, which forms part of circumstantial evidence, which, **when taken together with all other pieces of evidence constituting an unbroken chain, leads to only one fair and reasonable conclusion: that the accused is the author of the crime, to the exclusion of all others.** (**CIRCUMSTANTIAL EVIDENCE**) (*People v. Tumaming*)

Section 11. Date of commission of the offense. — It is not necessary to state in the complaint or information the precise date the offense was committed except when it is a material ingredient of the offense. The offense may be alleged to have been committed on

a date as near as possible to the actual date of its commission. (11a)

GR: It is not necessary to state in the complaint or information the precise date of the commission of the offense since the offence **may be alleged to have been committed on a date as near as possible to the actual date of its commission**

XPN: When it is necessary to state the precise date of the offense considering that the date and even sometimes the time is a material ingredient of the offense.

Q: What is the effect of variance between the time alleged in the information and that established by evidence on trial?

A: A variance between the time set out in the indictment and that establishment by the evidence during the trial does not constitute an error so serious as to warrant reversal of a conviction solely on that score. The only instance where the variance in the date of commission of the offense as alleged in the information and as established in evidence becomes fatal when the discrepancy is so great that it induces the perception that the information and the evidence are no longer pertaining to one and the same offense.

Q: When should the date of the commission of the offense be alleged in the information?

A: Only when such date is a material ingredient of the offense

Q: What is the effect of failure to particularly allege in the information and prove the particular date of the commission of the crime?

A: The failure of the prosecution to allege with particularity the date of the commission of the offense and worse, its failure to prove during the trial the date of the commission of the offense as alleged in the information, deprived the accused-appellant of the right to intelligently prepare for his defense and convincingly refute the charges against him

Section 12. Name of the offended party. — The complaint or information must state the name and surname of the person against whom or against whose property the offense was committed, or any appellation or nickname by which such person has been or is known. If there is no better way of identifying him, he must be described under a fictitious name.

(a) In offenses against property, if the name of the offended party is unknown, the property must be described with such particularity as to properly identify the offense charged.

(b) If the true name of the of the person against whom or against whose property the offense was committed is thereafter disclosed or ascertained, the court must cause the true name to be inserted in the complaint or information and the record.



(c) If the offended party is a juridical person, it is sufficient to state its name, or any name or designation by which it is known or by which it may be identified, without need of averring that it is a juridical person or that it is organized in accordance with law. (12a)

Name of the offended party

Natural persons

- 1) Known - The complaint or information must state the name and surname or any appellation or nickname by which he has been or is known
- 2) Not known - he must be described under a fictitious

Juridical persons

It is sufficient to state its name, or any name or designation by which it is known or by which it may be identified, without need of averring that it is a juridical person or that it is organized in accordance with law

Offenses against property

GR:

- 1) Offended party unknown, property known - the property must be described with such particularity as to properly identify the offense charged
- 2) Offended party unknown but later known - If the true name of the of the person against whom or against whose properly the offense was committed is thereafter disclosed or ascertained, the court must cause the true name to be inserted in the complaint or information and the record.

XPN: robbery with violence and intimidation of persons – there must be allegations in the information of the name of the owner

Q: What is the remedy of a person charged under an erroneous name or identity?

A: The remedy of a person charged with a wrong name or identity is to file a motion to quash on the ground of lack of jurisdiction over his person. If he voluntarily appears at the arraignment without questioning the jurisdiction of the court over his person and pleads not guilty at the charge although under the erroneous name, the court acquires jurisdiction over him

Section 8. Designation of the offense. — The complaint or information shall state the designation of the offense given by the statute, aver the acts or omissions constituting the offense, and specify its qualifying and aggravating circumstances. If there is no designation of the offense, reference shall be made to the section or subsection of the statute punishing it. (8a)

Requirements of designation of offense

- 1) **state the designation of the offense given by the statute** - character of the crime is determined neither by the caption or preamble of the information nor by the specification of

the provision of law alleged to have been violated, they being conclusions of law, but by the actual recital of the ultimate facts and circumstances in the information (*Licayco v. People*)

- 2) **aver the acts or omissions constituting the offense** – fatal; the allegations of facts constituting the offense charged are substantial matters and the right of an accused to question his conviction based on facts not alleged in the information cannot be waived
- 3) **specify its qualifying and aggravating circumstances** – fatal; failure to state a qualifying or aggravating circumstance, even if duly proven at trial, will not be appreciated as such. (*People v. Feliciano Jr*)

DESIGNATION OF OFFENSE

The failure to designate the offense given by the statute or to mention the specific provision penalizing the act or an erroneous specification of the law violated does not vitiate the information if the facts alleged clearly recite the facts constituting the crime charged. **What controls is not the title of the information or the designation of the offense, but the actual facts recited in the information.** In other words, it is the recital of facts of the commission of the offense, not the nomenclature, that determines the crime being charged in the information. (*Malto v. People*)

Another important rule in the allegation of or the recital of the acts or omissions in the body of the information – the specific acts of the accused do not have to be described in detail in the information as it is enough that the offense be described with **sufficient particularity to make sure the accused fully understands what he is being charged with.** The particularity must be such that a person of ordinary intelligence immediately knows what the charge is. Moreover, reasonable certainty of the crime suffices (*Guy v. People*).

AVERMENT OF ACTS AND OMISSIONS

Q: what if the acts or omissions and the circumstances recited in the information are vague or ambiguous or it leads to a conclusion of two or more crimes being charged?

A:

- 1) If there is a designation of the offense or there is a section or subsection specified on what law is violated - the designation of the offense or the specification of the provision of law that is violated will control.
- 2) If there is no designation of the offense or there is no specification of a section or subsection of a law that is violated and there is ambiguity in the recital of the acts or omissions in the body of the information, the remedies of the accused would be:
 - Ask a bill of particulars
 - File a motion to quash the information for failure to state or charge an offense



Q: What is the main purpose of alleging in the information the elements constituting the offense?

A: The main purpose of requiring the various elements of a crime to be set out in the information is to enable the accused to suitably prepare his defense because **he is presumed to have no independent knowledge of the facts that constitute the offense**

SPECIFICATION OF QUALIFYING AND AGGRAVATING CIRCUMSTANCES

- 1) Qualifying - changes the nature of the crime and thus increases the degree of the penalty
- 2) Aggravating - changes the nature of the crime and thus increases the period of the imposable penalty

A qualifying circumstance need not be preceded by descriptive words such as “qualifying” or “qualified by” to properly qualify an offense. It is not the use of the words “qualifying” or “qualified by” that raises a crime to a higher category, but the specific allegation of an attendant circumstance which adds the essential element raising the crime to a higher category. As regards aggravating circumstances, the mere statement of for example “with intent to kill qualified by treachery or evident premeditation and abuse of superior strength”, any which one of the aggravating circumstances in the RPC is not enough if the complaint or information fails to adequately describe the circumstances of the aggravating circumstances. It must be, in some way, described with sufficient particularity although the threshold of the specificity is just that an ordinary person of ordinary intelligence may immediately know what that particular allegation purports to be. (*People v. Rosas*)

It is sufficient to allege conspiracy as a mode of commission of an offense in either of the following manners:

- 1) By the use of the word “conspire” or its derivatives or synonyms such as “confederate”, “connive”, “collude”, etc.
- 2) By allegation of basic facts constituting the conspiracy in a manner that a person of common understanding would know what was intended and with such precision that would enable the accused to competently enter a plea to a subsequent indictment of the same facts. In the case cited, the words used to allege conspiracy is the phrase “participate in and facilitate” so according to the SC, the phrase “participate in and facilitate” is a clear and definite allegation of conspiracy sufficient for the accused to competently make a plea and make a proper defense. (*Francisco v. People*)

The accused cannot be convicted of qualified rape even if it is proven during trial because the qualifying circumstance was not alleged in the information. (*People v. Mendoza*)

During the course of the trial, the prosecution was able to prove that the dwelling of the subject of arson was inhabited. It could have qualified the arson, but it was not stated in the information that the dwelling was inhabited. Then the court cannot impose the penalty higher than that of arson since it cannot be qualified for failure to state the qualifying circumstance in the information. (*Buebos v. People*)

The allegation that the offender is the victim’s uncle is not sufficient since the wordings of the statute provides that there must be an allegation that if it’s not within the specific list, there must be an allegation that the relative is the relative by consanguinity or affinity within the 3rd civil degree. (*People v. Ubiña*)

The Supreme court said that it is not enough that in the recital of the information there are 3 accused. There should be a specification that the crime was committed by 2 or more persons. Aside from the general averment that there are 3 accused, there must be a special mention that it is qualified or is aggravated because it is committed by 2 or more persons. (*People v. Alarcon*)

Supreme Court held further that even if you cannot premise the award of exemplary damages to the presence of aggravating circumstance, if the crime committed is highly reprehensible or outrageous conduct, then exemplary damages can also be awarded. (*People v. Dalisay*)

The allegation in the Information that Maries was his minor daughter is as a matter of law insufficient to alert him as to the exact nature of the rape imputed to him. To do so would be to allege a conclusion of law to which the plea of not guilty joins no issue. Its effect is the same as alleging negligence without specifying the facts constituting such want of care or prudence. In the instant case, **the exact age of the victim should have been asserted.** Furthermore, the term minority is too technical to satisfy the **pleading requirement that acts alleged as crime must be averred in a manner that a person of common understanding would understand the offense being charged.** Certainly stating the words fifteen (15) years old, for example, in the information would signify something more familiar than the word minority could achieve. (*People v. Mascarinas*)

REFERENCE AS TO SECTION OR SUBSECTION OF THE STATUTE

Q: When can reference to the section or subsection of statute be alleged in the information?

A: It is only when there is no specific name given to the offense that reference to the section or subsection of the statute punishing it may be made, and this actually applies to offenses under special laws



Section 9. Cause of the accusation. — The acts or omissions complained of as constituting the offense and the qualifying and aggravating circumstances must be stated in ordinary and concise language and not necessarily in the language used in the statute but in terms sufficient to enable a person of common understanding to know what offense is being charged as well as its qualifying and aggravating circumstances and for the court to pronounce judgment. (9a)

How to allege in the complaint or information

- 1) must be stated in ordinary and concise language
- 2) not necessarily in the language used in the statute but in terms sufficient to enable a person of common understanding to know what offense is being charged as well as its qualifying and aggravating circumstances and for the court to pronounce judgment

This provision prescribes a manner by which acts or omissions as well as aggravating and qualifying circumstances should be alleged in the complaint or information. The main purpose of the requirement that the acts or omissions complained of as constituting an offense must be stated in ordinary and concise language is to enable a person of common understanding to know what the offense is intended to be charged so that he could suitably prepare for his defense.

Section 9 of Rule 110 actually complements Rule 110 Section 8 on the designation of the offense because in section 9 it specifies how you have to allege or to recite the acts and omissions constituting the crime being charged or the qualifying or aggravating circumstance.

In *People v. Mauricio*, the Court elucidated:

"The use of the word '**must**' indicates that the requirement is **mandatory**, therefore failure to comply with Sec. 9, Rule 110, means that generic aggravating circumstances, although proven at the trial, cannot be appreciated against the accused if such circumstances are not stated in the information. It is a cardinal rule that **rules of criminal procedure are given retroactive application** insofar as they benefit the accused." (*People v. Suela*)

The information must allege **clearly and accurately** the elements of the crime charged. The facts and circumstances are necessary to be included therein must be determined by reference to the definition and elements of the specific crimes being charged. (*Serapio v. Sandiganbayan*)

Since the information did not specifically allege the circumstance that the victim was under PNP custody during the rape, the trial court cannot appreciate the qualifying circumstance and thus can only impose the penalty for simple rape. (*People v. Aure*)

That the accused is the mother of the victim was not alleged, therefore it cannot be taken into consideration as a qualifying circumstance. (*People v. Tampus*)

OTHER RULES

Libel cases

GR: information must set out the particular defamatory words verbatim and as published and that the statement of their substance is insufficient.

XPN: may be cured by evidence presented in court

XPN of XPN: accused objects the presentation of evidence

Offenses in relation to public office

GR: if the offense charged against a public officer is not one of those specifically mentioned under the Sandiganbayan law but comes **under the offenses in general which may be committed in relation to public office**, then a sufficient description of how that particular offense was committed in relation to office must be recited in the complaint or information.

XPN: if the offense **cannot be committed unless it is in relation to office**. There is no necessity to specifically allege that it was indeed committed in relation to office. It will be a mere superfluity.

Allegations of negating exceptions

- 1) Where the statute alleged to have been violated applies only to a **specific class of persons and to special conditions**, the complaint or information must allege facts establishing the accused falls within the specific class affected and not those exempted from the coverage of the law. Otherwise, the complaint or information is quashable for failure to state facts constituting an offense
- 2) Where the statute **penalizes generally the acts therein defined and is intended to apply to all persons indiscriminately** although some special situations are excepted from its coverage, the complaint or information is **sufficient even if it does not allege that the accused falls within the excepted situation** for then the complete definition of the offense is entirely separable from the exceptions and can be made without reference to the latter. If it falls within the excepted class, the accused may raise is such fact as a defense.

Q: What is the effect if the aggravating circumstance is alleged in the information?

A: Award of exemplary damages is justified if an aggravating circumstance, either qualifying or generic, accompanies the crime

Furthermore, in *People v. Catubig*, we held that while a non-alleged but **proven aggravating circumstance cannot be used to increase the penalty, nonetheless it can be the source of civil**



awards. Hence, we retain the trial court's civil grants in this regard. (*People v. Suela*)

Section 13. *Duplicity of the offense.* — A complaint or information must charge but one offense, except when the law prescribes a single punishment for various offenses. (13a)

Duplicitous complaints or information

Rule

- 1) **Complaint filed in court** – duplicitous complaints apply
- 2) **Complaint filed to the prosecutor’s office** - duplicitous complaints do not apply

GR: The rule prohibits charging of two or more offenses in a single information has for its aim to give the defendant the necessary knowledge of the charge to enable him to prepare for his defense. The State shall not heap upon the defendant two or more charges which might confuse him in his defense

XPN: when the law prescribes a single punishment for various offenses such as:

- 1) Complex crime - a single act constitutes two or more grave or less grave felonies or when an offense is a necessary means in committing the other
 - Compound crime - a single act constitutes two or more grave or less grave felonies.
 - Complex crime proper - offense is a necessary means in the commission of the other

Q: What is the requirement in case an accused is charged with a complex crime?

A: The information charging a complex crime should allege each element of the component offenses with the same precision that would be necessary if they were made the subject of a separate prosecution

- 2) Special complex crime - crimes specifically named or designated in special penal offenses or under the Revised Penal Code all of which are punished with one penalty

Special complex crime	Ordinary complex crimes
specifically named or designated in special penal offenses or under the Revised Penal Code	applies specifically to felonies defined under the Revised Penal Code and is governed by Article 48 of the RPC

- 3) Continuous crimes – (*delito continuado*), single larceny doctrine, a series of act arising from a single criminal intent.

For delito continuado to exist there should be a **plurality of acts performed during a period of time; unity of penal provision violated; and unity**

of criminal intent or purpose, which means that two or more violations of the same penal provisions are united in one and same instant or resolution leading to the perpetration of the same criminal purpose or aim (*Santiago v. Garchitorená*)

Applying the concept of delito continuado, we treated as constituting only one offense the following cases:

- (1) The theft of 13 cows belonging to two different owners committed by the accused at the same time and at the same period of time (*People v. Tumlos*).
- (2) The theft of six roosters belonging to two different owners from the same coop and at the same period of time (*People v. Jaranillo*).
- (3) The theft of two roosters in the same place and on the same occasion (*People v. De Leon*).
- (4) The illegal charging of fees for services rendered by a lawyer every time he collects veteran's benefits on behalf of a client, who agreed that the attorney's fees shall be paid out of said benefits (*People v. Sabbun*). The collection of the legal fees were impelled by the same motive, that of collecting fees for services rendered, and all acts of collection were made under the same criminal impulse (*People v. Lawas*).

On the other hand, we declined to apply the concept to the following cases:

- (1) Two estafa cases, one of which was committed during the period from January 19 to December 1955 and the other from January 1956 to July 1956 (*People v. Dichupa*). The said acts were committed on two different occasions.
- (2) Several malversations committed in May, June and July, 1936, and falsifications to conceal said offenses committed in August and October 1936. The malversations and falsifications "were not the result of only one purpose or of only one resolution to embezzle and falsify . . ." (*People v. Cid*).
- (3) Two estafa cases, one committed in December 1963 involving the failure of the collector to turn over the installments for a radio and the other in June 1964 involving the pocketing of the installments for a sewing machine (*People v. Ledesma*).
- (4) 75 estafa cases committed by the conversion by the agent of collections from customers of the employer made on different dates (*Gamboa v. Court of Appeals*). (*Santiago v. Garchitorená*)

The accused said that he cannot be charged with multiple rapes since the rapes occurred within just few minutes from each other. He argued that he was just motivated by a single criminal intent although there were breaks in between the several rapes he committed. The Supreme Court did not agree and held that when the accused would rest after carnal knowledge or after satisfying his lust upon the victim and within a sufficient time to regain his strength would do it again, to do the rape again the carnal knowledge to the victim, it can be inferred that the accused has decided to commit separate and distinct

acts of rape and that he was not merely motivated by a single impulse but rather by several criminal intents. (*People v. Lucena*)

XPN of XPN: if there will be double jeopardy

Cases involving loose firearms

REPUBLIC ACT NO. 10591 AN ACT PROVIDING FOR A COMPREHENSIVE LAW ON FIREARMS AND AMMUNITION AND PROVIDING PENALTIES FOR VIOLATIONS THEREOF

SEC. 29. *Use of Loose Firearm in the Commission of a Crime.*

– The use of a loose firearm, when **inherent in the commission of a crime** punishable under the Revised Penal Code or other special laws, shall be considered as an **aggravating circumstance**: **Provided**, That if the crime committed with the use of a loose firearm is penalized by the law with a **maximum penalty which is lower** than that prescribed in the preceding section for illegal possession of firearm, the **penalty for illegal possession of firearm shall be imposed in lieu of the penalty for the crime charged**: **Provided**, further, That if the crime committed with the use of a loose firearm is penalized by the law with a **maximum penalty which is equal** to that imposed under the preceding section for illegal possession of firearms, the penalty of *prision mayor* in its minimum period shall be imposed in addition to the penalty for the crime punishable under the Revised Penal Code or other special laws of which he/she is found guilty.

If the violation of this Act is **in furtherance of, or incident to, or in connection with the crime of rebellion of insurrection, or attempted coup d'etat**, such violation shall be **absorbed** as an element of the crime of rebellion or insurrection, or attempted coup d'etat.

If the crime is **committed by the person without using the loose firearm**, the violation of this Act shall be considered as a **distinct and separate offense**.

SUMMARY:

Penalties

GR: The maximum penalty shall be imposed when the use of a loose firearm is **inherent in the commission of a crime** punishable under the Revised Penal Code or other special laws.

XPNs: (PENALTY SHOULD BE WHICHEVER IS HIGHER BETWEEN RPC/SPECIAL LAW PENALTY AND PENALTY UNDER ILLEGAL POSSESSION OF FIREARMS)

- 1) maximum penalty is **lower** than that prescribed in the preceding section for illegal possession of firearm - **penalty for illegal possession of firearm shall be imposed**
- 2) maximum penalty which is **equal** to that imposed under the preceding section for illegal possession of firearms - **penalty of *prision mayor* in its minimum period shall be**

imposed in addition to the penalty for the crime punishable under the Revised Penal Code or other special laws of which he/she is found guilty

Other circumstances

- 1) If the violation of this Act is **in furtherance of, or incident to, or in connection with the crime of rebellion of insurrection, or attempted coup d'etat** - such violation shall be **absorbed as an element of the crime** of rebellion or insurrection, or attempted coup d'etat.
- 2) If the crime is committed by the person without using the loose firearm - the violation of this Act shall be considered as a **distinct and separate offense**.

The Supreme Court said each illegal possession of a different type of firearm shall be prosecuted separately and not together since the law punishes the different type of firearm with a different penalty. It will not suffice to lump all the seized firearms in one information because the different penalties are imposed by law depending on the caliber of the weapon seized. To lump them altogether is duplicitous. (*Fajardo v. People*)

Q: What is the effect of the failure to prove a complex crime?

A: It is well settled that where a complex crime is charged and evidence fails to support the charge as to one of the component offenses, the defendant can be convicted only of the offense proved.

Q: What is the remedy against a duplicitous information? **A:** Non-compliance with the Rule is a ground for the quashing of a duplicitous complaint or information under Rule 117 of the Revised Rules on Criminal Procedure.

Waiver

The failure to object to a duplicitous information before he enters his plea results in a waiver of the right to object to it and the court may thereafter convict him of as many offenses as are charged and proved, and impose on him the penalty for each offense setting out separately the findings of fact and law in each offense.

Section 15. Place where action is to be instituted. —

(a) Subject to existing laws, the criminal action shall be instituted and tried in the court of the municipality or territory where the offense was committed or where any of its essential ingredients occurred.

(b) Where an offense is committed in a train, aircraft, or other public or private vehicle while in the course of its trip, the criminal action shall be instituted and tried in the court of any municipality or territory where such train, aircraft or other vehicle passed during such its trip, including the place of its departure and arrival.



(c) Where an offense is committed on board a vessel in the course of its voyage, the criminal action shall be instituted and tried in the court of the first port of entry or of any municipality or territory where the vessel passed during such voyage, subject to the generally accepted principles of international law.

(d) Crimes committed outside the Philippines but punishable under Article 2 of the Revised Penal Code shall be cognizable by the court where the criminal action is first filed. (15a)

Venue of criminal actions

Venue does not only determine the place where the criminal action is to be constituted, but also the court which has jurisdiction to try and hear the case. When a court is found to have no jurisdiction over the territory, the case **can be dismissed at any time**.

Two-Fold Reason for the Rule:

- 1) The jurisdiction of the trial court is limited to well-defined territories, such that a trial court can only hear and try cases involving crimes committed within their territorial jurisdiction.
- 2) Laying the venue in the *locus criminis* is grounded on the necessity and justice of having an accused on trial in the municipality or province where witnesses and other facilities for his defense are available

1ST PARAGRAPH

GR: criminal action shall be instituted and tried in the court of the municipality or territory where the offense was **committed** or where **any of its essential ingredients occurred**.

XPN: Subject to existing laws

Original cases which are cognizable by the Sandiganbayan	GR: Place where the said court sits or holds its sessions. XPN: when the greater convenience of the accused and the witnesses or other compelling considerations require a case originating from one geographical region may be heard in another geographical region
Cases affecting ambassadors, public ministers, and consuls	within the concurrent original jurisdiction of the Supreme Court and Regional Trial Courts.
Libel cases	subject of special rules of venue under Article 360 of the RPC 1) Whether the offended party is a public official or a private person, the criminal action may be filed in the Court

	of First Instance of the province or city where the libelous article is printed and first published. 2) If the offended party is a private individual, the criminal action may also be filed in the Court of First Instance of the province where he actually resided at the time of the commission of the offense. 3) If the offended party is a public officer whose office is in Manila at the time of the commission of the offense, the action may be filed in the Court of First Instance of Manila. 4) If the offended party is a public officer holding office outside of Manila, the action may be filed in the Court of First Instance of the province or city where he held office at the time of the commission of the offense. (<i>Agbayani v. Sayo</i>)
A criminal action arising from Illegal Recruitment	1) RTC of the province or city where the offense was committed OR 2) where the offended party actually resides at the time of the commission of the offense.
Perjury	where the untruthful statement under oath was made and not where it was used
BP 22	Continuous crime filed in any of the places where the elements of the offense occurred, that is, where the check is issued, delivered, drawn, or dishonored
Estafa by postdating or issuing a bad check	Continuous crime

	filed in any of the places where the elements of the offense occurred
Theft	Not a continuous crime filed where the crime of theft was consummated
Cybercrime law	1) Designated cybercrime court of the province or city where the offense or any of its elements is committed 2) Where any part of the computer system used is situated 3) Where any of the damage caused to a juridical or natural person took place The court where the criminal action is first filed shall acquire jurisdiction to the exclusion of other courts
Criminal action involving public officials falling under the jurisdiction of RTC	In a judicial region other than where the official holds office

The first place where the material was accessed cannot be equated with “printing and first publication” (*Bonifacio v. RTC*)

The allegations in the Information that "Panay News, a daily publication with a considerable circulation in the City of Iloilo and throughout the region" only showed that Iloilo was the place where Panay News was in considerable circulation but did not establish that the said publication was printed and first published in Iloilo City. (*Foz v. People*)

2nd PARAGRAPH

RULE: Where an offense is committed in a train, aircraft, or other public or private vehicle while in the course of its trip, the criminal action shall be instituted and tried

- 1) in the court of any municipality or territory where such train, aircraft or other vehicle **passed** during such trip
- 2) including the **place of its departure and arrival**.

Carnapping - is a continuing crime. Section 15(b) shall apply

3rd PARAGRAPH

GR: Where an offense is committed on board a vessel in the course of its voyage, the criminal action shall be instituted and tried

- 1) in the court of the **first port of entry** or

- 2) of any municipality or territory **where the vessel passed during such voyage**

XPN: subject to the generally accepted principles of international law

- crimes in the high seas – jurisdiction is determined by the place of registration of the vessel

4th PARAGRAPH

RULE: Crimes committed outside the Philippines but punishable under Article 2 of the Revised Penal Code shall be cognizable by the court **where the criminal action is first filed**. Once it is filed there, it is to the exclusion of all other courts.

	Philippine ship or airship	Foreign ship or airship
WITHIN JURISDICTION	TRIABLE (TERRITORIALITY)	TRIABLE (TERRITORIALITY) XPN: war ships – considered an extension of the country
OUTSIDE JURISDICTION	TRIABLE (EXTRATERRITORIALITY)	NOT TRIABLE
WITHIN JURISDICTION OF ANOTHER COUNTRY	ENGLISH RULE	NOT TRIABLE

*EEZ -_considered not as territory of the Philippines, but as high seas

Power of the SC to change venue or place
Section 5 (4) Article VIII, 1987 Constitution

SECTION 5. The Supreme Court shall have the following powers:
xxx
4) Order a change of venue or place of trial **to avoid a miscarriage of justice**.

In applying the standards of miscarriage of justice, the Court will evaluate which court would be in a better position to serve the interest of justice, taking into account

- 1) The **nature** of the controversy;
- 2) **Accessibility** of the court to the parties; and
- 3) **Other similar factor**

Venue for CICL

Age of criminal responsibility: above 15 but below 18 years old *who committed an offense with discernment

Sec. 23 of the 2019 SC Revised Rule on CICL provides, subject the provision of Sec. 15, Rule 110 of the Revised Rules on Criminal Procedure, any criminal or civil action involving a CICL shall be instituted and tried

- 1) in the appropriate court **nearest the place where the offense was committed** or
- 2) where **any of its essential elements occurred**

Section 14. Amendment or substitution. — A complaint or information may be amended, in form or in substance, without leave of court, at any time before the accused enters his plea. After the plea and during the trial, a formal amendment may only be made

with leave of court and when it can be done without causing prejudice to the rights of the accused.

However, any amendment before plea, which downgrades the nature of the offense charged in or excludes any accused from the complaint or information, can be made only upon motion by the prosecutor, with notice to the offended party and with leave of court. The court shall state its reasons in resolving the motion and copies of its order shall be furnished all parties, especially the offended party. (n)

If it appears at any time before judgment that a mistake has been made in charging the proper offense, the court shall dismiss the original complaint or information upon the filing of a new one charging the proper offense in accordance with section 19, Rule 119, provided the accused shall not be placed in double jeopardy. The court may require the witnesses to give bail for their appearance at the trial. (14a)

Amendment or substitution

AMENDMENT

Before plea	After plea
1) Formal amendments 2) Substantial amendments	1) Formal amendments
GR: Without leave of court XPNs: 1) Any amendment which downgrades the nature of the offense charged in 2) excludes any accused from the complaint or information Must be with leave of court + motion of the prosecutor + notice to the offended party	With leave of court if it can be done without causing prejudice to the rights of the accused

Q: What is the TEST to determine whether or not an accused will be prejudiced by an amendment?
A: The test as to when the rights of an accused are prejudiced with the amendment of the complaint or information is **when the defense under the complaint or information as originally stood will no longer be available after the amendment is made**, and when **any evidence the accused might have would be inapplicable to the complaint or information as amended**.

Amendment – refers to the modification of a complaint or information by the public prosecutor which changes its form or substance. It can be:

- 1) Formal – does not change the nature of the offense
- 2) Substantial – changes the nature of the offense

Formal amendments

Gabionsa v CA

- 1) It does not deprive the accused of the right to invoke prescription;
- 2) It does not affect or alter the nature of the offense originally charged
- 3) It does not involve a change in the basic theory of the prosecution so as to require the accused to undergo any material change or modification in his defense.
- 4) It does not expose the accused to a charge which would call for a higher penalty; and
- 5) It does not cause surprise nor deprive the accused of an opportunity to meet the new averment

Ricarze v. CA

- 6) New allegations which relate only to the **range of penalty that the court may impose** in the event of a conviction;
- 7) An amendment which does not charge another offense different or distinct from that charged in the original one;
- 8) Additional allegation which does not alter the prosecution's theory of the case so as to cause surprise to the accused and affect the form of defense he has or will assume;
- 9) An amendment which does not adversely affect any substantial right of the accused; and
- 10) An amendment that merely adds specifications to eliminate vagueness in the information and not to introduce new and material facts and merely state with additional precision something which is already contained in the original information, and which adds nothing essential for conviction for the crime charged.

Pacoy v. Judge Cajigal

- 11) Amendment to change the designation of the offense from homicide to murder - based on the facts and the circumstances of this case, what was originally charged was actually murder.

Almeda v. Judge Villaluz

- 12) Adding of the allegation of habitual delinquency and recidivism in the original information involving qualified theft - only changes the penalty which later on may be imposed on the accused

Tehankee v. Madayag

- 13) From frustrated murder to murder

Buhat v. CA

- 14) additional allegation of conspiracy where the participation of the accused as a principal

Substantial amendments

- 1) An amendment which changes the manner of the commission of the offense
- 2) An amendment which changes the name of the offended party in cases where the identity of the offended party is an element or is a necessary ingredient of the crime charged
- 3) An amendment to change the date of the commission of the offense **over a wide span**

of time (more than 3 years). So long as it is within the range of the change in the date, then it will just be considered as a formal amendment

- 4) An amendment for the purpose of making the information charge an offense when the original information does not charge any offense.
- 5) An amendment which changes the fact or ground of responsibility of the accused.

Montenegro v. People

- 6) From robbery to robbery in an uninhabited place

People v. Sandoval

- 7) Amendment in the relationship of the accused to the victim in rape cases

Objection to the information or complaint must be placed **at the time the amendment is made**, otherwise, accused silence would be deemed consent on his part to the amendment. (*People v. Janairo*)

A careful scrutiny of the rule on amendment, although it uses singular word complaint or information it doesn't mean that two or more complaints or information cannot be amended into only one information. Surely, such could not have been intended by the SC. Otherwise, there can be an absurd situation where two or more complaints or information could no longer be amended into one information (*Fronza-Baggao v. People*)

SUBSTITUTION

If it appears at any time before judgment that a **mistake** has been made in charging the proper offense, the court shall **dismiss** the **original complaint or information upon the filing of a new one charging the proper offense** in accordance with section 19, Rule 119, provided the accused shall not be placed in double jeopardy. The court may require the witnesses to give bail for their appearance at the trial. (14a)

RULE 119

Sec. 19. *When mistake has been made in charging the proper offense.* – When it becomes **manifest** at any time before judgment that a **mistake has been made in charging the proper offense and the accused cannot be convicted of the offense charged or any other offense necessarily included therein, the accused shall not be discharged if there appears good cause to detain him.** In such case, the court shall commit the accused to answer for the proper offense and **dismiss the original case upon the filing of the proper information.**

There can only be a substitution of the offense charged is **wholly different** from the offense that is proven. If not wholly different, there may be double jeopardy.

When substitution is proper, the court will dismiss the original charge or the original information only upon

the filing of the new information charging the proper offense.

Test in determining the identity of the offenses

There is an identity between the two offenses

- 1) when **the evidences** to support a conviction of one offense **would be sufficient to warrant a conviction to the other** or
- 2) when the second offense is **exactly the same** as the first or
- 3) when the **second offense is an attempt to commit or frustration** of or when it necessarily includes or **necessarily included in the offense charged** in the first information

Amendment	Substitution
May be made before or after the defendant pleads	
May involve formal or substantial changes	Necessarily involves a substantial change (wholly different) from the original charge
GR: Without leave of court XPNs: 3) Any amendment which downgrades the nature of the offense charged in 4) excludes any accused from the complaint or information Must be with leave of court + motion of the prosecutor + notice to the offended party	Substitution of information must always be with leave of court as the original information has to be dismissed.
Where the amendment is only as to form, there is no need to another preliminary investigation	The retaking of the plea of the accused in substitution of information, another preliminary investigation is entailed and accused has to plead anew the new information
An amended information refers to the same offense charge in the original information or to an offense which necessarily includes or is necessarily included in the original charge.	Substitution requires or presupposes that the new information involves a different offense which does not include or is not necessarily included in the original charge, hence, the accused cannot claim double jeopardy

RULE 111
PROSECUTION OF CIVIL ACTION

Section 1. *Institution of criminal and civil actions.* — (a) When a criminal action is instituted, the civil action for the recovery of civil liability arising from the offense charged shall be deemed instituted with the criminal action unless the offended party waives the

civil action, reserves the right to institute it separately or institutes the civil action prior to the criminal action.

The reservation of the right to institute separately the civil action shall be made before the prosecution starts presenting its evidence and under circumstances affording the offended party a reasonable opportunity to make such reservation.

When the offended party seeks to enforce civil liability against the accused by way of moral, nominal, temperate, or exemplary damages without specifying the amount thereof in the complaint or information, the filing fees thereof shall constitute a first lien on the judgment awarding such damages.

Where the amount of damages, other than actual, is specified in the complaint or information, the corresponding filing fees shall be paid by the offended party upon the filing thereof in court.

Except as otherwise provided in these Rules, no filing fees shall be required for actual damages.

No counterclaim, cross-claim or third-party complaint may be filed by the accused in the criminal case, but any cause of action which could have been the subject thereof may be litigated in a separate civil action. (1a)

(b) The criminal action for violation of Batas Pambansa Blg. 22 shall be deemed to include the corresponding civil action. No reservation to file such civil action separately shall be allowed.

Upon filing of the aforesaid joint criminal and civil actions, the offended party shall pay in full the filing fees based on the amount of the check involved, which shall be considered as the actual damages claimed. Where the complaint or information also seeks to recover liquidated, moral, nominal, temperate or exemplary damages, the offended party shall pay additional filing fees based on the amounts alleged therein. If the amounts are not so alleged but any of these damages are subsequently awarded by the court, the filing fees based on the amount awarded shall constitute a first lien on the judgment.

Where the civil action has been filed separately and trial thereof has not yet commenced, it may be consolidated with the criminal action upon application with the court trying the latter case. If the application is granted, the trial of both actions shall proceed in accordance with section 2 of this Rule governing consolidation of the civil and criminal actions. (cir. 57-97)

Two aspects of a criminal action

- 1) Criminal
- 2) Civil – civil liability ex delicto

Civil liability ex delicto

Art. 104. *What is included in civil liability.* — The civil liability established in Articles 100, 101, 102, and 103 of this Code includes:

- 1) Restitution;
- 2) Reparation of the damage caused;
- 3) Indemnification for consequential damages.

The substantive basis for this two-pronged aspect of a criminal action is Article 100 of the Revised Penal Code.

Art. 100. *Civil liability of a person guilty of felony.* — Every person criminally liable for a felony is also civilly liable.

GR: When a criminal action is instituted, the civil action for the recovery of civil liability arising from the offense charged shall be deemed instituted with the criminal action

XPN:

- 1) When the offended party waives the civil action
- 2) When he reserves the right to institute the civil action separately –

Purpose: The purpose of this rule requiring reservation is to prevent the offended party from recovering damages twice for the same act or omission

Effect: loses his right to intervene in the prosecution of the criminal case for this reason he no longer has any right nor should he be expected to move for reconsideration of much less appeal from the decision in the criminal case insofar as it decides the question of civil indemnity

- 3) When he institutes the civil action prior to the criminal action

Effect: The effect of the institution of the civil action prior to the criminal action is that the private offended party has abandoned his right to press recovery for the civil liability ex delicto in the criminal case and has opted instead to recover them in a separate civil action.

- 4) When the civil action is based on Article 32, 33, 34 and 2176 of the Civil Code otherwise known as independent civil action

Effect: the offended party can file two separate suit for the same act or omission.

- 1) The first is a criminal case where the civil action to recover civil liability ex delicto is deemed instituted.
- 2) And the other is a civil case for the quasi-delict without violating the rule on non-forum shopping.

No reservation allowed

- 1) The civil action arising from violation of Batas Pambansa Blg. 22.

XPN: The following are allowed

- To waive civil action ex delicto in relation to the BP 22 case 2.



- To file the civil action in relation to BP 22 case prior to the institution of the criminal action for BP 22.

When you file the BP 22 case, since the civil liability ex delicto is deemed instituted, the civil case that you filed prior will be dismissible. It has to be litigated in the criminal action because of the rules that provides that the civil liability ex delicto is deemed instituted in the BP 22 case.

The proper action would be to consolidate the previously filed civil action in relation to the action in the B.P. 22 case and consolidate it to the criminal action that was subsequently filed. (*Hyatt Industrial v. Asia Dynamic*)

There can be no separate, independent civil action grounded on fraud but the allegation is the violation of B.P. 22 because of the rule that the civil liability ex delicto is deemed instituted in the criminal action, there is no reservation allowed. Even an independent civil action even if phrased as fraud, as provided under Article 33 of the Civil Code, the case will not be allowed because essentially it would still be recovery of the amount subject to B.P. 22 case. (*Heirs of Simon v. Chan*)

- 2) The civil action for the recovery of civil liability arising from cases falling under the jurisdiction of the Sandiganbayan or other appropriate courts involving public officers.
- 3) The civil action for the recovery of the civil liability for taxes and penalties in criminal offenses arising from violations of the National Internal Revenue Code (NIRC) or Tariff and Customs Code and other laws administered by the Bureau of Internal Revenue or Bureau of Customs

Filing fees and other damages

Filing fees

GR: Actual damages – no filing fees

XPN: BP 22 - Upon filing of the aforesaid joint criminal and civil actions, the offended party shall pay in full the filing fees **based on the amount of the check involved, which shall be considered as the actual damages claimed.**

Indemnification for consequential damages

- 1) Moral
- 2) Exemplary
- 3) Nominal
- 4) Temperate
- 5) Actual

GR: To all other cases, when the offended party seeks to enforce civil liability against the accused by way of moral, nominal, temperate, or exemplary damages without specifying the amount thereof in the complaint or information, the filing fees thereof **shall constitute**

a first lien on the judgment awarding such damages.

XPN: the damages is specified in amount and the other damages were eventually given to the court but there was no specification in the complaint or information - the corresponding filing fee shall be paid by the offended party upon the filing thereof in court.

Rule in BP 22 cases

- 1) The actual damages is the amount that it reflected in the check subject of the BP 22 case - there is corresponding filing fees in BP 22 cases.
- 2) if nominal damages, moral damages, temperate damages or exemplary damages are specifically alleged **with specific amount** - pay the corresponding filing fees at the start or at the institution of the criminal action
- 3) if nominal damages, moral damages, temperate damages or exemplary damages are specifically alleged **without specific amount** - after the award is granted, the filing fees, based on the amount awarded shall constitute as a first lien on the judgment

Damages when death occurs

In relation to the award of damages when death occurs as a result of the crime, the heirs of the deceased are entitled to the following items of damages:

- 1) Indemnity for the death of the victim of the offense;
- 2) Indemnity for the loss of earning capacity of the deceased;
- 3) Moral damages for mental anguish;
- 4) Exemplary damages; and
- 5) Attorney's fees and expenses of litigation.
- 6) Interest may also be granted by the court in proper cases.

Counterclaim, cross-claim or third-party complaint

No counterclaim, cross-claim or third-party complaint may be filed by the accused in the criminal case, but any cause of action which could have been the subject thereof may be litigated in a separate civil action.

Counterclaim - any claim which a defending party may have against an opposing party

Cross-claim – any claim of a certain amount or the whole amount or a course of action against co-defendant

Third-party complaint - a claim that it, if any, party may with leave of court file against a person, not a party to the action called a third party defendant for contribution, indemnity, subrogation or any other relief in respect of his or her opponents' claim.

Counterclaim, cross claim, third party complaint the course of action of the offender or the accused can



proceed simultaneously and independently of the criminal action.

Consolidation of the civil and criminal actions

A situation wherein the civil action is filed separately in the **trial of the civil action has not yet commenced**. It may then be consolidated with the criminal action upon application with a court trying the latter case.

Section 2. *When separate civil action is suspended.* — After the criminal action has been commenced, the separate civil action arising therefrom cannot be instituted until final judgment has been entered in the criminal action.

If the criminal action is filed after the said civil action has already been instituted, the latter shall be suspended in whatever stage it may be found before judgment on the merits. The suspension shall last until final judgment is rendered in the criminal action. Nevertheless, before judgment on the merits is rendered in the civil action, the same may, upon motion of the offended party, be consolidated with the criminal action in the court trying the criminal action. In case of consolidation, the evidence already adduced in the civil action shall be deemed automatically reproduced in the criminal action without prejudice to the right of the prosecution to cross-examine the witnesses presented by the offended party in the criminal case and of the parties to present additional evidence. The consolidated criminal and civil actions shall be tried and decided jointly.

During the pendency of the criminal action, the running of the period of prescription of the civil action which cannot be instituted separately or whose proceeding has been suspended shall be tolled. (n)

The extinction of the penal action does not carry with it extinction of the civil action. However, the civil action based on delict shall be deemed extinguished if there is a finding in a final judgment in the criminal action that the act or omission from which the civil liability may arise did not exist. (2a)

Commencement of criminal or civil action

- 1) Criminal → Separate civil action - cannot be instituted until final judgment has been entered in the criminal action
- 2) Separate civil action → Criminal - the latter shall be suspended in whatever state it may be found before judgment on the merits. The suspension shall last until final judgment is rendered in the criminal action.

Reliefs while the civil action is suspended

- 1) consolidate the civil action in the criminal action Effects:
 - the evidence already adduced in the civil action shall be **deemed automatically reproduced** in the criminal action

- right of the prosecution to cross-examine the witnesses presented by the offended party in the criminal case
 - right to present additional evidence.
- 2) power to issue preliminary and auxiliary writs such as preliminary injunction, attachment, appointment of a receiver, fixing the amount of bonds to be filed, and other processes of similar nature none of which goes into the merits of the case
 - 3) During the pendency of the criminal action, the **running period of prescription of the civil action** which cannot be instituted separately or whose proceeding has been suspended shall be **tolled**.

Application

The rule does not apply to the civil action arising from other sources of obligations: law, quasi-delict, quasi-contract because this can proceed independently of criminal action

- 1) The independent civil actions in cases under Art 32,33, 34 and 2176 of Civil Code because you can file this independently, you do not have to wait for the criminal action to attain finality status.
- 2) If the case of separate civil action involves a prejudicial question determinative of whether the criminal action may proceed or not.
- 3) When the civil case is subsequently consolidated in the criminal action under this section of Rule 111.
- 4) When the civil action does not seek to enforce civil liability arising from the offenses such as civil action for legal separation arising from the crime of concubinage
- 5) When the civil action is ex contractu and not ex delicto, or is based on quasi-delict

Extinction

GR: The extinction of the penal action does not carry with it extinction of the civil action.

Extinguishment of criminal action

- 1) The death of the accused
- 2) Dismissal of the criminal action

XPN: civil action based on delict shall be deemed extinguished if there is a finding in a final judgment in the criminal action that the act or omission from which the civil liability may arise did not exist.

- 1) Acquittal of the accused
 - Acquittal on the ground that the accused is not the author of the act or omission complained of.

XPN of XPN:

- 1) Acquittal is one based on reasonable doubt on the guilt of the accused.
- 2) Where the court expressly declares that the liability of the accused is not criminal but only civil in nature.



- 3) Where the civil liability is not derived from or based on the criminal act on which the accused is acquitted.

Q: What are the effects of the extinction of civil liability to the criminal action?

A: A judge cannot dismiss a criminal case because the civil liability has been paid. While there may be a compromise upon civil liability arising from the offense, such compromise shall not extinguish the public action for the imposition of legal penalty. Payment is actually not one of the modes of extinguishing criminal liability.

Q: What is the effect on judgement in a civil case absolving the defendant to the criminal case?

A: A final judgement rendered in a civil action absolving the defendant from civil liability is not a bar to a criminal action for the same act or omission subject of the civil action.

Q: What is the effect of the acquittal of the accused to his administrative case?

A: Even if the accused is acquitted in his criminal case, it does not absolve him in his administrative case. The threshold in admin cases is only substantial evidence or a scintilla of proof or reasonable evidence that will support a conclusion.

Section 3. *When civil action may proceeded independently.* — In the cases provided for in Articles 32, 33, 34 and 2176 of the Civil Code of the Philippines, the independent civil action may be brought by the offended party. It shall proceed independently of the criminal action and shall require only a preponderance of evidence. In no case, however, may the offended party recover damages twice for the same act or omission charged in the criminal action. (3a)

Independent civil actions

- 1) the failure to make a reservation in the criminal action, i.e. to file separately any of this action provided under Article 32, 33, 34 and 2176, is not a waiver of the right to file a separate civil action based on this Articles of the Civil Code
- 2) civil actions not based on the criminal actions
- 3) the grant under Articles 32, 33, 34 and 2176 of the Civil Code are substantive in nature, this is part of substantive law therefore the right to file the same cannot be diminished, increased or modified by the Rules of Court without offending the Constitution.
- 4) an independent civil action separately and independently simultaneous with the criminal action. That is **on top of the civil liability ex delicto which may be prosecuted or deemed instituted in the criminal action.**

Article 32. Any public officer or employee, or any private individual, who directly or indirectly obstructs, defeats, violates or in any manner impedes

or impairs any of the following rights and liberties of another person shall be liable to the latter for damages:

- (1) Freedom of religion;
- (2) Freedom of speech;
- (3) Freedom to write for the press or to maintain a periodical publication;
- (4) Freedom from arbitrary or illegal detention;
- (5) Freedom of suffrage;
- (6) The right against deprivation of property without due process of law;
- (7) The right to a just compensation when private property is taken for public use;
- (8) The right to the equal protection of the laws;
- (9) The right to be secure in one's person, house, papers, and effects against unreasonable searches and seizures;
- (10) The liberty of abode and of changing the same;
- (11) The privacy of communication and correspondence;
- (12) The right to become a member of associations or societies for purposes not contrary to law;
- (13) The right to take part in a peaceable assembly to petition the Government for redress of grievances;
- (14) The right to be a free from involuntary servitude in any form;
- (15) The right of the accused against excessive bail;
- (16) The right of the accused to be heard by himself and counsel, to be informed of the nature and cause of the accusation against him, to have a speedy and public trial, to meet the witnesses face to face, and to have compulsory process to secure the attendance of witness in his behalf;
- (17) Freedom from being compelled to be a witness against one's self, or from being forced to confess guilt, or from being induced by a promise of immunity or reward to make such confession, except when the person confessing becomes a State witness;
- (18) Freedom from excessive fines, or cruel and unusual punishment, unless the same is imposed or inflicted in accordance with a statute which has not been judicially declared unconstitutional; and
- (19) Freedom of access to the courts.

In any of the cases referred to in this article, whether or not the defendant's act or omission constitutes a criminal offense, the aggrieved party has a right to commence an entirely separate and distinct civil action for damages, and for other relief. Such civil action shall proceed independently of any criminal prosecution (if the latter be instituted), and may be proved by a preponderance of evidence.

The indemnity shall include moral damages. Exemplary damages may also be adjudicated.

The responsibility herein set forth is not demandable from a judge unless his act or omission constitutes a violation of the Penal Code or other penal statute.

Article 33. In cases of defamation, fraud, and physical injuries a civil action for damages, entirely separate and distinct from the criminal action, may be brought by the injured party. Such civil action

shall proceed independently of the criminal prosecution, and shall require only a preponderance of evidence.

Article 34. When a member of a city or municipal police force refuses or fails to render aid or protection to any person in case of danger to life or property, such peace officer shall be primarily liable for damages, and the city or municipality shall be subsidiarily responsible therefor. The civil action herein recognized shall be independent of any criminal proceedings, and a preponderance of evidence shall suffice to support such action.

Article 2176. *Quasi-Delict.* Whoever by act or omission causes damages to another, there being fault or negligence is oblige to pay for the damage done. Such fault or negligence is if there is no pre-existing contractual relation between the parties is called quasidelict is governed by the provisions of Chapter 2, Title XVII of the Civil Code.

Under here, same act or omission can create two kinds of liability on the part of the offender; that is:

- 1) civil liability ex delicto such as reckless imprudence resulting to homicide and/or damage to property; and
- 2) liable for quasi-delict or civil liability under Art. 2176 of Civil Code.

Section 4. *Effect of death on civil actions.* — The death of the accused after arraignment and during the pendency of the criminal action shall extinguish the civil liability arising from the delict. However, the independent civil action instituted under section 3 of this Rule or which thereafter is instituted to enforce liability arising from other sources of obligation may be continued against the estate or legal representative of the accused after proper substitution or against said estate, as the case may be. The heirs of the accused may be substituted for the deceased without requiring the appointment of an executor or administrator and the court may appoint a guardian *ad litem* for the minor heirs.

The court shall forthwith order said legal representative or representatives to appear and be substituted within a period of thirty (30) days from notice.

A final judgment entered in favor of the offended party shall be enforced in the manner especially provided in these rules for prosecuting claims against the estate of the deceased.

If the accused dies before arraignment, the case shall be dismissed without prejudice to any civil action the offended party may file against the estate of the deceased. (n)

Effects of death to criminal actions

Art. 89. *How criminal liability is totally extinguished.* — Criminal liability is totally extinguished:

- 1) By the death of the convict, as to the personal penalties and as to pecuniary penalties, liability therefor is extinguished only when the death of the offender occurs before final judgment.
- xxx

Effects to civil actions

DEPENDENT ACTIONS

To civil actions: EXTINGUISHED

- 1) Purely person action - The death of a party will completely extinguish the claim or the action which is purely personal
- 2) Civil Actions involving the performance that cannot be purely delegated
- 3) Claims that cannot be instituted by the executor or administrator of the deceased person

NOT EXTINGUISHED

- 1) Recovery of contractual money, (based on contracts)
- 2) Recovery or protection of property rights,
- 3) Recovery of real and personal property or interest,
- 4) Enforcement of a lien,
- 5) Recovery of damages to injury of a person of property and suits by reason of the alleged tortuous acts of the defendant, and (torts and quasi-delicts)
- 6) Ejectment cases

INDEPENDENT CIVIL ACTIONS

NOT EXTINGUISHED

- 1) . It shall be the duty of his counsel to inform the court within 30 days after such death of the fact thereof and give the names and addresses of his legal representative/s
- 2) The failure of the counsel to comply is a ground for disciplinary action.

1. Death of the accused **pending appeal of his conviction extinguishes his criminal liability as well as the civil liability based solely thereon.** As opined by Justice Regalado, in this regard, "the death of the accused prior to final judgment terminates his criminal liability and only the civil liability directly arising from and based solely on the offense committed, i.e., civil liability ex delicto in senso strictiore."

2. Corollarily, the claim for civil liability survives notwithstanding the death of accused, if the same may also be predicated on a source of obligation other than delict. Article 1157 of the Civil Code enumerates these other sources of obligation from which the civil liability may arise as a result of the same act or omission:

- a) Law
- b) Contracts
- c) Quasi-contracts
- d) . . .
- e) Quasi-delicts

3. Where the civil liability survives, as explained in Number 2 above, an action for recovery therefor may be pursued but **only by way of filing a separate civil action and subject to Section 1, Rule 111 of the 1985 Rules on Criminal Procedure as amended**. This separate civil action may be enforced either against the executor/administrator or the estate of the accused, depending on the source of obligation upon which the same is based as explained above.

4. Finally, the private offended party need not fear a forfeiture of his right to file this separate civil action by prescription, in cases where during the prosecution of the criminal action and prior to its extinction, the private-offended party instituted together therewith the civil action. In such case, the statute of limitations on the civil liability is deemed interrupted during the pendency of the criminal case, conformably with provisions of Article 1155 21 of the Civil Code, that should thereby avoid any apprehension on a possible privation of right by prescription.

(People v. Bayotas)

Section 5. Judgment in civil action not a bar. — A final judgment rendered in a civil action absolving the defendant from civil liability is not a bar to a criminal action against the defendant for the same act or omission subject of the civil action. (4a)

This applies when the civil action was separately filed and decided prior to the institution of the criminal action or when the independent civil action that proceeded independently with the criminal action was decided ahead of the criminal action.

Section 6. Suspension by reason of prejudicial question. — A petition for suspension of the criminal action based upon the pendency of a prejudicial question in a civil action may be filed in the office of the prosecutor or the court conducting the preliminary investigation. When the criminal action has been filed in court for trial, the petition to suspend shall be filed in the same criminal action at any time before the prosecution rests. (6a)

Section 7. Elements of prejudicial question. — The elements of a prejudicial question are: (a) the previously instituted civil action involves an issue similar or intimately related to the issue raised in the subsequent criminal action, and (b) the resolution of such issue determines whether or not the criminal action may proceed. (5a)

Prejudicial question

It is a question based on a fact distinct and separate from the crime, but so intimately connected with it that it determines the guilt or innocence of the accused. It is a question which arises in a case, the resolution of which is a logical antecedent of the issue involved in the said case and the cognizance of which pertains to another tribunal

Rationale of prejudicial questions

The reason behind the principle of a prejudicial question is to avoid two conflicting decisions in the civil case and in the criminal case.

Applicability

- 1) the civil action referred to in issues of prejudicial question is not the civil action involving the civil liability ex delicto.
- 2) it can be law contract or quasi contract, but it cannot involve separate civil action under Article 32, 33, 34, 2176 or those independent civil action because as to those kinds of civil action, a prejudicial question cannot arise
- 3) based on other sources of obligation such as contract, quasi-contract or law
- 4) If both are civil cases, then there is no prejudicial question.
- 5) If both are criminal cases, then again, no prejudicial question.
- 6) If both are administrative cases or one is administrative while the other is criminal, then there is no prejudicial question.

Q: Who files the petition for suspension in the criminal case when there is prejudicial question?

A: The rule is actually silent on who should file the petition for suspension. It is admitted that the accused or even the prosecution can file a petition to suspend based on prejudicial question.

Q: Where do you file a petition to suspend a criminal action based on prejudicial question?

A:

- 1) When the criminal action is **still pending preliminary investigation** with the office of the prosecutor, then you can file for suspension in the proper office where the officer conducting the preliminary investigation is.
- 2) If directly filed in court, prejudicial question is filed it in the court where the criminal action is spending

The previously instituted civil action in this case is a declaration of nullity of marriage. Subsequently, a criminal action for frustrated parricide was filed. In that criminal action, there was a motion to suspend criminal proceedings because of alleged prejudicial question. The SC said that at the time of the commission of the alleged crime, petitioner and respondent were married. The subsequent dissolution of their marriage in the previously instituted civil action will **have no effect on the alleged crime that was committed at the time of the subsistence of their marriage.** (*Pimentel v. Pimentel*)

There are 2 separately instituted civil actions in this case. 1) For sum of money; 2) The cancellation of mortgage, delivery of title, and damages. The issues in these previously instituted civil action is one whether a loan was obtained and whether a



mortgage was executed in relation to that loan. The subject matter of the subsequently filed criminal action of perjury was lying in an affidavit of loss to support the request for issuance of a new owner’s duplicate copy of the certificate of title. There was no prejudicial question (*Magestrado v. People*)

The previously filed civil action in the case of Yap vs. Cabales was a civil action for collection of a sum of money. Therefore, the issue in a collection suit for sum of money - whether or not the defendant is liable to pay the plaintiff a sum of money. It does not answer whether or not the accused in a BP 22 case issued a bad check. (*Yap v. Cabales*)

The previously instituted civil action there was declaration of nullity of interest of five percent per day. The offender issued a check and eventually it bounced. Therefore, there is a criminal action for BP 22. the moment that he signed a check, the check issued to the plaintiff and deposited the check to the bank and the bank eventually dishonored it, that already consummates BP 22. (*Jose v. Suarez*)

In the previously instituted civil action, there was an issue whether or not novation took place in the obligation of the parties in the civil case. The determination whether there was a novation again will not affect the determination of whether or not there was an issuance of a bad check – a check issued and there after dishonored. Thus, there is no prejudicial question in this case. (*Landbank v. Jacinto*)

The previously instituted civil action in this case is the declaration of nullity of the appointments of the corporate officers then the subsequent criminal action that was filed was two counts of Estafa for failure to return company cars entrusted to a previous officer. The old officers then filed for suspension of the criminal action based on prejudicial question. They argued that in the previously instituted civil action there is an issue of whether or not the officers are duly installed or duly elected. In that sense, the issue to be determined in the previously filed civil action is actually determinative of the guilt or innocence of the accused in the criminal action. Therefore, there is a prejudicial question. (*Omictin v. CA*)

The previously instituted civil action is also for the determination of the validity of the election of the new officers and the subsequently filed criminal action is again for Estafa and one of the essential elements is abuse of confidence. Now, the determination whether there was abused of confidence in the subsequently file criminal action also rests into whether or not an officer was validly elected in the corporation. Therefore, the determination in the previously instituted civil action as to the validity of the election of the new set of officers has a bearing or is determinative of whether or not the element of Estafa in the subsequently file criminal action is present or not. Therefore, there is a prejudicial question. (*People v. Arambulo*)

The previously instituted civil case is an administrative case for the specific performance before the Housing Land Use Regulatory Board. Subsequently, a criminal action for violation of PD 957 for non-delivery of titles in violation of the applicable provisions of PD 957. It is essentially of the same issue but the modes of enforcing the actions were different. One is in an administrative body and the other is a criminal action in court. The Supreme Court said that it is a prejudicial question – the specific performance case filed in the HULRB and therefore the subsequently filed criminal action based on the violation of PD 957 should be suspended. (*San Miguel Properties v. Perez*)

PRELIMINARY INVESTIGATION

RULE 112

Section 1. *Preliminary investigation defined; when required.*
— Preliminary investigation is an inquiry or proceeding to determine whether there is sufficient ground to engender a well-founded belief that a crime has been committed and the respondent is probably guilty thereof, and should be held for trial.

Except as provided in section 7 of this Rule, a preliminary investigation is required to be conducted before the filing of a complaint or information for an offense where the penalty prescribed by law is at least four (4) years, two (2) months and one (1) day without regard to the fine. (1a)

DEFINITION OF “PRELIMINARY INVESTIGATION”

The inquiry or proceeding, that is the preliminary investigation, is to determine whether there is sufficient ground to engender a well-founded belief. This is what we call the probable cause in preliminary investigation, which we will define later on. And the probable cause, is that there is a crime that has been committed and that the crime committed is committed by the respondent, who is probably guilty thereof and should be held for trial in a judicial criminal proceeding.

NATURE

- Executive function
- Function that belongs to the public prosecutor
- Substantive rights
- A personal right and can be waived expressly or impliedly

PURPOSES OF PRELIMINARY INVESTIGATION

- A. To inquire concerning the commission of a crime and the connection of the accused with it, in order that he may be informed of the nature and character of the crime charged against him, and if there is probable cause, for believing him guilty that the state shall take the necessary steps to bring him to trial;

- B. To preserve the evidence and keep the witnesses within the control of the state and to determine the amount of bail if the offense is bailable

Probable cause pertains to the facts and circumstances sufficient to support a well-founded belief that a crime has been committed and the accused is probably guilty thereof

RIGHT OF PRELIMINARY INVESTIGATION

- 1) Not a constitutional right
- 2) Waivable

PUBLIC PROSECUTOR

- 1) The preliminary investigation by a public prosecutor is not the stage to decide whether there is evidence beyond reasonable doubt of the guilt of the person charged.
- 2) The main function of the government prosecutor during the preliminary investigation is merely to determine the existence of probable cause and to file the corresponding information if he finds it to be so.
- 3) if there is no probable cause, not enough evidence to support the probability of guilt, then it is the duty of an investigating prosecutor to dismiss the case to protect an innocent from a hasty, expensive and useless criminal trial.

KINDS OF DETERMINATION OF PROBABLE CAUSE

Preliminary Investigation	Preliminary Examination/Inquiry
The determination of probable cause by the Executive Department	determination of probable cause by the judicial department
The probable cause is for the purpose of determining whether there is a crime committed and that the respondent is the one guilty of that crime.	the probable cause there is for the determination of probable cause in relation to whether a warrant of arrest will be issued by the judge.
Executive function	Judicial function

JURISDICTION OF COURTS

GR: Courts are precluded from reviewing findings of the prosecutors – findings of probable cause. The rationale behind the rule rests on the principle of separation of powers since the determination of probable cause, in relation to preliminary investigation is an executive function.

XPN: When there is a clear grave abuse of discretion amounting to lack or excess of jurisdiction. The abuse must be shown to be so patent, so gross as to amount to an invasion of a positive duty or a virtual refusal to perform a duty enjoined by law, or to act at all in contemplation of law as where the power is exercised

in an arbitrary and despotic manner by reason of passion or hostility.

PRELIMINARY INVESTIGATION v. CUSTODIAL INVESTIGATIONS

PRELIMINARY INVESTIGATION	CUSTODIAL INVESTIGATION
an inquiry or proceeding to determine whether there is sufficient ground to engender a well-founded belief that a crime has been committed and the respondent is probably guilty thereof and should be held for trial.	the questioning initiated by law enforcement officers after a person has been taken into custody or otherwise deprived of his freedom of action in any significant way.
happens before an investigating prosecutor	a custodial investigation happens before a law enforcement officer
the respondent is made to answer the criminal charge to defend himself against a criminal charge that he is probably guilty of	a person invited or who is already a suspect in a criminal investigation is asked as to the circumstances of a particular crime.

What are the offenses requiring preliminary investigation?

Under paragraph 2 of Section 1, except when the accused was lawfully arrested without a warrant, a preliminary investigation is required to be conducted before the filing of the complaint or information for an offense when the penalty prescribed by law is at least 4 years, 2 months and 1 day without regard to fine.

a public prosecutor needs to look at **the prescribed penalty**, which is the penalty indicated by the law for the crime and not the imposable penalty which refers to that penalty to be imposed on the accused after considering the evidence and attendant modifying circumstances in the case.

Preliminary investigation not required

- 1) When the accused was lawfully arrested without a warrant and he does not ask for a preliminary investigation, this is called an inquest case.
- 2) When the penalty prescribed for the offense charged does not exceed 4 years 2 months (and 1 day?), the cases falling under this category has been called as direct filing cases.

What is the effect of a lack of preliminary investigation?

Consistently, the Supreme Court has held that the absence of a preliminary investigation

- 1) does not impair the validity of the criminal information or render it defective
- 2) It does not also affect the jurisdiction of the trial court

- 3) But if there is no preliminary investigation and the accused before entering his plea invites the attention of the court to its absence (when the lack of preliminary investigation is appropriately and timely raised by the accused meaning), the court, instead of dismissing the case, should remand the case to the prosecutor so that a preliminary investigation may be conducted.
- 4) Not a ground to motion to quash
- 5) Waivable - if the accused fails to raise the lack of preliminary investigation during his or her arraignment and he already took his plea

Instances when probable cause needs to be established

- 1) **Under Sections 1 and 3 of the Rule 112 in Preliminary Investigation** by the investigating officer to determine whether there is sufficient ground to engender a well-founded belief that a crime has been committed, and the respondent is probably guilty thereof and should be held for trial. A preliminary investigation is required before the filing of a complaint or information for an offense when the penalty prescribed by law is at least 4 years, 2 months and 1 day without regard to fine.
- 2) **Under Sections 5 and 8 of Rule 112**, by the judge to **determine whether a warrant of arrest or a commitment order**, if the accused has already been arrested, shall be issued and that there is a necessity of placing the respondent under the immediate custody in order not to frustrate the ends of justice.
- 3) **Under Section 5 (b) of Rule 113**, by a peace officer or a private person **making a warrantless arrest** when an offense has just been committed and he has probable cause to believe, based on personal knowledge of facts or circumstances that the person to be arrested has committed it.
- 4) **Under Section 4 of Rule 126**, on **search and seizure** by a judge to determine whether a search warrant shall be issued and only upon probable cause in connection with one specific offense to be determined personally by the judge after examination under oath or affirmation of the complainant and the witnesses he may produce and particularly describing the place to be searched and the things to be seized, which may be anywhere in the Philippines.

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Section 4.1.2. *Quantum of Evidence Required is Probable Cause.* — Probable cause has been defined as a reasonable ground of presumption that a matter is or may be well-founded; such a state of facts in the mind of the prosecutor as would lead a person of ordinary

caution and prudence to believe, or entertain an honest or strong suspicion, that a thing is so.

The term does not mean “actual and positive cause” nor does it import absolute certainty. It is merely based on opinion and reasonable belief. Thus, a finding of probable cause does not require an inquiry into whether there is sufficient evidence to procure a conviction. It is enough that it is believed that an act or omission complained of constitutes the offense charged. Precisely, there is a trial for the reception of evidence of the prosecution in support of the charge.

Probable cause, for purposes of filing a criminal information, has been defined as such facts as are sufficient to engender a well-founded belief that a crime has been committed and that respondent is probably guilty thereof, and should be held for trial.

Probable cause is meant such set of facts and circumstances which would lead a reasonably discreet and prudent man to believe that the offense charged in the Information, or any offense included therein, has been committed by the person sought to be arrested.

In determining probable cause, the average person weighs facts and circumstances without resorting to the calibrations of the rules of evidence of which he/she has no technical knowledge. He/She relies on common sense.

A finding of probable cause needs only to rest on evidence showing that, more likely than not, a crime has been committed and that it was committed by the accused.

Probable cause demands more than bare suspicion, but it requires less than evidence that would justify a conviction.

What is determined during preliminary investigation is only probable cause, not proof beyond reasonable doubt. As implied by the words themselves, probable cause is concerned with probability, not absolute or moral certainty.

A finding of probable cause does not require an inquiry into whether there is sufficient evidence to secure a conviction. It is enough that the act or omission complained of constitutes the offense charged. The term does not mean “actual and positive cause” nor does it import absolute certainty. It is merely based on opinion and reasonable belief.

Section 4.1.3

Section 4.1.3. No Fixed Formula for Determining Probable Cause. — The determination of probable cause does not call for the application of rules and standards of proof that a judgment of conviction requires after trial on the merits. As implied by the words themselves, “probable cause” is concerned with probability, not absolute or even moral certainty. The



prosecution need not present at this stage proof beyond reasonable doubt. The standards of judgment are those of a reasonably prudent man, not the exacting calibrations of a judge after a full-blown trial. No law or rule states that probable cause requires a specific kind of evidence. No formula or fixed rule for its determination exists. Probable cause is determined in the light of conditions obtaining in a given situation.

Section 4.1.4. Sound Discretion of the Prosecutor. – The institution of a criminal action depends upon the sound discretion of the prosecutor. He may or may not file the complaint or information, follow or not follow that presented by the offended party, according to whether the evidence, in his opinion, is sufficient or not to establish the guilt of the accused beyond reasonable doubt. The reason for placing the criminal prosecution under the direction and control of the [prosecutor] is to prevent malicious or unfounded prosecution by private persons. x x x Prosecuting officers under the power vested in them by law, not only have the authority but also the duty of prosecuting persons who, according to the evidence received from the complainant, are shown to be guilty of a crime committed within the jurisdiction of their office. They have equally the legal duty not to prosecute when after an investigation they become convinced that the evidence adduced is not sufficient to establish a prima facie case.

Section 4.2. Purposes of a Preliminary Investigation. –

a. To secure the innocent against hasty, malicious and oppressive prosecution and to protect him/her from an open and public accusation of a crime and from the trouble, expense and anxiety of a public trial; and

b. To protect the State from having to conduct useless and expensive trials.

The primary objective of a Preliminary Investigation is to free the respondent from the inconvenience, expense, ignominy and stress of defending himself/herself in the course of a formal trial, until the reasonable probability of his/her guilt in a more or less summary proceeding by a competent office designated by law for that purpose has been determined.

Secondarily, such summary proceeding also protects the State from the burden of the unnecessary expense and effort in prosecuting alleged offenses, and in holding trials arising from false, frivolous or groundless charges.

Section 4.2.1. Double Jeopardy in Preliminary Investigation. – The dismissal of a case during preliminary investigation does not constitute double jeopardy, preliminary investigation not being part of the trial.

the requisites for double jeopardy to attach is that there is:

1. A first jeopardy must have attached prior to the second one;
2. The first jeopardy must have been validly terminated;
3. The second jeopardy must be for the same offense as the first jeopardy

Legal jeopardy attaches only upon:

1. Valid indictment;
2. Before a competent court;
3. After arraignment;
4. A valid plea having been entered; and
5. The case was dismissed or otherwise terminated without the express consent of the accused.

Section 4.3. Nature of a Preliminary Investigation. – 4.3.1. It is an Executive Function. – A preliminary investigation is **not a quasi-judicial proceeding**. [The investigating prosecutor] does not exercise adjudication nor rule-making functions. It is a function of the Office of the National Prosecution Service which is under the control and supervision of the Department of Justice within the executive branch of the government.

4.3.2. It is Preliminary in Nature. – The investigation is advisedly called preliminary, **as it is yet to be followed by the trial proper**. The investigating officer acts upon probable cause and reasonable belief, not proof beyond reasonable doubt

4.3.3. It is a Summary and Inquisitorial Proceeding. – While it is a summary proceeding, it **is done in a scrupulous manner to prevent material damage to a potential accused's constitutional right to liberty and the guarantees of freedom and fair play**. Merely inquisitorial; not trial on the merits; It must be stressed that the right of an accused to a preliminary investigation is a **personal right** and **can be waived expressly or by implication**; **if failed to invoke before entering a plea; it is not part of the due process guaranteed by the Constitution; and does not place the respondent in jeopardy**

4.3.4. It is not a Judicial Inquiry or Proceeding. – Preliminary investigation is **merely inquisitorial**, and is often the only means of discovering the persons who may be reasonably charged with a crime and to enable the fiscal to prepare his/ her complaint or information. It is not a trial of the case on the merits and has no purpose except that of determining whether a crime has been committed and whether there is probable cause to believe that the accused is guilty thereof. While



the fiscal makes that determination, he/she cannot be said to be acting as a quasi- court, for it is the courts, ultimately, that pass judgment on the accused, not the fiscal.

Section 4.4. Right to Preliminary Investigation. – 4.4.1. It is not a Constitutional Right. – The right to a preliminary investigation is not a constitutional right, meaning, it is not expressly provided for in the Constitution. It is not therefore guaranteed by the Constitution unlike for instance, the right to counsel or to remain silent which is expressly embodied under Section 12 of Article III of the Constitution.

4.4.2. It is Merely a Statutory Grant. – The right to a preliminary investigation is **statutory, not constitutional.**” In short, the rights of a respondent in a preliminary investigation are merely statutory rights, not constitutional due process rights.

4.4.3. It is a Personal Right. – The **right to a preliminary investigation is also a personal right, which can be waived expressly or impliedly.** Preliminary investigation is not part of the due process guaranteed by the Constitution. It is an inquiry to determine whether there is sufficient ground to engender a well-founded belief that a crime has been committed and the respondent is probably guilty thereof. Instead, the right to a preliminary investigation is personal. It is afforded to the accused by statute, and can be waived, either expressly or by implication. The waiver extends to any irregularity in the preliminary investigation, where one was conducted.

In inquest cases, the accused impliedly waives his/her right to a preliminary investigation, if he/she fails to invoke the same within five (5) days from the time he/she learns of the filing of the Information. This five-day period for the filing of a motion for preliminary investigation after an Information has been filed in court against an accused who was arrested without a warrant, has been characterized as mandatory.

4.4.4. It is a Substantive Right. – The right to preliminary investigation is substantive, not merely formal or technical. To deny it to petitioner would deprive him/her of the full measure of his/her right to due process.

Section 2. *Officers authorized to conduct preliminary investigations.* —

The following may conduct preliminary investigations:

(a) Provincial or City Prosecutors and their assistants;

(b) Judges of the Municipal Trial Courts and Municipal Circuit Trial Courts;

(c) National and Regional State Prosecutors; and

(d) Other officers as may be authorized by law.

Their authority to conduct preliminary investigations shall include all crimes cognizable by the proper court in their respective territorial jurisdictions. (2a)

The Supreme Court has withdrawn the authority of judges of the municipal trial court or the first level courts to conduct preliminary investigation

Prosecutors	Courts
probable cause in conducting preliminary investigations	probable cause to the issuance of a warrant of arrest, search and seizure

Other officers authorized by law

1) COMELEC

SEC. 43. Section 265 of Batas Pambansa Blg. 881 is hereby amended to read as follow:

"SEC. 265. Prosecution. - The Commission shall, through its duly authorized legal officers, have the power, concurrent with the other prosecuting arms of the government, to conduct preliminary investigation of all election offenses punishable under this Code, and prosecute the same"

2) Office of Ombudsman

The Office of the Ombudsman has authority to investigate and prosecute on its own or on complaint by any person any act or omission of any public officer or employee, office or agency, when such act or omission appears to be illegal, unjust, improper or inefficient. It has primary jurisdiction over cases cognizable by the Sandiganbayan, and in the exercise of this primary jurisdiction, it may take over at any stage from any investigatory agency of the government the investigation of such cases.

The investigators of the Office of the Ombudsman have **concurrent jurisdiction** with public prosecutors to conduct a preliminary investigation in all cases involving public officers, whether falling under the jurisdiction of the Sandiganbayan or the regular court. Prosecutors under the DOJ or the prosecutors under the Office of the Ombudsman can take cognizance of cases involving public officers. But in cases where the exclusive jurisdiction is with the Sandiganbayan, the Ombudsman **may assert its primary jurisdiction at any stage of the investigation**

3) Presidential Commission on Good Governance

The Presidential Commission on Good Governance with the assistance of the Office of the Solicitor General and other government agencies, empowered to investigate, file, and prosecute cases investigated by it are also authorized to conduct preliminary investigation.

4) Special counsels designated by the Secretary of Justice or the Department of Justice

Special counsels designated by the Secretary of Justice or the Department of Justice may create a panel of investigating prosecutors for special kinds of cases.

Section 3. Procedure. — The preliminary investigation shall be conducted in the following manner:

(a) The complaint shall state the address of the respondent and shall be accompanied by the affidavits of the complainant and his witnesses, as well as other supporting documents to establish probable cause. They shall be in such number of copies as there are respondents, plus two (2) copies for the official file. The affidavits shall be subscribed and sworn to before any prosecutor or government official authorized to administer oath, or, in their absence or unavailability, before a notary public, each of who must certify that he personally examined the affiants and that he is satisfied that they voluntarily executed and understood their affidavits.

(b) Within ten (10) days after the filing of the complaint, the investigating officer shall either dismiss it if he finds no ground to continue with the investigation, or issue a subpoena to the respondent attaching to it a copy of the complaint and its supporting affidavits and documents.

The respondent shall have the right to examine the evidence submitted by the complainant which he may not have been furnished and to copy them at his expense. If the evidence is voluminous, the complainant may be required to specify those which he intends to present against the respondent, and these shall be made available for examination or copying by the respondent at his expense.

Objects as evidence need not be furnished a party but shall be made available for examination, copying, or photographing at the expense of the requesting party.

(c) Within ten (10) days from receipt of the subpoena with the complaint and supporting affidavits and documents, the respondent shall submit his counter-affidavit and that of his witnesses and other supporting documents relied upon for his defense. The counter-affidavits shall be subscribed and sworn to and certified as provided in paragraph (a) of this section, with copies thereof furnished by him to the complainant. The respondent shall not be allowed to file a motion to dismiss in lieu of a counter-affidavit.

(d) If the respondent cannot be subpoenaed, or if subpoenaed, does not submit counter-affidavits within the ten (10) day period, the investigating officer shall resolve the complaint based on the evidence presented by the complainant.

(e) The investigating officer may set a hearing if there are facts and issues to be clarified from a party or a witness. The parties can be present at the hearing but

without the right to examine or cross-examine. They may, however, submit to the investigating officer questions which may be asked to the party or witness concerned.

The hearing shall be held within ten (10) days from submission of the counter-affidavits and other documents or from the expiration of the period for their submission. It shall be terminated within five (5) days.

(f) Within ten (10) days after the investigation, the investigating officer shall determine whether or not there is sufficient ground to hold the respondent for trial. (3a)

- 1) submission of the complaint with affidavits and supporting documents, and then
- 2) the submission of counter-affidavits with supporting affidavits and documents
- 3) If it is necessary, the investigating officer may set a hearing to conduct clarificatory questioning from both parties. But during this clarificatory hearing, there is no right to examine or cross-examine. The only right given here is to submit to the investigating officers questions which either party would like to ask to the witnesses or to the opposing party.
- 4) After the clarificatory questioning (which under the rules should be terminated within five days), then the end of the preliminary investigation will be the last day of the clarificatory hearing. And the investigating prosecutor is given ten (10) days to decide whether there is probable cause or none. However, if there is no clarificatory hearing, the investigation will end at the submission of the counter-affidavit.
- 5) reply to the Counter-Affidavit. If the other party wants to reply to the Reply-Affidavit, they can file a Rejoinder Affidavit.

Affidavits, counter-affidavits and supporting documents

- 1) should be made on personal knowledge
- 2) should show affirmatively that the affiants are competent to testify on the matters stated therein.
- 3) sworn to before any prosecutor or government official authorized to administer oath, or **only in their absence and unavailability**, a notary public who must certify that he personally examined the affiants and that he is satisfied that they voluntarily executed and understood their affidavits.
 - Affidavits, notarized by a notary public without any showing that a prosecutor or qualified government official was unavailable, are not in accord with the rules. Thus, it may not be considered or accepted by the investigating prosecutor.



Upon filing of the complaint

1. Dismiss the complaint — The investigating prosecutor is empowered or authorized to actually dismiss the complaint within ten (10) days after its filing if he finds no ground to continue with the investigation; or
2. Issue a subpoena — He or she may issue a subpoena to a respondent attaching to it the copy of the complaint and its supporting affidavits and documents and directing the respondent to file a counter-affidavit

Sec 3c

A verified motion to dismiss may be filed on the following grounds:

- 1) The absence of probable cause;
- 2) The fact that the complaint or one similar thereto or identical therewith has previously been filed with the office and has been fully adjudicated upon the merits after due preliminary investigation proceeding; and
- 3) The extinction of the respondent's criminal liability by reason of death, pardon, amnesty, repeal of the law under which the prosecution is sought, or any other legal causes such as for example the lack of jurisdiction of the investigating prosecutor.

Rights of the complainants and respondents under Sec. 3, Rule 112

1. Respondents — has the right to receive a copy of the complaint and its supporting affidavits and documents.
 - Respondents and co-respondents have no right to demand that they be furnished with copies of the counter-affidavits of their co-respondents.

what the respondents right to examine refers only to the evidence submitted by the complainant and not to the counter-affidavits of his co-respondents (Jinggoy Estrada vs. OMB)

2. Complainant — has the right to receive a copy of the counter-affidavits and the affidavits and supporting documents from the respondent.

Sec 3d

Remember, preliminary investigation can actually proceed ex-parte or without the participation of the respondents. It is under Section 3(d), Rule 112. The rule allows the investigating prosecutor to resolve the complaint based on the evidence before him if the respondent could not be made to participate in the preliminary investigation despite the efforts to reach him. However, it must be shown that the investigating prosecutor, at the very least, had the genuine effort to reach the respondent or to furnish him with the complaint and the affidavits and the documents supporting such complaint

during the preliminary investigation, all the other respondents were given a subpoena and a copy of the complaint and the supporting documents. However, Mr. Labay was not furnished the subpoena, the complaint, the affidavits, and the supporting documents because two of the addresses to which the subpoena, etc. were sent to were his previous office address and his previous residence. Therefore, despite several attempts, the subpoena could really not served upon Mr. Labay. Because of this failure of service, Mr. Labay became unaware that there was already a preliminary investigation against him. His daughter, Atty. Labay, only found out that there was an investigation and that there was already a resolution because Atty. Labay saw it on TV. she requested for copies of the complaint and the supporting documents. However, the request was denied. Instead she was given a copy of the resolution approving the filing of the information against, among others, respondent Labay for violation of Anti-Graft and Corrupt Practices Act before the Sandiganbayan. A first Omnibus motion for re-investigation was then filed and a copy of the complaint and the supporting documents were requested. This was denied by the Ombudsman, thus, a motion for reconsideration was filed which was denied again.

Subsequently, the information was filed before the Sandiganbayan and it was only days after the filing of the information that Mr. Labay was given a copy of the complaint along with the copy of the affidavits and documents, but that happened only after the information was filed before the Sandiganbayan.

However, the peculiar circumstance here is Mr. Labay did not want to evade the service of the subpoena. He didn't know but upon knowing or gaining knowledge, he was the one who volunteered to have a copy of the complaint and the supporting documents in order for him to properly answer. Mr. Labay really didn't have any attempt to delay the prosecution of this offense he had genuinely wanted to participate, but that the Ombudsman did not give him that opportunity by not giving him timely the copy of the complaint and the supporting documents.

Actually, the Ombudsman could have properly resolve the preliminary investigation even without the participation of Mr. Labay because that is under the rules. However, because it was Mr. Labay himself who volunteered, who approached the Ombudsman to participate to have a copy of the complaint and supporting documents in order for him to properly answer, properly present his defense, but despite that effort the Ombudsman still denied Mr. Labay's request to be furnished timely a copy of the complaint and the supporting documents.

The Supreme Court said that while the Ombudsman was correct in resolving the complaint based on the evidence presented in accordance with the rules even if no counter-affidavit was filed by Mr. Labay, there's



no dispute that the Ombudsman was unable to serve copies of the complaint or the supporting documents prior to or even during the preliminary investigation of the case meaning.

The Supreme Court noted however, that the situation effectively changed when petitioner made himself available to the Ombudsman when he requested access to the case records. The Ombudsman had a clear opportunity to furnish petitioner with copies of the complaint affidavit and its supporting documents. Instead, it merely decided to furnish petitioner with a copy of its resolution.

The Supreme Court added that even assuming that the Ombudsman was merely complying with Atty. Labay's requests for information when it responded with case titles and docket numbers of the cases pending against petitioner Labay, it should have exercised its duty to inform the petitioner of the charges filed against him by furnishing him copies of the complaint affidavit and its supporting documents, or at least, it should have directed and allowed petitioner to access the records, at its office pursuant to the right of the respondent to examine the evidence submitted by the complainant. But this was not done by the Ombudsman.

by the mere fact that the petitioner, Atty. Labay was not yet furnished a copy of the complaint affidavit and the supporting documents at the time that the Ombudsman furnished him a copy of the resolution finding probable cause against him, it is clear that he could not effectively and sufficiently address the allegation against him. Atty. Labay should not be blamed for being unable to raise any substantive defense in either the omnibus motions he filed with the Ombudsman, since he had not even seen any of the allegations filed against him by the Ombudsman. More importantly, he could not have been expected to seek appropriate evidence to support his defense when he wasn't even given any access to the documents submitted by the Sandiganbayan in support of its complaint.

The Supreme Court further added that in fact, the violation of petitioner Labay's constitutional right to due process is made even more evident when the Ombudsman unceremoniously denied his request to be furnished copies of the complaint affidavit and its supporting documents in the first Omnibus motion and reiterated in his second Omnibus motion in both orders denying the two Omnibus motions. The Ombudsman seemingly ignored petitioners request and effectively denied petitioner of his right to secure copies of the complaint affidavit.

Unfortunately, the Sandiganbayan committed grave abuse of discretion when it failed to grant petition Labay's extremely urgent Omnibus motion, despite the glaring violation committed by the Ombudsman. The Sandiganbayan should have recognized these patent violations and ordered the remand of the case to the Ombudsman for the conduct of a proper preliminary investigation with respect to petitioner Labay's participation in the crimes charged.

There is also no merit in the Ombudsman's position, that it was incumbent on petitioner Labay to justify his whereabouts during the time that the Ombudsman was attempting service of the subpoena on him, since no law or regulation requires an accused in a preliminary investigation to submit himself to the Ombudsman, or at the very least, to update the latter of his latest address (*Labay v. Sandiganbayan*)

GR: the preliminary investigation can go on ex parte without the participation of the respondent if he was already served a subpoena and he fails or refuses to submit counter affidavit within the 10 days provided for under the rules, that will not constrain the investigating prosecutor to proceed with the preliminary investigation in finding whether or not there is probably a cause. Even just based on the complaint, and the supporting affidavits and documents provided for by the complainant

XPN: when circumstances like in the case of Labay v. Sandiganbayan happens, where it is actually the respondent who is willing and volunteering to participate in the preliminary investigation, but still, the investigating prosecutor denies the rights of the responded under the rules, then it would be considered as grave abuse of discretion.

Sec 3e – CLARIFICATORY HEARING

the investigating officer has the right to set a hearing for a clarificatory question. This is discretionary for the investigating officer and not mandatory at all. Therefore, since it is discretionary, the absence of a clarificatory hearing is not a denial of due process.

Under DOJ Circular No. 01-2000, all cases of preliminary investigation being conducted by investigating prosecutors **shall be completely disposed of within a period of 60 days from the date of assignment.** This period shall include hearings conducted in preparation and issuance of resolutions and corresponding information if any.

However, the noncompliance with the period does not affect the validity of the resolution or the information. It will be the investigating prosecutor who will just be subject to disciplinary action if there is no justifiable explanation of why there is a delay in the resolution of the preliminary investigation.

Sec 3f

Officially the termination of the preliminary investigation is upon the filing of the information in the proper court or when there is a dismissal of the complaint, the approval of the proper approving authority. So for preliminary investigation conducted by the:

- Provincial Prosecutor's Office, it will be the provincial prosecutor who will approve.



- City Prosecutor's Office, it will be the City Prosecutor who will approve.
- Regional State Prosecutor's office, it will be the Chief State Prosecutor or the Prosecutor General
- In cases of offenses cognizable by the Sandiganbayan in the exercise of its original jurisdiction, it will be the Ombudsman or his Deputy. So, deputies will be from Luzon, Visayas, Mindanao, and from the military

Certification of preliminary investigation

If he finds in the resolution that there is probable cause, the information shall contain a certification by the investigating officer under oath in which he shall certify to the following:

- a) that he or as shown by the record, an authorized officer, has personally examined the complainant and his witnesses;
- b) that there is reasonable ground to believe that a crime has been committed;
- c) that the accused is probably guilty thereof;
- d) that the accused was informed of the complaint and of the evidence submitted against him; and
- e) that he was given an opportunity to submit controverting evidence

Effect of absence

Notwithstanding the absence in the information of a certification as to the holding of a preliminary investigation, the information is nonetheless considered valid for the reason that such certification is not an essential part of the information itself, and its absence cannot vitiate the information.

What is not allowed is the filing of the information without a preliminary investigation, having been previously conducted in those instances where preliminary investigation is necessary.

within **five days** from the resolution, the investigating prosecutor shall forward the record of the case to the proper approving authority. The approving authority shall act on the resolution **within 10 days** from the receipt thereof and shall immediately inform the parties of such action.

Forwarding of the records for action

no complaint or information may be filed or dismissed by the investigating prosecutor without the prior written authority or approval of the corresponding approving authority. Thus, the resolution of the investigating prosecutor may be reversed or affirmed by the Provincial or City Prosecutor or the Prosecutor General or the Ombudsman as the case may be.

Rule when recommendation for dismissal is disapproved

Where the investigating prosecutor recommends the dismissal of the complaint, but his recommendation is

disapproved by the Provincial or City Prosecutor or the Chief Prosecutor or the Ombudsman or his deputy on the ground that probable cause exists, the latter may

- 1) by himself file the information against the respondent or
- 2) direct another assistant prosecutor or state prosecutor to do so **without conducting another preliminary investigation**. (it will no longer be the investigating prosecutor who will handle the case and file the information in court. It will be a totally different prosecutor.)

Motion for reconsideration

Under the rules of the Department of Justice, the

- 1) aggrieved party under the preliminary investigation may actually file a motion for reconsideration within 15 days from the receipt of the assailed resolution.
- 2) If the motion is denied, the aggrieved party may appeal within 15 days from the denial of the motion for reconsideration and the appeal is taken to the Office of the Secretary of Justice.

It will be termed a **petition for review** before the Secretary of Justice who has the power to reverse, modify or affirm the prosecutor's determination in preliminary investigation.

Appeals

Secretary of Justice

The appeal to the Secretary of justice, however, does not hold or prevent the filing of a corresponding information in court based on the finding of probable cause in the appealed resolution unless the secretary of justice directs otherwise, but the one appealing and the prosecutor shall see to it that pending resolution of the appeal, the proceedings in court are **held in abeyance**.

The party filing a petition for review is allowed to file a motion for the suspension of the arraignment and upon motion by the proper party the arraignment shall be suspended, among others, if a petitioned for review of the resolution of the prosecutor is pending.

The authority of the investigating prosecutor and even the Secretary of the Department of Justice as previously discussed, is a discretion that is executive in nature but if there is grave abuse of discretion, then the court can step in and nullify or reverse the act which was done in grave abuse of discretion.

Office of the President

The resolution of the Secretary of Justice in appealed cases, may either be

- 1) brought to the Court of Appeals via petition for certiorari under Rule 65 of the Rules of Court based on grave abuse of discretion or
- 2) it may be brought on appeal to the Office of the President **ONLY** in the following cases



- a) the offense involved is punishable by *reclusion perpetua* to death;
 - For offenses which involve imprisonment, which is lower than *reclusion perpetua* to death, the only mode of raising it up would be **judicial**, going to the court of appeals via rule 65 of the rules of court, petition for certiorari, and based on grave abuse of discretion.
- b) new and material issues are raised which were not previously presented before the Department of Justice and were not hence ruled upon;
- c) the prescription of the offense is not due to lapse within six months from notice of the questioned resolution; and
- d) The appeal or petition for review is filed within 30 days from notice

If there is already a resolution of the Office of the President, then it can be raised to the Supreme Court within 15 days from notice of the final order of the Office of the President, and the procedure that you will take will be under **Rule 43 of the Rules of Court**. The resolution in the Court of Appeals, can be raised to the Supreme Court via rule 45 to the Supreme Court.

From the Office of the President (can be raised by) Rule 43 because the Office of the President is considered quasi-judicial body when it resolves appeal similar to this. From the Court of Appeals, under Rule 43 whatever decision judgment resolution order there that is final can be raised by Rule 45 (Petition for Review on Certiorari) which should be based on pure questions of law to the Supreme Court.

Review of the ruling of the ombudsman in criminal cases

In criminal cases, the ruling of the Ombudsman shall be elevated to the Supreme Court by way of Rule 65 (Petition for Certiorari). The Supreme Court's power of a review over resolutions and orders of the Office of the Ombudsman is restricted only to determining whether there is a grave abuse of discretion committed by the Ombudsman in the resolution of criminal cases. The court is not authorized to correct every error or mistake of the Office of the Ombudsman other than grave abuse of discretion. The remedy therefore is not a petition under Rule 45 but a Petition for Certiorari under Rule 65.

Appeal from the Resolution of the Prosecutor in Election Offense

In cases where the prosecutor or city fiscal exercises the delegated power to conduct a preliminary investigation of election offenses, the issue of probable cause is resolved by the investigating officer after submitting their recommendation. From such resolution, appeal to the COMELEC lies. Such second look at the probable cause is an exercise of the

COMELEC's review powers. The COMELEC'S ruling then would be considered immediately final and executory. As the COMELEC is acting as a quasi-judicial body, any appeals to such ruling is raised to the Court of Appeals via **Rule 43**.

There is a concept of the court's retention of jurisdiction upon the filing of the information. Whatever the remedy is after the determination of probable cause or the lack thereof, if it is the determination of probable cause, there is no stopping the public prosecutor from filing the information even if the aggrieved party raises it to the Secretary of Justice (SOJ).

The determination of the presence or absence of probable cause for the issuance of warrants of arrest against the accused or for the withdrawal of the information or for the dismissal of the case are also under the court's discretion.

Where it has already been filed with the court and there has been a review in the SOJ, before there is a resolution by the SOJ, a motion for suspension must be filed in the trial court. This is done to avoid simultaneous proceedings because resolutions of the trial court are as valid as that of the SOJ. Thus, being separate entities, simultaneous proceedings might lead to conflicting resolutions. When the information is filed with the trial court, it shall be its duty and discretion that will prevail.

Section 4. Resolution of investigating prosecutor and its review. — If the investigating prosecutor finds cause to hold the respondent for trial, he shall prepare the resolution and information. He shall certify under oath in the information that he, or as shown by the record, an authorized officer, has personally examined the complainant and his witnesses; that there is reasonable ground to believe that a crime has been committed and that the accused is probably guilty thereof; that the accused was informed of the complaint and of the evidence submitted against him; and that he was given an opportunity to submit controverting evidence. Otherwise, he shall recommend the dismissal of the complaint.

Within five (5) days from his resolution, he shall forward the record of the case to the provincial or city prosecutor or chief state prosecutor, or to the Ombudsman or his deputy in cases of offenses cognizable by the Sandiganbayan in the exercise of its original jurisdiction. They shall act on the resolution within ten (10) days from their receipt thereof and shall immediately inform the parties of such action.

No complaint or information may be filed or dismissed by an investigating prosecutor without the prior written authority or approval of the provincial or city prosecutor or chief state prosecutor or the Ombudsman or his deputy.



Where the investigating prosecutor recommends the dismissal of the complaint but his recommendation is disapproved by the provincial or city prosecutor or chief state prosecutor or the Ombudsman or his deputy on the ground that a probable cause exists, the latter may, by himself, file the information against the respondent, or direct any other assistant prosecutor or state prosecutor to do so without conducting another preliminary investigation.

If upon petition by a proper party under such rules as the Department of Justice may prescribe or motu proprio, the Secretary of Justice reverses or modifies the resolution of the provincial or city prosecutor or chief state prosecutor, he shall direct the prosecutor concerned either to file the corresponding information without conducting another preliminary investigation, or to dismiss or move for dismissal of the complaint or information with notice to the parties. The same rule shall apply in preliminary investigations conducted by the officers of the Office of the Ombudsman. (4a)

Section 5. When warrant of arrest may issue.* —
(a) By the Regional Trial Court. — Within ten (10) days from the filing of the complaint or information, the judge shall personally evaluate the resolution of the prosecutor and its supporting evidence. He may immediately dismiss the case if the evidence on record clearly fails to establish probable cause. If he finds probable cause, he shall issue a warrant of arrest, or a commitment order when the complaint or information was filed pursuant to section 6 of this Rule. In case of doubt on the existence of probable cause, the judge may order the prosecutor to present additional evidence within five (5) days from notice and the issue must be resolved by the court within thirty (30) days from the filing of the complaint or information.
(b) By the Municipal Trial Court. — When required pursuant to the second paragraph of section 1 of this Rule, the preliminary investigation of cases falling under the original jurisdiction of the Metropolitan Trial Court, Municipal Trial Court in Cities, Municipal Trial Court or Municipal Circuit Trial Court SHALL be conducted by the prosecutor. The procedure for the issuance of a warrant of arrest by the judge shall be governed by paragraph (a) of this section.
(c) When warrant of arrest not necessary. — A warrant of arrest shall not issue if the accused is already under detention pursuant to a warrant issued by the municipal trial court in accordance with paragraph (b) of this section, or if the complaint or information was filed pursuant to section 6 of this Rule or is for an offense penalized by fine only. The court shall then proceed in the exercise of its original jurisdiction. (As amended by A.M. No. 05-8-26- SC.)

Warrant of arrest
Is a written order of the court, which is made on behalf of the State and is based upon a complaint issued pursuant to statute and/or court rule; and which

commands law enforcement officers to arrest a person and bring him before a magistrate.

Action of the judge upon filing of the complaint or information

In the procedure for the issuance of a warrant, the judge of the RTC shall **within 10 days** from the filing of the complaint or information do either of the following:

- 1) The judge of the RTC shall personally evaluate the resolution of the prosecutor and the supporting evidence regarding the existence of probable cause, and on the basis thereof, issue a warrant of arrest.

Warrant of arrest	Search warrant
the judge will personally look at the documents, information, and supporting evidence, etc.	the judge will require a personal examination of the complainant or the one that applied for a search warrant, and the witnesses which he may provide.

- 2) The trial court judge of the RTC, if he has doubts as to the existence of probable cause, shall have the power to order the prosecutor to present additional evidence.
 - Additional evidence - The judge must satisfy himself that based on the evidence submitted there is sufficient proof that a crime has been committed and that the person to be arrested is probably guilty thereof. At this stage of the criminal proceeding, the judge is not yet tasked to review in detail the evidence submitted during the preliminary investigation. It is sufficient that he personally evaluates such evidence in determining probable cause.
 - Dismiss - The judge is also empowered to immediately dismiss the case if the evidence on record clearly fails to establish probable cause. But it is only when the judge finds that the evidence on hand is absolutely failing to support a finding of probable cause, that he can dismiss the case.
 - Warrant of arrest with recommendation for bail - When there is a determination by the judge that there is probable cause, a judge should issue a warrant of arrest with a recommendation for bail — in those cases of course that bail is a matter of right.

Rule 114, Section 17. Bail, where filed. (c) Any person in custody who is not yet charged in court

may apply for bail with any court in the province, city, or municipality where he is held

SUMMARY

- 1) He may immediately dismiss the case, if the evidence on the record clearly fails to establish probable cause; or
- 2) If he **finds probable cause**, he shall issue a warrant of arrest or a commitment order if the complaint or information was filed pursuant to Section 6 of Rule 112 (valid warrantless arrest); or
- 3) If he doubts the existence of probable cause, he may order the prosecutor to present additional evidence **within five days from notice**

In relation to the discussion that it is the duty of the judge of the court to personally evaluate the records of the case, the judge should not rely solely on the certification of the fiscal.

When is Warrant of Arrest unnecessary?

- 1) If the complaint is filed pursuant to the provision of section 6 rule 112 due to the absence or unavailability of an inquest prosecutor. the issuance of a warrant is unnecessary because the accused is already in detention. What the court will issue is a **commitment order**.
- 2) If the complaint or information was filed after inquest proceeding conducted by the inquest prosecutor. Same as #1, here there is already detention of the accused, and therefore the court will just issue a commitment order instead of a warrant of arrest
- 3) In criminal cases falling under the Revised Rules on Summary Procedure except when the accused failed to appear whenever required. This is because for cases falling under the Revised Rules on Summary Procedure, there is usually no imprisonment. The penalty is mostly fine.
XPN: However, if the person accused of a crime failed to appear whenever required by the court, then the court may issue a warrant of arrest to compel him to come to court
- 4) In cases not requiring preliminary investigation nor falling under the Revised Rule on Summary Procedure and the judge is satisfied that there is no necessity for placing the accused under custody
- 5) When the evidence on record fails clearly to establish probable cause; and
- 6) When the offense is penalized by fine only

Section 6, Rule 112. When accused lawfully arrested without warrant. — When a person is lawfully arrested without a warrant involving an offense which requires a preliminary investigation, the complaint or information may be filed by a prosecutor without need of such investigation

provided an inquest has been conducted in accordance with existing rules.

In the absence or unavailability of an inquest prosecutor, the complaint may be filed by the offended party or a peace office directly with the proper court on the basis of the affidavit of the offended party or arresting officer or person.

Before the complaint or information is filed, the person arrested may ask for a preliminary investigation in accordance with this Rule, but he must sign a waiver of the provisions of Article 125 of the Revised Penal Code, as amended, in the presence of his counsel. Notwithstanding the waiver, he may apply for bail and the investigation must be terminated within fifteen (15) days from its inception.

After the filing of the complaint or information in court without a preliminary investigation, the accused may, within five (5) days from the time he learns of its filing, ask for a preliminary investigation with the same right to adduce evidence in his defense as provided in this Rule.

INQUEST PROCEEDINGS

Application

Applies only in cases where the accused was lawfully arrested without warrant of arrest under Section 5 Rule 113 of the Revised Rules of Criminal Procedure. Where the records do not show that the accused was lawfully arrested, this rule does not apply.

Under DOJ Circular No. 61, dated September 21 1993, the initial duty of the inquest officer is to determine if the arrest of the detained person was made in accordance with the provisions of paragraphs A and B of Section 5 of rule 113.

DOJ Circular No. 61, Section 9. *Where arrest not properly effected.* — Should the Inquest Officer find that the arrest was not made in accordance with the Rules, he shall:

- a. **recommend the release** of the person arrested or detained;
- b. **note down the disposition** of the referral document;
- c. **prepare a brief memorandum** indicating the reasons for the action taken; and
- d. **forward the same, together with the record of the case, to the City or Provincial Prosecutor** for appropriate action.

Where the recommendation for the release of the detained person is approved by the City or Provincial Prosecutor but the evidence on hand warrant the conduct of a regular preliminary investigation, the order of release shall be served on the officer having custody of said detainee and shall direct the said officer to serve upon the detainee the subpoena or notice of preliminary investigation, together with the copies of the charge sheet or complaint, affidavits or sworn statements of the

complainant and his witnesses and other supporting evidence.

2017 Revised Manual for Prosecutors, Section 3.1.1. Concept — An **inquest proceeding** is an **informal** and **summary investigation** conducted by a public prosecutor in criminal cases involving persons arrested and detained without the benefit of a warrant of arrest issued by the court for the purpose of determining **whether or not these persons should remain under custody and correspondingly be charged in court**

2017 Revised Manual for Prosecutors, Section 3.1.2. Coverage — The **conduct of inquest proceedings** covers the following:

- a. All offenses covered under the Revised Penal Code and special laws, rules and regulations which requires a preliminary investigation;
- b. Where respondent is a minor (**below eighteen** [18] years old), the inquest proceedings shall cover only offenses **punishable by imprisonment of not less than six (6) years and one (1) day**, provided that no inquest investigation shall be conducted unless the child-respondent shall have **first undergone the requisite proceedings before the Local Social Welfare Development Officer** pursuant to the Rules on Inquest with Respect to Children in Conflict With the Law (CICL).

2017 Revised Manual for Prosecutors, Section 3.1.3. Designation of an Inquest Prosecutor. — The Prosecutor General or the Provincial/City Prosecutor shall designate the prosecutors assigned to inquest duties and their schedule of assignments.

2017 Revised Manual for Prosecutors, Section 3.1.4. Venue of Inquest Cases. — Unless otherwise directed by the Prosecutor General or the Provincial/City Prosecutor, those assigned to inquest duties shall discharge their functions during the hours of their designated assignments at the office of the inquest prosecutor in order to expedite and facilitate the disposition of inquest cases, unless otherwise directed by the Head of Office.

2017 Revised Manual for Prosecutors, Section 3.2. Procedure. — All complaints for inquest shall be received and docketed by the prosecution office concerned.

Section 3.2.1. Commencement. — The inquest proceedings shall be **considered commenced** upon receipt by the inquest prosecutor of the following documents:

- a. **Affidavit of arrest** duly subscribed and sworn to before him/her by the arresting officer;
- b. **Investigation report**;
- c. **Sworn statements** of the complainant/s and witness/es; and
- d. **Other supporting pieces of evidence** gathered by the law enforcement authorities in the course of their investigation.

Section 3.2.2. Incomplete Documents. — When the documents presented are incomplete to establish probable cause, the inquest prosecutor shall **direct the law enforcement authorities to submit, in the proper form, the required evidence within the period prescribed under the provisions of Article 125 of the Revised Penal Code**, as amended. Failure to submit the required evidence within the prescribed period shall constrain the inquest prosecutor to **order the release** of the detained person/s.

Section 3.2.3. Instances Where the Presence of the Detained Person is Dispensed With. — The **presence of the detained person** shall be **ensured** during the proceedings except in the following cases:

- a. If he is **confined in a hospital**; or
- b. If he is **detained in a place under maximum security**.

The inquest prosecutor shall reflect the absence of the detained person for any of the foregoing reasons in the record of the case.

Section 3.2.4. Charges and Counter-Charges. — All charges and counter-charges arising from the same incident shall, as far as practicable, be **jointly investigated and the conduct of the inquest proceedings be terminated, and be referred for further preliminary investigation**.

Section 3.2.6. Where the Arrest of the Detained Person was Properly Effected. — Should the inquest prosecutor find that the arrest was properly effected, the detained person shall be asked if he/she desires to avail himself/herself of a preliminary investigation and, if he/she does, the consequences thereof must be explained to him/her adequately.

The detained person must be assisted by a lawyer of his/her own choice. If he/she has none, the inquest prosecutor shall provide him/her the services of a public attorney.

The detained person, assisted by his/her lawyer, shall then be made to execute a waiver of the provisions of Article 125 of the Revised Penal Code, as amended.

The preliminary investigation may be conducted by the inquest prosecutor himself/herself or by any other prosecutor to whom the case may be assigned by the Prosecutor General or the Provincial/City Prosecutor, which investigation shall be **terminated within fifteen (15) days from its commencement**.

2017 Revised Manual for Prosecutors, Section 3.3 Inquest Proper. — Where the detained person does not opt for a preliminary investigation or otherwise refuses to execute the required waiver, the inquest prosecutor shall proceed with the conduct of the inquest proceeding by examining the sworn statements/ affidavits of the complainant and the witnesses and other supporting evidence submitted. **The conduct of an inquest proceeding should**



never be initiated in the absence of an affidavit of arrest.

If necessary, the inquest prosecutor shall require the presence of the complaining witnesses and subject this witness to an informal and summary investigation or examination for the purposes of determining the existence of probable cause.

Section 3.3.1. *Action to be Taken When there is a finding of Probable Cause.* – **Probable cause** has been defined as the existence of such facts and circumstances as would excite the belief, in a reasonable mind, acting on the facts within the knowledge of the prosecutor, that the person charged was guilty of the crime for which he/she was prosecuted. Probable cause is a reasonable ground of presumption that a matter is, or may be, well-founded, such a state of facts in the mind of the prosecutor as would lead a person of ordinary caution and prudence to believe, or entertain an honest or strong suspicion, that a thing is so.

If the inquest prosecutor finds that probable cause exists, he/she shall forthwith prepare the resolution with the corresponding Complaint/Information with the recommendation that the same be filed in court. The Complaint/Information shall indicate the offense/s committed and the amount of bail recommended, if applicable. However, in inquest cases for crimes covered by the Rules on Summary Procedure and Republic Act No. 603610 where no bail is required, the inquest prosecutor shall recommend the release of the arrested person and prepare the Information for filing with the court.

Thereafter, the record of the case, together with the resolution and the Complaint/Information, shall be forwarded to the Prosecutor General or the Provincial/City Prosecutor for approval and subsequent filing before the proper Court.

Section 3.3.2. *Action to be Taken When There is an Absence of Probable Cause.* – If the inquest prosecutor finds **no probable cause** to indict the arrested/detained person, he/she shall:

- Recommend the release** of the arrested or detained person;
- Prepare a resolution of dismissal** indicating therein the reason/s for the action taken; and
- Forward the record of the case to the Prosecutor General or the Provincial/City Prosecutor** for their appropriate action.

GR: the inquest proceedings must be terminated within the period prescribed, which will be counted from the time the arrest under the provisions of Article 125 of the Revised Penal Code

XPN: When there is a waiver for the purpose of preliminary investigation

Revised Penal Code

Art. 125. *Delay in the delivery of detained persons to the proper judicial authorities.* — The penalties provided in

the next preceding article shall be imposed upon the public officer or employee who shall detain any person for some legal ground and shall fail to deliver such person to the proper judicial authorities within the period of; **twelve (12) hours**, for crimes or offenses punishable by **light penalties**, or their equivalent; **eighteen (18) hours**, for crimes or offenses punishable by **correctional penalties**, or their equivalent and **thirty-six (36) hours**, for crimes, or offenses punishable by **afflictive or capital penalties, or their equivalent**.

In every case, the person detained shall be informed of the cause of his detention and shall be allowed upon his request, to communicate and confer at any time with his attorney or counsel.

In case of

- violation of the Human Security Act within **72 hours**, which is now extended to **14 calendar days** under the Anti-Terror Law.
- violation of the anti-smuggling laws, and for violations of the dangerous drugs act, if the result of the inquest leads to dismissal, then it is **subject to automatic review to the Secretary of Justice**.
- For Sandiganbayan cases, should any complaint cognizable by the Sandiganbayan be referred to the Office of the Prosecutor General or City/Provincial Prosecutor's Office for the conduct of inquest proceedings, **the latter shall refrain from accepting the same** and shall advise the law enforcer to file the complaint before the Office of the Ombudsman or the Office of the Special Prosecutor through any of the branch clerk of court in the locality concerned

RULES:

GR: (PRELIMINARY INVESTIGATION) preliminary investigation is required to be conducted **before the filing of a complaint or information** for an offense where the penalty prescribed by law is **at least four (4) years, two (2) months and one (1) day** without regard to the fine

XPN: (INQUEST PROCEEDINGS) When a person is **lawfully arrested** without a warrant involving an offense which requires a preliminary investigation, the complaint or information may be filed by a prosecutor without need of such investigation **provided** an inquest has been conducted in accordance with existing rules.

XPN of XPN: (DIRECT FILING TO THE COURT) In the **absence or unavailability** of an inquest prosecutor, the **complaint may be filed by the offended party or a peace officer directly** with the proper court on the basis of the affidavit of the offended party or arresting officer or person.

- **Before** the complaint or information is filed, the person arrested **may ask for**



a **preliminary investigation** in accordance with this Rule, but he must sign a **waiver of the provision of Article 125** of the Revised Penal Code, as amended, in the presence of his counsel.

- Notwithstanding the signing of the waiver, if the person requested preliminary investigation, he can already apply for bail, if bail is a matter of right.

- an offshoot of the preliminary investigation. It must be terminated within 15 days from its inception

- **After** the filing of the complaint or information in court without a preliminary investigation, the accused may, **within five (5) days** from the time he learns of its filing, **ask for a preliminary investigation** with the same right to adduce evidence in his defense as provided in this Rule.

Section 7. *Records.* —

(a) Records supporting the information or complaint. — An information or complaint filed in court shall be supported by the affidavits and counter-affidavits of the parties and their witnesses, together with the other supporting evidence and the resolution on the case.

(b) Record of preliminary investigation. — The record of the preliminary investigation conducted by a prosecutor OR OTHER OFFICERS AS MAY BE AUTHORIZED BY LAW **shall not form part of the record of the case**. However, the court, on its own initiative or on motion of any party, may order the production of the record or any of its part when necessary in the resolution of the case or any incident therein, or when it is to be introduced as an evidence in the case by the requesting party. (8a) (As amended by A.M. No. 05-8-26-SC).

- 1) **Records supporting the information or complaint** - will be taken judicial notice of by the court and there needs no other proof as to its existence
- 2) **Records of the preliminary investigation** - not included in the document supporting the complaint or information, must be duly presented in court

Section 8. *Cases not requiring a preliminary investigation nor covered by the Rule on Summary Procedure.* —

(a) **If filed with the prosecutor.** — If the complaint is filed directly with the prosecutor involving an offense punishable by an imprisonment of **less than four (4) years, two (2) months and one (1) day**, the procedure outlined in section 3(a) of this Rule shall be observed. The prosecutor shall **act on the complaint based on the affidavits and other supporting documents submitted by the complainant within ten (10) days from its filing.**

(b) **If filed with the Municipal Trial Court.** — If the complaint or information is filed with the Municipal Trial Court or Municipal Circuit Trial Court for an offense covered by this section, **the procedure in section 3(a) of this rule shall be observed.** If **within ten (10) days** after the filing of the complaint or information, **the judge finds no probable cause after personally evaluating the evidence, or after personally examining in writing and under oath the complainant and his witnesses in the form of searching questions and answers,** he **shall dismiss the same.** He may, however, **require the submission of additional evidence, within ten (10) days from notice, to determine further the existence of probable cause.** If the judge still finds no probable cause despite the additional evidence, he shall, within ten (10) days from its submission or expiration of said period, **dismiss the case.** When he finds probable cause, **he shall issue a warrant of arrest, or a commitment order if the accused had already been arrested, and hold him for trial.** However, if the judge is satisfied that there is no necessity for placing the accused under custody, **he may issue summons instead of a warrant of arrest.** (9a)

Rule 112, Section 3. Procedure. — The preliminary investigation shall be conducted in the following manner:

(a) If filed with the prosecutor. — The complaint shall state the **address of the respondent** and shall be accompanied by the **affidavits** of the complainant and his witnesses, as well as **other supporting documents** to establish probable cause. They shall be in such number of copies as there are respondents, plus two (2) copies for the official file. The affidavits shall be subscribed and sworn to before any prosecutor or government official authorized to administer oath, or, in their absence or unavailability, before a notary public, each of who must certify that he personally examined the affiants and that he is satisfied that they voluntarily executed and understood their affidavits.

Application

Includes cases which do not require the conduct of a preliminary investigation. These are offenses

- 1) with the penalty prescribed by law as imprisonment for not more than 4 years and 2 months, without regard to fine; or
- 2) those offenses covered by a summary procedure which we will know by process of elimination.

Rules

Under Section 3(A), the prosecutor doesn't need to follow b,c,d,e,and f. The determination of the probable cause under cases which do not require preliminary investigation; may rely solely on the complaints and the affidavits and supporting evidences provided for by the complainant. But this is not to say that public prosecutor is constrained to just rely on the



complainant’s point of view because the public prosecutor has actually a leeway or discretion to conduct a full-blown preliminary investigation. After they received the complaint, affidavit of witnesses and other supporting documents, then they can resolve it within 10 days, without asking for a counteraffidavit from the respondent

Under Sec 8(B) (If filed with the Municipal Trial Court), these are the cases which do not need preliminary investigations and those not covered by the rule on summary procedure. It is directly filed in the Municipal Trial Court, Municipal Circuit Trial Court, Metropolitan Trial Court, or a First Level Court. Because it is already filed in a court of law, it is already **judicial in nature**; the **proceedings that will be undertaken by the judge will be considered a preliminary investigation**.

Preliminary examination	
RTC	MTC
personally evaluating the complaint, affidavits, the supporting documents within 10 days after the filing of the complaint or information, no duty to call on the complainant and the witnesses to determine probable cause	
order the prosecutor to present additional evidence within 5 days from notice	require the submission of additional evidence within 10 days from notice to determine further the existence of probable cause.
no duty to personally examine in writing or under oath the complainant and his witnesses in the form of searching questions.	after personally evaluating the evidence, the MTC judge can already issue the warrant of arrest when by the evidence alone, he finds probable cause.

What are those offenses covered by the Revised Rules on Summary Procedure?

- 1) Violations of traffic laws, rules and regulations;
- 2) Violations of the rental law;
- 3) Violations of municipal or city ordinances;
- 4) Violations of B.P. Blg. 22 (Bouncing Checks Law);
- 5) 5) All other criminal cases where the penalty prescribed by law for the offense charged is **imprisonment not exceeding six months**, or a fine **not exceeding one thousand pesos** (P1,000.00), or both irrespective of other impossible penalties, accessory or otherwise, or of the civil liability arising therefrom: Provided, however, That in offenses involving **damage to property** through criminal negligence, **this Rule shall govern where the impossible fine does not exceed ten thousand pesos** (P10,000.00).

Procedure for summary procedure

- 1) File a complaint or information directly in court
XPN: Metro Manila and other chartered city the filing shall be of an information (not a complaint)
XPN of XPN: Unless criminal case it cannot be prosecuted de officio (ACASA)
- 2) The complaint or information shall be accompanied by the affidavits of the complainants and its witnesses in such number of copies as there are accused plus two copies for the court’s files. This requirement has to be complied with **within five (5) days** from the filing of the case otherwise, the same may be dismissed.
- 3) • Under Sec. 13 of the Revised Rules on Summary Procedure, should the court find no cause or ground to hold the accused for trial, it shall order the dismissal of the case. If there is a ground to hold the accused for trial, the court shall set the case for arraignment and trial.
 - Further, if the accused is in custody for the crime charged, he shall be immediately arraigned if he enters a plea of guilty, he shall forthwith be sentenced.
 - when during the arraignment, the accused pleads not guilty then it will now proceed with the Preliminary Conference
- 4) In Preliminary conference there will be stipulation of facts, he may also apply for plea bargaining and/or to take up other matters or issues to clarify to insure a speedy disposition of the case. (**Sec. 14 of Revised Rule on Summary Procedure**)
- 5) during the Trial, the affidavits of the witnesses and even the complainant will be considered as the direct testimonies to be offered, subject to the cross examination, redirect examination and re-cross examination. (**Sec. 15 of Revised Rule on Summary Procedure**)
- 6) Court is mandated not to order the arrest of the accused except when the ground is failure to appear when required by the Court. So, if he is arrested because he was not able to attend trial, he may still be released if he applies for bail or he is granted recognizance. (**Sec. 16 of Revised Rule on Summary Procedure**)

ARREST

RULE 113

Section 1. *Definition of arrest.* – Arrest is the taking of a person in custody in order that he may be bound to answer for the commission of an offense.

Section 2. *Arrest; how made.* – An arrest is made by an **actual restraint** of a person to be arrested, or by his **submission** to the custody of the person making the arrest. No violence or unnecessary force shall be

used in making an arrest. The person arrested shall **not be subject to a greater restraint than is necessary for his detention.**

Arrest - is the taking of a person into custody in order that he may be bound to answer for the commission of an offense. Arrest is the taking under real or assumed authority, custody of another for the purpose of holding or detaining him to answer to a criminal charge

Sec. 2, Art. III of the 1987 Constitution. “xxx no search warrant or warrant of arrest shall issue except upon probable cause to be determined personally by the judge after examination under oath or affirmation of the complainant, and the witnesses he may produce and particularly describing the place to be searched and the person or things to be seized.”

Jurisprudence holds that an arrest without probable cause is an **unreasonable seizure of a person**, and violates the privacy of persons, which ought not to be intruded by the State. Hence, the existence of probable cause is a vital element to the validity of a warrant of arrest.

Procedures to be taken by RTC or MTC before he may issue a warrant of arrest

Preliminary examination	
RTC	MTC
Sec 5a, Rule 112	Sec 8b, Rule 112
personally evaluating the complaint, affidavits, the supporting documents within 10 days after the filing of the complaint or information, no duty to call on the complainant and the witnesses to determine probable cause	
no duty to personally examine in writing or under oath the complainant and his witnesses in the form of searching questions.	after personally evaluating the evidence in the form of searching questions., the MTC judge can already issue the warrant of arrest when by the evidence alone, he finds probable cause.
Only the resolution of the prosecutor and the supporting evidence	
order the prosecutor to present additional evidence within 5 days from notice	require the submission of additional evidence within 10 days from notice to determine further the existence of probable cause.

Meaning of Probable Cause for the issuance of a Warrant of Arrest

For the purpose of the warrant of arrest, probable cause is defined as such facts and circumstances which would lead a reasonably discreet and prudent man to believe that an offense has been committed by the person sought to be arrested.

Probable cause	
Warrant of arrest	Guilt of the accused
Less stringent	Stringent

Unnecessary violence

GR: no violence or unnecessary force shall be used in making an arrest and the person arrested shall not be subject to a greater restraint and is necessary for his detention.

XPN: in some instances when the person to be arrested, after going through the motions or the procedures of the arrest, do not evade the arrest or is willing to be taken into custody there is actually no necessity to handcuff the person being arrested.

XPN of XPN: if there is a violent exchange or if the person being arrested is resisting or is trying to evade, or that the police officer or the arresting officer has reasonable belief that the person being arrested may be harmful or is capable of harming the arresting officer, then based on the best discretion of the arresting officer, forms of restraints such as the handcuffs may be applied accordingly.

Probable cause			
Preliminary investigation	Issuance of warrant of arrest	Warrantless arrest	Search warrant
pertains to the facts and circumstances sufficient to support a well-founded belief that a crime has been committed and the accused is probably guilty thereof	such facts and circumstances which would lead a reasonably discreet and prudent man to believe that an offense has been committed by the person sought to be arrested.	a reasonable ground of suspicion supported by circumstances sufficiently strong in themselves to warrant a cautious man’s belief that the person accused is guilty of the offense with which he is charged	as such facts and circumstances which would lead a reasonably discreet and prudent man to believe that an offense has been committed and that the object sought in the connection with the offense are in the place sought to be searched.

voluntary surrender or voluntary submission into the custody of the person or persons tasked to effect the arrest may be considered a mitigating circumstance if you refer back to your Revised Penal Code.

Conferring jurisdiction

Arrest, when valid, vests jurisdiction to the court over the person of the accused. To emphasize, it is the arrest

of the person and not the issuance of a warrant of arrest.

It is the valid arrest of the person or the voluntary submission or appearance in court, which vests jurisdiction over the person of the accused. It is not the issuance of the warrant of arrest.

Description of the person

- Section 2 of Article III, 1987 Constitution
- The issuance of a general warrant or a warrant which do not particularly describe or particularly name the person to be seized or even the issuance of a warrant to several persons who cannot be identified is clearly a violation of the Constitution.
- if a person subject of a warrant of arrest is only identified by his nickname or by an appellation by which he is known, he must be described in the warrant of arrest with particularity, such that the person who will effect the arrest using the warrant of arrest may be able to zero in or identify the person of the accused or the person to be arrested.

Section 3. Duty of arresting officer. — It shall be the duty of the officer executing the warrant to arrest the accused and to deliver him to the nearest police station or jail without unnecessary delay.

Section 4. Execution of warrant. — The head of the office to whom the warrant of arrest was delivered for execution shall cause the warrant to be executed **within ten (10) days** from its receipt. Within ten (10) days after the expiration of the period, the officer to whom it was assigned for execution shall make a report to the judge who issued the warrant. In case of his failure to execute the warrant, he shall state the reasons therefor.

Lifetime of the warrant of arrest

It shall remain valid and effective so long as it has not been recalled or the person named therein has not been arrested or has not submitted himself to the jurisdiction of the court. The validity of the warrant continues even if the officer assigned to execute has made a negative return to the issuing court.

Section 4, on the execution of warrant, the timeframes there are only to ensure that there is dispatch in the execution of the warrant of arrest. If there is failure to execute the warrant of arrest then based on Section 4, the person or the enforcement officer assigned to execute the warrant shall only make a report to the judge who made or issued the warrant. In case there is failure to execute the warrant, he is duty bound to state the reasons therefore.

GR: warrant of arrest does not expire

XPN: it is recalled or there is a voluntary submission of the person to be arrested to the jurisdiction of the court.

Duties of the arresting officer (People v. Mahinay)

At the time a person is arrested it shall be the duty of the arresting officer

- 1) The person arrested, detained, invited or under custodial investigation must be informed in a language known to and understood by him of the reason for the arrest, and he must be shown the warrant of arrest if any, every other warnings information or communication must be in a language known to and understood by said person.

Take note, however, that under the last sentence of Section 7 of Rule 113, the officer need not have the warrant in his possession at the time of the arrest, but after the arrest if the person arrested so requires the warrant shall be shown to him as soon as practicable.

Under the first guideline, if the arresting officer has in his custody the warrant of arrest then, when the **arresting officer explains to the person being arrested the reason for his arrest, he can already show the warrant of arrest**. But if, for example, it is not in his custody as of the moment of the arrest then, **Section 7 of Rule 113 will apply**.

- 2) He must be warned that he has the right to remain silent, and that any statement he makes may be used as evidence against him.
- 3) He must be informed that he has the right to be assisted at all times and have the presence of an independent and competent lawyer preferably of his own choice.
- 4) He must be informed that if he has no lawyer or cannot afford the services of a lawyer, one will be provided for him, and that a lawyer may also be engaged by any person in his behalf, or may be appointed by the court upon petition of the person arrested, or one acting in his behalf.
- 5) That whether or not the person arrested has a lawyer, he must be informed that no custodial investigation in any form shall be conducted except in the presence of his counsel, or after a valid waiver has been made. Take note that the waiver of the right to be represented by counsel must be in writing and must be signed in the presence of counsel.
- 6) The person arrested must be informed that at any time he has a right to communicate or confer by the most expedient means - telephone, radio, letter or messenger - with his lawyer, either retained or appointed, any member of his immediate family, or any medical doctor, priest or minister chosen by him or by anyone from his immediate family or



by his counsel, or be visited by, or confer with duly accredited national or international non-government organization. It shall be the responsibility of the officer to ensure that this is accomplished.

- 7) He must be informed that he has the right to waive any of the said rights provided it is made voluntarily, knowingly, and intelligently and ensure that he understood the same.
- 8) In addition, if the person arrested waives his right to a lawyer, he must be informed that it must be done in writing and in the presence of counsel, otherwise, he must be warned that the waiver is void even if he insists on his waiver and chooses to speak.
- 9) The person arrested must be informed that he may indicate in any manner at any time or stage of the process that he does not wish to be questioned with warning, that once he makes such indication that indication, the police may not interrogate him if the same had not yet commenced, or the interrogation must cease if it has already begun.
- 10) The person arrested must be informed that his initial waiver of his right to remain silent, the right to counsel or any of his rights does not bar him from invoking it at any time during the process, regardless of whether he may have answered some questions or volunteered some statements.
- 11) He must also be informed that any statement or evidence, as the case may be, obtained in violation of any of the foregoing, whether inculpatory or exculpatory, in whole or in part, shall be inadmissible in evidence.

It is not enough for the person arresting to merely repeat to the person under investigation the provisions of Section 12, Art. 3 of the 1987 Constitution. The former must also explain the effects of such provision in practical terms.

Art. 125. Delay in the delivery of detained persons to the proper judicial authorities. – The penalties provided in the next preceding article shall be imposed upon the public officer or employee who shall detain any person for some legal ground and shall fail to deliver such person to the proper judicial authorities within the period of: twelve (12) hours, for crimes or offenses punishable by light penalties, or their equivalent; eighteen (18) hours, for crimes or offenses punishable by correctional penalties, or their equivalent; and thirty-six (36) hours, for crimes or offenses punishable by afflictive or capital penalties, or their equivalent.

Section 5. Arrest without warrant; when lawful. — A peace officer or a private person may, without a warrant, arrest a person:

(a) When, in his presence, the person to be arrested has committed, is actually committing, or is

attempting to commit an offense; [what is otherwise known as in flagrante delicto arrest]

(b) When an offense has just been committed, and he has probable cause to believe based on personal knowledge of facts or circumstances that the person to be arrested has committed it; [otherwise known as “hot pursuit arrest”] and

(c) When the person to be arrested is a prisoner who has escaped from a penal establishment or place where he is serving final judgment or is temporarily confined while his case is pending, or has escaped while being transferred from one confinement to another. In cases falling under paragraph (a) and (b) above, the person arrested without a warrant shall be forthwith delivered to the nearest police station or jail and shall be proceeded against in accordance with Section 7 of Rule 112. (5a)

Warrantless arrests

Warrantless arrest is a seizure of person without a warrant but based on probable cause that he has committed a felony or has escaped from confinement.

“to hold that no criminal can, in any case, be arrested and searched for the evidence and tokens of his crime without a warrant, would be to leave society, to a large extent, at the mercy of the shrewdest, the most expert, and the most depraved of criminals, facilitating their escape in many instances. (*Umil v. Ramos*)

IN FLAGRANTE DELICTO

A peace officer or private person may, without a warrant, arrest a person when

- 1) in his presence, the person to be arrested has committed, is actually committing, or is attempting to commit an offense
- 2) The arresting officer therefore must have personal knowledge of such fact or personal knowledge of facts and circumstances convincingly indicative or constitutive of probable cause.

Elements

- 1) The person to be arrested must execute an **overt act** indicating that he has just committed, is actually committing, or is attempting to commit a crime; and
- 2) Such **overt act** is **done in the presence or within the view of the arresting officer or private person**
 - It must be stressed that the presence not only requires that the arresting person sees the offense, but also when he hears the disturbance created thereby and proceeds at once to the scene.

An arrest made after an **entrapment operation** does not require a warrant in as much as it is considered as a valid warrantless arrest. Considering that an arrest was lawfully made, the search



incidental to such arrest was also **valid** (*People v. Collado*)

It should be stressed that the Supreme Court has already ruled that a **buy-bust operation** is a form of entrapment which has repeatedly been accepted to be a **valid** means of arresting violators of the Dangerous Drugs Law.

The justification that underlies the legitimacy of the buy-bust operation is that the suspect is arrested in flagrante delicto – that is the suspect has just committed or is in the act of committing or is attempting to commit the offense in the presence of the arresting police officer or private person.

The arresting police officer or private person is favored in such an instance with a presumption of regularity in the performance of official duties (*People v. Andaya*)

When the accused was arrested while merely talking to a police informant, and there was no overt act indicative of a felonious enterprise that could be properly attributed to the said accused to arouse suspicion in the mind of the arresting officer that the accused has just committed, was actually committing, or was attempting to commit a crime, the warrantless arrest was **not valid**.

As testified to by the arresting officer himself in the same case, the accused and the informant were just talking to each other and there was no exchange of money and drugs when he approached the car. He also admitted on cross-examination that he had no personal knowledge on whether there was a prohibited drug and gun inside the vehicle of the accused when he approached (*People v. Edaño*)

The police claims that they were alerted when they saw two unidentified men suddenly rush out of a house and since they suspected that a crime had been committed, the natural thing for them to do was to give chase to the jeep that the two fleeing men boarded given that the officers were in a patrol car and a tricycle.

Although running after the fleeing suspect was the more urgent task, the officer instead gave priority to the house even when they heard no cry for help from it.

Admittedly, the police officer did not notice anything amiss going on the house from the street where they stood. Now, even if they peek through the partially open door of the house, they saw no activity that warranted them entering it.

Clearly, **no crime was plainly exposed to the view of the arresting officer that authorize the arrest of the accused without a warrant.** (*Antiquera v. People*)

The mere act of darting away when approached by a police officer should not be construed against the

accused. **Flight per se is not synonymous with guilt and must not always be attributed to one's consciousness of guilt.**

Flight is not a reliable indicator of guilt without other circumstances. An attempt to run away from an officer is susceptible to various explanation; it could signify guilt or may signify innocence. There are many innocent reasons for flight like fear or retribution for speaking to an officer, unwillingness to appear as witness, and fear of being apprehended even if he is innocent.

Also, the act of walking along the street and holding something in one's hand, even if they appeared to be dubious, coupled with his previous criminal charge for the same offense, are not by themselves sufficient to insight suspicion of criminal activity, or to create probable cause enough to justify a warrantless arrest.

A previous criminal charge for the same offense are not by themselves sufficient to incite suspicion of criminal activity or to create probable cause enough to justify a warrantless arrest. (*People v. Villareal*)

Running away *per se* is **not a crime** and suspicion that a crime is being committed is not sufficient to establish probable cause. In In Flagrante Delicto cases, there should be a crime being committed and **not a mere suspicion that a crime is being committed.**

suspicion that someone is committing a crime is not the same as having personal knowledge that a crime is being committed.

The SC rejected the validity of an arrest made by an officer on the basis of his observation that the accused was standing around and showing improper and unpleasant movements. Such acts declared by the Supreme Court cannot be considered as criminal acts. At the time, the officer was aboard a motorcycle cruising at the speed of 30kph when he allegedly saw the accused while standing on the side of the street and handing over something to another at distance of 10m. The Court finds it is implausible even assuming that he had a perfect vision to have been able to identify minuscule amounts of crystalline substances inside two plastic sachets (*Comerciante v. People*)

The arrest was made because of a mere tip of an informant and it became the reason for the warrantless arrest and the corresponding search that happened thereafter.

The person arrested here was just descending from a ship holding a bag and there was no outward indication that he was committing any crime.

The rule will be for tips of informants is that there should be probable cause to arrest a person before he can be validly arrested without warrant and thereafter searched. There must be an overt act of



committing a crime to be the basis of probable cause in in flagrante delicto cases. (*People v. Aminnudin*)

The allegations upon which the probable cause was based was that the person arrested was seen with his eyes moving fast and looking at every person passing by. Again, there is no crime being committed by the person arrested. (*Malacat v. CA*)

There was a tip from a telephone call to the police by an alleged informer that there was a suspicious looking man where at a street corner at Tondo shortly before noon. The police operatives dispatched to the place so three men one of whom turned out to be Mengote who was looking from side to side clutching his abdomen- these were the “overt acts”.

The Supreme Court ruled that there was nothing clandestine about him being on the street at the busy hour in the blaze of the noon day and by no stretch of imagination is looking from side to side and clutching his abdomen a criminal act. Thus, there was no valid warrantless arrest. (*People v. Mengote*)

A day before the arrest the officers were informed that there was a **schedule delivery of shabu** by their employer WWW which will be done early in the morning and that he could be found at a certain apartment building in Malate, Manila. The police operatives decided to look for WWW to shed light for the illegal drug activities alleged by the employees and proceeded to the location of the apartment and placed the same under surveillance. When WWW came out of the apartment towards a parked car, two other police officers approached him and introduced themselves to him as police officers, asked his name and upon hearing that he’s WWW immediately frisked him and asked him to open the back compartment of the car. When frisked, there was found inside the front right pocket of WWW an unlicensed pistol and ammunitions.

At the same time, the other members of the operatives searched the car and found inside it the ff items: transparent plastic bags of shabu, Php 650, 000 cash, electronic and mechanical scales and another unlicensed pistol with magazine.

The Supreme Court said that the facts and circumstances surrounding the case did not manifest any suspicious behavior on the part of WWW that would reasonably invite the attention of the police.

He was merely walking from the apartment and was about to enter a parked car when the police operatives arrested him, frisked, and searched his person and commanded him to open the compartment of the car. He was not committing any visible offense then and the SC reiterated **that reliable information alone absent any overt act indicative of a felonious enterprise in the presence and within the view of the arresting officers is not sufficient to constitute probable**

cause to justify an in flagrante delicto arrest. The SC concluded that there can be no valid warrantless arrest in in flagrante delicto under the facts and circumstances of the case. (*People v. Laguio Jr*)

HOT PURSUIT ARREST

A peace officer or private person may, without warrant, arrest a person when an offense has just been committed, and he has probable cause to believe, based on personal knowledge of facts or circumstances that the person to be arrested has committed it.

Two conditions

- 1) the person to be arrested must have just **committed an offense**; and
- 2) the arresting peace officer or private person has **probable cause to believe, based on personal knowledge of facts or circumstances that the person to be arrested is the one who committed the offense.**

In flagrante	Hot pursuit
require that the arresting officer or private person to personally witness the commission of the offence.	does not require that the arresting officer or private person to personally witness the commission of the offence. In fact, the offense was not committed in his presence, although said offense as required by their rules has just been committed.
No relation immediacy	There must be a large measure of immediacy between the time the offense was committed and the time of the arrest.

Personal knowledge

This personal knowledge must amount to probable cause, which means actual belief or reasonable grounds of suspicion. The grounds of suspicion are reasonable when in the absence of actual belief of the arresting officers, the suspicion that a person arrested is **probably guilty** of committing the offense is **based on actual facts**

The person making the arrest has personal knowledge of the fact that the crime was committed, because at the time of the arrest, he has a reasonably worthy information in his possession coupled with his own observation and fair inferences therefrom, that the person arrested has probably committed the offense. The arresting officer may even rely on information supplied by a witness or a victim of the crime.

Two robbers divested the passenger of a Jeepney of their belongings, including a jacket of one passenger. The passengers immediately sought the help of a

police officer, which form a team to track down the suspects. One of the passengers who went with the responding police officers saw one of the robbers casually walking in the same vicinity and wearing his jacket. The warrant of arrest of the accused was sustained by the court as **well within the hot pursuit exception**.

So long as there was a continuous hot pursuit of that particular person who committed the crime, then it may be argued that it is still a valid warrantless arrest, even if it is made days after. **(People v. Acol)**

The Valenzuela police station received a report of a mauling incident, which resulted in the death of the victim who received a massive skull fracture caused by a hard and heavy object.

The court ruled that, based on their **knowledge of the circumstances of the death of the victim, and the report of an eyewitness** in arresting the accused, the officers had personal knowledge of facts leading them to believe that it was the accused who was one of the perpetrators of the crime. **(People v. Gerente)**

The petitioner alleged that he was arrested based merely on information relayed to the police officers about a shooting incident and that they had at the time of the arrest no personal knowledge of the facts. The court found that as soon as the police received a phone call about a shooting incident, a team was dispatched to investigate. The investigation disclosed that a victim was wounded and that the witnesses tagged the petitioner as the one involved and that he had just left the scene of the crime. After tracking down the petitioner, he was invited to the police headquarters. But the petitioner who initially agreed, sped off prompting the authorities to give chase.

The court ruled that the petitioners act of trying to get away, coupled with the incident report, which they investigated is enough to raise a reasonable suspicion on the part of the police authorities to the existence of probable cause. **(Abelita v. Doria)**

Petitioner Robin Padilla figured in a hit and run accident with a Mitsubishi Pajero. The incident was witnessed by Manarang, a member of a civic group. Manarang rode this motorcycle and chased the petitioner. It was able to make out the plate number, PMA 777. He called the Viper through the radio, which flashed the message to all units of PNP Angeles City. PNP mobile patrols responded to the call and at Abacan Bridge Manarang found mobile three with SPO 2 Borja and SPO 2 Miranda. He informed them about the hit and run incident and he returned to where he came from until he saw the vehicle that figured in the incident, and he followed it. Soon the vehicle was within sight of SPO 2 Borja and Miranda of Mobile No. 3. They rode their mobile car and cut into the path of the vehicle forcing it to stop.

The police officer requested petitioner to alight the vehicle. When he alighted with his hands raised, a gun tucked in the left of his waist was revealed. The gun was confiscated and his car was searched for weapons which turned out to contain firearms and ammunitions of assorted caliber. Petitioner insisted that his arrest was illegal, arguing that the arresting officer were not at the scene of the hit and run.

The SC held that although the policemen who apprehended petitioner were not at the scene of the hit and run, such fact did not affect the propriety of the apprehension. It was in fact the most prudent action Manarang could have taken rather than collaring petitioner himself in as much as policemen are better trained in performing an arrest of suspects who, in this case is Robin Padilla. Petitioner could have put up a degree of resistance which an untrained civilian could not contain without putting himself in danger.

In that case, there was a valid arrest in hot pursuit because the witness to the hit and run informed the police officers of the plate number of the car which caused the hit and run, thus, the policemen called went after the said vehicle. When the vehicle was cornered, Robin Padilla alighted. Therefore, there were crucial facts and circumstances that would lead a prudent man to believe that the hit and run was committed by person driving the vehicle who is probably guilty of committing the crime. **(Padilla v. CA)**

ARREST OF ESCAPED PRISONERS

When the person to be arrested is a prisoner who has

- 1) escaped from a penal establishment or place where he is serving final judgment or is temporarily confined while his case is pending, or
- 2) has escaped while being transferred from one confinement to another
- 3) An accused who files a **fake bail bond** is considered not merely to have jumped bail but for all intents and purposes, to have escaped from detention, thus, such accused may be rearrested without warrant.

Revised Rule of Criminal Procedure

- 1) An accused **released on bail may be re-arrested without a necessity of a warrant if he attempts to depart from the Philippines** without permission of the court where the case is pending.
- 2) For the purpose of **surrendering the accused the bondsman may arrest him**, or upon written authority endorsed on a certified copy of the undertaking, cause him to be arrested by a police officer or any other person of suitable age and discretion. **(Section 23 of rule 114)**
- 3) If a person lawfully **arrested escapes or is rescued**, any person may immediately pursue or take him without a warrant at any time and



in any place within the Philippines (**Section 13 of Rule 113**).

Custodial investigation

Under RA No. 7438, the so called invitation of a person in connection with an offense he is suspected to have committed is a prohibited act for which the inviting officer may be held liable under sections 2(f) and 4 of RA No. 7438.

The mere invitation is already covered by the prescription on warrantless arrest because it is intended for no other reason than to conduct a custodial investigation.

Custodial investigation shall already include the practice of issuing an invitation to a person who is investigated in connection with an offense he is suspected to have committed.

This means even those who voluntarily surrender before a police officer must be apprised of their Miranda rights for the same pressures: whether you were invited or you were arrested or you voluntarily went there, the same pressures of custodial setting exist in whatever scenario.

Section 6. Time of making arrest. – An arrest may be made on **any day and at any time of the day or night**.

Section 7. Method of arrest by officer by virtue of warrant. – When making an arrest by virtue of a warrant, the officer shall **inform the person to be arrested of the cause of the arrest and the fact that a warrant has been issued for his arrest, except** when he flees or forcibly resists before the officer has opportunity to so inform him, or when the giving of such information will imperil the arrest. The officer need **not have the warrant in his possession at the time of the arrest** but after the arrest, if the person arrested so requires, the warrant shall be shown to him as soon as practicable.

GR: When making an arrest by virtue of a warrant, the officer shall inform the person to be arrested of the

- 1) cause of the arrest and
- 2) the fact that a warrant has been issued for his arrest

XPN:

- 1) When the accused flees or forcibly resist before the officer has opportunity to inform him
- 2) when the giving of such information will imperil the arrest

Sec. 8. Method of arrest by officer without warrant. – When making an arrest without a warrant, the officer shall inform the person to be arrested of his **authority** and the **cause of the arrest**, unless the latter is either engaged in the commission of an

offense, is pursued immediately after its commission, has escaped, flees, or forcibly resists before the officer has opportunity to so inform him, or when the giving of such information will imperil the arrest.

Section. 9. Method of arrest by private person. – When making an arrest, a private person shall inform the person to be arrested of the **intention to arrest him and the cause of the arrest**, unless the latter is either engaged in the commission of an offense, is pursued immediately after its commission, or has escaped, flees, or forcibly resists before the person making the arrest has opportunity to so inform him, or when the giving of such information will imperil the arrest

Peace officer	Private person
when making the arrest, the officer shall inform the person to be arrested of his authority .	inform the person to be arrested of the intention to arrest him.
Inform the person of the cause of the arrest	
XPN: 1) when he is pursued immediately after the commission of the crime; 2) when he escapes, flees, or forcibly resists before the officer or person making the arrest has opportunity to so inform him; or 3) when the giving of such information will imperil the arrest	
May summon assistance	May not summon assistance

Section 10. Officer may summon assistance. — An officer making a lawful arrest may orally summon as many persons as he deems necessary to assist him in effecting the arrest. Every person so summoned by an officer shall assist him in effecting the arrest when he can render such assistance without detriment to himself.

Application

applicable whether there is a warrant of arrest or if it is the valid warrantless arrest

In relation to Art 149

All persons who come to the aid of agents of authority and also all public functionaries are entitled to be considered as **agents of authority**. It being understood nevertheless that in order that the person who comes to the aid of agents of authority may be considered as agents of authority, it is **essential condition** that they **lend assistance by virtue of an order or request of such agent of authority**. Accordingly, these persons are given the protection of Article 149 of the Revised Penal Code wherein if attacked, the offender will be liable for indirect assault.

Section 11. Right of officer to break into building or enclosure. — An officer, in order to make an arrest either by virtue of a warrant, or without a warrant as provided in Section 5, may break into any building

or enclosure where the person to be arrested is or is reasonably believed to be, if he is **refused admittance thereto, after announcing his authority and purpose.**

Section 12. *Right to break out from building or enclosure.* — Whenever an officer has entered the building or enclosure in accordance with the preceding section, he **may break out therefrom when necessary to liberate himself.**

An officer can break into a building or enclosure if:

- 1) He has announced his **authority** to affect the arrest
- 2) He has announced his **purpose** in making the arrest
- 3) He is refused admittance after the foregoing announcements

Section 13. *Arrest after escape or rescue.* — If a person lawfully arrested escaped or is rescued, **any person may immediately pursue or if they take him without a warrant at any time in any place within the Philippines.**

The situation here is, this is no longer in flagrante delicto arrest or hot pursuit arrest or arrest of an escapee already in jail. There's no need to apply for another warrant of arrest just to re-arrest that person validly arrested.

Section 14. *Right of attorney or relative to visit person arrested.* — Any member of the Philippine Bar shall, at the request of the person arrested or of another acting in his behalf, have the right to visit and confer privately with such person in the jail or any other place of custody at any hour of the day or night. Subject to reasonable regulations, a relative of the person arrested can also exercise the same right.

Rule

Attorney - he can access his client at any day and at any hour, day or night

Relative and those who are allowed to confer with the accused under RA 7438 - within reasonable time based on the regulation of the prison or the detention facility where he is

The person's immediate family shall include his or her spouse, fiancé, parent, child, brother or sister, grandparent or grandchild, uncle or aunt, nephew or niece and guardian or award.

Sec 4, RA 7438

xxx (b) Any person who obstructs, prevents or prohibits any lawyer, any member of the immediate family of a person arrested, detained or under custodial investigation, or any medical doctor or priest or religious minister chosen by him or by any member of his immediate family or by his counsel, from visiting and conferring privately with him, or from examining and treating him, or from ministering to his spiritual needs, at any hour of the

day or, in urgent cases, of the night shall **suffer the penalty of imprisonment of not less than four (4) years nor more than six (6) years, and a fine of four thousand pesos (P4,000.00).** xxx

POSSIBLE REMEDIES AGAINST ILLEGAL ARREST

- 1) He or any person in his behalf may file a verified petition for habeas corpus before the proper court if no complaint or information is filed against him in court. (**Sec 1, 2, 3 Rule 102**)
- 2) He may apply for bail with any court in the province or city or municipality where he is held. (**Section 17 of Rule 114**)
- 3) He may, if a complaint against him is commenced before the proper officer for inquest investigation, ask for a regular preliminary investigation and raise the issue of his illegal arrest. Ofcourse after signing the waiver (**Section 7 of Rule 112**)
- 4) He may, if a complaint or information is filed against him in court for an offense requiring a preliminary investigation, asked for a preliminary investigation within five (5) days from the time he learns of the filing of the complaint, or information (**Section 7 of Rule 112**)
- 5) He may, before entering his plea, move to quash the complaint or information on the ground that the court has no jurisdiction over his person

The person arrested has the right to question the illegality of his arrest, whether with the warrant or without warrant. However, any objection involving a warrant of arrest or the procedure by which the court acquires jurisdiction of the person of the accused, for example, in warrantless arrest; it **must be made before he enters his plea.**

When the accused has already entered his plea and participates during the trial without previously invoking his objections, then he is deemed to have waived his right to question the illegality of his arrest. There is also an instance where a previously illegal warrantless arrest may be validated by the issuance of a warrant of arrest

The filing of charges and the issuance of warrant of arrest against a person invalidly detained will cure the defect, that the detention or at least deny him the right to be released because of such defect. the accused may be arrested by virtue of that warrant of arrest and therefore, the issue of whether there was a valid warrantless arrest will become **moot and academic.**

Effects of failure to file a timely objection to illegal warrantless arrest

- 1) only the right to assail their arrest is waived
- 2) He does not waive the right to question the admissibility of the evidence seized by virtue of



the illegal arrest. Thus, the fruit of the poisonous tree still applies.

- 3) Legality of the arrest affects **only the jurisdiction of the court over the person of the accused**. The illegality of the arrest **cannot in itself be the basis for acquittal** as it will not negate the validity of the conviction of the accused.
- 4) even if the warrantless arrest of an accused is later proven to be invalid, such fact is not sufficient to cause to set aside a valid judgment rendered upon sufficient complaint after trial free from error.

Effect of admission to bail on objections to an illegal arrest

- 1) Shall not bar the accused from challenging the validity of the arrest or the legality of the warrant issued, provided that he raises the objection before he enters his plea.
- 2) the objection shall be resolved by the court as early as practicable, but not later than the start of the trial of the case.

Privilege from arrest

Under Section 11, Article VI of the 1987 constitution, a senator or a member of the House of Representatives shall, in all offenses punishable by not more than six years imprisonment, be privileged from arrest when the Congress is in session.

Does not apply

- 1) **when not in session**
- 2) **When the offense is punishable** more than six years even if Congress is in session

Other exempt

Sovereigns and other Chiefs of State, ambassadors, ministers plenipotentiary, ministers resident in charge of the affairs are immune from the criminal jurisdiction of the country of their assignment and are therefore immune from arrest.

ARREST IN RELATION TO A CHILD IN CONFLICT WITH THE LAW

AM 02-1-18-SC or The Revised Rule on Children in Conflict With The Law

Section 8. Procedure for Handling Children Exempted from Criminal Liability. - If it is determined at the initial contact that the child is **15 years of age or below**, the procedure provided in Section 20, Republic Act No. 9344 shall be observed as follows:

- A) The authority which will have an initial contact with the child, in consultation with the local social welfare and development officer, has the **duty to immediately release the child to the custody of his/her parents or guardian, or in the absence thereof, the child’s nearest relative.**

2019 Supreme Court Revised Rule on Children in Conflict with the Law

Section 8-A. Procedure for Handling A Child Exempted from Criminal Liability Who Commits Serious Crimes. – A child who is above **12 years of age to 15 years** of age and who commits a serious crime should be deemed a neglected child under Presidential Decree No. 603, as amended, and shall be mandatorily placed in the Intensive Juvenile Intervention and Support Center (IJISC) of a Bahay Pag-asa. The procedure provided in Section 20-A, Republic Act No. 9344, as amended, shall be observed as follows:

- A) A petition for involuntary commitment and placement under the IJISC shall be filed by the local social welfare and development officer of the local government unit where the offense was committed, or by the Department of Social Welfare and Development social worker in the local social welfare and development officer's absence, within 24 hours from the time of the receipt of a report on the alleged commission of said child.
- B) The court, where the petition for involuntary commitment has been filed, shall decide on the petition within 72 hours from the time the said petition has been filed by the Department of Social Welfare and Development/ Local Social Welfare and Development Office.
- C) The court will determine the initial period of placement of the child within the IJISC which shall not be less than one year.
- D) The multi-disciplinary team of the I.TISC will submit to the court:
 - 1) A case study and progress report, to include a psychiatric evaluation report, and recommend the reintegration of the child to his/her family or the extension of the placement under IJISC; and
 - 2) A report to the court on the services extended to the parents and family of the child and the compliance of the parents in the intervention program.
- e) The court will decide whether the child has successfully completed the center-based intervention program and is already prepared to be reintegrated with his/her family, or if there is a need for the continuation of the center-based rehabilitation of the child.
- f) The court will determine the next period of assessment or hearing on the commitment of the child.

Section 8-B. Procedure for Handling a Child Exempted from Criminal Liability Who Repeats Commission of Offense. – A child who is **above 12 years of age up to 15 years of age and who commits an offense for the second time or oftener**. Provided, that the child was previously subjected to a community-based intervention

program, shall be deemed a neglected child under Presidential Decree No. 603, as amended, and shall:

- a) Undergo an intensive intervention program supervised by the local social welfare and development officer;
- b) If the best interest of the child requires that he/she be placed in a youth care facility or "Bahay Pag-asa, the child's parents or guardians shall execute a written authorization for voluntary commitment of the child;
- c) If the child has no parents or guardians or if they refuse or fail to execute a written authorization for voluntary commitment under Section 8-B(b), the proper petition for involuntary commitment shall be immediately filed by the Department of Social Welfare and Development or the Local Social Welfare and Development Office pursuant to Presidential Decree No. 603, as amended.

Section 9. Procedure for Children Not Exempted from Criminal Liability. – A child fifteen (15) years and one (1) day old or above but below eighteen (18) years of age at the time of the commission of the offense shall, at the sound discretion of the court and subject to its supervision, be released on recognizance to the care of the willing and responsible mother or father, or appropriate guardian or custodian, or, in their absence, the nearest relative. However, if the prosecution determines that the child acted with discernment, the child shall be proceeded against in accordance with Sections 24 to 27 or, in case of diversion, Sections 29 to 37 of this Rule.

Section 24. Release of Children on Recognizance to the Parents, Guardian, Custodian or Nearest Relative. – The release of a child from custody during the pendency of the case involving an offense not punishable by death, reclusion perpetua or life imprisonment may be ordered by the court only after a hearing for that purpose, and upon favorable recommendation of the social worker assigned to the child with due notice to the public prosecutor, the Sanggunian where the accused resides, and the private complainant. The child shall be released to the custody of a willing and responsible mother or father, or appropriate guardian or custodian, or in their absence, the nearest relative, who shall be responsible for the child's good behavior and appearance in court whenever required.

No child shall be ordered detained in jail pending trial or hearing of the child's case. (Incorporated from A.M. No. 02-1-18 Re: Rule on Juveniles in Conflict with the Law issued on June 26, 2018)

Section 25. Commitment and transfer to a Bahay Pag-asa. – A child charged with an offense, unless released on bail or recognizance, may be transferred to a "Bahay Pag-asa" or rehabilitation center or other appropriate facility operated or accredited by the Department of Social Welfare and Development

which shall ensure the implementation of appropriate intervention programs, as well as the safety and appearance of the child in court. In the absence of a "Bahay Pag-asa" established by the local government pursuant to Section 8 of the Family Courts Act, and Republic Act No. 9344, as amended, in the city or municipality where the child resides, or a local rehabilitation center recognized by the government in the province, city or municipality within the jurisdiction of the court, or the Department of Social Welfare and Development, or other appropriate local rehabilitation center, detention pending trial may be replaced by alternative measures such as close supervision, intensive care or replacement with a family or in an educational setting or home. Institutionalization or detention of a child pending trial should be used only as a last resort and for the shortest possible time. (Incorporated from A.M. No. 02-1-18 Re: Rule on Juveniles in Conflict with the Law issued on June 26, 2018)

SEARCH AND SEIZURE

RULE 126

Section 1. Search warrant defined. — A search warrant is an order in writing issued in the name of the People of the Philippines, signed by a judge and directed to a peace officer, commanding him to search for personal property described therein and bring it before the court.

Section 2. Court where application for search warrant shall be filed. — An application for search warrant shall be filed with the following:

- a) Any court within whose territorial jurisdiction a crime was committed.
- b) For compelling reasons stated in the application, any court within the judicial region where the crime was committed if the place of the commission of the crime is known, or any court within the judicial region where the warrant shall be enforced.

However, if the criminal action has already been filed, the application shall only be made in the court where the criminal action is pending.

Section 3. Personal property to be seized. — A search warrant may be issued for the search and seizure of personal property:

- a) Subject of the offense;
- b) Stolen or embezzled and other proceeds, or fruits of the offense; or
- c) Used or intended to be used as the means of committing an offense.

Section 4. Requisites for issuing search warrant. — A search warrant shall not issue except upon probable cause in connection with one specific offense to be determined personally by the judge after examination under oath or affirmation of the complainant and the witnesses he may produce, and particularly describing the place to be searched and

the things to be seized which may be anywhere in the Philippines.

Section 5. Examination of complainant; record. — The judge must, before issuing the warrant, personally examine in the form of searching questions and answers, in writing and under oath, the complainant and the witnesses he may produce on facts personally known to them and attach to the record their sworn statements, together with the affidavits submitted.

Section 6. Issuance and form of search warrant. — If the judge is satisfied of the existence of facts upon which the application is based or that there is probable cause to believe that they exist, he shall issue the warrant, which must be substantially in the form prescribed by these Rules.

Art III, 1987 Constitution

SECTION 2. The right of the people to be secure in their **persons, houses, papers, and effects** against unreasonable searches and seizures of whatever nature and for any purpose **shall be inviolable**, and no search warrant or warrant of arrest shall issue except upon probable cause to be determined personally by the judge after examination under oath or affirmation of the complainant and the witnesses he may produce, and particularly describing the place to be searched and the persons or things to be seized

Section 1. *Search warrant defined.* — A search warrant is an order in writing issued in the name of the People of the Philippines, signed by a judge and directed to a peace officer, commanding him to search for personal property described therein and bring it before the court.

Nature of application for search warrant

It is a special criminal process and is heard ex parte. A search warrant is not criminal action nor does it represent a commencement of a criminal prosecution even if it is entitled like a criminal action. It is not a proceeding against a person but it is **solely for the discovery and to get possession of personal property**.

It is a special and peculiar remedy, drastic in nature, and made necessary because of public necessity. It resembles, in some respect, with what is commonly known as John Doe proceedings.

John Doe proceedings - an independent investigatory tool to ascertain whether a crime has been committed, and if so, by whom. One aspect of a John Doe proceeding is to allow law enforcement officers, through a court order by a judge, to examine a witness and to collect other sources of evidence to determine whether there is criminal conduct which should be prosecuted. It is similar because you can actually file for a search warrant even before a criminal case is filed in court. What it seeks to find out is whether or not

there is an evidence or there is cause to prosecute a certain person for a criminal offense.

Rationale

Much like in warrants of arrest, the general rule is that no search and seizure can be made without a valid warrant issued by a competent judicial authority.

Arrest	Search and seizure
The rules on arrest are concerned with the <u>seizure of person</u> so he may be made to answer for the commission of an offense. It involves the taking of a person into custody	A search is concerned with the <u>seizure of personal properties</u> subject of the offense, stolen, or embezzled property, fruits of the offense or those intended to be used to commit an offense.
A probable cause to the arrests does not necessarily involve a probable cause to search, and vice versa. Probable cause to arrest involves a different determination from probable cause to search. In order to determine the probable cause to arrest, the judge not the prosecutor must have sufficient facts in his hands, that would tend to show that a crime has been committed and that a particular person committed it.	Probable cause to search requires facts to show that particular things connected with a crime are found in a specific location
An arrest with a warrant may be on any day and at any time of day or night.	A search warrant is generally served in the daytime unless there is a direction in the warrant, that it may be served at any time at the day or night.
The issuance of a warrant of arrest presupposes the existence of a pending criminal case that give rise to the warrant.	A search warrant does not require the existence of a criminal case. It may be issued prior to the filing of the case.

Section 2. *Court where application for search warrant shall be filed.* — An application for search warrant shall be filed with the following:

- a) Any court within whose territorial jurisdiction a crime was committed.
- b) For compelling reasons stated in the application, any court within the judicial region where the crime was committed if the place of the commission of the crime is known, or any court within the judicial region where the warrant shall be enforced.

However, if the criminal action has already been filed, the application shall only be made in the court where the criminal action is pending.

GR: application for search warrant shall be filed with any court within whose territorial jurisdiction a crime was committed (no need to state the compelling reasons)

XPN:

- 1) *For compelling reasons stated in the application*, any court within the **judicial region where the crime was committed if the place of the commission of the crime is known**
- 2) *For compelling reasons stated in the application*, any court within the judicial region **where the warrant shall be enforced**.
- 3) If the criminal action has already been filed, the application shall only be made in the court where the criminal action is pending.

Inherent power to quash search warrant of the courts

The issuance of a search warrant is part of a court's exercise of its ancillary jurisdiction and not of its criminal jurisdiction. Because it has the power to issue search warrants it also has the inherent power to quash warrants already issued

Administrative Matter No. 99-20-09-SC

- 1) ALL APPLICATIONS OF SEARCH WARRANT involving **heinous crimes, illegal gambling, dangerous drugs and illegal possession of firearms**.
- 2) For these specific crimes, heinous crimes, illegal gambling, dangerous drugs and illegal possession of firearms,
 - the executive judge and vice executive judges of the regional trial courts of Manila and Quezon City, filed by Philippine National Police, the National Bureau of Investigation, the Presidential Anti-Organized Crime Task Force (PAOC-TF) and the Reaction Against Crime Task Force (REACT-TF) with the Regional Trial Courts of Manila and Quezon City

Sec. 3. Personal property to be seized. – A search warrant may be issued for the search and seizure of personal property:

- a) Subject of the offense;
- b) Stolen or embezzled and other proceeds, or fruits of the offense; or
- c) Used or intended to be used as the means of committing an offense.

The seizure of items not specified in the warrants cannot be justified by the directive to seize and take possession of other properties relative to such violation which, in no way, can be characterized as a particular description of the things to be seized

GR: Must be **particularly described**

XPN:

- 1) particular thing is found to be a contraband or articles, the possession of which without, more constitutes a crime, they will not be ordered returned but shall be confiscated in favor of the state or destroyed as the case may be.

How long does the court has to have custody

Art. 125. *Delay in the delivery of detained persons to the proper judicial authorities.* – The penalties provided in the next preceding article shall be imposed upon the public officer or employee who shall detain any person for some legal ground and shall fail to deliver such person to the proper judicial authorities within the period of: twelve (12) hours, for crimes or offenses punishable by light penalties, or their equivalent; eighteen (18) hours, for crimes or offenses punishable by correctional penalties, or their equivalent; and thirty-six (36) hours, for crimes or offenses punishable by afflictive or capital penalties, or their equivalent.

Section 4. *Requisites for issuing search warrant.* — A search warrant shall not issue except upon probable cause in connection with one specific offense to be determined personally by the judge after examination under oath or affirmation of the complainant and the witnesses he may produce, and particularly describing the place to be searched and the things to be seized which may be anywhere in the Philippines.

Requirements

- 1) The warrant must be issued upon probable cause.

Probable cause - is defined as such facts and circumstances which would lead a reasonably discreet and prudent man to believe that an offense has been committed and that the object sought in the connection with the offense are in the place sought to be searched.

- 2) The probable cause must be determined by the judge himself and not by the applicant or any other person.
 - The required procedure for the determination of the judge is that the examination must be personally conducted by the judge.
 - The examination must be in the form of **searching questions and answers**.
 - The complainant and the witnesses shall be examined on those facts personally known to them
 - The statements must be in writing and under oath, and the sworn statements of the complainant and the witnesses, together with the affidavit submitted shall be attached to the record.



- 3) In the determination of probable cause, the judge must examine, under oath or affirmation, the complainant and such witnesses as the latter may produce.

Warrant of arrest	Search warrant
the judge will personally look at the documents, information, and supporting evidence, etc.	the judge will require a personal examination of the complainant or the one that applied for a search warrant, and the witnesses which he may provide.

- 4) The warrant issued must **particularly describe** the place to be searched and persons or things to be seized.

The long-standing rule is that a description of the place to be searched is sufficient if the officer with the warrant can with reasonable effort ascertain and identify the place intended and distinguish it from other places in the community. **Any designation or description that points out the place, to the exclusion of all others, and on inquiry leads the officers unerringly to it satisfies the constitutional requirement.**

- 5) The applicant and the witnesses must testify on the facts, data or information personally known to them.

Nullification of search warrant

- 1) The **absence of any of these requisites** will cause the downright nullification of the search warrant.
- 2) The issuance of a search warrant for **more than one offense** would violate Section 4 of Rule 126, and is not allowed.
- 3) **Absent the element of personal knowledge by the applicant or his witnesses**, of the facts upon which the issuance of a search warrant may be justified, the warrant is not deemed based on probable cause and is a nullity. Its issuance being in legal contemplation, arbitrary.

Place must be particularly described

The caption of the search warrant provides or indicates the address of petitioner as “Hernan Cortez Street, Cebu City,” while the body of the search warrant states that that the address is “Hernan Cortez Street, Mandaue City”.

The Supreme Court did not consider the discrepancy as sufficient to consider the warrant as constitutionally infirm. **It was not shown that there was a street with the same name in Cebu City, nor was it established that the officers enforcing the warrant had difficulty locating the premises of the petitioner which was actually in Hernan Cortez Street, Mandaue City.**

The Supreme Court said that **the description of the place to be searched is sufficient if the officer with the warrant can, with reasonable effort, ascertain and identify the place intended and distinguish it from other places in the community.** Any designation or description known to the locality that points out to the place to the exclusion of all others and on inquiry leads the officers unerringly to it satisfies the constitutional requirement. (*Uy v. BIR*)

Things must be particularly described

A search warrant may be said to particularly describe the things to be seized when:

- 1) the description therein is as specific as the circumstances will ordinarily allow;
- 2) the description expresses a conclusion of fact not of law, by which the warrant officer may be guided in making the search and seizure;
- 3) the things described are limited to those who bear a direct relation to the offense for which the warrant is being issued.

The law does not require that the things to be seized, must be described in precise and minute detail as to leave no room for doubt on the part of the searching authorities.

A search warrant is not sweeping authority empowering a raiding party to undertake a fishing expedition to seize and confiscate any and all kinds of evidence or articles relating to a crime.

Contraband

When it pertains to contrabands or those things which are illegal per se, there is less stringent requirements on the jurisprudence as to the particular description.

When partly valid and partly void

As to the part where it is too general or it admits of even those things which may not be in connection with the crime or which may be connected with a valid business therefore, the public officers or the officers enforcing the search warrant actually had to apply discretion. But as to the part where the things to be seized or actually seized is actually particularly described, the seizure of those things are valid.

Ownership

Ownership is of no consequence. It is sufficient that the person against whom the warrant is directed has control and possession of the properties sought to be seized.

Section 5. Examination of complainant; record. — The judge must, before issuing the warrant, personally examine in the form of searching questions and answers, in writing and under oath, the complainant and the witnesses he may produce on facts personally known to them and attach to the record their sworn statements, together with the affidavits submitted.

Section 6. *Issuance and form of search warrant.* — If the judge is satisfied of the existence of facts upon which the application is based or that there is probable cause to believe that they exist, he shall issue the warrant, which must be substantially in the form prescribed by these Rules.

Form of search warrant

- 1) It must be in the name of the People of the Philippines;
- 2) It must be signed by the judge after finding probable cause;
- 3) The finding of probable cause must be through the examination under oath or affirmation of the complainant and the witnesses that he may present, and must be personally made by the judge through probing searching questions
- 4) Must particularly described the place to be searched, or the person to be searched, and the thing or things to be seized.
- 5) It must command a peace officer or a law enforcement officer to search for personal property described therein and bring it before the court.

Waiver

failure to object **during the trial** of the case to the legality of the search warrant and to the admissibility of the evidence obtained thereby.

Search warrant	Warrant of arrest
Objection must be during trial	Objection must be before plea

It has been consistently ruled that an accused is estopped from assailing any irregularity of his arrest if he fails to raise this issue or to move for the quashal of the information against him on this ground before arraignment. Any objection involving a warrant of arrest or the procedure by which the court acquired jurisdiction over the person of the accused must be made before he enters his plea; otherwise, the objection is deemed waived. (*Rebellion v. People*)

It bears stressing that the legality of the arrest affects only the jurisdiction of the court over their persons. Their warrantless arrests cannot, by themselves, be the bases of their acquittal. (*People v. Yau*)

Section 7. *Right to break door or window to effect search.* — The officer, if refused admittance to the place of directed search after giving **notice of his purpose and authority**, may break open any outer or inner door or window of a house or any part of a house or anything therein to execute the warrant or liberate himself or any person lawfully aiding him when unlawfully detained therein.

Principle of knock and announce

They may only break open any outer or inner door or window of a house to execute the search warrant if

after said notice and demand such officers are refused entry to the place of directed search. This is known as the knock and announced principle which is embodied in Anglo American law. The method of entry of an officer into a dwelling in the presence or absence of such notice are as important considerations in assessing whether subsequent entry to the search and/or arrest is constitutionally reasonable.

In case in which the occupants of the house being searched refused to open the door despite the fact that the searching party knocked on the door several times and the agent saw the suspicious movements of the people inside the house, such circumstances will justify the searching party's forcible entry to the house founded as it is on the apprehension that the execution of their mission will be frustrated unless they do so. (*People v. Salangit*)

Requisites

- 1) that the officer gives **notice of his purpose and authority**;
- 2) he is **refused admittance** to the place of directed search despite notice; and
- 3) the purpose of breaking is to **execute the warrant or to liberate himself or any person lawfully aiding** him when unlawfully detain therein

Section 8. *Search of house room or premises to be made in presence of two witnesses.* — No search of house, room or any other premises shall be made except in the presence of **the lawful occupant** thereof or **any member of his family**, or, in the absence of the latter, **two witnesses of sufficient age and discretion, residing in the same locality.**

The purpose of the presence of these people is to see to it that there is no planting of evidence that the search is validly conducted to see to it that the lawful occupant or the family member, or the two witnesses, how the search is being conducted.

Section 9. *Time of making search.* — The warrant must direct that it be served in the day time, unless the affidavit asserts that the property is on the person or in the place ordered to be searched, in which case a direction may be inserted that it be served at any time of the day or night.

Execution

GR: It be executed in the daytime

XPN:

- 1) If the property to be seized is in the person of the accused, then the search warrant may direct that it may be executed it at any time of the day or night when the person to execute it sees or has the opportunity to search the person described in the search warrant
- 2) the place searched is ordered it can only be accessed at a certain time during the night.

XPN of XPN: if not indicated in the search warrant, we must go back to the provision of the rules that it be served at the day time. If it is allowed that it be served during the nighttime then it must be specifically indicated or the direction that it be served at any time in the day or night must be indicated in the search warrant.

Section 10. *Validity of search warrant.* — A search warrant shall be valid for ten (10) days from its date. Thereafter it shall be void.

Search warrant	Warrant of arrest
Valid for 10 days, cannot be used every day for 10 days for different purposes each day	Valid as long as it is not recalled
Can actually be extended, so long as the search conducted is not another search but merely a continuation of the search that has been begun during the effectivity of the search warrant.	

Section 11. *Receipt for the property seized.* — The officer seizing property under the warrant **must give a detailed receipt** for the same to the lawful occupant of the premises in whose presence the search and seizure were made, or in the absence of such occupant, must, in the presence of at least two witnesses of sufficient age and discretion residing in the same locality, **leave a receipt in the place in which he found the seized property.**

After the search there will always be a receipt given to the lawful occupant, or to the member of his family, or to the 2 witnesses. Therefore, the searching team cannot use the same search warrant to search the premises again. They have to secure another search warrant.

Section 12. *Delivery of property and inventory thereof to court; return and proceedings thereon.* —

- a) The officer must forthwith deliver the property seized **to the judge who issued the warrant**, together with a **true inventory thereof duly verified under oath.**
- b) **Ten (10) days** after issuance of the search warrant, the issuing judge shall ascertain if the return has been made, and if none, shall summon the person to whom the warrant was issued and require him to explain why no return was made. If the return has been made, the judge shall ascertain whether section 11 of this Rule has been complied with and shall require that the property seized be delivered to him. The judge shall see to it that subsection (a) hereof has been complied with.
- c) The return on the search warrant shall be filed and kept **by the custodian of the log**

book on search warrants who shall enter therein the date of the return, the result, and other actions of the judge.

A violation of this section shall constitute contempt of court.

Delivery, inventory and return proceedings

- 1) The officer must forthwith deliver the property seized **to the judge who issued the warrant**, together with a **true inventory thereof duly verified under oath.**
- 2) The judge shall ascertain if the return has been made, he shall do so 10 days after the issuance of the search warrant.
- 3) If no return has been made, the judge shall **summon the person to whom the warrant was issued**, and require him to explain why no return has been made.
- 4) If the return has been made, the judge shall ascertain whether **Section 11 of Rule 126** (the giving of the receipt of the property seized) was complied with, and shall require that the property seized be delivered to him.
- 5) When the evidence shows that the judge who issued the search warrant did not require the officers executing the warrant to make an accurate and complete inventory of the things seized and submit the same to him, he is guilty of gross ignorance of the law.

Section 13. *Search incident to lawful arrest.* — A person lawfully arrested may be searched for dangerous weapons or anything which may have been used or constitute proof in the commission of an offense without a search warrant.

GR: A valid search may only be effected by obtaining a valid search warrant

XPN:

- 1) Warrantless search incidental to a valid or lawful arrest;
- 2) Consented warrantless search; searches with the Express waiver of the person being search
- 3) **Custom search;**
 - It may be of vessels or aircrafts or public utilities like buses, jeepneys, etc in relation to immigration law, fishery law, laws on airports, seaport security, jail safety
- 4) **Plain view doctrine**
- 5) **Stop and frisk (Terry Search)**
- 6) Search of a moving vehicle
- 7) Exigent and emergency circumstances
- 8) Inspection of buildings and other premises to enforce building laws, fire laws, safety standards laws.
- 9) Canine dog sniff test and thermal imaging.

In relation to sec. 2 of Art. III of the Constitution, if the elements or requirements that are provided for under the Constitution or the law or jurisprudence is

met, then the search even without a warrant will not be considered unreasonable.

Section 13. Search incident to lawful arrest. — A person lawfully arrested may be searched for dangerous weapons or anything which may have been used or constitute proof in the commission of an offense without a search warrant.

Search incident to lawful arrest

The purpose of the rule is to protect the arresting officer against physical harm from the person being arrested, who might be armed with a concealed weapon, and also to prevent the person arrested from destroying the evidence within his reach.

Requisites

- 1) There must be a by valid arrest; and
- 2) The search must be limited to space and time.
 - It is **limited as to time** when it is made at the **earliest possible opportunity** after the arrest and there must be no considerable lapse of time.
 - It is also **limited as to space** it is made on the **person arrested** or the **immediate vicinity where he has effective control**, 1) to cart away evidence or
2) to get weapon

Effect of noncompliance

1. If there is **no valid arrest**, then **whatever is searched incident to that arrest would be fruits of the poisonous tree**.
2. If there is a violation to the requirement that the search **must be limited to space and time**, all things searched which may violate the limitation as to time or space **will be considered as fruits of the poisonous tree**.

Consented search

It is when the right against warrantless searches has been voluntarily waived. It occurs when a person gives a law enforcement agent permission to search in areas where such person has reasonable expectation of privacy.

- Jurisprudence requires that in instances of consented searches, it is fundamental that, to constitute a waiver: the right to waive exists.
- The person involved has knowledge of the existence of such right.
- The said person had an actual intention to relinquish such right

The implied agreement to a search, if there was any, **could not have been more than mere passive conformity given under intimidating or coercive circumstances**, and is thus considered no consent at all within the purview of the constitutional guarantee.

Customs search

It could be in a wharf, in a port, i.e. airport or seaport. It could be in vessels or aircrafts so long as it is pursuant to the tariff and customs codes.

What is common in the implementation of these laws is that the police or enforcement officer has the initial right to ask any person who may be carrying things, which they reasonably believe would be under or covered by these respective laws to ask for the authority to transport it or the authority to have it in their possession.

In the absence of any papers, then they will have already reasonable justification and or probable cause to conduct a further search or inspection

Routine checks

- 1) Routine checks in airports
- 2) Routine checks in seaports
- 3) Public transport terminals
- 4) Jail safety

In these public areas, there is a diminished expectation of privacy; because inspections are conducted in these public areas for the safety of the general public. The Supreme Court has continuously upheld that the limited intrusion into the person and the things that they may bring into these public spaces is a valid warrantless search.

Related laws

- 1) Airports - Republic Act 6235
- 2) Seaport - Executive Order Number 513

Plain view doctrine

The doctrine states that the objects within the sight of an officer who has a right to be in a position to have the view, are subject to seizure and may be presented as evidence.

Elements

- 1) A **prior valid intrusion** based on the valid warrantless arrest in which the police are legally present in the pursuit of their official duties
- 2) The evidence was **inadvertently discovered** by the police who have the right to be where they are.
- 3) The evidence must be **immediately apparent**
- 4) **Plain view justified** where seizure of evidence **without further search**

Stop and frisk/ Terry search

Two purposes

1. The **general interests of effective crime prevention and detection**; and
2. The **safety of the police officer** to take steps to assure himself that the person with whom he deals is not armed with a deadly weapon that could be used against him.

Two parts



- 1) Stop - a valid stop by an officer requires that he has a **reasonable and articulable belief** that a criminal activity has happened or is about to happen. This is based on the experience of the law enforcement officer
- 2) Frisk - the frisk must be merely a pat down outside the person's outer garment, and not unreasonably intrusive.

Extensive search

If upon you frisking on the outside garment, there is reasonable belief that there is a concealed weapon, then that will allow or authorize the law enforcement officer to do a more extensive search of the body of the person.

Search of moving vehicle

To do a valid stop of the moving vehicle, there must be an initial determination of probable cause which in this instance means or signifies a reasonable ground of suspicion, supported by circumstances, which are sufficiently strong in themselves to warrant a cautious man's belief that an offense has been committed, and that the items articles or objects sought in connection with said offense are subject to seizure and destruction by law is in the place to be searched.

Normally permissible searches of moving vehicle

- 1) where the officer **merely draws aside the curtain** of a vacant vehicle which is parked on the public fairgrounds;
- 2) **simply looks into a vehicle** - flashes a light therein without opening the cars door;
- 3) where the occupants are **not subjected to a physical or body search**;
- 4) where the inspection of the vehicle is limited to a **visual search or visual inspection**; and
- 5) where the routine check is conducted in a **fixed area**.

Extensive search

If after conducting the visual search, there is cause to do a more extensive search, then that would be allowed.

Requirements for a valid checkpoint

- 1) the location of checkpoints must be **fixed**;
- 2) the location of checkpoints must be **determined by responsible officers**;
- 3) checkpoints must be **manned by at least one officer** for command responsibility purposes;
- 4) the search in the checkpoint **must be limited to visual search**; and
- 5) one **must not be detained longer** than what is necessary for a visual search.

Aerial target zoning

Search of a particular area. If there is no priorly obtained search warrant, then that would be invalid - that would be an unreasonable search.

Exigent and emergency circumstances

This exception applies during extraordinary times wherein warrantless searches are allowed, such as coup d'état and rebellions, where the courts are not open. This could also apply during times of unrest or when there is general political instability. Where because of the exigencies of what is happening in the country, a valid warrantless search may be conducted to aid in the administration of justice.

Inspection of buildings and other premises to enforce building laws, fire laws, safety standards laws

In the Building Code of the Philippines, building officials has authority to inspect compliance with the Building Code as to the structure, the materials that were used, compliance with a minimum requirement as to height, etc. For the purpose of this inspection, there is no need to secure a prior judicial search warrant.

In the inspection of the Bureau of Fire officials for compliance with the Fire Code - whether there is enough fire exits, enough fire extinguishers, or other safety protocols that are required under the Fire Code - no need for prior search warrant for the inspection.

This also applies to our Sanitation Code of the Philippines - to ensure that there is compliance with this, the officers in charge with implementing the Sanitation Code does not need any prior search warrant for the conduct of inspection to see to it that there is compliance with the Code.

Canine/dog sniff test and thermal imaging

Canine dog sniff

- 1) When the canine or dog sniff test is conducted in an airport or a seaport or in a public area, then it may be considered as valid using the same justification as when we enter into an airport or a seaport. **There is diminish expectation of privacy.**
- 2) When the canine or sniff test is used in a house or a private property, **where there is no expectation of diminished privacy**, the requirement would be, before that test is conducted, is authority for test to be conducted. Otherwise, it will be considered as an **unreasonable search**.

Thermal imaging

1. If the situation of the use of the thermal imaging device is in places like airports, seaports, or in public spaces, **since there is already a diminished expectation of privacy**, it is then a **valid intrusion** into privacy.
2. When thermal imaging devices are used to conduct surveillance or to investigate a private household, then again that would be a totally different matter and authority to conduct such investigation or a search warrant must be obtained first - specifically authorizing the use



of thermal imaging. **Otherwise, it will be considered as an unreasonable search.**

Doctrine of the fruit of the poisonous tree

Section 3(2), Article III of the 1987 Constitution An exclusionary rule which instructs that the evidence obtained and confiscated on the occasion of such unreasonable searches and seizures are deemed tainted and should be excluded for being the proverbial fruit of a poisonous tree.

Any evidence obtained in violation of such constitutional provision shall be inadmissible for any purpose in any proceeding. The evidence obtained through an unlawful search would be inadmissible as evidence against the accused, and this applies to both instances of illegally obtained search warrant or invalid warrantless search.

Effect of waiver of the illegal warrantless arrest

The inadmissibility of the fruit of the poisonous tree is **not waived**, even if objecting to the validity of the warrant of arrest or search warrant is already deemed waived, because it was not a questioned before the entry of the plea.

Civil damages and criminal liability

Rule 126 of the Rules on Criminal Procedure No counter – claim, cross – claim or third – party complaint may be filed by the accused in the criminal case, but any cause of action which could have been the subject thereof maybe litigated in a separate civil action.

- 1) The proceedings under Rule 126 of the Rules on the Revised Rules on Criminal Procedure do not provide for the filing of the counter claims for damages against those who may have improperly sought the issuance of the search warrant.
- 2) the aggrieved party have the right to seek damages if the circumstances warrants by filing a separate civil action for the wrongs inflicted on them by an improperly obtained or enforced search warrant. There is civil liability on the basis of the concept of an independent civil action for violation of a person's right to be secure in his person, house, papers, and effects against unreasonable searches and seizures under Article 32 (9) of the New Civil Code.
- 3) This liability shall be separate and distinct from any criminal liability that may arise from the Revised Penal Code, such as violation of domicile under Article 128 of the RPC, search warrant maliciously obtained, and abuse in the service of those legally obtained under Article 129 of the RPC, or possibly searching domicile without witnesses under Article 130 of the RPC.

Relating to the Constitutional right

- 1) The provision of Section 2, Article III of the Constitution is leveled against the State or law enforcement officers of the State and it is not against private persons.
- 2) Where there is no participation of the government cannot be considered as unreasonable searches and seizure in relation to Section 2, Article 3 of the Constitution (a private person can validly arrest a person committing a crime, or has just committed a crime, or is attempting to commit a crime (in flagrante delicto arrest) under Section 5 of Rule 113 of the Revised Rules on Criminal Procedure)

Section 14. Motion to quash a search warrant or to suppress evidence; where to file. — A motion to quash a search warrant and/or to suppress evidence obtained thereby may be filed in and acted **upon only by the court where the action has been instituted**. If **no criminal action has been instituted**, the motion may be filed in and resolved by the court that issued the search warrant. However, if such court failed to resolve the motion and a criminal case is subsequent filed in another court, **the motion shall be resolved by the latter court**.

- 1) If there is still no criminal complaint or information filed in court and then you filed an application for a search warrant and then a search warrant is subsequently issued, the motion **may be filed in and resolved by the court that issued the search warrant**.
- 2) A motion to quash a search warrant and/or to suppress evidence obtained thereby may be filed in and acted **upon only by the court where the action has been instituted**
- 3) If such court failed to resolve the motion and a criminal case is subsequent filed in another court, **the motion shall be resolved by the latter court**

Who may assail the issuance of a search warrant?

Well settled is the rule that the legality of seizure can be contested only by the party whose right has been impaired thereby and the objection to an unlawful search and seizure is purely personal and cannot be availed of by any third party.

If the proper party in interest, the person who is actually prejudiced by the illegal search, wants to file for a motion to quash, or motion to suppress evidence, there is no need for the public prosecutor's conformity with that motion.

The question of whether there was abuse in the enforcement of the challenged search warrant is not within the scope of the motion to quash or the motion to suppress evidence. Otherwise stated, **the manner of serving the warrant and effecting the search are not an issue to be resolved in a motion to quash.**



The remedies against such abuse are penal, civil, or administrative.

Remedies

- 1) The motion to quash the search warrant; - whether or not there is a case filed in court
- 2) The motion to suppress evidence obtained by virtue of the invalid warrant; - when there is no case filed in court, before the accused enter his plea
- 3) Objection to the admissibility of the evidence obtained by virtue of an invalid warrant when such evidence is offered in evidence - when the trial is already ongoing when the party has already presented the things seized under an illegal search warrant

A search warrant as an incident of a criminal case filed

Where the criminal case of which the search warrant is an incident has already been filed before the trial court for the purpose of determining the proper remedy from a grant or denial of a motion to quash a search warrant, where the search warrant is issued as an incident in a pending criminal case, the quashal of a search warrant is merely interlocutory. There is still something more to be done in the said criminal case and the determination of the guilt of the accused therein is yet to be determined.

Since you have no other remedy but to wait for the entire case to be finished before you can question whether the grant or the denial of the search warrant is valid or not, then you can raise it up to a higher court, to the **Court of Appeals** via petition for certiorari under **Rule 65 on the grounds of grave abuse of discretion**.

A search warrant in anticipation of a criminal case

The denial or the grant of the search warrant actually disposes of the case.

RIGHT TO BAIL

Article III, 1987 Constitution

SECTION 13. All persons, except those charged with offenses punishable by *reclusion perpetua* when evidence of guilt is strong, shall, before conviction, be bailable by sufficient sureties, or be released on recognizance as may be provided by law. The right to bail shall not be impaired even when the privilege of the writ of habeas corpus is suspended. Excessive bail shall not be required.

Bail

A security given for the release of a person in custody of the law, furnished by him or a bondsman, to guarantee his appearance before any court as required under the conditions hereinafter specified. (Sec 1, Rule 114)

Section 1. Bail defined. — Bail is a **security given for the release** of the person in custody of the law, furnished by him or a bondsman to guarantee his appearance before any court as required under the

conditions herein after specified. Bail may be given in the form of corporate surety property, bond, cash deposit, or recognizance.

Characteristics

- 1) Bail is a security - the purpose of the giving of bail is to guarantee the appearance of the accused at the trial.
- 2) Bail is furnished by the person to be released or bondsman
- 3) The security is given to guarantee the appearance of the person released before any court as required under the conditions specified under Rule 114.

Elements

- 1) The right is a constitutional right

Constitution lays down the following fundamental tenets on bail;

- All persons charged before their conviction for a criminal offense shall be entitled to bail. This is the general rule.
- The suspension of the privilege of the writ of habeas corpus does not impair the right to bail.
- Excessive bail is not required.

Purpose of bail

- 1) To relieve an accused from imprisonment until his conviction and yet assure appearance at the trial and at the same time enable him to prepare his defense without being subject to punishment prior to conviction.
- 2) To prevent the release of an accused who might otherwise be dangerous to society or whom judges might not want to be released.
- 3) It acts as reconciling mechanism to accommodate both the accused's interest in liberty before trial and society's interest in assuring accused presence at the trial.
- 4) The right to bail is granted because in all criminal prosecutions the accused is presumed innocent, that without bail bond the accused under detention cannot be released.

General rules on bail

- 1. All persons charged **before their conviction** for a criminal offense shall be entitled to bail.
- 2. The **suspension of the privilege of the writ of habeas corpus does not impair** the right to bail.
- 3. Excessive bail is **not required**.
- 4. The right can be invoked or is available the moment there is an arrest, **with or without a warrant**
- 5. The person to be released must be **in custody of the law**.
- 6. **Before or after information** is filed
- 7. The hearing must be **necessary and summary**



The following are the duties of the trial judge in a petition for bail in the offenses as mentioned:

- a) **Notify the prosecutor** of the **hearing** of the application for bail or require him to submit his recommendation (Section 18, Rule 114 of the Rules of Court as amended;
- b) **Conduct a hearing of the application** for bail regardless of whether or not the prosecution refuses to present evidence to show that the guilt of the accused is strong for the purpose of enabling the court to exercise its sound discretion (Sections 7 and 8, *supra*);
- c) **Decide whether the evidence of guilt of the accused is strong** based on the summary of evidence of the prosecution (*Baylon v. Sison*, *supra*);
- d) If the guilt of the accused is **not strong**, **discharge the accused** upon the approval of the bail bond. (Section 19, *supra*). Otherwise, petition should be denied.

Forms of bail (Sec 1, Rule 114)

The form of bail is the choice of the accused

- 1) **Corporate surety** – Bonding company guarantees the appearance in court of the accused. The accused only has to pay a premium and the bond is renewed annually.

General requirements

- The accused or someone acting on his behalf can obtain this surety from any domestic or foreign corporation which is licensed in the Philippines to provide a surety.
- Bail bond must also be **subscribed by the accused and an officer** of the corporate surety (solidarily liable)
- There are **3 parties** in a corporate surety
 - 1) state,
 - 2) accused
 - 3) corporate surety

Section 10. Corporate surety. — Any **domestic or foreign corporation**, licensed as a surety in accordance with law and currently authorized to act as such, may provide bail by a bond subscribed jointly by the accused and an officer of the corporation duly authorized by its board of directors. (10a)

- 2) **Property bond** - If the accused has no cash and no surety, title of a real property is deposited in court; and it does not need to be in the name of the accused.
 - There are **3 parties** in a property surety
 - 1) state,
 - 2) accused
 - 3) owner of the property

Section 11. Property bond, how posted. — A property bond is an undertaking constituted as **lien on the real property** given as

security for the amount of the bail. Within **ten (10) days** after the approval of the bond, the accused shall cause the **annotation** of the lien on the certificate of title on file with the **Register of Deeds** if the land is registered, or if unregistered, in the **Registration Book** on the space provided therefor, in the Registry of Deeds for the province or city where the land lies, and on the corresponding tax declaration in the office of the provincial, city and municipal assessor concerned.

Within the same period, the accused shall submit to the court his compliance and his **failure to do so shall be sufficient cause for the cancellation of the property bond and his re-arrest and detention.** (11a)

Section 12. Qualifications of sureties in property bond. — The qualification of sureties in a property bond shall be as follows:

- (a) Each must be a **resident owner of real estate** within the Philippines;
- (b) Where there is only one surety, his real estate must be **worth at least the amount of the undertaking**;
- (c) If there are two or more sureties, each **may justify in an amount less than that expressed in the undertaking** but the **aggregate of the justified sums must be equivalent to the whole amount of bail demanded.**

In all cases, every surety must be worth the amount specified in his own undertaking over and above all just debts, obligations and properties exempt from execution. (12a)

Section 13. Justification of sureties. — Every surety shall justify by **affidavit taken before the judge** that he possesses the qualifications prescribed in the preceding section. He shall describe the property given as security, stating the nature of his title, its encumbrances, the number and amount of other bails entered into by him and still undischarged, and his other liabilities. The court may examine the sureties upon oath concerning their sufficiency in such manner as it may deem proper. No bail shall be approved unless the surety is qualified. (13a)

Art. 316. Other forms of swindling. — The penalty of arresto mayor in its minimum and medium period and a fine of not less than the value of the damage caused and not more than three times such value, shall be imposed upon:

xxx 6. Any person who, while being a surety in a bond given in a criminal or civil action, without express authority from the court or before the cancellation of his bond or before being relieved from the obligation



contracted by him, shall sell, mortgage, or, in any other manner, encumber the real property or properties with which he guaranteed the fulfillment of such obligation.

- 4) **Cash deposit** - The two parties to the transaction are the State and the accused. Unlike other bail bonds, the money may then be used in the payment of that in which the State is concerned, such as fines and costs, such that when the accused violates the conditions of the bail bond it may be forfeited in favor of the State.

Section 14. Deposit of cash as bail. — The accused or any person acting in his behalf may deposit in cash with the **nearest collector or internal revenue or provincial, city, or municipal treasurer** the amount of bail fixed by the court, or recommended by the prosecutor who investigated or filed the case. Upon submission of a **proper certificate of deposit** and a **written undertaking showing compliance** with the requirements of section 2 of this Rule, the accused shall be discharged from custody. The money deposited **shall be considered as bail and applied to the payment of fine and costs** while the **excess, if any, shall be returned to the accused or to whoever made the deposit.** (14a)

Section 2. Conditions of the bail; requirements. — All kinds of bail are subject to the following conditions:

- The undertaking **shall be effective upon approval, and unless cancelled**, shall remain in force at all stages of the case until promulgation of the judgment of the Regional Trial Court, irrespective of whether the case was originally filed in or appealed to it;
- The **accused shall appear before the proper court** whenever required by the court or these Rules;
- The **failure of the accused to appear at the trial without justification and despite due notice shall be deemed a waiver of his right** to be present thereat. In such a case, **the trial may proceed in absentia**; and
- The **bondsman shall surrender the accused to the court for execution of the final judgment.**

The original papers shall state the full name and address of the accused, the amount of the undertaking and the conditions herein required. Photographs (passport size) taken within the last six (6) months showing the face, left and right profiles of the accused must be attached to the bail

Under Section 2: The (bail) shall be effective upon approval, and remain in force at all stages of the case, unless sooner cancelled until promulgation of the judgment of the Regional Trial Court, irrespective of whether the case was originally filed in or appealed to it

- The case was originally filed with the first level court – Municipal Trial Court, Municipal Circuit Trial Court, Metropolitan Trial Court, etc. but brought on appeal to the Regional Trial Court. In which case, the bill remains effective even during the pendency of the appeal with the latter court until the promulgation of its judgment.
- The case is originally filed with the Regional Trial Court, in which case the bill remains effective until the promulgation of judgment in the RTC.

Sec 2b

What are the instances under the rules wherein the presence of the accused is **required**?

- At the arraignment and plea, whether of innocence or of guilt;
- During trial whenever necessary for identification of the accused; and
XPN: days of trial not for the identification of the accused
- Promulgation of the sentence
XPN: unless it is for a **light offense**, in which case the accused may appear by counsel or representative.

Sec 2c

GR: the purpose of that particular trial or hearing is for the identification of the accused, he must be present

XPN: unless the defense already stipulated as to the identity of the accused

Sec 2d

In relation to the duty of the bondsman to make sure that the accused is present when the court directs the accused to be present, in the situation that his sentence will be promulgated because, again, that is one instance that the presence of the accused is required, the bondsman is also empowered and duty bound to surrender the accused to the court for the execution for the promulgation and then the execution of the final judgment.

Sec 2 par 2

Form of the application for bails

- The original papers shall state the full name and address of the accused,
- the amount of the undertaking and the conditions herein required.
- Photographs (passport size) taken within the last six (6) months showing the face, left and right profiles of the accused must be attached to the bail.

Sec 2a



Section 23. Arrest of accused out on bail. — For the purpose of surrendering the accused, the bondsmen may arrest him or, upon written authority endorsed on a certified copy of the undertaking, cause him to be arrested by a police officer or any other person of suitable age and discretion.

An accused released on bail may be re-arrested without the necessity of a warrant if he attempts to depart from the Philippines without permission of the court where the case is pending.

Constitutional restrictions

Right to travel

The constitutional right to travel of a person accused of a crime and is undergoing criminal prosecution is limited by the bail that he is on.

If the accused wants to travel abroad, he must ask leave of court or permission from the court for that travel. There must be a **justification for the necessity of the travel abroad**.

Right to liberty of abode

When the accused chooses to transfer his residency, he is duty bound to inform the court of the same. In that sense, the right of the accused to liberty of abode is also limited.

Person to be released must be in custody of the law

Custody of the law may be attained when:

- a) An accused is **validly arrested**;
- b) He **submits to the jurisdiction** of the court upon his appearance before the court;
- c) There is constructive custody when there are reasons that he cannot appear before the court to apply for bail, but he still **accedes to the court's jurisdiction and that his custody is already considered custody in law**.

The right to bail then may only be availed of by a person in the custody of the law or otherwise deprived of his liberty. Since bail is obtained for the provisional liberty of the accused, the same cannot be authorized or posted before custody of the accused has been acquired by judicial authority either by his arrest, with or without warrant, or his voluntary surrender.

The concept of custody under the law does not merely signify restraint over the person or custody over the body of the accused. It is not limited to detention. It may also be present when the accused knows that his liberty is already limited and that he submits to the limitation on his liberty.

The rationale for this rule is to discourage the practice where the accused could just send another on his behalf to post his bail without recognizing the jurisdiction of the court.

A waiver of defense of lack of jurisdiction

The mere application for bail constitutes a waiver of the defense of **lack of jurisdiction over the person of the accused**. This is because upon application for bail, **affirmative relief** is sought, thus, one is considered to **have voluntarily appeared before the court**.

Constructive custody

One important concept that we reiterate when we talk about custody of the law is- if the person of the accused is in the hospital, but only instances where there is impossibility for the person in the hospital to come to the court to ask for or apply for bail, but he submits to the jurisdiction of the court - that is considered constructive custody under the law. Therefore, the accused can already apply for bail.

Application of bail

The Revised Rules of Criminal Procedure on Bail pertains to criminal actions because it is under the Rules of Court. The Constitution, as interpreted in many cases, does not only pertain to criminal prosecutions. All persons except those charged with offenses punishable by Reclusion Perpetua when evidence of guilt is strong shall be, for conviction, be bailable by sufficient sureties or be released on recognizance as may be provided for by law. The right to bail shall not be impaired even when the privilege of the writ of habeas corpus is suspended and excessive bail shall not be required.

The Constitution is silent as to whether or not it only applies to criminal prosecution. The interpretation of the Supreme Court, however, is that it may apply to other situations when there is a deprivation of liberty or when a person is under the custody of the law but not necessarily in the context of criminal proceedings.

EXCEPTIONS TO RIGHT TO BAIL

The right to bail in relation to military men who are charged for offenses and the right to bail in relation to extradition cases

As to the military, the right to bail has traditionally not been recognized and is not available as an exception to the provision of the Constitution on the right to bail. The right to a speedy trial is given more emphasis in a military setting but the right to bail does not exist. The unique structure of the military should be enough reason to exempt military men from the constitutional coverage of the right to bail.

The argument that denial for the military of the right to bail would violate the equal protection clause is not acceptable because military personnel are a class of their own, they are not the same as civilians.

They are governed by a different code of conduct, organization and set of rules and when they are prosecuted, based on the articles of war and based on the rules under the military, the right to bail is not available to them because usually the violations are



considered **violations against the commander in chief** and violations of this nature go very much into the stability of the military hierarchy.

GR: the right to bail in the military is only not given for military offenses in Military Court Martials

XPN: when the military is involved in a criminal action, which is filed in the prosecutor's office and then filed in the regular courts, then in that instance, they are allowed to avail of their constitutional right to bail.

Extradition proceedings

This is when a person, whether or not he is a citizen of the Philippines, has a criminal case or a case in a jurisdiction that is not the Philippines and where the Philippines and that particular foreign nation have an extradition treaty and because of the treaty, the Philippines as a party to the treaty is mandated to take custody of the person to be extradited.

The Government of the United States of America v. Purganan

Extradition proceedings

The Supreme Court held that the constitutional provision on bail does not apply to extradition proceedings. It is available only in criminal proceedings.

In extradition proceedings, prospective extraditees are **generally not entitled to notice and hearing before warrants for their arrest can be issued. Neither are they entitled to the right to bail and provisional liberty while the extradition proceedings are pending.**

The policy is that a prospective extraditee is arrested and detained, to avoid his flight from justice. On the extraditee lies the burden of showing that he will not flee once bail is granted.

The extradition court is that called upon to ascertain the guilt or the innocence of the person sought to be extradited. The ultimate purpose of extradition proceedings in court is **only to determine whether the extradition request complies with the extradition treaty applicable, and whether the person sought is extraditable.**

Exception

Accordingly and to best serve the ends of justice, we believe and so hold that, after a potential extraditee has been arrested or placed under the custody of the law, bail may be applied for and granted as an exception, only upon a **clear and convincing evidence showing**

- 1) **that, once granted bail, the applicant will not be a flight risk or a danger to the community; and**
- 2) **that there exist special, humanitarian and compelling circumstances including, as a matter of reciprocity, those cited by the highest court in the requesting state when it grants provisional liberty in extradition cases therein.**

xxx First, we note that the exercise of the State’s power to deprive an individual of his liberty is not necessarily limited to criminal proceedings. **Respondents in administrative proceedings, such as deportation and quarantine, have likewise been detained. Second, to limit bail to criminal proceedings would be to close our eyes to our jurisprudential history.**

Government of Hong Kong Special Administrative Region v. Olalia Jr.

In a subsequent ruling in the case of *Government of Hong Kong Special Administrative Region vs. Olalia Jr.* somehow abandoned the ruling in the case of *Purganan*. The Supreme Court ruled that following the trends in international law;

- 1) **The growing importance of the individual person in public international law**, who, in the 20th century has gradually attained global recognition.
- 2) **The higher value now being given to human rights** in the international sphere.
- 3) The corresponding duty of the countries to observe this **universal human rights** in fulfilling their treaty obligation. And;
- 4) **The duty of the Supreme Court to balance the rights of the individual under our fundamental law on one hand, in the law on extradition on the other.**

Extradition proceeding being sui generis

The standard of proof required in granting or denying bail can **neither be the proof beyond reasonable doubt in criminal cases nor the standard of proof of preponderance of evidence in civil cases.** While administrative in character, the standard of **substantial evidence used in administrative cases cannot likewise apply** given the object of extradition law which is to prevent the prospective extraditee from fleeing our jurisdiction. In his Separate Opinion in *Purganan*, then Associate Justice, now Chief Justice Reynato S. Puno, proposed that a new standard which he termed **"clear and convincing evidence"** should be used in granting bail in extradition cases. According to him, this standard should be lower than proof beyond reasonable doubt but higher than preponderance of evidence. The potential extraditee must prove by **"clear and convincing evidence" that he is not a flight risk and will abide with all the orders and processes of the extradition court.**

Bail hearings are mandatory

Bail hearing is necessary even if the prosecution does not interpose any objection or leaves the application for bail to the sound discretion of the court. A hearing is required in order for the court to ascertain the adequacy of the amount of bail under the guidelines set forth in section 9 rule 114 of the rules of criminal procedure.

Further, failure to conduct a hearing when required before fixing bail **will violate due process and disregard of the established rule of law by**

depriving the prosecution of the opportunity to prove that the evidence of guilt against the accused is strong and will constitute gross ignorance of the law or incompetence which will subject the judge to disciplinary action. Ignorance of this type, cannot be excused by a claim of good faith or excusable negligence. Thus, it is still mandatory for the court to conduct a hearing and ask searching and clarificatory questions for the purpose of determining the existence of strong evidence against the accused although the prosecution interposed no objection to the grant of bail or refuse to adduce evidence that the guilt of the accused was strong.

In reexamining Purganan the Court made the following observation:

- 1) The exercise of the state's power to deprive an individual of his liberty is **not necessarily limited to criminal proceedings**, respondents in administrative proceedings, such as deportation and quarantine have likewise been detained.
- 2) **To limit bail to criminal proceedings would be to close our eyes to jurisprudential history.** The Philippine jurisprudence has not limited the exercise of the right to bail to criminal proceedings only. This court has admitted to bail persons who are not involved in criminal proceedings. In fact, bail has been allowed in **jurisdictions to persons in detention during the pendency of administrative proceedings**, taking into cognizance the obligation of the Philippines on their international convention to uphold human rights.

Section 3. No release or transfer except on court order or bail. – No person under detention by legal process shall be released or transferred except upon order of the court or when he is admitted to bail.

- 5) **Recognizance (Rules of Court, Rule 114, Sec 1)** – an obligation of record entered into before some court or magistrate duly authorized to take it with a condition to **do some particular act**, the most usual condition in criminal cases being the appearance of the accused for trial.

A simple personal obligation or undertaking entered into before a court and having no money penalty attached. It has the effect of transferring the custody of the accused from the public officials who have him in their charge to keepers of his own selection

Section 15. Recognizance. — Whenever allowed by law or these Rules, the court may release a person in custody to his **own recognizance** or **that of a responsible person.** (15a)

A person may be released on recognizance in the following cases:

- 1) When the **offense charge is for violation of an ordinance, a light felony or a criminal offense** that imposes a penalty, which does not exceed **six months imprisonment and or a P2000 fine.**
- 2) When a person **has been in custody for a period equal to or more than the minimum of the imposable principal penalty without application of the indeterminate sentence law, or any modifying circumstances**, in which case the court in its discretion may allow his release on his own recognizance. (Sec 16)
- 3) When the accused has **applied for probation pending the resolution of the case**, but no bail was filed, or the accused is incapable of filing one.

Probation is a disposition under which a defendant, after conviction and sentence, is released subject to a condition imposed by the court and under the supervision of a probation officer.

- 4) In case of a **youthful offender**, held for physical and mental examination, trial, or appeal, he is unable to furnish bail and under circumstances envisaged by PD 603, as amended

Where each child is detained, the court shall order the release of the minor on recognizance to his or her parents and other suitable persons under Section 35 of RA 9344.

RA 9344

Section 24. Release of Children on Recognizance to the Parents, Guardian, Custodian or Nearest Relative — The release of a child from custody during the pendency of the case involving an offense not punishable by death, reclusion perpetua or life imprisonment may be ordered by the court only after a hearing for that purpose, and upon favorable recommendation of the social worker assigned to the child with due notice to the public prosecutor, the Sanggunian where the accused resides, and the private complainant. The child shall be released to the custody of a willing and responsible mother or father, or appropriate guardian or custodian, or in their absence, the nearest relative, who shall be responsible for the child's good behavior and appearance in court whenever required.

No child shall be ordered detained in jail pending trial or hearing of the child's case.

Section 25. Commitment and transfer to a Bahay Pag-asa. — A child charged with an offense, unless released on bail or recognizance, may be transferred to a "Bahay Pag-asa" or rehabilitation center or other appropriate facility operated or accredited by the Department of Social Welfare and Development, which shall ensure the implementation of



appropriate intervention programs, as well as the safety and appearance of the child in court.

In the absence of a "Bahay Pag-asa" established by the local government pursuant to Section 8 of the Family Courts Act, and Republic Act No. 9344, as amended, in the city or municipality where the child resides, or a local rehabilitation center recognized by the government in the province, city or municipality within the jurisdiction of the court, or the Department of Social Welfare and Development, or other appropriate local rehabilitation center, detention pending trial may be replaced by alternative measures such as close supervision, intensive care or replacement with a family or in an educational setting or home. Institutionalization or detention of a child pending trial should be used only as a last resort and for the shortest possible time.

Section 26. Bail as a Matter of right. — For purposes of bail, the privileged mitigating circumstance of minority shall be considered.

In all cases the giving or posting of a bail bond by the accused is tantamount **to the submission of his person to the jurisdiction of the Court.**

Who may invoke?

- 1) Arrested
- 2) Detained
- 3) Deprived of their liberty whether or not an information or a criminal complaint has been filed

GR: All those who are already in custody of law may avail of the right to bail as a matter of right

XPN: Those charged with offenses punishable with *reclusion perpetua*, when evidence of guilt is strong

Bail may either be:

- 1) A matter of right
- 2) A matter of discretion

A MATTER OF RIGHT OR DISCRETION

Section 4. *Bail, a matter of right; exception.* — All persons in custody shall be admitted to bail **as a matter of right**, with sufficient sureties, or released on recognize as prescribed by law or this Rule (a) **before or after** conviction by the **Metropolitan Trial Court, Municipal Trial Court, Municipal Trial Court in Cities, or Municipal Circuit Trial Court**, and (b) **before** conviction by the **Regional Trial Court** of an offense **not punishable by death, *reclusion perpetua*, or life imprisonment.** (4a)

Section 5. *Bail, when discretionary.* — Upon conviction by the **Regional Trial Court** of an offense **not punishable by death, *reclusion perpetua*, or life imprisonment**, admission to bail is **discretionary**. The application for bail may be filed and acted upon by the trial court despite the filing of a notice of appeal, provided it has not

transmitted the original record to the appellate court. However, if the **decision of the trial court convicting the accused changed the nature of the offense from non-bailable to bailable**, the application for bail can only be filed with and resolved by the **appellate court**.

Should the court grant the application, the accused may be allowed to continue on **provisional liberty** during the pendency of the appeal under the same bail subject to the consent of the bondsman.

If the penalty imposed by the trial court is **imprisonment exceeding six (6) years**, the accused shall be **denied bail**, or his bail shall be **cancelled upon a showing by the prosecution, with notice to the accused**, of the following or other similar circumstances:

- (a) That he is a **recidivist, quasi-recidivist, or habitual delinquent**, or has committed the crime **aggravated by the circumstance of reiteration**;
- (b) That he has previously **escaped** from legal confinement, evaded sentence, or violated the conditions of his bail without valid justification;
- (c) That he committed the offense while **under probation, parole, or conditional pardon**;
- (d) That the circumstances of his case indicate the **probability of flight** if released on bail; or
- (e) That there is **undue risk** that he may commit another crime during the pendency of the appeal.

The **appellate court** may, *motu proprio* or on motion of any party, review the resolution of the Regional Trial Court after notice to the adverse party in either case. (5a)

When is bail a matter of right?

- 1) **Before or after** conviction by the Metropolitan Trial Court, or first level courts, or while on appeal.
- 2) **Before** conviction by a Regional Trial Court except if the offense charged is punishable by *reclusion perpetua*, life imprisonment or death, where the evidence of guilt is strong.
- 3) **Before** conviction by a Regional trial court for death, life imprisonment or *reclusion perpetua*, when **the evidence of guilt is not strong**.

Remedy

- 1) The remedy is a petition for certiorari under **Rule 65 because the court** committed grave abuse of discretion amounting to excess or lack of jurisdiction for issuing the denial of the bail when bail is a matter of right.
- 2) Mandamus may also at the same time be availed to compel know the grant of bail, which is a matter of right When bail is a matter of right, the court is left with no discretion but to grant the same.



Hearing is always required whether it's a matter of right or a matter of discretion.

When is bail a matter of discretion?

- 1) **After** conviction by the RTC, if the penalty imposed is 6 years or lower
- 2) **After** conviction for an offense which is punishable with **six (6) years and one (1) day to twenty (20) years**, if the following circumstances are **not present**:
 - a) The accused is a **recidivist, quasi-recidivist or a habitual delinquent** or has committed the crime aggravated by the circumstance of *reiteracion*.
 - b) The accused is found to have **previously escaped from legal confinement, evaded sentence or has violated the conditions** of his bail without valid justification.
 - c) The accused **committed the offense while on probation, parole or under conditional pardon**.
 - d) The circumstance of the accused or his case indicate the **probability of flight**, if released on bail.
 - e) There is an **undue risk** that during the pendency of the appeal, the accused may commit another crime.

Where to appeal bail? (Sec 5)

- 1) When there is already a notice of appeal but the entire record of the case has not yet been transmitted to the appellate court – **RTC**
- 2) When there is already a notice of appeal and the entire record has already been transmitted to appellate court – **CA**
- 3) From non-bailable to bailable offense by virtue of judgment or conviction - **CA**

People v. Sandiganbayan

Even if the capital offense charged is bailable owing to the weakness of the evidence of guilt, the right to bail may justifiably still be **denied if the probability of escape is great**.

Valero v. CA

The trial court disregarded the glaring fact that the evidence against her was strong **because the killer himself has confessed to the crime and implicated Milagros as the mastermind**.

Enrile v. Pimentel

Flight risk

Petitioner goes on to allege that unlike Jalosjos who attempted to evade trial, he is not a flight risk since he voluntarily surrendered to the proper authorities and such can be proven by the numerous times he was allowed to travel outside his place of detention.

Subsequent events reveal the contrary, however. The assailed Orders augured well when on November 29,

2007 petitioner went past security detail for some reason and proceeded from the courtroom to a posh hotel to issue certain statements.

Moreover, circumstances indicating probability of flight find relevance as a factor in ascertaining the reasonable amount of bail and **in canceling a discretionary grant of bail**.

Evidence of guilt

In cases involving **non-bailable offenses**, what is controlling is the determination of **whether the evidence of guilt is strong**. Once it is established that it is so, **bail shall be denied as it is neither a matter of right nor of discretion**.

Qui v. People

Under the present rule, the grant of bail is a **matter of discretion** upon conviction by the RTC of an offense not punishable by death, *reclusion perpetua* or life imprisonment, as here. The Court held:

Indeed, pursuant to the "tough on bail pending appeal" policy, the presence of bail-negating conditions mandates the denial or revocation of bail pending appeal such that those circumstances are deemed to be as grave as conviction by the trial court for an offense punishable by death, *reclusion perpetua* or life imprisonment where bail is prohibited.

In the exercise of that discretion, the proper courts are to be guided by the fundamental principle that the allowance of bail pending appeal should be **exercised not with laxity but with grave caution and only for strong reasons, considering that the accused has been in fact convicted by the trial court**.

When is bail not allowed?

- 1) **After** final judgment by any court if the **period to appeal the conviction has already lapsed**, (within 15 days from the final judgment of the court, and the accused did not appeal)
- 2) **Before** conviction by RTC for offenses punishable by *reclusion perpetua*, death or life imprisonment **when evidence of guilt is strong**.
- 3) **After** conviction for offenses punishable by *reclusion perpetua*, death or life imprisonment (capital offenses)

Section 6. Capital offense defined. — A capital offense is an offense which, under the law existing at the time of its commission and of the application for admission to bail, may be punished with death. (6a)

Section 7. Capital offense of an offense punishable by *reclusion perpetua* or life imprisonment, not bailable. — No person charged with a capital offense, or an offense punishable by *reclusion perpetua* or life imprisonment, shall be



admitted to bail when evidence of guilt is strong, regardless of the stage of the criminal prosecution. (7a)

- 4) **After** conviction for an offense punishable with **6 years and 1 day to 20 years** if the **circumstances that mentioned earlier is present**.
- He is a **recidivist, quasi-recidivist or habitual delinquent** or has committed a crime aggravated by **reiteracion**.
 - He has **escaped from confinement, evaded sentence or violated the conditions of his bail without valid justification**
 - He committed the offense while under **probation, parole or conditional pardon**
 - The circumstances of the case indicate the **probability of flight** if released on bail
 - There is **undue risk** that he may commit another crime during the pendency of appeal.
- 5) Bail shall not be allowed after the accused has commenced to serve the sentence.

Test of great presumption of guilt
The court is ministerially bound to decide which circumstances and factors are present, which would show evidence of guilt or presumption of guilt. It does not mean that proof of guilt is beyond reasonable doubt.

Leviste v. CA

The discretionary nature of the grant of bail pending appeal **does not mean that the bail should be automatically granted absent of any of the circumstances mentioned in the third paragraph of Section 5**. Thus, a finding that none of the said circumstances is present will not automatically result in the grant of bail. Such a finding absent of any of the circumstances will simply authorize the court to use a less stringent sound discretion approach.

Narciso v. Sta Romana-Cruz

- The court enumerated the following duties of the trial judge in a petition for bail in the offenses as mentioned:
- a) Notify the prosecutor of the hearing or the application for bail or require him to submit their recommendation;
 - b) Conduct a hearing of the application for bail regardless of whether or not the prosecution refuses to present evidence to show that the guilt of the accused is strong for the purpose of enabling the court to exercise its sound discretion

- c) Decide whether the evidence of guilt of the accused is strong based on the summary of evidence of the prosecution.
- d) If the guilt of the accused is not strong, discharge the accused upon the approval of the bail bond, otherwise the petition should be denied.

People v. De Gracia

Bail may be granted if the evidence of guilt is not strong
A person, even if he is charged with a crime punishable by *reclusion perpetua*, **may still be granted bail as a matter of right when the evidence of guilt is not strong**.

Necessarily, in all other instances, bail must be granted before the conviction of the accused. **The right to bail flows from the presumption of innocence in favor of every accused who should not be subjected to the loss of freedom as thereafter, he would be entitled to acquittal unless his guilt is proved beyond reasonable doubt.**

Evident proof of guilt
Proof evident or evident proof, in this connection, has been held to make **clear strong evidence which leads a well-guarded dispassionate judge to the conclusion that the offense has been committed as charge that the accused is the guilty agent and that he will probably be punished capitally if the law is administered.**

Enrile v. People

Issue: Whether or not the denial of Enrile’s motion to fix bail is tainted with grave abuse of discretion

Ruling:
Presumption of innocence and right to bail
The presumption of innocence is rooted in the guarantee of due process and is safeguarded by the constitutional right to be released on bail and further binds the court to wait until after the trial to impose any punishment on the accused.

Discretion of trial court
The general rule is any person, before being convicted of any criminal offense, shall be bailable unless he is charged with a capital offense or with an offense punishable with *reclusion perpetua* or life imprisonment and evidence of guilt is strong. Once it is established that the evidence of guilt is strong, no right to bail shall be recognized. **The determination of whether or not evidence of guilt is strong in criminal cases involving capital offenses or offenses punishable with reclusion perpetua or life imprisonment lies with the discretion of the trial court.**

Bail hearing
The hearing is mandatory before bail can be granted to an accused who is charged with a capital offense. Further, certain guidelines in the fixing of a bail bond

call for the presentation of evidence and reasonable opportunity for the prosecution to refute it. Among them are the nature and circumstances of the crime, character and reputation of the accused, the weight of the evidence against him, the probability of the accused appearing at the trial whether or not the accused is a fugitive from justice and whether or not the accused is under bond and in any other cases. **To determine the evidence there must be a hearing conducted by the court which may either be a summary hearing, or it may be a full-blown hearing in the discretion of the court.**

Bail applications are tried in the RTC

In resolving bail applications of the accused who is charged with the capital offence or an offence punishable by *reclusion perpetua* or life imprisonment, the trial judge is expected to comply with the following guidelines:

- 1) In all cases, whether bail is a matter of right or of discretion, **notify the prosecutor** of the hearing of the application for bail or require him to submit his recommendation.
- 2) Where bail is a matter of discretion, **conduct a hearing of the application for bail** regardless of whether or not the prosecution refuses to present evidence to show that the guilt of the accused is strong for the purpose of enabling the court to exercise its sound discretion.
- 3) **Decide whether the guilt of the accused is strong based on the summary of evidence** of the prosecution.
- 4) The guilt of the accused is not strong, discharge accused upon the **approval** of the bail bond otherwise, petition should be denied.

The Court cited Enrile's poor health and the presence of the averment by Enrile and his motion to fix a bail of the presence of two mitigating circumstances: 1) that he is already over 70 years and 2.) that he voluntarily surrendered.

The Supreme Court then said that in their view, the social and political standing of Enrile and his having immediately surrendered to the authorities upon being charged in Court indicate that **the risk of his flight or escape from his jurisdiction is highly unlikely**. His personal disposition from the onset of his indictment for plunder formal or otherwise has demonstrated his utter respect for the legal processes of the Philippines.

People v. Valdez

In this case, the crime is complex crime of malversation of public funds through falsification of official or public documents. This case is punishable by *reclusion temporal* in its maximum period to *reclusion perpetua*. Since it is a complex crime, the Ombudsman argues that it is the maximum of the prescribed penalty which is *reclusion perpetua* should be considered and therefore bail is not a matter of right.

But the Supreme Court said that since we have not yet gone into the trial on the merits of the case, we should not yet venture into the impossible penalty of the particular complex crime. **Since the prescribed penalty here is a minimum of *reclusion temporal* in its maximum period to *reclusion perpetua*, this is not the case which is punishable by *reclusion perpetua* only.**

Therefore, since the interpretation that is more favorable to the accused is this one is a case where bail is a matter of right, then the Supreme Court, for the purposes of bail application, an accused charged with the complex crime of malversation of public documents through falsification of official or public documents that involve that amount in excess of 22,000 is entitled to file bail as a matter of right. **A summary hearing on bail application is therefore unnecessary since bail should be granted as a matter of right.**

People v. Piad

The Supreme Court held that **an accused which jumps bail cannot be granted bail after conviction** even if he appeals the conviction because under Section 5(b) of Rule 114 on the matter of bail, **bail cannot be granted to a person who has previously escaped from legal confinement, evaded sentence or violated the conditions of his bail without valid justification.**

People v. Escobar

The Supreme Court said that the concept of or **principle or doctrine of res judicata or matter or judge is not applicable to bail proceedings**. Res judicata is a civil law concept and is not applicable to criminal cases. Res judicata settles with finality the dispute between the parties or their successors-in-interest in civil cases and this principle in civil law has no bearing in criminal proceedings.

Is bail applicable to all court proceedings?

GR: Bail is only available in criminal proceedings

Bail is not available in the following instances

- 1) **Deportation or extradition proceedings**
 - Extradition proceedings are not criminal in nature
 - It is a public international law concept
- 2) When there is already **waiver** of the right
- 3) The right to bail is traditionally not recognized and is not available in the **military**, as an exception to the general rule embodied in the Bill of Rights.

XPN: the military is involved in a criminal action

 - The right to a **speedy trial** is given more emphasis in a military setting but the right to bail does not exist.



- Military personnel are a class on their own, they are not the same as civilians

Comendador v. De Villa

Right to bail of military personnel

The right to bail shall not be granted to military personnel charge before the military courts for violations of the articles of the military. They do not enjoy the right to bail due to the nature of the charges against them. If they will be charged in the ordinary courts however for ordinary crimes or offenses, then, the right to bail is available to them.

Aswat v. Galido

Right to bail of military personnel

When a person, which is part of the military is subject to military law under the articles of war (Article 70) “Any person subject to military law charged with a crime or with serious offense under this article, shall be placed in confinement or in arrest as circumstances may require.” The confinement of military personnel in cases under the general court martial, is one way of ensuring the presence during the sessions of the general court martial. The more important reason underlying the authority to impose confinement, is **the need to enable the proper military authority to instill discipline, with a command and thereby achieve command efficiency.** By confining the military personnel, the military may effectively curtail the spreading within the ranks of the military the un-military conduct of the military personnel charged under the general court martial. The release from confinement of a person subject to military law facing charges before a general court martial is a **matter that lies largely in the discretion of the military authorities who are in a better position to appreciate the gravity of the said charges and the advisability of releasing him pending trial and disposition of the case filed against him.**

The Government of the United States of America v. Purganan

Extradition proceedings

The Supreme Court held that the constitutional provision on bail does not apply to extradition proceedings. It is available only in criminal proceedings.

In extradition proceedings, prospective extraditees are **generally not entitled to notice and hearing before warrants for their arrest can be issued. Neither are they entitled to the right to bail and provisional liberty while the extradition proceedings are pending.**

The policy is that a prospective extraditee is arrested and detained, to avoid his flight from justice. On the extraditee lies the burden of showing that he will not flee once bail is granted.

The extradition court is that called upon to ascertain the guilt or the innocence of the person sought to be

extradited. The ultimate purpose of extradition proceedings in court is **only to determine whether the extradition request complies with the extradition treaty applicable, and whether the person sought is extraditable.**

Exception

Accordingly and to best serve the ends of justice, we believe and so hold that, after a potential extraditee has been arrested or placed under the custody of the law, bail may be applied for and granted as an exception, only upon a **clear and convincing showing (1) that, once granted bail, the applicant will not be a flight risk or a danger to the community; and (2) that there exist special, humanitarian and compelling circumstances including, as a matter of reciprocity, those cited by the highest court in the requesting state when it grants provisional liberty in extradition cases therein.**

xxx First, we note that the exercise of the State’s power to deprive an individual of his liberty is not necessarily limited to criminal proceedings. **Respondents in administrative proceedings, such as deportation and quarantine, have likewise been detained.** Second, to limit bail to criminal proceedings would be to close our eyes to our jurisprudential history.

Government of Hong Kong Special Administrative Region v. Olalia Jr.

In a subsequent ruling in the case of *Government of Hong Kong Special Administrative Region vs. Olalia Jr.* somehow abandoned the ruling in the case of *Purganan*. The Supreme Court ruled that following the trends in international law;

- 5) The **growing importance of the individual person in public international law**, who, in the 20th century has gradually attained global recognition.
- 6) The **higher value now being given to human rights** in the international sphere.
- 7) The corresponding duty of the countries to observe this **universal human rights** in fulfilling their treaty obligation. And;
- 8) The duty of the Supreme Court **to balance the rights of the individual under our fundamental law on one hand, in the law on extradition on the other.**

Extradition proceeding being sui generis

The standard of proof required in granting or denying bail can **neither be the proof beyond reasonable doubt in criminal cases nor the standard of proof of preponderance of evidence in civil cases.** While administrative in character, the standard of substantial evidence used in administrative cases cannot likewise apply given the object of extradition law which is to prevent the prospective extraditee from fleeing our jurisdiction. In his Separate Opinion in *Purganan*, then Associate Justice, now Chief Justice Reynato S. Puno, proposed that a new standard which



he termed "**clear and convincing evidence**" should be used in granting bail in extradition cases. According to him, this standard should be lower than proof beyond reasonable doubt but higher than preponderance of evidence. The potential extraditee must prove by "**clear and convincing evidence**" **that he is not a flight risk and will abide with all the orders and processes of the extradition court.**

Bail hearings are mandatory

Bail hearing is necessary even if the prosecution does not interpose any objection or leaves the application for bail to the sound discretion of the court. A hearing is required in order for the court to ascertain the adequacy of the amount of bail under the guidelines set forth in section 9 rule 114 of the rules of criminal procedure.

Further, failure to conduct a hearing when required before fixing bail **will violate due process and disregard of the established rule of law by depriving the prosecution of the opportunity to prove that the evidence of guilt against the accused is strong and will constitute gross ignorance of the law or incompetence which will subject the judge to disciplinary action.** Ignorance of this type, cannot be excused by a claim of good faith or excusable negligence. Thus, it is still mandatory for the court to conduct a hearing and ask searching and clarificatory questions for the purpose of determining the existence of strong evidence against the accused although the prosecution interposed no objection to the grant of bail or refuse to adduce evidence that the guilt of the accused was strong.

AS A MATTER OF DISCRETION – Hearing is mandatory
AS A MATTER OF RIGHT – Not mandatory, essential only in **determining the amount of bail.**

PROHIBITION AGAINST EXCESSIVE BAIL

The Constitution ordains that excessive bail shall not be required, and this is a restriction on both

- 1) the courts and
- 2) the Congress

What amount is a reasonable bail rest mainly upon the discretion of the judge. He has to take into account the following in deciding the matter:

BURDEN OF PROOF

Section 8. *Burden of proof in bail application.* — At the hearing of an application for bail filed by a person who is in custody for the commission of an offense punishable by death, reclusion perpetua, or life imprisonment, the **prosecution has the burden of showing that evidence of guilt is strong.** The evidence presented during the bail hearing shall be considered **automatically reproduced at the trial,** but upon motion of either party, the court may recall any witness for additional examination unless the

latter is **dead, outside the Philippines, or otherwise unable to testify.** (8a)

HEARING

GR: Evidence that has been presented during bail hearing shall be considered automatically reproduced at the trial

XPN: Possible recall of witnesses for additional examination

XPN of XPN: The witness is dead, outside the Philippines or otherwise unable to testify.

Where there is no necessity to determine whether the guilt of the accused is strong or not, the judge is still mandated to:

- 1) Conduct a hearing in cases where the prosecution chooses to just file a comment; or
- 2) Leave the application for bail to the discretion of the court; or
- 3) If the prosecution refuses to adduce evidence in opposition to the application, to grant and fix bail; or
- 4) The prosecution has interposed no objection to the grant of bail of the accused.

There is no necessity to determine whether the guilt of the accused is strong or not when:

- 1) The prosecution chooses to just file a comment;
- 2) Leave the application for bail to the discretion of the court;
- 3) If the prosecution refuses to adduce evidence in opposition to the application to grant and fix bail;
- 4) The prosecution posts no objection to the grant of bail to the accused.

Hearing	
As a matter of right	As a matter of discretion
1. Determine whether or not there is a reduction or increase in the amount of bail. 2. Determine the conditions pertinent to the grant of bail if ever it is granted.	To determine whether the guilt is strong
the prosecution does not have the right to present evidence for the denial of bail	the prosecution has the right to present evidence for the denial of bail
At the hearing of an application for bail filed by a person who is in custody for the commission of an offense punishable by death, reclusion perpetua, or life imprisonment, the prosecution has the burden of showing that evidence of guilt is strong.	

GUIDELINES FOR AMOUNT OF BAIL

Section 9. *Amount of bail; guidelines.* — The **judge** who issued the warrant or granted the application

shall fix a reasonable amount of bail considering primarily, but not limited to, the following factors:

- (a) **Financial ability** of the accused to give bail;
- (b) **Nature and circumstances** of the offense;
- (c) **Penalty** for the offense charged;
- (d) **Character and reputation** of the accused;
- (e) **Age and health** of the accused;
- (f) **Weight of the evidence** against the accused;
- (g) **Probability of the accused** appearing at the trial;
- (h) **Forfeiture of other bail**;
- (i) The fact that accused was a **fugitive from justice when arrested**; and
- (j) **Pendency of other cases** where the accused is on bail.

Excessive bail shall not be required. (9a)

The amount fixed should be sufficient to ensure the presence of the accused at a trial yet reasonable enough to comply with a constitutional provision that bail should not be excessive.

Lardizabal v. Reyes

When an accused is charged with a serious offense punishable with reclusion perpetua, such as rape, bail may be granted only after a motion for that purpose has been filed by the accused in a hearing thereon conducted by the judge to determine whether the prosecution's evidence guilt is strong.

WAIVER

People v. Panes

Such negligence, in **not calling out that the court has not yet acted upon, is already a waiver of the right of the accused to ask for bail**. Failure to bring to the attention of the trial court at the earliest opportune time that the court has not resolved the application for a bail is already a waiver of their right to bail.

BURDEN OF PROOF

Section 8. Burden of proof in bail application. — At the hearing of an application for bail filed by a person who is in custody for the commission of an offense punishable by death, reclusion perpetua, or life imprisonment, the **prosecution has the burden of showing that evidence of guilt is strong**. The evidence presented during the bail hearing shall be considered **automatically reproduced at the trial**, but upon motion of either party, the court may recall any witness for additional examination unless the latter is dead, outside the Philippines, or otherwise unable to testify. (8a)

HEARING

- **GR:** Evidence that has been presented during bail hearing shall be considered automatically reproduced at the trial
- **XPN:** Possible recall of witnesses for additional examination
- **XPN of XPN:** The witness is dead, outside the Philippines or otherwise unable to testify.

There is no necessity to determine whether the guilt of the accused is strong or not when:

- 5) The prosecution chooses to just file a comment;
- 6) Leave the application for bail to the discretion of the court;
- 7) If the prosecution refuses to adduce evidence in opposition to the application to grant and fix bail;
- 8) The prosecution posts no objection to the grant of bail to the accused.

REQUIREMENT OF BAIL

Section 16. Bail, when not required; reduced bail or recognizance. — No bail shall be required when the law or these Rules so provide.

When a person has been in custody for a period **equal to or more than the possible maximum imprisonment prescribe for the offense charged**, he shall be **released immediately**, without prejudice to the continuation of the trial or the proceedings on appeal. If the maximum penalty to which the accused may be sentenced is **destierro**, he shall be released **after thirty (30) days of preventive imprisonment**.

A person in custody for a period **equal to or more than the minimum of the principal penalty prescribed for the offense charged, without application of the Indeterminate Sentence Law or any modifying circumstance**, shall be **released on a reduced bail or on his own recognizance**, at the discretion of the court. (16a)

Q: When is bail not required?

A:

- 1) **GR:** When a person has been **in custody** for a period equal to or more than the possible maximum imprisonment prescribe for the offense charged — **RELEASED IMMEDIATELY**

XPN:

- If the **maximum** penalty to which the accused may be sentenced is **destierro**, he shall be released **AFTER 30 DAYS OF PREVENTIVE IMPRISONMENT**
 - A person in custody for a period equal to or more than the **minimum** of the principal penalty prescribed for the offense charged, without application of the Indeterminate Sentence Law or any modifying circumstance — **RELEASED ON A REDUCED BAIL OR RECOGNIZANCE**
- 2) **Violation of municipal or city ordinance, a light felony or criminal offense that prescribe penalty which is higher than six**



(6) months imprisonment and/or a fine of 2000 pesos, or both, where said person has established to the satisfaction of the Court or any other appropriate authority hearing his case that he is unable to post required cash or bail bond, **except** when:

- a) When he was caught committing the offense *in flagrante delicto*;
- b) When he **confesses to the commission** of the offense unless the confession is later repudiated by him in a sworn statement, or in open Court as having been extracted through force or intimidation;
- c) When he is found to be **previously escaped** from legal confinement, evaded sentence, or jumped bail;
- d) When he is found to have **previously violated the provisions** of Section 2 Republic Act 6036, otherwise known as An Act Providing that Bail shall not, with certain exceptions, be required in cases of Violations of Municipal or City Ordinances, and in Criminal Offenses when the Prescribed Penalty for such Offenses is not higher than *Arresto Mayor* and/or a fine of 2000 pesos, or both;
- e) Habitual delinquency, recidivism, *reiteration*
- f) When he commits the offenses while on parole or under conditional pardon and when the accused has previously been re-pardoned by the municipal or city mayor for violation of municipal or city ordinances for at least two (2) times.

- 3) Criminal Cases falling under the Revised Rule on Summary Procedure:
- Violation of Traffic Laws, Rules, and Regulations
 - Violation of Rental Law
 - Violations of Municipal or City Ordinances
 - Violation of Batas Pambansa Bilang 22; the bouncing checks law
 - And all other criminal cases where the penalty prescribed by law for the offense charged is imprisonment not exceeding six (6) months or a fine not exceeding 1000 pesos, or both; provided that in offenses involved be damage to property, to criminal negligence, this Rule shall govern where the imposable fine does not exceed 10,000 pesos.

XPN: When the accused failed to appear when required, the bail bond becomes required

- 4) In cases not requiring preliminary investigation nor covered by the Revised Rule on Summary

Procedure where the municipal trial judge satisfied that there is **no necessity for placing the accused under custody**. In which case, the judge may issue **summons** instead of warrant of arrest

RULES ON WHERE TO APPLY

Section 17. Bail, where filed. — (a) Bail in the amount fixed may be **filed with the court where the case is pending**, or in the **absence or unavailability of the judge thereof**, with **any regional trial judge, metropolitan trial judge, municipal trial judge, or municipal circuit trial judge in the province, city, or municipality**. If the accused is **arrested in a province, city, or municipality other than where the case is pending**, bail may also be filed with any **regional trial court of said place**, or if **no judge thereof is available**, with **any metropolitan trial judge, municipal trial judge, or municipal circuit trial judge therein**.

(b) Where the grant of bail is a **matter of discretion**, or the accused seeks to be released on **recognizance**, the application may **only be filed in the court where the case is pending**, whether on **preliminary investigation, trial, or on appeal**.

(c) Any person **in custody who is not yet charged in court** may apply for bail with **any court** in the province, city, or municipality where he is held. (17a)

Rules on where to apply bail

- 1) When judge is present, filed with the **court where the case is pending**
- 2) In the absence or unavailability of the judge thereof, with **any regional trial judge, metropolitan trial judge, municipal trial judge, or municipal circuit trial judge in the province, city, or municipality**.
- 3) If bail is a matter of discretion - application may only be filed in the **court where the case is pending, whether on preliminary investigation, trial, or on appeal**
- 4) Any person in custody who is not yet charged in court may apply for bail with any court where he is held
- 5) The application for bail may be filed and acted upon by the trial Court even if the notice of an appeal has already been filed provided that the Trial Court has not yet transmitted the original record of the Appellate Court under Section 5 of Rule 114.
- 6) Corollarily, if the original record has already been transmitted to the Appellate Court, then the application shall be filed with the said Appellate Court.

NOTICE OF APPLICATION TO PROSECUTOR



Section 18. *Notice of application to prosecutor.* — In the application for bail under section 8 of this Rule, the court must give **reasonable notice of the hearing** to the prosecutor or require him to submit his recommendation. (18a)

For this purpose, the judge must not disregard the mandatory **(3) three – day notice** under Section 4, Rule 15 of the Rules of Court which requires that the notice of a motion must be served on all parties at least 3 days in advance of the hearing.

Even if there is yet to be a motion filed in Court, notice of the application of bail to the prosecution is required although no bail yet is filed in Court and even though the circumstance bail is a matter of right.

The non – compliance to the above requirement constitutes ignorance or incompetence which cannot be excused by any protestation on good faith

RELEASE

Section 19. *Release on bail.* — The accused must be discharged upon approval of the bail by the judge with whom it was filed in accordance with section 17 of this Rule.

Whenever bail is filed with a court other than where the case is pending, **the judge who accepted the bail shall forward it, together with the order of release and other supporting papers, to the court where the case is pending, which may, for good reason, require a different one to be filed.** (19a)

INCREASE OR DECREASE

Section 20. *Increase or reduction of bail.* — After the accused is admitted to bail, **the court may, upon good cause, either increase or reduce its amount.** When increased, the accused may be committed to custody if he does not give bail in the increased amount within a reasonable period. An accused held to answer a criminal charge, who is released without bail upon filing of the complaint or information, may, at any subsequent stage of the proceedings and whenever a strong showing of guilt appears to the court, be required to give bail in the amount fixed, or in lieu thereof, committed to custody. (20a)

FORFEITURE

Section 21. *Forfeiture of bond.* — When the presence of the accused is required by the court or these Rules, his bondsmen shall be **notified to produce him before the court on a given date and time.** If the accused fails to appear in person as required, his bail shall be **declared forfeited** and the bondsmen given **thirty (30) days** within which to produce their principal and to show cause why no judgment should be rendered against them for the amount of their bail. Within the said period, the bondsmen must:

(a) **produce the body** of their principal or **give the reason for his non-production;** and

(b) **explain why the accused did not appear before the court when first required to do so.**

Failing in these two requisites, a judgment shall be rendered against the bondsmen, **jointly and severally**, for the amount of the bail. The court shall not reduce or otherwise mitigate the liability of the bondsmen, unless the accused has been surrendered or is acquitted. (21a)

When the accused fails to appear:

- 1) The bond may be forfeited
 - Provisional judgment subject to the bondsmen to produce the body of the accused, explain satisfactorily why he cannot produce the accused
 - If the bondsman successfully produced the body of the accused, he is absolved from liability
- 2) The judge may order a bench warrant

Relief from liability of the surety

- 1) Act of God
 - Within the first category is the case of a principal who dies before the day of the performance, but the death of the principal in such an undertaking after the judgment has been obtained thereon because of the non-appearance of the accused does not release the sureties from their obligation
 - If the death of the accused is explained within the 30-day period, then the court will not be justified in forfeiting the bail.
- 2) Act of obligee or government
- 3) Act of law
 - section 21, the forfeiture of the bond is not mandatory, it is discretionary upon the court
 - The judgment rendered against a bond may also be appealed by the bondsman. The appeal must be perfected within the **unextendible 15 days** following the date upon which the sureties receive notification of the order directing the execution of the judgment of the forfeiture of the bond previously entered.

Effect of acquittal or dismissal

Where the dismissal took place long **after** the 30-day period has elapsed, the fact that the criminal prosecution is finally dismissed on the motion of a fiscal does not relieve the bondsman of an accused from the effects of a previous forfeiture of the bond consequent upon non-appearance of the accused at that time originally set for hearing.

But where the order of acquittal was promulgated five days **before** the expiration of the 30-day period, the



bondsmen was relieved of its duty to produce the body of the accused and to show cause why no judgment should be rendered against it for the amount of the bond.

CANCELLATION

Section 22. *Cancellation of bail.* — Upon application of the bondsmen, with **due notice** to the prosecutor, the bail may be cancelled **upon surrender of the accused or proof of his death.**

The bail shall be deemed **automatically cancelled** upon **acquittal of the accused, dismissal of the case, or execution of the judgment of conviction.**

In all instances, the cancellation shall be without prejudice to any liability on the bond. (22a)

- Incumbent on the bondsmen to petition the court for the cancellation
- If **deemed automatically cancelled**, no petition is required (in cases of acquittal, dismissal, execution of judgment)
- Property bond if there is failure to cause the annotation of the lien

RE-ARREST

Section 23. *Arrest of accused out on bail.* — For the purpose of surrendering the accused, **the bondsmen may arrest him or, upon written authority endorsed on a certified copy of the undertaking, cause him to be arrested by a police officer or any other person of suitable age and discretion.**

An accused released on bail may be re-arrested without the necessity of a warrant if he attempts to depart from the Philippines without permission of the court where the case is pending. (23a)

NO BAIL AFTER FINAL JUDGMENT

Section 24. *No bail after final judgment; exception.* — No bail shall be allowed after the judgment of conviction has become final. If before such finality, the accused has applied for **probation**, **he may be allowed temporary liberty under his bail.** When **no bail was filed or the accused is incapable of filing one**, the court may allow his **release on recognizance** to the custody of a responsible member of the community. **In no case shall bail be allowed after the accused has commenced to serve sentence.** (24a)

COURT SUPERVISION OF DETAINEES

Section 25. *Court supervision of detainees.* — The court shall exercise supervision over all persons in custody for the purpose of eliminating unnecessary detention. The executive judges of the Regional Trial Courts shall conduct monthly personal inspections of provincial, city, and municipal jails and their prisoners within their respective jurisdictions. They shall ascertain the number of detainees, inquire on their proper accommodation and health and examine the condition of the jail facilities. They shall

order the segregation of sexes and of minors from adults, ensure the observance of the right of detainees to confer privately with counsel, and strive to eliminate conditions inimical to the detainees.

In cities and municipalities to be specified by the Supreme Court, the municipal trial judges or municipal circuit trial judges shall conduct monthly personal inspections of the municipal jails in their respective municipalities and submit a report to the executive judge of the Regional Trial Court having jurisdiction therein.

A **monthly report** of such visitation shall be submitted by the executive judges to the Court Administrator which shall state the total number of detainees, the names of those held for more than thirty (30) days, the duration of detention, the crime charged, the status of the case, the cause for detention, and other pertinent information. (25a)

BAIL NOT A BAR

Section 26. *Bail not a bar to objections on illegal arrest, lack of or irregular preliminary investigation.* — An application for or admission to bail shall not bar the accused from challenging the **validity of his arrest** or the **legality of the warrant** issued therefor, or from **assailing the regularity or questioning the absence of a preliminary investigation** of the charge against him, provided that he raises them before entering his plea. The court shall resolve the matter as early as practicable but not later than the start of the trial of the case. (n)

- These must be raised before he enters his pleas
- Not deemed a waiver
- The mere application for bail constitutes a waiver of the defense of **lack of jurisdiction over the person of the accused.** This is because upon application for bail, **affirmative relief** is sought, thus, one is considered to **have voluntarily appeared before the court**

Section 26 abandons the previous rulings of the Supreme Court, that the filing of a bail is deemed a waiver of this instances on the irregularity of the issuance of the warrant of arrest, or challenging the lack of preliminary investigation.

- 1) the invalidity of the arrest,
- 2) the illegality of the issuance of the warrant of arrest or
- 3) the irregularity or absence of a preliminary investigation

Court cannot require arraignment before the grant of bail

It was held that the **grant of bail should not be conditioned upon the prior arraignment of the accused.** In cases where bail is authorized, bail should be granted before arraignment otherwise the



accused would be precluded from filing a motion to quash, which is to be done before arraignment. If the information is quashed and the case is dismissed, there would be no need for the arraignment of the accused.

The court explained the condition the grant of bail on his arraignment would be to place him in a position where he has to choose between:

- 1) filing of a motion to quash and thus, delay his release until his motion can be resolved because prior to its resolution, he cannot be arraigned; or
- 2) foregoing the filing of a motion to quash so that he can be arraigned at once and thereafter be released on bail.

These scenarios undermine the accused's constitutional right not to be put on trial except upon a valid complaint or information sufficient to charge him with a crime and his right to bail. (*Levides v. CA*)

Concept of a bench warrant

A bench warrant is defined as a **writ issued directly by a judge to a law enforcement officer** for the arrest of a person who has been held in contempt, has

- 1) disobeyed a subpoena or
- 2) who has to appear at the hearing or trial.

The provisions on bench warrant is found under Section 9 of Rule 71 of the Rules of Court.

RULE 71, Section 9. Proceeding when party released on bail fails to answer. — When a respondent released on bail fails to appear on the day fixed for the hearing, the court may issue another order of arrest or may order the bond for his appearance to be forfeited and confiscated, or both; and, if the bond be proceeded against, the measure of damages shall be the extent of the loss or injury sustained by the aggrieved party by reason of the misconduct for which the contempt charge was prosecuted, with the costs of the proceedings, and such recovery shall be for the benefit of the party injured. If there is no aggrieved party, the bond shall be liable and disposed of as in criminal cases.

RULE 119, Section 14. Bail to secure appearance of material witness. — When the court is satisfied, upon proof or oath, that a material witness will not testify when required, it may, upon motion of either party, order the witness to post bail in such sum as may be deemed proper. Upon refusal to post bail, the court shall commit him to prison until he complies or is legally discharged after his testimony has been taken.

So, under Section 14 of Rule 119, bail does not only apply to a person who has transgressed the law or is perceived to have done so, it may likewise apply to a material witness. Also, while the rule is that bail does not apply to a person who is not in custody of the law, bail to secure the appearance of a material witness does

not require prior custody of the law. The witness may be ordered to post bail even if he is not under detention. It is only when he refuses to post bail, shall he be committed to prison.

In case where the court requires bail for the presence of witnesses, there is no need that they be under the custody of the law first. However, if they fail to post bail, they can be ordered arrested.

RULE 110, Section 14. Amendment or substitution. — A complaint or information may be amended, in form or in substance, without leave of court, at any time before the accused enters his plea. After the plea and during the trial, a formal amendment may only be made with leave of court and when it can be done without causing prejudice to the rights of the accused.

However, any amendment before plea, which downgrades the nature of the offense charged in or excludes any accused from the complaint or information, can be made only upon motion by the prosecutor, with notice to the offended party and with leave of court. The court shall state its reasons in resolving the motion and copies of its order shall be furnished all parties, especially the offended party. (n)

If it appears at any time before judgment that a mistake has been made in charging the proper offense, the court shall dismiss the original complaint or information upon the filing of a new one charging the proper offense in accordance with section 19, Rule 119, provided the accused shall not be placed in double jeopardy. The court may require the witnesses to give bail for their appearance at the trial.

RULE 115 RIGHTS OF ACCUSED

Section 1. Rights of accused at the trial. — In all criminal prosecutions, the accused shall be entitled to the following rights:

- a) To be presumed innocent until the contrary is proved beyond reasonable doubt.
- b) To be informed of the nature and cause of the accusation against him.
- c) To be present and defend in person and by counsel at every stage of the proceedings, from arraignment to promulgation of the judgment. The accused may, however, waive his presence at the trial pursuant to the stipulations set forth in his bail, unless his presence is specifically ordered by the court for purposes of identification. The absence of the accused without justifiable cause at the trial of which he had notice shall be considered a waiver of his right to be present thereat. When an accused under custody escapes, he



shall be deemed to have waived his right to be present on all subsequent trial dates until custody over him is regained. Upon motion, the accused may be allowed to defend himself in person when it sufficiently appears to the court that he can properly protect his right without the assistance of counsel.

- d) To testify as a witness in his own behalf but subject to cross-examination on matters covered by direct examination. His silence shall not in any manner prejudice him.
- e) To be exempt from being compelled to be a witness against himself.
- f) To confront and cross-examine the witnesses against him at the trial. Either party may utilize as part of its evidence the testimony of a witness who is deceased, out of or cannot with due diligence be found in the Philippines, unavailable or otherwise unable to testify, given in another case or proceeding, judicial or administrative, involving the same parties and subject matter, the adverse party having the opportunity to cross-examine him.
- g) To have compulsory process issued to secure the attendance of witnesses and production of other evidence in his behalf. (h) To have speedy, impartial and public trial. (i) To appeal in all cases allowed and in the manner prescribed by law.

Article III, 1987 Constitution

Section 14.

- 1) No person shall be held to answer for a criminal offense without due process of law
- 2) In all criminal prosecutions, the accused shall be presumed innocent until the contrary is proved, and shall enjoy the right to be heard by himself and counsel, to be informed of the nature and cause of the accusation against him, to have a speedy, impartial, and public trial, to meet the witnesses face to face, and to have compulsory process to secure the attendance of witnesses and the production of evidence in his behalf. However, after arraignment, trial may proceed notwithstanding the absence of the accused provided that he has been duly notified and his failure to appear is unjustifiable.

Right to presumption of innocence

The presumption of innocence is also applicable to persons arrested, detained, or under custodial investigation.

It is the prosecution that is required to present its evidence ahead of the defense.

XPN: reverse trial order

The presumption of innocence of the accused is a very high presumption. For example, it cannot be overcome by just simply stating that the duty of the law enforcement officers have been regularly performed. the burden of proof of the prosecution is to prove that the crime was committed by the accused, and that his guilt is beyond reasonable doubt.

The one prosecuting the crime, as the plaintiff to prove beyond reasonable doubt, not only each element of the crime, and also the circumstances if it is mentioned in the information, also the identity of the accused as the criminal.

Proof beyond reasonable doubt - does not mean such a degree of proof, as excluding the possibility of error, produces absolute certainty. **Moral certainty** only is what is required or that degree of proof which produces conviction in an unprejudiced mind. It is not absolute certainty, only **moral certainty that produces conviction in an unprejudiced mind.**

Equipose rule

Where the evidence in a criminal case is evenly balanced, the Constitutional presumption of innocence tilts the scales in favor of the accused (*People v. Erguiza*)

The application of the rule is triggered by a situation where the court is faced with conflicting versions of the prosecution and the defense and where the evidence, facts and circumstances are capable of two or more explanation.

- 1) One of which is consistent with the innocence of the accused and
- 2) the other consistent with the guilt.

The situation cannot fulfill the test of moral certainty, and is not sufficient to support a conviction.

Right to be informed of the nature and cause of accusation

- 1) arrested
- 2) detained
- 3) under custodial investigation
- 4) preliminary investigation

in the information or the complaint, it must be in an ordinary and concise language, not necessarily the language use in the statute, but in terms sufficient to enable a person of common understanding to know what offense is being charged, and the attending qualifying and aggravating circumstance present so that the accused can properly defend himself and the court can pronounce judgment.

Purpose of the right:



- 1) To furnish the accused with such description of the charges against him as will enable him to make his defense;
- 2) To avail himself of his conviction or acquittal for the protection against a further prosecution for the same cause, to know whether the double jeopardy has already set in;
- 3) To inform the court of the facts alleged so that it may decide whether they are sufficient in law to support a conviction, if one should be had

Effect of failure to state the elements of the crime charged

May file a motion to quash the information, without prejudice to refileing

Effect when aggravating, qualifying circumstances are not alleged in the complaint or information. One cannot convict or find an accused guilty of a crime, which is higher than what is only alleged in the complaint or information.

An accused cannot be convicted of a higher offense than that with which he was charged in the complaint or information and on which he was tried (*Canceran v. People*)

The Supreme Court explained that the only difference between ephedrine and methamphetamine is the presence of a single atom of oxygen in the former. The removal of the oxygen in the ephedrine will produce methamphetamine. With ephedrine containing 50% of methamphetamine hydrochloride, if the oxygen content in the former is removed then nearly half of the amount that was seized in the seized ephedrine contains 340 methamphetamine hydrochloride. In other words, **his right to be informed of the charges against him has not been violated because when an accused is charged with a specific crime, he is duly informed not only of such specific crime, but also of lesser crimes or offenses included therein. (*People v. Noque*)**

Right to be present and defend in person and by counsel at every stage of the proceedings from arraignment to promulgation of the judgment.

- 1) Arrested
- 2) Detained
- 3) Custodial investigation
- 4) Arraignment
- 5) Promulgation of the judgment

If the court directs that the presence of the accused is imperative or that the accused must be present during a hearing date and then he is duly notified of the date and the time of the hearing, but without justifiable cause he does not appear. So long as this is already after the arraignment his absence after due notice shall be considered a waiver of his right to be present thereat.

RULE 114, Section 2(c). Conditions of the bail; requirements. – The failure of the accused to appear at the trial without justification and despite due notice shall be deemed a waiver of his right to be present thereat. In such a case, the trial may proceed in absentia

Another situation in Section 1(c) of Rule 115 is when the accused under custody escapes, he shall be deemed to have waived his right to be present on all subsequent trial dates until custody over him is regained.

Upon motion, the accused may be allowed to defend himself in person when it sufficiently appears to the court that he can properly protect his rights without the assistance of counsel.

This is one instance where the accused, one who is not an attorney, is allowed by the court to defend himself in person, but it should sufficient sufficiently appear to the court that he can properly protect his rights without the assistance of counsel.

SUMMARY

- 1) The accused has the right to be present **in all the dates of his hearing and his trial**. There are specific instances such as arraignment and plea during trial whenever necessary for his identification and the promulgation of his sentence
- 2) When the court directs him to be present such if he does not appear, he waives his right to be present during that time; but the court has the right to go on *with the proceedings in absentia*. Now, he only waives his right to be present at that hearing.
- 3) where the accused escaped from custody of law. The effect is that he loses his right to be present in all the subsequent trials until the custody over him is regained by the court

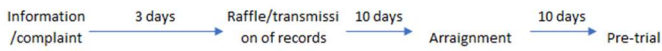
RULE 116
ARRAIGNMENT AND PLEA

Section 1. Arraignment and plea; how made. —
xxx
(e) When the accused is under **preventive detention**, his case shall be raffled and its records transmitted to the judge to whom the case was raffled within **three (3) days** from the filing of the information or complaint. The accused shall be arraigned within ten (10) days from the date of the raffle. The pre-trial conference of his case shall be held within ten (10) days after arraignment. (n)

(g) Unless a shorter period is provided by special law or Supreme Court circular, the arraignment shall be held within **thirty (30) days** from the date the court acquires jurisdiction over the person of the accused. **The time of the pendency of a motion to quash or for a bill of particulars or other causes justifying suspension of the arraignment shall**

be **excluded** in computing the period. (sec. 2, cir. 38-98)

Rules of Procedure



REVISED GUIDELINES ON CONTINUOUS TRIAL OF CRIMINAL CASES

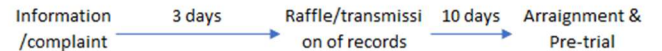
III. Procedure

Arraignment and Pre-trial

- a) **Schedule of Arraignment and Pre-trial.** - Once the court has acquired jurisdiction over the person of the accused, the **arraignment of the accused and the pre-trial** shall be set within **ten (10) calendar days** from date of the court's receipt of the case for a detained accused, and within **thirty (30) calendar days** from the date the court acquires jurisdiction (either by arrest or voluntary surrender) over a non-detained accused, unless a shorter period is provided by special law or Supreme Court circular.

The court must set the arraignment of the accused in the commitment order, in the case of detained accused, or in the order of approval of bail, in any other case. For this purpose, where the Executive Judge and Pairing Judges act on bail applications in cases assigned to other courts, they shall coordinate with the courts to which the cases are actually assigned for scheduling purposes.

Revised guidelines



	Detained	Non-detained
Revised rules	The accused shall be arraigned within ten (10) days from the date of the raffle. The pre-trial conference of his case shall be held within ten (10) days after arraignment.	within thirty (30) calendar days from the date the court acquires jurisdiction
Revised guidelines	arraignment of the accused and the pre-trial shall be set within ten (10) calendar days from date of the court's receipt of the case for a detained accused	

Rule 116	AM No 15-06-10 SC
Separate arraignment and pre-trial for a detained accused	Merged arraignment and pre-trial for a detained accused
10 days	10 calendar days (including the weekends)
Within 30 days (plea and pre-trial are on same day)	

MOTIONS

Motions allowed

REVISED GUIDELINES ON CONTINUOUS TRIAL OF CRIMINAL CASES

- III. Procedure
- 2) Motions
- (a) Motion for Inhibition – Motions for inhibition based on grounds provided for under Rule 137 shall be resolved immediately or **within two (2) calendar days from date of their filing**.

Motions prohibited

REVISED GUIDELINES ON CONTINUOUS TRIAL OF CRIMINAL CASES

- (b) Prohibited Motions - Prohibited motions shall be denied outright before the scheduled arraignment without need of comment and/ or opposition.
- The following motions are prohibited:
- i. Motion for judicial determination of probable cause.
- ii. Motion for preliminary investigation filed beyond the five (5)-day reglementary period in inquest proceedings under Sec. 6, Rule 112, or when preliminary investigation is required under Sec. 8, Rule 112, or allowed in inquest proceedings and the accused failed to participate in the preliminary investigation despite due notice.
- iii. Motion for reinvestigation of the prosecutor recommending the filing of information once the information has been filed before the court
- (1) if the motion is filed without prior leave of court;
- (2) when preliminary investigation is not required under Sec. 8, Rule 112; and
- (3) when the regular preliminary investigation is required and has been actually conducted, and the grounds relied upon in the motion are not meritorious, such as issues of credibility, admissibility of evidence, innocence of the accused, or lack of due process when the accused was actually notified, among others.
- iv. Motion to quash information when the ground is not one of those stated in Sec. 3, Rule 117.
- v. Motion for bill of particulars that does not conform to Sec. 9, Rule 116.
- vi. Motion to suspend the arraignment based on grounds not stated under Sec. 11, Rule 116.
- vii. Petition to suspend the criminal action on the ground of prejudicial question, when no civil case has been filed, pursuant to Sec. 7, Rule 111.

EFFECT: it can be dismissed outright by the Court handling the case, period must be complied with

v. Motion for bill of particulars that does not conform to Sec. 9, Rule 116.

Section 9. *Bill of particulars.* — The accused may, before arraignment, move for a bill of particulars to enable him properly to plead and to prepare for trial. The motion shall specify the alleged defects of the complaint or information and the details desired. (10a)

Bill of particulars - Pleading which provides for a more definite statement of the allegations of complaint or information found to be vague and ambiguous to enable the accused to properly plead and prepare for trial.

- Must be those material information or element of the crime being charged
- The question being resolved in a bill of particulars are whether or not the complaint or information are averred with sufficient particularity to enable the party to give a responsive pleading or prepare for trial.
- The allowance for the motion of bill of particulars is discretionary on the part of the court
- Either by filing an amended complaint or information or filing a responsive pleading which the accused sought to be clarified
- May be a prohibited pleading if it does not conform with sec 9

vi. Motion to suspend the arraignment based on grounds not stated under Sec. 11, Rule 116.

Section 11. *Suspension of arraignment.* — Upon motion by the proper party, the arraignment shall be suspended in the following cases:

- (a) The accused appears to be suffering from an **unsound mental condition** which effectively renders him unable to fully understand the charge against him and to plead intelligently thereto. In such case, the court shall order his mental examination and, if necessary, his confinement for such purpose;
 - Until the cessation of the condition and recovers his full mental faculty
 - **Test for competency to stand trial**
 - 1) Whether the defendant is sufficiently coherent in providing the counsel with information to construct a defense
 - 2) whether he is able to comprehend the significance of the trial
- (b) There exists a **prejudicial question**; and
 - Until termination or suspension of civil action
- (c) A **petition for review** of the resolution of the prosecutor is pending at either the Department of Justice, or the Office of the President; provided, that the period of suspension shall not exceed sixty (60) days counted from the filing of the petition with the reviewing office. (12a)
 - Shall not exceed 60 days

- Court has to independently assess if there is reason to continue despite the resolution of DOJ and OP

vii. Petition to suspend the criminal action on the ground of prejudicial question, when no civil case has been filed, pursuant to Sec. 7, Rule 111.

- In case there is no civil action filed, there can be no prejudicial question

Meritorious motions

(c) *Meritorious Motions.* - Motions that allege plausible grounds supported by relevant documents and/ or competent evidence, except those that are already covered by the Revised Guidelines, are meritorious motions, such as:

- i. Motion to withdraw information, or to downgrade the charge in the original information, or to exclude an accused originally charged therein, filed by the prosecution as a result of a reinvestigation, reconsideration, and review;
- ii. Motion to quash warrant of arrest;
- iii. Motion to suspend arraignment on the ground of an unsound mental condition under Sec. 11(a), Rule 116;
- iv. Motion to suspend proceedings on the ground of a prejudicial question where a civil case was filed prior to the criminal case under Sec. 11(b), Rule 116;
- v. Motion to quash information on the grounds that the facts charged do not constitute an offense, lack of jurisdiction, extinction of criminal action or liability, or double jeopardy under Sec. 3, par. (a), (b), (g), and (i), Rule 117;
- vi. Motion to discharge accused as a state witness under Sec. 17, Rule 119;
- vii. Motion to quash search warrant under Sec. 14, Rule 126 or motion to suppress evidence; and
- viii. Motion to discuss on the ground that the criminal case is a Strategic Lawsuit Against Public Participation (SLAPP) under Rule 6 of the Rules of Procedure for Environmental Cases.

(d) Motion for postponement. -A motion for postponement is **prohibited**, except if it is based on **acts of God, force majeure or physical inability of the witness to appear and testify**. If the motion is granted based on such exceptions, the moving party shall be warned that the presentation of its evidence must still be finished on the dates previously agreed upon. A motion for postponement, whether written or oral, shall at all times be accompanied by the original official receipt from the Office of the Clerk of Court evidencing payment of the postponement fee under Sec. 21 (b), Rule 141, to be submitted either at the time of the filing of said motion or not later than the next hearing date. The Clerk of Court shall not accept the motion unless accompanied by the original receipt.

EFFECT: suspend the arraignment and pre-trial because the Court has to resolve; will toll the running of the period

Section 1. *Arraignment and plea; how made.* —



(a) The accused must be arraigned before the court where the complaint or information was filed or assigned for trial. The arraignment shall be made in open court by the judge or clerk by furnishing the accused with a copy of the complaint or information, reading the same in the language or dialect known to him, and asking him whether he pleads guilty or not guilty. The prosecution may call at the trial witnesses other than those named in the complaint or information.

(b) The accused must be present at the arraignment and must personally enter his plea. Both arraignment and plea shall be made of record, but failure to do so shall not affect the validity of the proceedings.

(c) When the accused refuses to plead or makes a conditional plea, a plea of not guilty shall be entered for him. (1a)

(d) When the accused pleads guilty but presents exculpatory evidence, his plea shall be deemed withdrawn and a plea of not guilty shall be entered for him. (n)

(e) When the accused is under preventive detention, his case shall be raffled and its records transmitted to the judge to whom the case was raffled within three (3) days from the filing of the information or complaint. The accused shall be arraigned within ten (10) days from the date of the raffle. The pre-trial conference of his case shall be held within ten (10) days after arraignment. (n)

(f) The private offended party shall be required to appear at the arraignment for purposes of plea bargaining, determination of civil liability, and other matters requiring his presence. In case of failure of the offended party to appear despite due notice, the court may allow the accused to enter a plea of guilty to a lesser offense which is necessarily included in the offense charged with the conformity of the trial prosecutor alone. (cir. 1-89)

(g) Unless a shorter period is provided by special law or Supreme Court circular, the arraignment shall be held within thirty (30) days from the date the court acquires jurisdiction over the person of the accused. The time of the pendency of a motion to quash or for a bill of particulars or other causes justifying suspension of the arraignment shall be excluded in computing the period. (sec. 2, cir. 38-98)

Arraignment – a procedure whereby the accused is brought before the court to plead to the criminal charge in the indictment or information. The charge is read to him and he asked to plead “guilty” or “not guilty” or where permitted, “nolo contendere”. (**Black’s Law Dictionary**)

Arraignment is the formal mode and manner of implementing the constitutional right of an accused to be informed of the nature and cause of the accusation against him. Its purpose is to apprise the accused why he is being prosecuted by the State. As such, it is an indispensable require of due process and thus, cannot be regarded lightly or brushed aside peremptorily (**Taglay v. Daray**)

Characteristics

- a **precondition for the court’s acquisition of jurisdiction** over the person of the accused to try and to decide his case.
- **partakes the nature of an answer** as in a civil case through which the issues of the case are joined and the court acquires jurisdiction to decide over the issues
- prior arraignment of the accused is indispensable in a trial in absentia
- if there is no arraignment or was improperly conducted, the proceedings that happen thereafter will be null and void

Q: What is the basis of arraignment?

A: Arraignment is the formal mode and manner of implementing the constitutional right of an accused to be informed of the nature and cause of the accusation against him.

Q: What is the purpose of arraignment?

A: The purpose of arraignment is to apprise the accused of the possible loss of freedom, even of his life, depending on the nature of the crime imputed to him.

Q: What is the nature of arraignment?

A: As an **indispensable requirement** of due process, arraignment cannot be regarded lightly or brushed aside peremptorily.

Remedies before arraignment

- 1) Motion to conduct preliminary investigation
- 2) Motion to withdraw complaint or information
- 3) Arrest with warrant, motion to quash warrant of arrest
- 4) Bail/ Petition for bail/Motion for reduction of bail/recognizance
- 5) Motion for bill of particulars
- 6) Motion to suspend arraignment
- 7) Motion to dismiss in case of strategic lawsuit against public participation
- 8) Dismissal of the case before arraignment under the Rules on Summary Procedure
- 9) Diversion in case of Children in Conflict with the law

Duty of court to inform accused of his right to counsel

Section 6. *Duty of court to inform accused of his right to counsel.* — Before arraignment, the court shall inform the accused of his right to counsel and ask him if he desires to have one. Unless the accused is allowed to defend himself in person or has employed a counsel of his choice, the court must assign a counsel de oficio to defend him. (6a)

Four-fold pre-arraignment duties of the judge

- 1) To **inform the accused** that he has the right to have his own counsel before being arraigned;



- 2) After giving such information, to ask accused **whether he desires the aid of counsel**;
- 3) If he so desires to procure the services of counsel, the **court must grant him reasonable time to do so**; and
- 4) If he so desires to have counsel but is unable to employ one, the court must **assign a counsel de officio to defend him**. (*People v. Agbayani*, 1998, En Banc).

Section 7. *Appointment of counsel de officio.* — The court, considering the gravity of the offense and the difficulty of the questions that may arise, shall appoint as counsel de officio only such members of the bar in good standing who, by reason of their experience and ability, can competently defend the accused. But in localities where such members of the bar are not available, the court may appoint any person, resident of the province and of good repute for probity and ability, to defend the accused. (7a)

GR: The court, considering the gravity of the offense and the difficulty of the questions that may arise, shall appoint as counsel de officio only such members of the bar in good standing who, by reason of their experience and ability, can competently defend the accused.

XPN: In localities where such members of the bar are not available, the court may appoint any person, resident of the province and of good repute for probity and ability, to defend the accused (not necessarily a lawyer)

Section 8. *Time for counsel de officio to prepare for arraignment.* — Whenever a counsel de officio is appointed by the court to defend the accused at the arraignment, he shall be given a reasonable time to consult with the accused as to his plea before proceeding with the arraignment. (8)

Plea – is the formal answer of the defendant in common law pleading. The answer of “guilty” or “not guilty” in an arraignment for a criminal charge.

It is the response made by the accused in open court upon arraignment upon which the information is read to him in a language or dialect known to him and such accused is asked whether he pleads guilty or not to the offense charged.

- 1) Plea of guilty
- 2) Plea of not guilty

Plea of guilty

It is where the accused admits his guilt voluntarily and admits the consequences of his act and with a clear understanding of the precise nature of the crime charged in the complaint or information. It is absolute and unconditional.

Plea of not guilty

Where the accused denies his guilt or admits some of the allegations of the complaint or information but sets

up a new and additional fact which if proven will exempt him or relieve him in whole or in part of the criminal responsibility that would attach of proof of guilt.

Instances where a plea of NOT guilty is entered

- 1) When he **pleads not guilty** to the offense charged
- 2) When the accused **refuses** to plead; or
- 3) When the accused makes a **conditional plea**.
- 4) When he **admits some or all of the acts** in the information but interposes additional facts where if duly proven would exempt him in whole or in part of criminal responsibility
- 5) When after a plea of guilt he **presents evidence of self defense and other exculpatory evidence**
- 6) When the plea made by the accused is indefinite, vague, ambiguous

What objections are deemed waived if not raised prior to the accused arraignment and plea?

- 1) That the Information does not conform **substantially to the prescribed form**, and all possible objections to the sufficiency of the Information against him;
- 2) **Duplicity/multiplicity of charges** in the Information in violation of Section 13, Rule 110;
- 3) **Defects in the manner of the accused's arrest;**
- 4) **The illegality of the accused's arrest;** and
- 5) Violation of the rights to **Preliminary Investigation**.

Remedies before enter of plea

- 1) Amendment of the complaint or information
- 2) Motion to quash complaint or information
- 3) Posting of bail/petition for bail

Rearraignment of the accused is proper

- 1) Accused is **deaf-mute, retard whose mental age is only 7 years old and nine months with a low IQ with only 8**
- 2) Trial court **failed to explain fully to the accused of the consequence of his plea of guilt** and the **probable imposable penalty** upon him
- 3) Where the information was **amended and the accused plead on the original information** the action of the trial court was held proper

Amended information

GR: When the complaint or information has been amended, the accused shall be arraigned on the amended information.

XPN: But in cases where the amendment was only as to matters in **form**, he need not be rearraigned once he has already pleaded in the original information.

Form – no rearraignment

Substantial – rearraignment



Substituted information

Must plead on the new information

May an arraignment be made after the case has been submitted for decision?

YES.

His arrest and not his arraignment conferred jurisdiction. The procedural defect was cured when his counsel participated in the trial without facing any objection that his client is yet to be arraigned. The counsel's active participation of the hearing is a clear indication that he is fully aware of the charges against him (*People v. Pangilinan*)

Grounds of objection waived after pleading

- 1) Sufficiency of the information;
- 2) Failure of the information to allege time with sufficient definiteness;
- 3) Multiplicity of charges – may be made during trial;
- 4) Defects of the manner of arrest
- 5) Irregularity of arrest
- 6) Violation of preliminary investigation
- 7) Violation against the constitutional right against unreasonable searches and seizures.

Plea as not a waiver in the following cases

- 1) **Filed a demurrer** to evidence and objected to the formal offer of evidence
- 2) Plea and **active participation of trial**
- 3) Consistent invoking of **regular preliminary investigation**

Section 2. Plea of guilty to a lesser offense. — At arraignment, the accused, with the consent of the **offended party** and the **prosecutor**, may be allowed by the trial court to plead guilty to a lesser offense which is necessarily included in the offense charged. **After arraignment but before trial**, the accused may still be allowed to plead guilty to said lesser offense after withdrawing his plea of not guilty. No amendment of the complaint or information is necessary. (sec. 4, circ. 38-98)

A lesser offense is necessarily included in the offense charged when the essential ingredients of the later constitute or form part of those constituting the latter. Thus, the crime of homicide is necessarily included in murder or theft is necessarily included in robbery.

What facts and circumstances are necessary to be included therein **must be determined by reference to the definitions and essentials of the specified crimes**. The requirement of alleging the elements of a crime in the information is to inform the accused of the nature of the accusation against him so as to enable him to suitably prepare his defense. (*Canceran v. People*)

Not allowed as a matter of bargaining or compromise, but may be available only if

- 1) The prosecutor has no sufficient evidence
- 2) The court will approve or disapprove
- 3) Not demandable as a matter of right

When and whose consent are necessary

- 1) **At arraignment – offended party and prosecutor**
- 2) **Failed to appear in arraignment despite due notice – trial prosecutor alone**
- 3) **After arraignment but before trial**
- 4) **After prosecution already presented evidences**

Effect to civil liability

The civil liability may still be awarded.

Section 3. Plea of guilty to capital offense; reception of evidence. — When the accused pleads guilty to a capital offense, the court shall conduct a searching inquiry into the voluntariness and full comprehension of the consequences of his plea and require the prosecution to prove his guilt and the precise degree of culpability. The accused may present evidence in his behalf. (3a)

Rationale

The courts must proceed with greatest caution. To avoid improvident pleas of guilt on the part of the accused where grave crimes are involved since he might be admitting his guilt in the court.

The court shall:

- 1) Conduct a **searching inquiry** into the voluntariness and full comprehension of the consequences of his plea; and
- 2) Require the prosecution to **prove his guilt and the precise degree of culpability**
3. Ask the accused **if he desires to present evidence in his behalf**.

Searching inquiry

The court provided herein the guidelines:

- a) Ascertain from the **accused himself** (a) **how he was brought into the custody** of the law; (b) whether he had the **assistance of a competent counsel** during the custodial and preliminary investigations; and (c) **under what conditions he was detained and interrogated** during the investigations.
- b) **Ask the defense counsel** a series of questions as to whether he had conferred with, and completely explained to, the accused the **meaning and consequences of a plea of guilty**.
- c) Elicit information about the **personality profile of the accused**, such as his age, socio-economic status, and educational background, which may serve as a trustworthy index of his capacity to give a free and informed plea of guilty.



- d) Inform the accused of the **exact length of imprisonment or nature of the penalty** under the law and the certainty that he will serve such sentence.
- e) Inquire if the accused **knows the crime with which he is charged and to fully explain to him the elements of the crime** which the basis of his indictment is.
- f) All questions posed to the accused should be in a **language known and understood** by the latter.
- g) The trial judge must satisfy himself that the accused, in pleading guilty, is **truly guilty**. The accused must be required to **narrate the tragedy or reenact the crime or furnish its missing details.** (*People v. Tonyacao*)

Proof of aggravating circumstances

Must also be explained the aggravating circumstances when he pleads guilty imputed against him. Where the aggravating circumstances listed in the information are not supported by the evidence adduced a plea of not guilty to a capital offense cannot constitute an admission of the aggravating circumstances set forth in the information.

Plea of guilty cannot constitute an admission on the aggravating circumstances set forth in the information.

People vs. Apduhan, Jr. cited by some of the cases relied upon by the lower court, declared that —

While an unqualified plea of guilty is mitigating, it at the same time constitutes an admission of all material facts alleged in the information, including the aggravating circumstance therein recited, x x x The prosecution does not need to prove the three aggravating circumstances (all alleged in the second amended information) since the accused, by his plea of guilty, has supplied the requisite proof.

Section 4. *Plea of guilty to non-capital offense; reception of evidence, discretionary.* — When the accused pleads guilty to a non-capital offense, the court **may** receive evidence from the parties to determine the penalty to be imposed. (4)

Plea of Guilty to Non-Capital Offenses Effect

The court may receive evidence from the parties. Reception of evidence is discretionary on the part of the court in contrast with a plea of guilt to a capital offense.

Plea on capital offenses	Plea on non-capital offenses
Reception of evidence is mandatory.	Reception of evidence is discretionary
Hearing is mandatory	Hearing is discretionary

Section 5. *Withdrawal of improvident plea of guilty.* — At any time before the judgment of conviction becomes final, the court may permit an improvident plea of

guilty to be withdrawn and be substituted by a plea of not guilty. (5)

Improvident plea - It is usually a plea that is involuntarily made and without consent. A plea is usually considered improvident when there was failure to conduct searching inquiry, failure of prosecution to present evidence or no rational basis between the testimony and of the guilt.

It is a plea without information as to all the circumstances affecting it. It is based upon a mistaken assumption or misleading information or advice. (**Black Law’s Dictionary**)

The accused can confess guilt at any time even after arraignment or trial must begin but the law is clear that he shall not thereby entitled into such plea as considered as mitigating.

Instances of improvident plea

- 1) Plea of guilty compelled by **violence or intimidation**
- 2) The accused **did not fully understand** the meaning and consequences of his plea
- 3) **Insufficient information** to sustain conviction of the offense charged
- 4) Information **does not charge an offense**
- 5) Court has **no jurisdiction**

Period to withdraw an improvident plea

The court may permit an improvident plea of guilty to be withdrawn, at any time before the judgment of conviction becomes final and be substituted by a plea of not guilty. (**Sec 5, Rule 116**)

Nature of an improvident plea

The withdrawal of a plea of guilty at any time before judgment is not a **matter of strict right to the accused** but of **sound discretion to the trial court.** (**Sec 5, Rule 116; People v. Lambino**)

Section 10. *Production or inspection of material evidence in possession of prosecution.* — Upon motion of the accused showing good cause and with notice to the parties, the court, in order to prevent surprise, suppression, or alteration, may order the prosecution to produce and permit the inspection and copying or photographing of any written statement given by the complainant and other witnesses in any investigation of the offense conducted by the prosecution or other investigating officers, as well as any designated documents, papers, books, accounts, letters, photographs, objects or tangible things not otherwise privileged, which constitute or contain evidence material to any matter involved in the case and which are in the possession or under the control of the prosecution, police, or other law investigating agencies. (11a)

- Mode of discovery which is available only to the accused

- Leave of court is required for this particular mode of discovery
- This is part of the right of accused to compulsory process in his behalf

Requisites

- 1) The accused must file a motion showing good cause;
- 2) The documents must be in the possession of the prosecution, police, or other law investigating agencies.
- 3) The documents must constitute evidence material to the case

RULE 118
PRE -TRIAL

Section 1. Pre-trial; mandatory in criminal cases. — In all criminal cases cognizable by the **Sandiganbayan, Regional Trial Court, Metropolitan Trial Court, Municipal Trial Court in Cities, Municipal Trial Court and Municipal Circuit Trial Court**, the court shall after arraignment and **within thirty (30) days from the date the court acquires jurisdiction** over the person of the accused, unless a shorter period is provided for in special laws or circulars of the Supreme Court, order a pre-trial conference to consider the following:

- (a) plea bargaining;
- (b) stipulation of facts;
- (c) marking for identification of evidence of the parties;
- (d) waiver of objections to admissibility of evidence;
- (e) modification of the order of trial if the accused admits the charge but interposes a lawful defense; and
- (f) such other matters as will promote a fair and expeditious trial of the criminal and civil aspects of the case. (secs. 2 and 3, cir. 38-98)

Pre-trial - is a procedural device intended to clarify and limit the basic issues between the parties and to take the trial of cases out of the realm of surprise and maneuvering. It thus paves the way for a less cluttered trial and resolution of the case. (*LCK Industries v. Planters Development Bank*)

Period

Within the same day of the arraignment and plea (**Revised Guidelines for Continuous Trial of Criminal Cases**)

Pre-trial conference - is used as a device to narrow down issues to be tried, to secure stipulations as to matters and stipulations to be heard and to take all other steps necessary to aid the disposition of the case.

Matters to be considered during pre-trial

- (a) plea bargaining;

Definition

It is the process whereby the accused, the offended party and the prosecution work out a mutually satisfactory disposition of the case subject to court approval. It usually involves the defendant's pleading guilty to a lesser offense or to only one or some of the counts of a multi-count indictment in return for a lighter sentence than that for the graver charge. In this jurisdiction, plea bargaining has been defined as "a process whereby the accused and the prosecution work out a mutually satisfactory disposition of the case subject to court approval." (*Estipona Jr. v. Lobrigo*)

Effect of void plea bargaining

Void ab initio

- (b) stipulation of facts;
 - Sanctioned by law; in further pursuit of expediting trial
 - **Effect:** considered as judicial admissions which will be binding upon the parties
 - it will result to a **waiver of their right to present evidence of the facts stipulated**
 - age cannot be a stipulation of fact
 - In order for the accused to be bound, it must be signed by him

Stipulation of facts during pre-trial	Stipulation of facts during trial proper
Reduced in writing and must be signed by the accused and counsel	Automatically reduced in writing and is contained in the transcript of the proceeding
	Consent or signature of the accused is unnecessary in view of the fact that an attorney is employed to manage the party's conduct to a lawsuit

- (c) marking for identification of evidence of the parties;
 - what is specified are the possible evidence which may be presented during the trial
 - No evidence shall be allowed to be presented and offered during the trial other than those identified and marked during the pre-trial except when allowed by the court for good cause shown. (**I-B [2], AM No. 03-1-09-SC**)
- (d) waiver of objections to admissibility of evidence;
- (e) modification of the order of trial if the accused admits the charge but interposes a lawful defense; and
 - Reverse trial order
- (f) such other matters as will promote a fair and expeditious trial of the criminal and civil aspects of the case.
 - If the accused has **pleaded not guilty** to the crime charged, he may state whether he interposes a **negative** or **affirmative** defense. A negative defense shall require the prosecution to **prove the guilt of the accused beyond reasonable doubt**, while an affirmative defense may modify the order of trial and require the accused to prove such

defense by clear and convincing evidence. (Sec 3, RA 8493 or the Speedy Trial Act)

- Negative - require the prosecution to **prove the guilt of the accused beyond reasonable doubt**

Affirmative - modify the order of trial and require the accused to prove such defense by **clear and convincing evidence**

Section 2. Pre-trial agreement. — All agreements or admissions made or entered during the pre-trial conference shall be **reduced in writing and signed by the accused and counsel**, otherwise, they cannot be used against the accused. The agreements covering the matters referred to in section 1 of this Rule shall be approved by the court. (sec. 4, cir. 38-98)

Pre-trial agreement

To safeguard the accused in unauthorized agreements which his counsel may have entered into without his knowledge as he may waived his presence in the pre-trial conference. There is necessity to affixed the signature. The rule is mandatory.

Pre-trial agreement as evidence

- 1) It is reduced in writing
- 2) Signed by the accused and his counsel

Approval of court

The agreements in relation to matters referred to in Sec. 1, Rule 118 are **subject to the approval of the court.** (Sec 2, Rule 118) Provided, that the **agreement on the plea of the accused to a lesser offense may only be revised, modified, or annulled by the court when the same is contrary to law, public morals, or public policy.** (Sec 3, RA 8493 or the Speedy Trial Act)

Effect

If the accused has not signed the pre-trial conference, the admission therein cannot be used against him.

In this case, while it appears that the pre-trial agreement was **signed only by the prosecution and defense counsel**, the same may nevertheless be **admitted given that the defense failed to object to its admission.** (*People v. Likiran*)

Section 3. Non-appearance at pre-trial conference. — If the **counsel** for the accused or the prosecutor does **not appear at the pre-trial conference** and does **not offer an acceptable excuse for his lack of cooperation**, the court may impose proper sanctions or penalties. (se. 5, cir. 38-98)

Non-appearance of the counsel

Counsel may be held in contempt (Sec 1, Rule 77)

Non-appearance of the accused

- If the accused is on bail and does not appear at the pre-trial as required by the court, **the court may cancel the bail**
- If under the custody of the law and the jail warden fails to **present the accused the court may impose a penalty on the jail warden**

Non-appearance of the private offended party

- Appearance of the private offended party is not required by the court
- Presence is required at the **plea-bargaining, determination of civil liability and matters requiring his presence**

Duties of clerk of court

During the preliminary conference, the branch clerk of court shall:

- 1) Assist the parties in reaching a settlement of the civil aspect of the case;
- 2) Mark the documents to be presented as exhibits and copies thereof attached to the records after comparison;
- 3) Ascertain from the parties the undisputed facts and admissions on the genuineness and due execution of documents marked as exhibits; and
- 4) Consider such other matters as may aid in the prompt disposition of the case. (A.M. No. 03-1-09-SC)

The proceedings during the preliminary conference shall be recorded in the minutes of preliminary conference to be signed by both parties and counsel. (A.M. No. 03-1-09-SC)

Duty of the judge before pre-trial conference

The judge before pre-trial conference must study the following:

- 1) Allegations of the information;
- 2) Statements in the affidavits of witnesses; and
- 3) Other documents which form part of the record of the preliminary investigation. (A.M. No. 03-1-09-SC)

Duty of the judge when plea bargaining is agreed upon

During the pre-trial, the trial judge shall consider plea-bargaining arrangements, except in cases for violations of the Comprehensive Dangerous Drugs Act regardless of the imposable penalty. (Sec 23, RA 9165)

Duty of the judge when plea bargaining fails

- 1) **Adopt the minutes of preliminary conference** as part of the pre-trial proceedings, confirm markings of exhibits or substituted photocopies and admissions on the genuineness and due execution of documents and list object and testimonial evidence;
- 2) **Scrutinize every allegation of the information and the statements in the affidavits and other documents which form**



part of the record of the preliminary investigation and other documents identified and marked as exhibits in determining further admissions of facts, documents and in particular as to the following:

- The identity of the accused;
 - Court's territorial jurisdiction relative to the offense/s charged;
 - Qualification of expert witness;
 - Amount of damages;
 - Genuineness and due execution of documents;
 - The cause of death or injury, in proper cases;
 - Adoption of any evidence presented during the preliminary investigation;
 - Disclosure of defenses of alibi, insanity, self-defense, exercise of public authority and justifying or exempting circumstances; and
 - Such other matters that would limit the facts in issue.
- 3) **Define factual and legal issues;**
 - 4) **Ask parties to agree on the specific trial dates and adhere to the flow chart** determined by the court which shall contain the time frames for the different stages of the proceeding up to promulgation of decision and use the time frame for each stage in setting the trial dates;
 - 5) Require the parties to submit to the Branch COC the names, addresses and contact numbers of witnesses that need to be summoned by subpoena; and
 - 6) Consider modification of order of trial if the accused admits the charge but interposes a lawful defense. (A.M. No. 03-1- 09-SC)

Section 4. Pre-trial order. — After the pre-trial conference, the court shall issue an order reciting the actions taken, the facts stipulated, and evidence marked. Such order shall bind the parties, limit the trial to matters not disposed of, and control the course of the action during the trial, unless modified by the court to prevent manifest injustice. (3)

Pre-trial order

It is an order issued by the court reciting the actions taken, the facts stipulated, and the evidence marked during the pre-trial conference. (Sec 4, Rule 118)

Period for the trial judge to issue a pre-trial order and its contents

It must be issued within 10 days after the termination of the pre-trial. It shall set forth the following:

- 1) Actions taken during the pre-trial conference;
- 2) Facts stipulated;
- 3) Admissions made;
- 4) Evidence marked; and
- 5) Number of witnesses to be presented and the schedule of trial. (Sec 4, Rule 118)

Waiver

Failure to object to the introduction of evidence on an issue not contained in a pre-trial order – **IMPLIED CONSENT**

PART III REVISED GUIDELINES ON CONTINUOUS TRIALS FOR CRIMINAL CASES

8(C) Waiver of Reading of the Information. - In multiple cases, the court, upon personal examination of the accused, may allow a waiver of the reading of the information upon the full understanding and express consent of the accused and his/her counsel, which consent shall be expressly stated in both the minutes/ certificate of arraignment and the order of arraignment. The court shall explain the waiver to the accused in the language or dialect known to him/her, and ensure the accused's full understanding of the consequences of the waiver before approving the same.

(d) Arraignment Proper

i. *Plea Bargaining Except in Drug Cases.* - If the accused desires to enter a **plea of guilty to a lesser offense, plea bargaining** shall immediately proceed, provided the private offended party in private crimes, or the arresting officer in victimless crimes, is present to give his/her consent with the conformity of the public prosecutor to the plea bargaining. Thereafter, judgment shall be immediately rendered in the same proceedings.

ii. *Plea of Guilty to the Crime Charged in the Information.* - If the accused **pleads guilty to the crime charged in the information, judgment** shall be immediately rendered, **except** in those cases involving capital punishment

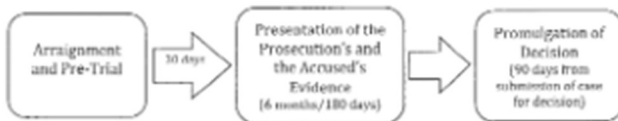
***non capital – hearing is discretionary**

iii. *Where No Plea Bargaining or Plea of Guilty Takes Place.* - If the accused **does not enter a plea of guilty**, whether to a lesser offense or to the offense charged in the information, the **court shall immediately proceed with the arraignment and the pretrial, in accordance with the succeeding provisions on pre-trial.** The schedule of the trial dates, for both the prosecution and the accused, shall be continuous and within the periods provided in the Regular Rules/ Special Rules. The trial dates may be shortened depending on the number of witnesses to be presented. In this regard, a flowchart shall be prepared by the court which shall serve as the final schedule of hearings.



Sample flowcharts

A. Regular Rules

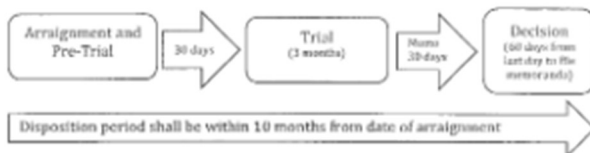


B. Special Laws/Rules

1. Drug Cases



2. Environmental Cases



3. Intellectual Property Rights Cases



4. Arraignment and Pre-trial of Cases Referred to Mediation



(e) Arraignment and Preliminary Conference of Mediatable Cases subject to the Rule on Summary Procedure

The **arraignment and preliminary conference shall be simultaneously held**, and the court shall take up all the matters required under Sec. 14, Rule on Summary Procedure during the preliminary conference.

i. If the **accused pleads guilty to the crime charged in the information**, subheading III, item no. 8, subparagraph (d) ii. (Plea of Guilty to the Crime Charged In the Information) shall be followed.

ii. If the **accused pleads guilty to a lesser offense**, subheading III, item no. 8, subparagraph (d) 1 (Plea Bargaining except in Drug Cases) shall be followed.

iii. If the **accused does not enter a plea of guilty, whether to a lesser offense or to the offense charged in the information**, the court shall immediately proceed with the **arraignment and the preliminary conference**, and thereafter refer the case to mediation.

9 Mediation (only civil aspect is discussed)

(a) The following cases shall be **referred to mediation** on the civil liability unless a settlement is reached earlier in the pre-trial/ preliminary conference:

i. **Crimes where payment may prevent criminal prosecution or any extinguish criminal liability, such as violations of:**

a. B.P. Blg. 22;

b. SSS Law (R.A. No. 1161, as amended by R.A No. 8282); and

c. PAG-IBIG Law (R.A. No. 9679).

ii. **Crimes against property under Title 10 of the Revised Penal Code (RPC), where the obligation may be civil in nature, such as:**

a. Theft under Art. 308, RPC, cognizable by the first level courts;

b. Estafa under Art. 315(1), RPC, except estafa under Art. 315 (2) and (3);

c. Other forms of swindling under Art. 316, RPC;

d. Swindling of a minor under Art. 317, RPC;

e. Other deceits under Art. 318, RPC; and

f. Malicious mischief under Art. 327, RPC.

Crimes against honor under Title 13, RPC, where the liability may be civil in nature, such as:

a. Libel by means of writings or similar means under Art. 355, RPC;

b. Threatening to publish and offer to present such publication for a compensation under Art. 356, RPC;

c. Prohibited publication of acts referred to in the course of official proceedings under Art. 357, RPC;

d. Grave Slander (Grave Oral Defamation) of serious and insulting nature under Art. 358, par. 1, RPC;

e. Simple Slander (Oral Defamation) - not of a serious and insulting nature under Art. 358, par. 2, RPC;

f. Grave Slander by Deed - of a serious nature under Art. 359, par. 1, RPC;

g. Simple Slander by Deed - not of a serious nature under Art. 359, par. 2, RPC;

h. Incriminating innocent person under Art. 363, RPC;

i. Libel under R.A. 10175 (Cybercrime Prevention Act of 2012) where the liability may be civil in nature;

j. Criminal negligence under Title 14, RPC, where the liability may be civil in nature; and

k. Intellectual property rights cases where the liability may be civil in nature.

(b) The referral of the case for mediation to the Philippine Mediation Center (PMC) Unit shall be made only after the conduct of the arraignment and the pre-trial/ preliminary conference. The court shall serve the Order of Referral to the PMC Unit immediately after the arraignment and the pre-trial / preliminary conference.

The mediation shall be terminated within a non-extendible period of **thirty (30) calendar days** from the date of referral by the court to the PMC Unit. After the lapse of the mediation period or if mediation fails, trial shall proceed. Except those cases mentioned above, criminal cases subject to the Rule on Summary Procedure shall not be referred to mediation.

RULE 117 MOTION TO QUASH



Section 1. *Time to move to quash.* — At any time before entering his plea, the accused may move to quash the complaint or information. (1)

Definition

A motion to quash is defined as a motion requesting that a criminal complaint or information be **dismissed** on grounds specified by law or rule. It is an omnibus motion.

Purpose

The designated purpose of a motion to quash is to **assail the validity of the criminal information for defects or defenses apparent on the face of the information.** (*Galzole y Soriaga v. Briones and People*)

Section 9. *Failure to move to quash or to allege any ground therefor.* — The failure of the accused to assert any ground of a motion to quash before he pleads to the complaint or information, either because **he did not file a motion to quash or failed to allege the same in said motion**, shall be deemed a **waiver** of any objections except those based on the grounds provided for in paragraphs (a), (b), (g), and (i) of section 3 of this Rule. (8)

Period to file motion to quash an information or complaint

GR: At any time before entering his plea, the accused may move to quash the complaint or information. (Sec. 1, Rule 117)

XPNs: These grounds may be invoked at any stage of the proceedings

- The facts charged do not constitute an offense;
- Lack of jurisdiction over the offense charged;
- The criminal action or liability has been extinguished; and
- Double Jeopardy. (Sec. 9, Rule 117)

NOTE: These grounds may be invoked **at any stage** of the proceedings.

Section 3. *Grounds.* — The accused may move to quash the complaint or information on any of the following grounds:

- (a) That the facts charged do not constitute an offense;
- (b) That the court trying the case has no jurisdiction over the offense charged;
- (c) That the court trying the case has no jurisdiction over the person of the accused;
- (d) That the officer who filed the information had no authority to do so;
- (e) That it does not conform substantially to the prescribed form;
- (f) That more than one offense is charged except when a single punishment for various offenses is prescribed by law;
- (g) That the criminal action or liability has been extinguished;

- (h) That it contains averments which, if true, would constitute a legal excuse or justification; and
- (i) That the accused has been previously convicted or acquitted of the offense charged, or the case against him was dismissed or otherwise terminated without his express consent. (3a)

Effects of the accused's failure to file a motion to quash the complaint or information

Omnibus motion rule

- 1) The ground for quashing the information is waived

Once you already entered your plea, the ground of lack of jurisdiction of the court over your person shall be deemed waived.

- 2) The right to object to evidence is waived.

The action belongs to the accused

GR: The court or judge **cannot**, on its own or *motu proprio*, initiate a motion to quash if no motion to quash is filed by the accused. A motion contemplates an initial action originating from the accused. **It is the accused who is in the best position to know on what ground or grounds he will base his objection to the information.**

XPN: In the other instances which are not waived (4 instances in Section 9, also in certain circumstances 3d), the court, if on the face of the information or complaint sees that it is present, **may dismiss the criminal action.**

Section 2. *Form and contents.* — The motion to quash shall be **in writing, signed by the accused or his counsel** and shall distinctly **specify its factual and legal grounds.** The court shall consider no ground other than those stated in the motion, **except lack of jurisdiction over the offense charged.** (2a)

Application

Section two clearly implies the requirement of filing a motion by the accused, **even if the ground asserted is premise on lack of jurisdiction over the offense charge.** **Lack of jurisdiction should be evident from the face of the information or complaint** to warrant a dismissal thereof the motion must be signed by the accused or his counsel, and shall distinctly specify its factual and legal grounds.

Grounds

- a) the facts charged do not constitute an offense
 - Whether or not all the elements necessary to constitute an offense is present or is found in the face of the complaint or information.
 - Whether or not the facts alleged or asserted, if hypothetically admitted would establish the essential elements of the crime defined in the law.

If you file a motion to quash based on this ground, it is assumed or presumed that you already hypothetically admit all the allegation or



statement in the complaint or information, but that such statement or allegations in the complaint or information is not compete to charge an offense.

No immediate grant of quashal

Sec 4.
xxxIf it is based on the ground that the **facts charged do not constitute an offense**, the prosecution shall be given by the court an opportunity to correct the defect by amendment. The motion shall be granted if the prosecution fails to make the amendment, or the complaint or information still suffers from the same defect despite the amendment. (n)

Even after being given opportunity to correct the defect, the prosecution still fails, then the complaint or information which still suffers from the same defect, despite the amendment shall already be ordered quash.

NOTE:

Ground A	Ground B
The prosecution shall be given by the court an opportunity to correct the defect by amendment	The court may consider relevant facts <i>aliunde (external evidence)</i>

- b) That the court trying the case has no jurisdiction over the offense charged;
- jurisdiction over the subject matter
 - territorial jurisdiction

If the motion to quash is granted, again, **the effect is that the prosecution can actually refile this particular criminal case**, because **no jeopardy will attach** so the filing of the criminal case should be in the court where there is proper jurisdiction.

- c) That the court trying the case has no jurisdiction over the person of the accused
- with or without warrant
 - based on voluntary submission to the jurisdiction of the court

If other grounds are included, then it will be deemed as voluntary submission or asking the court for relief

- d) That the officer who filed the information had no authority to do so
- complaint filed in court involving offenses which could not be prosecuted de officio such as seduction, abduction, acts of lasciviousness, adultery, and concubinage (**ACASA**)
 - complaint filed directly with the municipal trial court in cases where preliminary investigation is not required

- any complaint directly filed to the court by the offended party or peace officer where the accused is arrested without warrant and the inquest prosecutor’s absence or unavailable.

Who has authority to file

- 1) the **offended party**,
- 2) any **peace officer** or
- 3) **other public officers** charged with the enforcement of the law violated.

Other officers charged with the enforcement of law

- 1) Members of the Philippine National Police for violation of any law ordinance for the protection of lives and properties.
- 2) Officers or social workers of the Department of Social Welfare and Development or the barangay chairman for cases of unlawful acts committed against children as enumerated under Republic Act 7610. Or the special protection of children against child abuse, exploitation and discrimination.
- 3) Forest officers or employees of the Bureau of forestry for criminal offenses punish by forest loss,
- 4) the Internal Revenue officers for violation of national Internal Revenue Code and other revenue loss administered by the Bureau of internal revenue,
- 5) customs authority for violation of the tariff and customs code and other customs,
- 6) law building officials for violations of the National Building Code officers
- 7) agents of the Philippine Drug Enforcement Agency for violations of the comprehensive Dangerous Drugs Act.
- 8) The law enforcement officers of the Department of Agriculture the Philippine Navy, Philippine Coast Guard, Philippine National Police PNP maritime command law,
- 9) enforcement officers of local government units and other government enforcement agencies for violations of Philippine fisheries code.
- 10) other officers that are charged to implement certain special laws with penal provisions, for example, as SSS law, the revised Corporation code, the Securities and Exchange Commission as regards the securities regulation code, and the like.

other officers which have the authority to file an information

- 1) the **provincial or city prosecutors** and their assistants under sections three and four of rule 112,
- 2) the **chief state prosecutor** or now, what is called the Prosecutor General under section for rule 112.



- 3) The Ombudsman's or his deputies, the national and regional state prosecutors now regional prosecutors under Section 3 Rule 112.
- 4) The Commission on election legal officers or election officers in election cases in special counsel designated by the Secretary of justice, which are designated to prosecute certain offenses.

In a specific and a certain instance where the lack of authority of the person filing the information, **also amounts to lack of jurisdiction of the court over the subject matter of the case**, the ground of lack of authority, will also **not be deemed waived** even if it is not mentioned in the motion to quash or alleged in that motion.

e) **That it does not conform substantially to the prescribed form**

GR: If the information failed to alleged with certainty the

- time of the commission of the offense or
- the name of the accused or name of the offended party,
- the place where the act was committed,

The accused can either file a

- 1) **bill of particulars** or
- 2) a **quashal of the information**, on the ground that it does not conform substantially to the prescribed form.

XPN: If the defect in the complaint or information can be corrected by amendment then the court first must give an opportunity for the prosecution to correct the defect

f) **That more than one offense is charged except when a single punishment for various offenses is prescribed by law;**

RULE 110

Section 13. Duplicity of the offense. — A complaint or information must charge but one offense, except when the law prescribes a single punishment for various offenses. (13a)

Duplicitous complaints or information
Rule

- 3) **Complaint filed in court** – duplicitous complaints apply
- 4) **Complaint filed to the prosecutor’s office** - duplicitous complaints do not apply

GR: The rule prohibits charging of two or more offenses in a single information has for its aim to give the defendant the necessary knowledge of the charge to enable him to prepare for his defense. The State shall not heap upon the defendant two or more charges which might confuse him in his defense

XPN: when the law **prescribes a single punishment** for various offenses such as:

- ❖ **Complex crime** - a single act constitutes two or more grave or less grave felonies or when an offense is a necessary means in committing the other
 - **Compound crime** - a single act constitutes two or more grave or less grave felonies.
 - **Complex crime proper** - offense is a necessary means in the commission of the other
- ❖ **Special complex crime** - crimes specifically named or designated in special penal offenses or under the Revised Penal Code all of which are punished with one penalty

Special complex crime	Ordinary complex crimes
specifically named or designated in special penal offenses or under the Revised Penal Code	applies specifically to felonies defined under the Revised Penal Code and is governed by Article 48 of the RPC

- ❖ **Continuous crimes** – (*delito continuado*), single larceny doctrine, a series of act arising from a single criminal intent.

g) **That the criminal action or liability has been extinguished;**

The extinguishment of the criminal action or the liability already means that the state has lost or has waived its right to prosecute an act prohibited and punished by law.

Art. 89. How criminal liability is totally extinguished. — Criminal liability is totally extinguished:
1. By the **death of the convict**, as to the personal penalties and as to pecuniary penalties, liability therefor is extinguished only **when the death of the offender occurs before final judgment**.

- 2. By **service of the sentence**;
- 3. By **amnesty**, which completely extinguishes the penalty and all its effects;
- 4. By **absolute pardon**;
- 5. By **prescription of the crime**;
- 6. By **prescription of the penalty**;
- 7. By the **marriage of the offended woman**, as provided in Article 344 of this Code.

Art. 90. Prescription of crime. — Crimes punishable by **death, reclusion perpetua or reclusion temporal** shall prescribe in **twenty years**.

Crimes punishable by other **afflictive penalties** shall prescribe in **fifteen years**.

Those punishable by a **correctional penalty** shall prescribe in **ten years**; with the exception of those punishable by **arresto mayor**, which shall prescribe in **five years**.



The **crime of libel or other similar offenses** shall prescribe in **one year**.

The crime of **oral defamation and slander by deed** shall prescribe in **six months**.

Light offenses prescribe in **two months**.

When the penalty fixed by law is a **compound one**, the **highest penalty shall be made the basis** of the application of the rules contained in the first, second and third paragraphs of this article. (As amended by RA 4661, approved June 19, 1966).

Act No. 3326

AN ACT TO ESTABLISH PERIODS OF PRESCRIPTION FOR VIOLATIONS PENALIZED BY SPECIAL ACTS AND MUNICIPAL ORDINANCES AND TO PROVIDE WHEN PRESCRIPTION SHALL BEGIN TO RUN

Section 1. Violations penalized by special acts shall, unless otherwise provided in such acts, prescribe in accordance with the following rules:

- a) **after a year** for offenses **punished only by a fine or by imprisonment for not more than one month, or both; (< 1 month)**
- b) **after four years** for those punished by **imprisonment for more than one month, but less than two years; (1 month – 2 years)**
- c) **after eight years** for those punished by imprisonment for two years or more, but less than six years; and **(2-6 years)**
- d) **after twelve years** for any other offense punished by imprisonment for **six years or more, except the crime of treason, which shall prescribe after twenty years.** Violations penalized by **municipal ordinances** shall prescribe after **two months.** (6-20 years), treason – 20, municipal ordinances – 2 months

Art. 91. Computation of prescription of offenses. — The period of prescription shall commence to run **from the day on which the crime is discovered by the offended party, the authorities, or their agents,** and shall be interrupted by the filing of the complaint or information, and shall commence to run again when such proceedings terminate without the accused being convicted or acquitted, or are unjustifiably stopped for any reason not imputable to him.

The term of prescription shall not run when the offender is absent from the Philippine Archipelago.

Pardon in private crimes

RULE: Once the complaint or information is filed in court, the control of the proceedings will be subject to the discretion of the court.

- h) **That it contains averments which, if true, would constitute a legal excuse or justification;**

- The complaint or information already contains allegations, **which constitute legal excuse or justification**, and the court will not look at any other paper, evidence outside the complaint or information to decide whether or not this ground for a motion to quash is present.
- If an information is filed essentially reiterating the same violation, then that particular accused can move for the quashal and or dismissal of the case based on that previous ruling of the court case.

Art. 11. Justifying circumstances. — The following do not incur any criminal liability:

- 1) Anyone who acts in **defense of his person or rights**, provided that the following circumstances concur;

First. Unlawful aggression.

Second. Reasonable necessity of the means employed to prevent or repel it.

Third. Lack of sufficient provocation on the part of the person defending himself

- 2) Any one who acts in **defense of the person or rights of his spouse, ascendants, descendants, or legitimate, natural or adopted brothers or sisters, or his relatives by affinity in the same degrees and those consanguinity within the fourth civil degree**, provided that the first and second requisites prescribed in the next preceding circumstance are present, and the further requisite, in case the revocation was given by the person attacked, that the one making defense had no part therein.
- 3) Anyone who acts in **defense of the person or rights of a stranger**, provided that the **first and second requisites mentioned in the first circumstance of this Art. are present** and that the person defending be not induced by revenge, resentment, or other evil motive.
- 4) Any person who, in order to **avoid an evil or injury**, does an act which causes damage to another, provided that the following requisites are present;

First. That the evil sought to be avoided actually exists;

Second. That the injury feared be greater than that done to avoid it;

Third. That there be no other practical and less harmful means of preventing it.

- 5) Any person who acts in the fulfillment of a duty or in the lawful exercise of a right or office.
- 6) Any person who acts in obedience to an order issued by a superior for some lawful purpose.



Art. 12. *Circumstances which exempt from criminal liability.* — the following are exempt from criminal liability:

- 1) If the accused is an **imbecile or an insane person**, unless the accused has acted during a lucid interval. When the imbecile or insane person has committed an act, which the law defines as a felony, the court order his confinement in one of the hospitals or asylums established for persons afflicted with insanity, which he shall not be permitted to live without the without first obtaining the permission of the court.
- 2) A person who is **under 15 years of age**, however, the child shall be subjected to an intervention program under Republic Act 9344
- 3) A person **over 15 years of age and under 18, unless, if he has acted with discernment, shall be exempt**. In the case of a person acting with discernment, since he is not exempt from criminal liability, he shall be subjected to appropriate proceedings in accordance with the provisions of RA 9344.
- 4) Any person who is performing a **lawful act with due care causes an injury by mere accident without fault or intention of causing it**
- 5) Any person who acts **under the compulsion of an irresistible force** or
- 6) Any person who acts **under the impulse of an uncontrollable fear of an equal or greater injury**, and
- 7) Any person who fails to **perform an act required by law when prevented by some lawful or insuperable cause**.

Art. 332. *Persons exempt from criminal liability.* — No criminal, but **only civil liability**, shall result from the commission of the crime of **theft, swindling or malicious mischief** committed or caused mutually by the following persons:

- 1) Spouses, ascendants and descendants, or relatives by affinity in the same line.
- 2) The widowed spouse with respect to the property which belonged to the deceased spouse before the same shall have passed into the possession of another; and
- 3) Brothers and sisters and brothers-in-law and sisters-in-law, if living together.

The exemption established by this article shall not be applicable to strangers participating in the commission of the crime.

- i) That the accused has been previously **convicted or acquitted of the offense charged, or the case against him was dismissed or otherwise terminated without his express consent**

Article III, 1987 Constitution

SECTION 21. No person shall be twice put in jeopardy of punishment for the same offense. If an act is punished by a law and an ordinance, conviction

or acquittal under either shall constitute a bar to another prosecution for the same act.

Section 7. *Former conviction or acquittal; double jeopardy.*

— When an accused has been **convicted or acquitted**, or the case against him **dismissed or otherwise terminated without his express consent by a court of competent jurisdiction**, upon a **valid complaint or information or other formal charge sufficient in form and substance** to sustain a conviction and after the **accused had pleaded to the charge**, the conviction or acquittal of the accused or the dismissal of the case shall be a **bar to another prosecution for the offense charged**, or for **any attempt to commit** the same or **frustration** thereof, or for **any offense which necessarily includes or is necessarily included** in the offense charged in the former complaint or information.

However, the conviction of the accused shall **not be a bar to another prosecution** for an offense which necessarily includes the offense charged in the former complaint or information under any of the following instances:

- (a) the graver offense developed due to **supervening facts** arising from the same act or omission constituting the former charge;
- (b) the facts constituting the graver charge became known or were **discovered only after a plea** was entered in the former complaint or information; or
- (c) the plea of guilty to the lesser offense was made **without the consent of the prosecutor and of the offended party** except as provided in section 1 (f) of Rule 116.

In any of the foregoing cases, where the accused satisfies or serves in whole or in part the judgment, he shall be credited with the same in the event of conviction for the graver offense. (7a)

Two-pronged requisites

- 1) first jeopardy must have attached prior to the second.
 - The accused individual is charged under a **complaint or information sufficient in form in substance** to sustain his conviction
Waiver of the objections as to sufficiency
Can sustain a conviction = valid information, first jeopardy will attach
Cannot sustain a conviction = invalid information, first jeopardy will not attach
 - The court has **jurisdiction**
 - All proceedings are considered null and void
 - The accused had been **arraigned and had pleaded**
 - any defect in the arraignment in the plea of the accused which will render it invalid whether it



be the fault of the court, the prosecution or even the accused himself will render the arraignment in plea **as invalid and therefore, the first jeopardy will not attach.**

- He is **convicted** or **acquitted**, or the case was **dismissed** or otherwise **terminated without his express consent.**

Instances where even with the express consent of the accused, it will still be considered as a dismissal or termination

if the accused files for a demurrer to evidence – considered as **acquittal** in case it is the accused who filed a motion to dismiss the case because of a violation of his right to a speedy trial or a specific speedy disposition of cases - considered as **acquittal**

Finality of Acquittal Doctrine - A judgment of acquittal, whether ordered by the trial or the appellate court, is final, unappealable, and immediately executory upon its promulgation.

- 2) The first jeopardy must have terminated.
 - **No** appeal or any other proceedings, which will deem the case still not final and/or executory
- 3) the second Jeopardy must be for the same offense as the first or the second offense includes or is necessarily included in the offense charge in the first information or is an attempt to commit the same or is a frustration thereof.
 - If an act is punished by law, and an ordinance, conviction or acquittal, under either shall constitute a bar to other prosecution for the same.

Two recognized tests in determining the existence of double jeopardy

- 1) **Same offense test/identity rule**
- 2) **Same evidence test**

Same offense test

xxxthe conviction or acquittal of the accused or the dismissal of the case shall be a bar to another prosecution for the offense charged, or for any attempt to commit the same or frustration thereof, or for any offense which necessarily includes or is necessarily included in the offense charged in the former complaint or information.

Same offense - identical offense or any attempt or commit attempt or frustration to commit the same or any offense charged, which necessarily includes or is

included in the offense charged in the former complaint or information.

Same evidence test

Whether or not a prosecution for one crime constitutes an obstacle to a subsequent action for another distinct crime, upon the same facts, is to inquire whether the **facts alleged in the second information, if proven, would have been sufficient to support the former information** of which the accused may have been acquitted or convicted, or there is a dismissal without the express consent of the accused, subject to certain exceptions. Whether or not the same evidence supports the two actions.

The test is to inquire whether the two offenses are in substance, precisely the same, or of the same nature or of the same species so that the evidence which proves the one, would prove the other.

Negative tests

- 1) A single act may be an offense against two statutes. And if each statute **requires proof of an additional fact**, which the other does not, then it does not exempt the accused from prosecution or conviction under the other.
- 2) If the evidence required to convict under the first indictment would not be sufficient to convict under the second indictment, but **proof of additional fact** would be necessary to constitute the offense charge.
- 3) unless the two offenses charged are the same in law and in fact, they are **not the same offense.**

Instances when **conviction** is not a bar to another prosecution

- 1) Supervening facts;
- 2) When there are newly discovered facts after a plea was entered in the former complaint or information; or
- 3) When there is an improper plea of guilty to a lesser offense

No double may arise

- 1) When the accused appeals from the sentence
 - Deemed waived the constitutional right of double jeopardy
- 2) When the civil aspect is appealed
 - Double jeopardy only pertains to jeopardy of punishment for the same offense. Double jeopardy does not pertain to the civil aspect of the criminal case.
- 3) When the action is dismissed with the express consent of the accused
- 4) When the judgment is considered void
- 5) Where the prosecution is denied due process



- it amounts to merely a continuation of the first Jeopardy and that does not expose the accused to a second jeopardy.
- 6) The discharge of the accused to be a state witness
GR: discharge of an accused to be a state witness shall amount to an **acquittal** and shall be a bar to a future prosecution for the same offense
XPN: the accused fails or refuses to testify against his co-accused in accordance with his sworn statement constituting the basis for the discharge.
- 7) When the trial court commits grave abuse of discretion in acquittal
- 8) Where the court has no jurisdiction
- 9) When the information is defective or is not valid
- 10) When the two offenses are different
- 11) When the case is dismissed on preliminary investigation
 - By reason of the abbreviated nature of preliminary investigation, a dismissal of the charge as a result thereof is not equivalent to a judicial pronouncement of acquittal.
- 12) Administrative cases
- 13) Appeal of the accused of a judgment of conviction

Quasi-offenses

When you charge a reckless imprudence, a quasi-offense, reckless imprudence resulting to so and so, a valid plea in that connection will already bar prosecution of a similar offense which arose from the same acts which constituted the first offense.

Where as a result of a vehicular accident, Ivler was charged before the MTC with two separate offenses in two information. First is reckless imprudence resulting in slight physical injuries for injury sustained by the victim and reckless imprudence resulting in homicide and damage property for the death of the victim's husband in the same vehicular accident.

When Ivler was convicted in the first quasi-offense, it already barred any subsequent prosecution for the same quasi-offense, regardless of its various resulting acts. (*Ivler v. Modesto-San Pedro*)

Section 5. *Effect of sustaining the motion to quash.* — If the motion to quash is sustained, the court may order that another complaint or information be filed except as provided in section 6 of this rule. If the order is made, the accused, if in custody, shall not be discharged unless admitted to bail. If no order is made or if having been made, no new information is

filed within the time specified in the order or within such further time as the court may allow for good cause, the accused, if in custody, shall be discharged unless he is also in custody for another charge. (5a)

Section 6. *Order sustaining the motion to quash not a bar to another prosecution; exception.* — An order sustaining the motion to quash is not a bar to another prosecution for the same offense unless the motion was based on the grounds specified in section 3 (g) and (i) of this Rule. (6a)

GR: if the motion to quash is sustained, meaning it was granted by the court, the court may order that another complaint or information be filed

XPN: when it is grounded on double jeopardy or extinction of criminal liability.

Effect when order is made

If the order is made, the accused, if in custody, shall be discharged unless he is admitted to bail.

Effect when no order is made

the accused, if in custody, shall be discharged unless he is also in custody for another charge.

Period to make order

extendable to such further time as the court may allow for good cause

Grounds which are not a bar to another prosecution

- (a) That the facts charged do not constitute an offense;
- (b) That the court trying the case has no jurisdiction over the offense charged;
- (c) That the court trying the case has no jurisdiction over the person of the accused;
- (d) That the officer who filed the information had no authority to do so;
- (e) That it does not conform substantially to the prescribed form;
- (f) That more than one offense is charged except when a single punishment for various offenses is prescribed by law;
- (h) That it contains averments which, if true, would constitute a legal excuse or justification; and

Section 8. *Provisional dismissal.* — A case shall not be provisionally dismissed except with the express consent of the accused and with notice to the offended party.

The provisional dismissal of offenses punishable by imprisonment not exceeding six (6) years or a fine of any amount, or both, shall become permanent one (1) year after issuance of the order without the case having been revived. With respect to offenses punishable by imprisonment of more than six (6) years, their provisional dismissal shall become permanent two (2) years after issuance of the order without the case having been revived. (n)

Section 9. *Failure to move to quash or to allege any ground therefor.* — The failure of the accused to assert any



ground of a motion to quash before he pleads to the complaint or information, either because he did not file a motion to quash or failed to allege the same in said motion, shall be deemed a waiver of any objections based on the grounds provided for in paragraphs (a), (b), (g), and (i) of section 3 of this Rule. (8)

Provisional dismissal

That dismissal of a criminal action with the express consent of the accused and without prejudice to its revival within the period prescribed by the rules.

Requisites

- 1) The accused must have given express consent to the provisional dismissal;
- 2) There must be notice to the offended party; and
- 3) The dismissal must be without prejudice to its revival.

When does the provisional dismissal become permanent

- 1) offenses punishable by imprisonment not exceeding six years, or a fine of any amount or both – **1 year** after issuance of the order, without the case being revived
- 2) offense punishable by imprisonment of more than six years – **2 years** after the issuance of the order without the case having been revived

If the dismissal is made without notice to the offended party, the reglementary period does not begin to run.

The time bar rule under Section 8, one year and two years, does not reduce the periods under Article 90 on the prescription of the crime. It is, however, a limitation on the right of the state to revive a criminal case against the accused after the information has been filed but subsequently provisionally dismissed with the express consent of the accused.

Administrative Matter 12- 11-2-SC
The Guidelines for Decongesting, Holding Jails by Enforcing the Rights of the Accused Persons to Bail and to Speedy Trial

SECTION 10

A) when the delays are due to the **absence of an essential witness** whose whereabouts are unknown or cannot be determined, and therefore are subject to exclusion in determining compliance with the prescribed time limits **which cause the trial to exceed 180 days**, the court shall **provisionally dismiss** the action **with the express consent of the detained accuse**

B) When the delays are due to the **absence of an essential witness** whose **presence cannot be obtained by due diligence**, though is **whereabouts are known**, the court shall **provisionally dismiss** the action **with the**

express consent of the detained accused provided that:

1. The hearing in the case has been **previously twice postponed due to the non-appearance of the essential witness**, and **both the witness and the offended party**, if they are two different persons, have been given notice of the setting of the case for third hearing, which note this contains a warning that the case would be dismissed if the essential witness continues to be absent.

2. There is **proof of service of the pertinent notices of hearings or subpoenas** upon the essential witness and offended party at their last known postal or email addresses or mobile phone numbers.

C) For the above purpose, the public or private prosecutors shall first present during the trial the essential witness or witnesses to the case before anyone else. An essential witness is one whose testimony dwells on the presence of some or all of the elements of the crime, and whose testimony is indispensable to the conviction of the accused.

essential witness - is one whose testimony dwells on the presence of some or all of the elements of the crime, and whose testimony is indispensable to the conviction of the accused.

GR: The provisional dismissal of a case does not operate as an acquittal since its dismissal was made with the express consent of the accused. Thus, there is no double jeopardy. The state is presumed to have abandoned or waived its right to revive the case and prosecute the accused.

XPN: if the prosecution actually has a justifiable reason for the delay in reviving the case, then the court has the discretion to still revive it despite the lapse of the period set forth in Sec. 8 that could have made the provisional dismissal permanent.

The inordinate delay in the revival or refileing of a criminal case may impair or reduce the capacity of the state to prove its case with the disappearance or non-availability of its witnesses. Physical evidence may have been lost, memories of witnesses may have grown dim or have faded. Passage of time makes proof of any fact more difficult. The accused may become a fugitive from justice or commit another crime. The longer the lapse of time from the dismissal of the case to the revival thereof, the more difficult it is to prove the crime.

On the other side of the fulcrum, a mere provisional dismissal of a criminal case does not terminate a criminal case. And the possibility that the case may be revived at any time may disrupt or reduce, if not derail the chances of the accused for employment, curtail his association, and create anxiety in him and his family. He is unable to lead a normal life because of community suspicion and his own anxiety. He continues to suffer those penalties and disabilities incompatible with the presumption of innocence. He may also lose his witnesses or other memories

may fade with the passage of time. In the long run, it may diminish his capacity to defend himself and thus askew the fairness of the entire criminal justice system. (*People v. Lacson*)

Remedy of the accused if motion is denied

GR: Not subject for petition for certiorari (the motion to quash is an **interlocutory order**)

XPN: grave abuse of discretion, which amounts to lack or excess of jurisdiction of the trial court

RULE 119
TRIAL

Discovery

Discovery under the procedure of the modes of discovery in civil cases is the procedure by **which one party in an action is enabled to obtain, before trial, knowledge of relevant facts and material evidence in the possession of the adverse party or of a witness.** Its rationale is to enable the parties to obtain the fullest possible knowledge of the issues and evidence long before the trial to prevent such trial from being carried on in the dark.

Modes of discovery in criminal cases

Sections 12, 13, 15 of RULE 119 and Section 10 of RULE 117

Section 12. *Application for examination of witness for accused before trial.* — When the accused has been held to answer for an offense, he may, upon motion with notice to the other parties, have witnesses conditionally examined in his behalf. The motion shall state: (a) the **name and residence** of the witness; (b) the **substance** of his testimony; and (c) that the **witness is sick or infirm as to afford reasonable ground for believing that he will not be able to attend the trial, or resides more than one hundred (100) kilometers from the place of trial and has no means to attend the same, or that other similar circumstances exist that would make him unavailable or prevent him from attending the trial.** The motion shall be supported by an affidavit of the accused and such other evidence as the court may require. (4a)

Formal requirements

- 1) a **motion**;
- 2) **notice** to other parties of the motion.
- 3) there should be an **affidavit of the accused**, and such other evidence as the court may require to support the application or the motion for examination of witness for the accused.

Substantive requirements

- 1) The motion shall state the **name and residence** of the witness, in order for the court to properly notify the witness that he is being called for to be examined as a witness for the accused.

- 2) In the motion, the **substance of the testimony of the proposed witness should be laid out.**
- 3) There should be **either one or any of these reasons** in order for the court to consider whether or not to grant the application for the examination of the witness:
 - a) that the witness is **sick or infirm**;
 - b) resides **more than one hundred (100) kilometers from the place of trial** and has **no means to attend the same**, or
 - c) that **other similar circumstances exist** that would make him unavailable or prevent him from attending the trial.

Section 13. *Examination of defense witness; how made.* — If the court is satisfied that the examination of a witness for the accused is **necessary**, an order will be made directing that the witness be examined at a specified date, time and place and that a **copy of the order be served on the prosecutor at least three (3) days before the scheduled examination.** The examination shall be taken before **a judge**, or, if not practicable, **a member of the Bar in good standing so designated by the judge in the order**, or if the order be made by a court of superior jurisdiction, before an **inferior court** to be designated therein. The examination shall **proceed notwithstanding** the absence of the prosecutor provided he was duly **notified of the hearing.** A written record of the testimony shall be taken. (5a)

Section 14. *Bail to secure appearance of material witness.* — When the court is satisfied, upon **proof or oath**, that a material witness will **not testify when required**, it may, upon motion of either party, order the witness to **post bail in such sum as may be deemed proper.** Upon refusal to post bail, the court shall commit him to prison until he complies or is legally discharged after his testimony has been taken. (6a)

Section 15. *Examination of witness for the prosecution.* — When it satisfactorily appears that **a witness for the prosecution is too sick or infirm to appear at the trial** as directed by the order of the court, or has to **leave the Philippines with no definite date of returning**, he may forthwith be **conditionally examined** before the court where the case is pending. Such examination, in the presence of the accused, or in his absence after reasonable notice to attend the examination has been served on him, shall be conducted **in the same manner as an examination at the trial.** Failure or refusal of the accused to attend the examination after notice shall be considered a waiver. The statement taken may be admitted in behalf of or against the accused. (7a)

Formal requirements

- 1) for the prosecution to apply or to move for the conditional examination of their witnesses, (**MOTION**)
- 2) and to notify the accused. (**NOTIFY**)



Substantive requirements

- 1) the witness of the prosecution is too sick or infirm to appear, or
- 2) he has to leave the Philippines with no definite date of returning.

Examination of defense witness	Examination of prosecution witness
Substantive requirements 4) The motion shall state the name and residence of the witness, in order for the court to properly notify the witness that he is being called for to be examined as a witness for the accused. 5) In the motion, the substance of the testimony of the proposed witness should be laid out. 6) There should be either one or any of these reasons in order for the court to consider whether or not to grant the application for the examination of the witness: d) that the witness is sick or infirm; e) resides more than one hundred (100) kilometers from the place of trial and has no means to attend the same, or f) that other similar circumstances exist that would make him unavailable or prevent him from attending the trial.	Substantive requirements 1) the witness of the prosecution is too sick or infirm to appear, or 2) he has to leave the Philippines with no definite date of returning.
Formal requirements 1) a motion;	Formal requirements

2) notice to other parties of the motion. 3) there should be an affidavit of the accused, and such other evidence as the court may require to support the application or the motion for examination of witness for the accused.	1) for the prosecution to apply or to move for the conditional examination of their witnesses, (MOTION) 2) and to notify the accused. (NOTIFY)
3-day notice rule	No express 3-day notice rule; it is submitted that reasonable time would be around three days, so the accused should be notified at least three days before the examination.
The examination shall be taken before a judge, or, if not practicable, a member of the Bar in good standing so designated by the judge in the order, or if the order be made by a court of superior jurisdiction, before an inferior court to be designated therein.	should be conducted in the same manner as an examination at the trial; before the judge in court

RULE 116

Section 10. *Production or inspection of material evidence in possession of prosecution.* — Upon **motion of the accused showing good cause and with notice to the parties**, the court, **in order to prevent surprise, suppression, or alteration**, may order the prosecution to produce and permit the inspection and copying or photographing of any written statement given by the complainant and other witnesses in any investigation of the offense conducted by the prosecution or other investigating officers, as well as any designated documents, papers, books, accounts, letters, photographs, objects or tangible things not otherwise privileged, which constitute or contain evidence material to any matter involved in the case and which are in the possession or under the control of the prosecution, police, or other law investigating agencies. (11a)

Section 11. *Suspension of arraignment.* — Upon motion by the proper party, the arraignment shall be suspended in the following cases:

(a) The accused appears to be suffering from an unsound mental condition which effectively renders him unable to fully understand the charge against him and to plead intelligently thereto. In such case, the court shall order his mental examination and, if necessary, his confinement for such purpose;

(b) There exists a prejudicial question; and
(c) A petition for review of the resolution of the prosecutor is pending at either the Department of Justice, or the Office of the President; provided, that the period of suspension shall not exceed sixty (60) days counted from the filing of the petition with the reviewing office. (12a)

Modes of discovery in civil cases

RULES 23- 28 therein

The modes of discovery under the amended Rules of Civil Procedure may be made applicable to the civil aspect of that criminal case being handled by the court.

Rule 23 – Deposition Spending actions

Deposition - is a testimony of a witness taken upon oral question or written interrogatories, not in open court, but in pursuance of a commission to take testimony issued by a court, or under a general law or court rule on the subject, and reduced to writing and duly authenticated, and intended to be used in preparation and upon the trial of a civil or criminal prosecution. It is a pretrial discovery device by which one party (through his or her attorney) asks oral questions of the other party or of a witness for the other party. The person who is deposed is called the deponent. The deposition is conducted under oath outside of the court room, usually in one of the lawyer's offices.

Rule 24 – Depositions before action or pending appeal

Rule 25 - details on how parties can elicit material and relevant facts through interrogatory

Rule 26 – admission by a party

Rule 27 – production or inspection of documents or things

Rule 28 - physical and mental examination of persons

Civil Procedure applies to all actions, whether civil or criminal and special proceedings.

While the modes of discovery under the amended Rules of Civil Procedure are applied to the civil aspect in appropriate cases, **in cases where the modes of discovery are geared towards discovery of evidence and facts as to the criminal aspect**, then it's the provisions on the modes of discovery in Revised Rules of Criminal Procedure that will govern. (*Vda. de Manguerra v. Risos*)

The use of discovery procedures is directed to the sound discretion of the trial judge, the deposition taking cannot be based nor can it be denied on flimsy reasons. (*People v. Hubert Webb*)

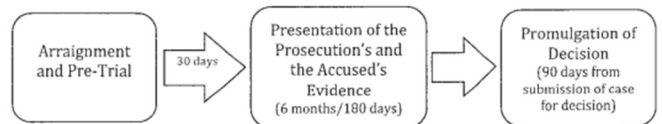
Section 1. Time to prepare for trial. — After a plea of not guilty is entered, the accused shall **have at least fifteen (15) days** to prepare for trial. The trial shall commence **within thirty (30) days** from receipt of the **pre-trial order**. (sec. 6, cir. 38-98)

Trial - judicial examination and determination of issues between parties to action, whether they be issues of law or of fact before a court that has jurisdiction.

Preparation – 15 days after plea of not guilty

Commencement – 30 days after pre-trial order

A. Regular Rules



Trial in absentia

After the accused has been arraigned and has entered his plea, there can be a trial in absentia, if the accused:

- 1) has already been arraigned;
- 2) has already been duly notified of the trial; and
- 3) his failure to appear is unjustifiable.

Escapee

When after he has already been arraigned, he escapes, he shall be deemed to have waived his right to be present on said date and all subsequent trial dates until custody of him is redeemed.

Section 2. Continuous trial until terminated; postponements. — Trial once commenced shall continue from day to day as far as practicable until terminated. It may be postponed for a reasonable period of time for good cause. (2a)

The court shall, after consultation with the prosecutor and defense counsel, set the case for continuous trial on a weekly or other short-term trial calendar at the earliest possible time so as to ensure speedy trial. **In no case shall the entire trial period exceed one hundred eighty (180) days from the first day of trial, except as otherwise authorized by the Supreme Court.** (sec. 8, cir. 38-98).

The time limitations provided under this section and the preceding section shall not apply **where special laws or circulars of the Supreme Court provide for a shorter period of trial.** (n)

Postponements

GR: Motions for postponements are granted only upon meritorious grounds, and no party has the right to assume that his motion will be granted.

XPN:

Good causes

- 1) calendar of the court
- 2) consideration for clogging of courts

Amendments

Take note of the time limitation under section 2 because the trial period has already been presently limited to just 80 days under section 6 of Rule 119. For drug cases, it should be finished by the court not later than 60 days from the date of the filing of the



information based on section 90 of Republic Act 9165 (The Comprehensive Dangerous Drugs Act of 2002).

Section 3. Exclusions. — The following periods of delay shall be excluded in computing the time within which trial must commence:

(a) Any period of delay resulting from **other proceedings concerning the accused**, including but not limited to the following:

(1) Delay resulting from an examination of the physical and mental condition of the accused;

(2) Delay resulting from proceedings with respect to other criminal charges against the accused;

(3) Delay resulting from extraordinary remedies against interlocutory orders;

(4) Delay resulting from pre-trial proceedings; provided, that the delay does not exceed thirty (30) days;

(5) Delay resulting from orders of inhibition, or proceedings relating to change of venue of cases or transfer from other courts;

(6) Delay resulting from a finding of the existence of a prejudicial question; and

(7) Delay reasonably attributable to any period, not exceed thirty (30) days, during which any proceeding which any proceeding concerning the accused is actually under advisement.

(b) Any period of delay resulting from the absence or unavailability of an essential witness.

For purposes of this subparagraph, an essential witness shall be considered absent when his whereabouts are unknown or his whereabouts cannot be determined by due diligence. He shall be considered unavailable whenever his whereabouts are known but his presence for trial cannot be obtained by due diligence.

(c) Any period of delay resulting from the mental incompetence or physical inability of the accused to stand trial.

(d) If the information is dismissed upon motion of the prosecution and thereafter a charge is filed against the accused for the same offense, any period of delay from the date the charge was dismissed to the date the time limitation would commence to run as to the subsequent charge had there been no previous charge.

(e) A reasonable period of delay when the accused is joined for trial with a co-accused over whom the court has not acquired jurisdiction, or, as to whom the time for trial has not run and no motion for separate trial has been granted.

(f) Any period of delay resulting from a continuance granted by any court motu proprio, or on motion of either the accused or his counsel, or the prosecution, if the court granted the continuance on the basis of its findings set forth in the order that the ends of justice served by taking such action outweigh the best interest of the public and the accused in a speedy trial. (sec. 9, cir. 38-98)

- a) Any period of delay resulting from **other proceedings concerning the accused**, including but not limited to the following:

(1) Delay resulting from an examination of the **physical and mental condition** of the accused;
- (a) Any period of delay resulting from **other proceedings concerning the accused**, including but not limited to the following:

(2) Delay resulting from proceedings with respect to **other criminal charges** against the accused;
- (a) Any period of delay resulting from **other proceedings concerning the accused**, including but not limited to the following:

(3) Delay resulting from **extraordinary remedies** against interlocutory orders;
- Interlocutory order** - is an order which does not dispose of the case on the merits and then when it is raised to the appellate court, or to the reviewing court, the court issues a temporary restraining order or an injunction.
- The trial court will have to abide by that order of the higher court and the **delay in the commencing or in proceeding with the trial should be excluded from the period to be counted to commence or to finish the trial.**
- (a) Any period of delay resulting from **other proceedings concerning the accused**, including but not limited to the following:

(4) **Delay resulting from pre-trial proceedings**; provided, that the delay does not exceed thirty (30) days;
- (a) Any period of delay resulting from **other proceedings concerning the accused**, including but not limited to the following:

(5) Delay resulting from **orders of inhibition, or proceedings relating to change of venue of cases or transfer from other courts**;
- (a) Any period of delay resulting from **other proceedings concerning the accused**, including but not limited to the following:

(6) Delay resulting from **a finding of the existence of a prejudicial question**; and
- (a) Any period of delay resulting from **other proceedings concerning the accused**, including but not limited to the following:

(7) Delay reasonably attributable to **any period, not exceed thirty (30) days**, during which any proceeding concerning the accused is **actually under advisement**.
- (b) Any period of delay resulting from the **absence or unavailability of an essential witness**.

For purposes of this subparagraph, an essential witness shall be considered absent when his

whereabouts are unknown or his whereabouts cannot be determined by due diligence. He shall be considered unavailable whenever his whereabouts are known but his presence for trial cannot be obtained by due diligence.

Requisites on absence of witness

- 1) The witness is really **material or essential** and appears to the court to be so.
- 2) That there be that the party who **applies for postponement has not been guilty of neglect**.
- 3) That the witness **can be had at the time to which the trial has been deferred**
- 4) That **no similar evidence could be obtained**.

(c) Any period of delay resulting from the mental incompetence or physical inability of the accused to stand trial.

(d) If the information is dismissed upon motion of the prosecution and thereafter a charge is filed against the accused for the same offense, any period of delay from the date the charge was dismissed to the date the time limitation would commence to run as to the subsequent charge had there been no previous charge.

(e) A reasonable period of delay when the accused is joined for trial with a co-accused over whom the **court has not acquired jurisdiction**, or, as to whom the time for trial has not run and no motion for separate trial has been granted.

(f) Any period of delay resulting from a **continuance granted by any court motu proprio**, or on **motion of either the accused or his counsel**, or the **prosecution**, if the court granted the continuance on the basis of its findings set forth in the order that the ends of justice served by taking such action outweigh the best interest of the public and the accused in a speedy trial. (sec. 9, cir. 38-98)

Section 4. Factors for granting continuance. — The following factors, among others, shall be considered by a court in determining whether to grant a continuance under section 3(f) of this Rule.

- (a) Whether or not the failure to grant a continuance in the proceeding **would likely make a continuation of such proceeding impossible or result in a miscarriage of justice**; and
- (b) Whether or not the case taken as a whole is so **novel, unusual and complex**, due to the **number of accused or the nature of the prosecution**, or that **it is unreasonable to expect adequate preparation within the periods of time established therein**.

In addition, no continuance under section 3(f) of this Rule shall be granted because of congestion of the court's calendar or lack of diligent preparation or failure to obtain available witnesses on the part of the prosecutor. (sec. 10, cir. 38-98)

Revised Guidelines

(d) Motion for postponement — A motion for postponement is prohibited, except if it is based on acts of God, force majeure or physical inability of the witness to appear and testify. If the motion is granted based on such exceptions, the moving party shall be warned that the presentation of its evidence must still be finished on the dates previously agreed upon.

REVISED GUIDELINES ON CONTINUOUS TRIAL FOR CRIMINAL CASES

11. Form of testimony

First level courts - duly **subscribed written statements** given to law enforcers or peace officers where the affidavits or counter-affidavits are submitted before the investigating prosecutor. If such are not available, it shall be in the form of **judicial affidavit** subject to additional to direct and cross-examination.

subscribed written statements > affidavits > judicial affidavits

Second level courts - all criminal cases where the **demeanor of the witness is not essential** in determining the credibility of witnesses, may be **written**

- duly subscribed written statements given to law enforcers or peace officers where the affidavits or counter-affidavits are submitted before the investigating prosecutor. If such are not available, it shall be in the form of judicial affidavit subject to additional to direct and cross-examination.

XPN: if the court determines that an eyewitness has to testify and the court needs to see his demeanor to determine his credibility, **then the direct testimony and the cross-examination of that witness shall be in open court and in oral form**.

Section 5. Time limit following an order for new trial. — If the accused is to be tried again pursuant to an order for a new trial, the trial shall **commence within thirty (30) days from notice of the order**, provided that if the period becomes impractical due to unavailability of witnesses and other factors, the court may extend it but not to exceed one hundred eighty (180) days from notice of said order for a new trial. (sec. 11, cir. 38-98)

Grounds for new trial

- 1) Errors of law are irregularities prejudicial to the substantial rights of the accused has been committed during the trial.
- 2) New and material evidence have been discovered which the accused could not, with reasonable diligence, have discovered and produced during the trial which when introduced would probably change the judgement.

Section 6. Extended time limit. — Notwithstanding the provisions of section 1(g), Rule 116 and the preceding section 1, for the first twelve-calendar-



month period following its effectivity on **September 15, 1998**, the time limit with respect to the period from arraignment to trial imposed by said provision shall be one hundred eighty (180) days. For the second twelve-month period, the limit shall be one hundred twenty (120) days, and for the third twelve-month period, the time limit shall be eighty (80) days. (sec. 7, cir. 38-98)

Section 7. *Public attorney's duties where accused is imprisoned.* — If the public attorney assigned to defend a person charged with a crime **knows that the latter is preventively detained**, either because he is charged with a **bailable crime but has no means to post bail**, or, is **charged with a non-bailable crime, or, is serving a term of imprisonment in any penal institution**, it shall be his duty to do the following:

(a) Shall promptly undertake to obtain the presence of the prisoner for trial or cause a notice to be served on the person having custody of the prisoner requiring such person to so advise the prisoner of his right to demand trial.

(b) Upon receipt of that notice, the custodian of the prisoner shall promptly advise the prisoner of the charge and of his right to demand trial. If at anytime thereafter the prisoner informs his custodian that he demands such trial, the latter shall cause notice to that effect to sent promptly to the public attorney.

(c) Upon receipt of such notice, the public attorney shall promptly seek to obtain the presence of the prisoner for trial.

(d) When the custodian of the prisoner receives from the public attorney a properly supported request for the availability of the prisoner for purposes of trial, the prisoner shall be made available accordingly. (sec. 12, cir. 38-98)

This rule just iterates the responsibility or the duty of the public attorney, to inform and of course, to assist the person accused of a crime to demand for trial.

Section 8. Sanctions. — In any case in which **private counsel** for the accused, the **public attorney**, or the **prosecutor**.

(a) Knowingly allows the case to be set for trial without disclosing that a **necessary witness would be unavailable for trial**;

(b) Files a **motion solely for delay** which he knows is **totally frivolous and without merit**;

(c) Makes a statement for the purpose of obtaining **continuance which he knows to be false** and which is **material to the granting of a continuance**; or

(d) Willfully fails to proceed to trial without justification consistent with the provisions hereof, the court may punish such counsel, attorney, or prosecution, as follows:

(1) By imposing on a **counsel privately retained** in connection with the defense of an accused, a **fine not exceeding twenty thousand pesos (P20,000.00)**;

(2) By imposing on any **appointed counsel de oficio, public attorney, or prosecutor** a **fine not exceeding five thousand pesos (P5,000.00)**; and

(3) By denying any defense counsel or prosecutor the **right to practice before the court trying the case for a period not exceeding thirty (30) days**. The punishment provided for by this section shall be **without prejudice to any appropriate criminal action or other sanction authorized under these rules**. (sec. 13, cir. 38-98)

Section 9. *Remedy where accused is not brought to trial within the time limit.* — If the accused is not brought to trial within the time limit required by Section 1(g), Rule 116 and Section 1, as extended by Section 6 of this rule, **the information may be dismissed on motion of the accused on the ground of denial of his right of speedy trial**. The accused shall have the burden of proving the motion but the prosecution shall have the burden of going forward with the evidence to establish the exclusion of time under section 3 of this rule. The dismissal shall be subject to the rules on double jeopardy.

Failure of the accused to move for dismissal prior to trial shall constitute a **waiver of the right to dismiss under this section**. (sec. 14, cir. 38-98)

If the case is dismissed, it will be immediately final and executory and the first jeopardy will attach that if you will file the same criminal case, double jeopardy will arise.

Burden of proof

Accused - burden of proving the motion for dismissal

Prosecution - burden of going forward with the evidence to establish the exclusion of time under section 3 of Rule 119

Effect of failure of the accused to move for dismissal

Shall constitute a waiver of the right to dismiss under this Section

Section 10. *Law on speedy trial not a bar to provision on speedy trial in the Constitution.* — No provision of law on speedy trial and no rule implementing the same shall be interpreted as a bar to any charge of denial of the right to speedy trial guaranteed by section 14(2), article III, of the 1987 Constitution. (sec. 15, cir. 38-98)

Speedy trial - one conducted according to law, criminal procedure, and rules and regulations free from vexatious, capricious and oppressive delays.

The invocation of the statutory right to speedy trial shall not be interpreted as a bar charge of denial of the constitutional right to speedy trial.

Effect of the violation of the right to speedy trial

if the accused is not brought to trial within the time limit, the complaint or information may be dismissed



on motion of the accused on the grounds of denial of his right to speedy trial.

Unjustified postponements

Unjustified postponements, which prolong the trial for an unreasonable length of time, are what offend the right of the accused to speedy trial. The right to speedy trial allows reasonable continuance so as not to deprive the prosecution of its day in court.

Balancing test – The test is done by counting the delay **from the time of the filing of the information and the conduct of both the prosecution and the accused** is weighed and the ff factors are considered:

- 1) **The length of delay**
- 2) **Reason for the delay – most important**
- 3) **Assertion or non-assertion of the right to speedy trial**
- 4) **The prejudice that it has caused the accused on the delay**

The right to speedy trial may be raised at different times in the criminal proceedings

So long as in these different times, there are different reasons.

The Ombudsman procedures are now excluded from the computation of the length of delay

Subsequently, the Supreme Court promulgated a jurisprudence which states that the period of preliminary examination/preliminary investigation in the Ombudsman cannot be taken into account in determining the length of delay of a particular criminal case.

Section 11. Order of trial. — The trial shall proceed in the following order:

- (a) The **prosecution** shall present evidence to prove the charge and, in the proper case, the civil liability.
- (b) The **accused** may present evidence to prove his defense, and damages, if any, arising from the issuance of a provisional remedy in the case.
- (c) The **prosecution and the defense** may, in that order, **present rebuttal and sur-rebuttal evidence unless the court**, in furtherance of justice, permits them to present additional evidence **bearing upon the main issue**.
- (d) Upon admission of the evidence of the parties, the case shall be **deemed submitted for decision unless the court directs them to argue orally or to submit written memoranda**.
- (e) When the accused **admits the act or omission charged in the complaint or information but interposes a lawful defense**, the order of trial may be modified. (3a)

In asking provisional remedies, usually the order of trial will not be followed.

RULE 127

Section 1. Availability of provisional remedies. — The provisional remedies in civil actions, insofar as they are applicable, may be availed of in connection with the civil action deemed instituted with the criminal action. (1a)

A party is required to make his or her oral offer of evidence on the same day after the presentation of his or her last witness and the opposing party is required to immediately interpose his or her oral comment or objection thereto.

Written memoranda

In case the court directs them to file a written memoranda, the court will usually give the parties a timeframe. It would either be 15 days

- 1) from notice, or
- 2) from the time the last witness or last hearing

Oral argument

usually after the hearing of the oral arguments

Reverse trial order

- not mandatory
- defense will present evidence first
- court has the discretion

Provisional remedies

RULE 127

Section 2. Attachment. — When the civil action is properly instituted in the criminal action as provided in Rule 111, the offended party may have the property of the accused **attached as security for the satisfaction of any judgment** that may be recovered from the accused in the following cases:

- (a) When the accused is about to **abscond** from the Philippines;
- (b) When the criminal action is based on a claim for money or property embezzled or fraudulently misapplied or converted to the use of the accused who is a public officer, officer of a corporation, attorney, factor, broker, agent, or clerk, in the course of his employment as such, or by any other person in a fiduciary capacity, or for a willful violation of duty;
- (c) When the accused has **concealed, removed, or disposed of his property, or is about to do so**; and
- (d) When the accused **resides outside** the Philippines. (2a)

* since this provisional remedies will be in relation to the civil aspect, if it is not deemed instituted in the criminal case, then you cannot avail of the provisional remedies*

Bail hearing

Section 8. The evidence presented during the bail hearing shall **be considered automatically reproduced at the trial**. But upon motion of either party, the court may **recall** any witness for **additional examination** unless the latter is **dead**



outside the Philippines or otherwise unable to testify.

Counterclaim, cross-claim or third-party complaint

No counterclaim, cross-claim or third-party complaint may be filed by the accused in the criminal case, but any cause of action which could have been the subject thereof may be litigated in a separate civil action.

Non-inclusion of eyewitnesses

The non-inclusion of some of the names of the eyewitnesses in the information does not preclude the prosecutor from presenting them during trial. The enumeration of witnesses in the information is not necessarily exhaustive. It is not meant to absolutely limit or lessen the prerogative of the prosecutor, prosecutor

Participation of the judge during the trial

Judges have as much interest as counsel in the orderly and expeditious presentation of evidence and have the duty to ask questions that would elicit the facts and the issues involved, clarify ambiguous remarks by witnesses and address the points that are overlooked by counsel.

Our system is more of accusatory rather than inquisitorial. However, the questioning by the judge is not in any way and move to an inquisitorial form, it is merely to make sure that facts are clarified. He is allowed a reasonable leeway in putting questions to witnesses as may be essential to elicit relevant facts to make the record speak the truth.

Section 16. *Trial of several accused.* — When two or more accused are jointly charged with any offense, they shall be tried jointly unless the court, in its discretion and upon motion of the prosecutor or any accused, orders separate trial for one or more accused. (8a)

Rules

- 1) When two or more accused or jointly charged in any offense, joint trial is automatic without need of any court order.
- 2) Court may, in its discretion and upon motion of the prosecutor or any accused, orders separate trial for one or more accused.
- 3) Court may grant a separate trial for those persons where the court has already acquired jurisdiction over their person.
- 4) If it appears that several accused have **different defenses, which may be antagonistic** to each other, in the interest of justice, a separate trial may be granted even after the prosecution has finished presenting its evidence in chief.
- 5) The grant or denial of a separate trial is discretionary upon the court and will be based on the circumstances of each case.

Section 17. *Discharge of accused to be state witness.* — When two or more persons are jointly charged with the commission of any offense, upon motion of the prosecution before resting its case, the court may direct one or more of the accused to be discharged with their consent so that they may be witnesses for the state when, after requiring the prosecution to present evidence and the sworn statement of each proposed state witness at a hearing in support of the discharge, the court is satisfied that:

- (a) There is **absolute necessity for the testimony** of the accused whose discharge is requested;
- (b) There is **no other direct evidence available** for the proper prosecution of the offense committed, except the testimony of said accused;
- (c) The testimony of said accused **can be substantially corroborated in its material points**;
- (d) Said accused **does not appear to be the most guilty**; and
- (e) Said accused **has not at any time been convicted of any offense involving moral turpitude**.

Evidence adduced in support of the discharge shall **automatically form part of the trial**. If the court denies the motion for discharge of the accused as state witness, his sworn statement shall be inadmissible in evidence. (9a)

Modes of becoming a state witness

- 1) Either the discharge under Section 17,
- 2) By the approval of the application for admission into the witness protection program of the Department of Justice in accordance with Republic Act 6981.

* the determination of who should be under the witness protection program and who should be discharged as witness will be the discretion of the prosecution.

**whether to discharge or not is discretionary upon the court*

*the determination of who comes under the witness protection program solely will be with the DOJ

Discharge hearing, exception

- 1) If already a witness of the state under the witness protection program, then the provision of Section 17 Rule 119 will no longer apply.
- 2) Where after the filing of the case in court, it was determined that one is a qualified person to be in the witness protection program. Aside from complying with the witness protection program under Republic Act 6981, Section 17 must also be complied.

Q: Is it possible that two witnesses or two accused, maybe discharge a state witness?

A: Yes, so long as the factors that are provided under Section 17 are present.

Section 18. *Discharge of accused operates as acquittal.* — The order indicated in the preceding section shall



amount to an **acquittal of the discharged accused** and shall be a **bar to future prosecution for the same offense, unless the accused fails or refuses to testify against his co-accused in accordance with his sworn statement constituting the basis for the discharge.** (10a)

Section 19. *When mistake has been made in charging the proper offense.* — When it becomes **manifest** at any time before judgment that a **mistake has been made in charging the proper offense and the accused cannot be convicted of the offense charged or any other offense necessarily included therein,** the accused shall **not be discharged** if there appears good cause to detain him. In such case, the court shall commit the accused to answer for the proper offense and dismiss the original case upon the filing of the proper information. (11a)

Application

This applies when the offense proved is different from the offense charged. And such offense proved is not necessarily included in the offense charged.

Section 20. *Appointment of acting prosecutor.* — When a prosecutor, his assistant or deputy is disqualified to act due to any of the grounds stated in section 1 of Rule 137 or for any other reasons, the judge or the prosecutor shall communicate with the **Secretary of Justice** in order that the latter may appoint an acting prosecutor. (12a)

RULE 137

Section 1. *Disqualification of judges.* — No judge or judicial officer shall sit in any case in which he, or his wife or child, is pecuniarily interested as heir, legatee, creditor or otherwise, or in which he is related to either party within the sixth degree of consanguinity or affinity, or to counsel within the fourth degree, computed according to the rules of the civil law, or in which he has been executor, administrator, guardian, trustee or counsel, or in which he has been presided in any inferior court when his ruling or decision is the subject of review, without the written consent of all parties in interest, signed by them and entered upon the record.

A judge may, in the exercise of his sound discretion, disqualify himself from sitting in a case, for just or valid reasons other than those mentioned above.

Section 21. *Exclusion of the public.* — The **judge** may, *motu proprio*, **exclude** the public from the courtroom if the evidence to be produced during the trial is offensive to decency or public morals. **He** may also, on motion of the accused, **exclude the public from the trial, except court personnel and the counsel of the parties.** (13a)

- 1) **Court, motu proprio** - exclude the public from the courtroom if the evidence to be produced during the trial is offensive to decency or public morals.

- 2) **On motion of accused** - exclude the public from the trial, except court personnel and the counsel of the parties.

Section 22. *Consolidation of trials of related offenses.* — Charges for offenses founded on the **same facts or forming part of a series of offenses of similar character** may be tried **jointly** at the **discretion of the court.** (14a)

Consolidation - the act or process of **uniting several actions into one trial or judgment** by order of the Court where all actions are between the same parties pending in the same court and involving substantially the same issues and defenses or the court may order that one of the actions be tried and the other be decided without trial according to the judgment in the one selected. The purpose of consolidation is to avoid multiplicity of suits, guards against oppression or abuse, prevent delay, clear congested docket and simplify the work of the trial court and save unnecessary cost or expense. In short, the attainment of justice with the **least expense and vexation to the parties and litigants.**

When there is duty to consolidate

When two crimes charged in the information filed before two different courts where irrefutably linked with or related to one another as they arose from the same incident and were founded on the same factual milieu and would be proven by the same testimony of the same witnesses, it was held that those cases **should have been consolidated and jointly** tried in one branch of the court.

Section 23. *Demurrer to evidence.* — **After the prosecution rests its case,** the court may dismiss the action on the ground of **insufficiency of evidence**

- (1) on its **own initiative** after giving the prosecution the opportunity to be heard or
- (2) upon **demurrer to evidence filed by the accused** with or without leave of court.

If the court denies the demurrer to evidence filed **with leave of court,** the accused **may adduce evidence in his defense.** When the demurrer to evidence is filed **without leave of court,** the **accused waives the right to present evidence** and submits the case for judgment on the basis of the evidence for the prosecution. (15a)

The motion for leave of court to file demurrer to evidence shall **specifically state its grounds** and shall be filed within a non-extendible period of **five (5) days** after the prosecution rests its case. The prosecution may **oppose the motion within a non-extendible period of five (5) days** from its receipt.

If **leave of court is granted,** the accused shall file the demurrer to evidence within a **non-extendible**



period of ten (10) days from notice. The prosecution may oppose the demurrer to evidence within a similar period from its receipt.

The order **denying the motion** for leave of court to file demurrer to evidence or the demurrer itself **shall not be reviewable by appeal or by certiorari before judgment.** (n)

Demurrer to evidence

An objection by one of the parties in an action to the effect that the evidence, which his adversary produce is insufficient in point of law, whether true or not to make out a case or sustained the issue. The party the emerging challenges the sufficiency of the whole evidence to sustain a verdict.

A demurrer to evidence is actually a motion to dismiss that is filed by the accused after the prosecution has rested its case. Thus, demurrer to evidence file before the prosecution rested its case is premature.

When considered sufficient

Evidence must prove

- 1) the **commission of the crime** and
- 2) the **precise degree of participation** there in by the accused.

Leave of court

A legal term used to describe asking the court permission to do something that the court doesn't normally allow according to its rules and procedures. Either party can file this motion, which is often called a motion for leave.

Effect of leave of court

- 1) **demurrer with leave of court** - If the court denies the demurrer to evidence filed with leave of court, the accused may adduce evidence in his defense.
- 2) **demurrer without leave of court** - When the demurrer to evidence is filed without leave of court, the accused waives the right to present evidence and submits the case for judgment on the basis of the evidence for the prosecution.

Period

- 1) **Motion for leave of court** - non-extendible period of **five (5) days after the prosecution rests its case.** The prosecution may **oppose the motion within a non-extendible period of five (5) days from its receipt.**
- 2) **Demurrer to evidence** - non-extendible period of **ten (10) days from notice.** The prosecution may oppose the demurrer to evidence within a similar period from its receipt.

Q: What is the effect of a lack of formal offer of evidence during trial?

A: documents, which may have been identified and marked as exhibits during the pre-trial or trial, but

which were not formally offered in evidence cannot in any manner be treated as evidence.

When rule of offer of evidence is relaxed

- 1) the evidence was duly identified by the testimony duly recorded.
- 2) the evidence was incorporated in the records of the case

Based on evidence of the prosecution

Although a demurrer to evidence must be resolved based on the evidence of the prosecution. There is nothing in the rules which would bar the court from taking cognizance of any other matters taken up during the trial or which has become part of the records of the case.

Q: What this is a remedy against a denial of a demurrer?

A: The appropriate recourse from an order denying a demurrer to evidence is for the court to

- 1) proceed with the trial,
- 2) after which the accused may file an appeal from the judgment of the lower court rendered after such trial.

When such an adverse interrogatory order is rendered, the remedy **is in absence of grave abuse of discretion or excess of jurisdiction, or an oppressive exercise of judicial authority, not** to resort to certiorari or prohibition but to **continue with the case in due course**, and when an **unfair favorable verdict is handed down to take an appeal in the manner authorized by law.**

- 1) **With leave of court** - present his evidence and thereafter take an appeal from the judgment of conviction
- 2) **Without leave of court** - may interpose an appeal from the judgment of conviction rendered by the trial court after the denial of his demurrer.

The rule generally prevailing is that certiorari does not lie to review a trial court's interlocutory order denying a demurrer to evidence.

Q: What if the demurrer to evidence is filed by one of several accused?

A: When one of several accused files a demurrer to evidence with leave of court. It is sound practice for the trial court to resolve the demurrer to evidence before proceeding with a trial for the other accused. The rationale for this is that the accused filing of the demurrer does not waive his right to present this evidence in the event of the denial of his demurrer.

Section 24. Reopening. — At any time **before finality of the judgment of conviction**, the judge may, *motu proprio* or upon motion, with hearing in either case, **reopen the proceedings to avoid a**



miscarriage of justice. The proceedings shall be terminated within **thirty (30) days** from the order granting it. (n)

Reopening of a case - one to permit the introduction of new evidence and practically to permit a new trial.

Period

Any time before the judgment of conviction becomes final. This presupposes a situation where the judgment has been promulgated in the proceedings shall be terminated within 30 days from the order granting the reopening.

Who may file

- 1) May be filed by **either party**
- 2) The reopening based on the rules may also be made at the instance of the **court**. But in any case, there must be a hearing conducted for the purpose of determining the propriety of such reopening.
- 3) A case may be open before the rendition of judgment **without the consent of the accused.**

Motion for new trial	Motion for reopening
may only be filed by the accused or granted with his consent	May be had on the motion by either party or motu proprio by the court.
governed by Rule 121 of the Rules	governed by Section 24, Rule 119
may be applied for and granted only upon specific well-defined grounds,	controlled by no other rule than that of the paramount interests of justice, that is to avoid a miscarriage of justice.

**RULE 120
JUDGMENT**

Section 1. Judgment definition and form. — Judgment is the adjudication by the court that the accused is guilty or not guilty of the offense charged and the imposition on him of the proper penalty and civil liability, if any. It must be written in the official language, personally and directly prepared by the judge and signed by him and shall contain clearly and distinctly a statement of the facts and the law upon which it is based. (1a)

Judgment - final consideration in determination of a court of competent jurisdiction upon the matters submitted to it in an action or proceeding.

It is the adjudication by the court that the accused is guilty or not guilty of the offense charged and the imposition on him of the proper penalty and civil liability, if any.

Form

- 1) written in the official language

- 2) personally and directly prepared by the judge and signed by him - To be valid, the judgment must be signed and promulgated during the incumbency of the judge who signed the same.

The efficacy of the decision or the judgment is not necessarily impaired by the fact that the ponente, the one who pens the judgment only took over from another judge who had earlier presided over the trial, for it does not follow that a judge who was not present during the trial cannot render a valid and just decision.

- 3) contain clearly and distinctly a statement of the facts and the law upon which it is based

Function

- 1) to inform the parties of their case, or their reasons for the decision so that if any of them appeals, he can point out to the appellate court the findings of facts or their rulings on points of law which he disagrees with.
- 2) assurance to the parties that in reaching a judgment, the judge did so through the process of legal reasoning.

Date of submission

The 1987 Constitution provides under Section 15 (1), Article 8, that unless reduced by the Supreme Court, all lower courts other than a collegial court must decide or resolve matters within **three months from the date of submission.**

Submission - Upon filing of last pleading

When judgment was rendered beyond the three-month period

Those decisions or judgment are valid. However, it will be the judges that failed to render the decision within that period who will be sanctioned. The rendition of the judgment beyond the periods provided for under the Constitution will not invalidate the judgment.

Cases under the Rule on Summary Procedure

30 days following the receipt of the last affidavit and position paper or the expiration of the period for filing the same within which to render the judgment.

Drug cases

The decision shall be rendered by the trial court within **15 days from the date of the submission of the case** for resolution.

Section 2. Contents of the judgment. — If the judgment is of **conviction**, it shall state

- (1) the **legal qualification of the offense** constituted by the acts committed by the accused and the **aggravating or mitigating circumstances** which attended its commission;
- (2) the **participation of the accused** in the offense, whether as principal, accomplice, or accessory after the fact;



(3) the **penalty** imposed upon the accused; and
(4) the **civil liability or damages** caused by his wrongful act or omission to be recovered from the accused by the offended party, if there is any, unless the enforcement of the civil liability by a separate civil action has been reserved or waived.

In case the judgment is of **acquittal**, it shall state whether the evidence of the prosecution absolutely failed to prove the guilt of the accused or merely failed to prove his guilt beyond reasonable doubt. In either case, the judgment shall determine if the act or omission from which the civil liability might arise did not exist. (2a)

Proof beyond reasonable doubt

To be considered sufficient, evidence must prove:

- 1) The commission of the crime; and
- 2) The precise degree of the participation of the accused therein.

GR: Conviction must be by virtue of direct evidence

XPN: Supreme Court has pronounced that conviction of an accused through circumstantial evidence as long as the following requisites or presence may be had:

- (1) That there must be more than **one circumstance**;
- (2) That the inference must be based on **proven facts**; and
- (3) That **the combination of all circumstances produces a conviction beyond doubt of the guilt of the accused**

Proof of minority

The allegation of minority or age must be proved with equal certainty and clearness as the crime itself.

Judgment of acquittal

In case the judgment is for acquittal, it shall state whether the evidence of the prosecution absolutely failed to prove the guilt of the accused or merely failed to prove this guilt beyond reasonable doubt. In either case, the judgment **shall determine if the act or omission from which the civil liability might arise did not exist**.

Two kinds of acquittal

- 1) An acquittal on the ground the accused is not the author of the act or omission complained of.
- 2) An acquittal based on reasonable doubt of the guilt of the accused.

Finality of acquittal rule

A judgment of acquittal is immediately final and executory, and it is not appealable. It cannot be reconsidered, nor can it be modified, except to eliminate something which is civil or administrative in nature, or it can be modified so long as it is favorable to the accused.

- 1) **Judgment of conviction** – 15 days to appeal from the date of promulgation of the judgment
- 2) **Judgment of acquittal** – becomes final and executory

Dismissal upon an affidavit of assistance

GR: An affidavit of desistance by itself, is **not a ground for the dismissal** of a criminal case, after the institution of the action.

Motion/Action	In writing?	CONSENT	SIGN	NOTICE
Motion to quash	YES		Accused or Counsel	
Pre-trial	YES		Accused and Counsel	
Provisional dismissal		MUST BE EXPRESS; Accused		Offended party
Judgment	YES		Judge	
New trial or reconsideration	YES	Accused		
Dismissal of appeal				Appellant

Motion/Action	Considered as acquittal?
Discharge of accused	YES
Demurrer to evidence	YES
Violation of right to speedy trial	YES
Provisional dismissal	NO

Motion/Action	Interlocutory?
Demurrer to evidence	YES
Motion to quash	YES

